Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod

14th City Council
8th Special Session
Series of 2005

PRESENT:

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Councillor Dante L. Apostol, Sr.
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ORDINANCE NO. 0158-05

Series of 2005

AN ORDINANCE APPROVING THE 2005 REVENUE CODE OF THE CITY OF DAVAO, AS AMENDED

BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD OF DAVAO CITY, IN SESSION ASSEMBLED, THAT:

SECTION 1. TITLE

This Ordinance shall be known as "".

SECTION 2. SCOPE AND APPLICATION

This Code shall govern the levy, assessment, and collection of taxes, fees, charges, and other impositions within the territorial jurisdiction of this City.

SECTION 3. WORDS AND PHRASES NOT HEREIN EXPRESSLY DEFINED

Words and phrases embodied in this Code not herein specifically defined shall have the same definitions as found in RA 7160, otherwise known as the Local Government Code of 1991.

SECTION 4. RULES OF CONSTRUCTION

In construing the provisions of this Code, the following rules of construction shall be observed unless inconsistent with the manifest intent of the provisions;

(a) General Rules. All words and phrases shall be construed and understood according to the common and approved usage of the language; but the technical words and phrases and such other words in this Code which may have acquired a peculiar or appropriate meaning shall be construed and understood according to such technical, peculiar or appropriate meaning.

(b) Number. Every word importing the singular number shall apply to several persons or things as well; and every word importing the plural number shall extend and be applied to one person or thing as well.

(c) Reasonable Time. In all cases where any act is required to be done within the reasonable time, the same shall be deemed to mean such time as may be necessary for the prompt performance of the act.

(d) Computation of Time. The time within which an act is to be done as provided in this Code, or in any rule or regulation issued pursuant to the provisions thereof, when expressed in days, shall be computed by excluding the first

day and including the last day, except if the last day falls on a Saturday, Sunday or holiday, in which case the same shall be excluded in the computation and the business day following shall be considered the last day.

(e) References. All references to chapters, articles, or sections are to the Chapters, Articles or Sections in this Code unless otherwise specified.

(f) Conflicting Provisions of Chapters. If the provisions of different chapters conflict with or contravene each other, the provisions of each chapter shall prevail as to all specific matters and questions involved therein.

(g) Conflicting Provisions of Sections. If the provisions of the different sections in the same article conflict with each other, the provisions of the Section, which is the last in point of sequence, shall prevail.

SECTION 5. DEFINITION OF TERMS:

(a) Accessoria or Row House - a house of not more than two storeys, composed of a row of dwelling units entirely separated from one another by party wall or walls and with an independent entrance for each dwelling unit.

(a1) Accessory Building - a building subordinate to the main building on the same lot and used for purposes customarily incidental to those of the main building such as servants quarters, garage, pump house, laundry, etc.

(a2) Acquisition Cost - for newly acquired machinery not yet depreciated and appraised within the year of its purchase, refers to the actual cost of the machinery to its present owner, plus the cost of transportation, handling, and installation at the present site.

(a3) Actual Use - refers to the purpose for which the property is principally or predominantly utilized by the person in the possession thereof.

(a4) Ad Valorem Tax - is a levy on real property determined on the basis of a fixed proportion of the appraised value of the property.

(a5) Addition - any new construction which increases the height or area of an existing building/structures.

(a6) Admission Fee - refers to the monetary consideration that a patron/customer pays to gain admission to any amusement place.

(a7) Advertising Agency - include all persons who are engaged in the business of advertising for others by means of billboards, posters whether pictorial or reading matters, placards, notices, signs, directories, pamphlets, leaflets, handbills, electric or neon lights airplanes, balloons or other media.

(a8) Advertising Sign - a sign that directs attention to a business, profession, commodity, services or entertainment conducted, sold or offered for public/private consumption exposed in an outdoor presentation.

(a9) Agricultural Building - a building designed and constructed to house farm implements, hay, grain, poultry, livestock or other horticultural products. This structure shall not be a place of human habitation or a place of employment where agricultural products are processed, treated or packaged; nor shall it be used by the public.

(a10) Agricultural Land - is land devoted principally to the planting of trees, raising of crops, livestock and poultry, dairying, salt making, inland fishing and similar aquacultural activities, and other agricultural activities.

(a11) Agricultural Products - includes the yield of the soil such as corn, rice wheat, rye, hay, coconuts, sugar cane, tobacco, root crops, vegetables, fruits, flowers, and their by-products; ordinary salt; all kinds of fish and marine products; poultry and livestock and animal products, whether in their original form or not.

The phrase "whether in their original form or not" refers to the transformation of said products by the farmer, fisherman, producer or owner, through the application of processes to preserve or otherwise to prepare said products for the market such as freezing, drying, salting, smoking or stripping.

Include those that undergo not only simple but even sophisticated processes employing advanced technological means in packaging like dressed chicken or ground coffee in plastic bags or styropor or other packaging materials intended to process and prepare the products for the market.

The term by-products shall mean those materials which in cultivation or processing of an article remain over, and which are still of value and marketable, like copra cake from copra or molasses from sugar cane.

(a12) Alley - any public space or thoroughfare which has been dedicated or devoted to the public or public use as a passageway with a width of not more than three (3) meters.

(a13) Alter or Alteration - any change, addition, or modification in construction or occupancy, such as changes in the materials used, partitioning, location/size of openings, structural parts, existing utilities and equipment but does not increase the overall area thereof.

(a14) Ambulant, Transient or Itinerant Vendor - refers to a vendor or seller who does not permanently occupy a definite place of the market but one who comes either daily or occasionally to sell his/her goods.

(a15) Amusement - is a pleasurable diversion and entertainment. It is synonymous to recreation, relaxation, avocation, pastime or fun.

(a16) Amusement Places - includes theaters, cinema houses, concert halls, circuses, coliseums, gymnasiums, stadiums, cockpits and other similar amusement places, where one seeks admission to entertain himself by seeing or viewing the show or performance or by direct participation. It also means a place or compound, building or portion thereof, whether open or enclosed for recreational or entertainment purposes.

(a17) Other Places of Amusement - includes all other places of amusement not specifically enumerated or otherwise provided for in this Ordinance, including but not limited to night clubs or day clubs, night and day clubs, cocktail

lounges, supper or family clubs, disco houses, minus-one or sing-along houses, bars or beer houses/gardens, fast food centers showing sports competitions or replay shows by direct hookup via satellite or those showing video cassette films/movies, beach resorts, and other places of amusement where one seeks admission to entertain himself whether by seeing or viewing or by direct participation.

(a18) Ancillary Building/Structure - a secondary building/structure located within the same premises the use of which is incidental to that of the main building/structure.

(a19) Apartel - any building or edifice containing several independent and furnished or semi-furnished apartments, regularly leased to tourists and travelers for dwelling on a more or less long-term basis and offering basic services to its tenants, similar to hotels.

(a20) Apartment - a room or suite of two or more rooms, designed and intended for, or occupied by one family for living, sleeping, and cooking purposes.

(a21) Apartment House - any building or portion thereof, which is designed, built, rented, leased, let or hired out to be occupied, or which is occupied as the

(a22) Appraisal - is the act or process of determining the value of property as of a specific purpose.

(a23) Arcade - any portion of a building above the first floor projecting over the sidewalk beyond the first-storey wall used as protection for pedestrians against rain or sun.

(a24) Arrastre - shall mean the operation of conveying and loading merchandise on piers or wharves.

(a25) Assembly Building or Hall - a building or a portion of a building used for the gathering together of fifty or more persons for such purposes as deliberation, workshop, entertainment, amusement, or awaiting transportation or of a hundred or more persons in drinking and dining establishments.

(a26) Assessment - is the act or process of determining the value of a property, or portion thereof subject to tax, including the discovery, listing, classification, and appraisal of properties.

(a27) Assessment Level - is the percentage applied to the fair market value to determine the taxable value of the property.

(a28) Assessed Value - is the appraised value of the real property multiplied by the assessment level. It is synonymous to taxable value.

(a29) Astray Animal - means an animal which is set loose unrestrained, and not under the complete control of its owner, or the charge or in possession thereof, found roaming at-large in public or private places whether fettered or not.

(a30) Attic Storey - any storey situated wholly or partly in a roof, so designed, arranged, or built as to be used for business, storage, or habitation.

(a31) Awning - a movable shelter supported entirely from the exterior wall of a building and of a type which can be retracted, folded, or collapsed against the face of supporting building.

(b) Backing - the surface or assembly to which veneer is attached.

(b1) Balcony - a portion of the seating space of an assembly room, the lowest part of which is raised 1.20 meters or more above the level of the main floor.

(b2) Balcony Exterior Exit - a landing or porch projecting from the wall of a building, and which serves as a required means of egress. The long size shall be at least fifty percent (50%) open, and the open area above the guardrail shall be so distributed as to prevent the accumulation of smoke or toxic gases.

(b3) Banks and other financial institutions - include non-bank financial intermediaries, lending investors, finance and investment companies, pawnshops, money shops, insurance companies, stock markets, stock brokers and dealer in securities and foreign exchange, as defined under applicable laws, or rules and regulations there under;

(b4) Bar - includes any place or establishment whose principal business is the sale of alcoholic beverage or liquors of any kind to be used or consumed within its premises. A bar that allows music or dancing within its premises shall be considered a night club, cabaret, dancing school or dance hall, as the case maybe.

(b5) Barangay Micro Business Enterprise (BMBE) - as defined under Republic Act No. 9178, refers to any business entity or enterprise engaged in the production, processing or manufacturing of products or commodities, including agro-processing, trading and services, whose total assets including those arising from loans but exclusive of the land on which the particular business entity's office, plant and equipment are situated, shall not be more than Three Million Pesos (P3,000,000.00).

(b6) Barbecue - a stationary open heart or brazier, either fuel-fired or electric, used for food preparation.

(b7) Basement - a portion of a building between floor and ceiling which is partly below and partly above grade but so located that the vertical distance from grade to ceiling.

(b8) Bay or Panel - one of the intervals or spaces into which the building front is divided by columns, buttresses, or division walls.

(b9) Bet Manager (Kasador) - a person who calls and takes care of bets from owners of both gamecocks and those of other bettors before he orders commencement of the cockfight and thereafter, distributes winning bets to the winners

after deducting a certain commission.

(b10) Bet-taker (Kristo) - a person who participates in cockfights and with the use of money or other things of value, bets with other bettors, or through other bet-takers and win or losses his bets depending upon the result of the cockfights as announced by the referee or sentenciador.

(b11) Billboard - a panel for posting bills or poster which exceeds six (6) sq. m. in area.

(b12) Breeder - a person engaged in gamefowl breeding propagation for personal and/or commercial purposes for eventual use in cockfighting.

(b13) Brewer - includes all persons who manufacture fermented liquor of any description for sale or delivery to others but does not include manufacturer of tuba, tappu or similar domestic fermented liquors, whose production does not exceed two hundred gauge liters.

(b14) Boarding House - includes any house where renters are accepted for compensation by the week or by the month, and where meals are served; a house with five or more sleeping rooms where renters are provided with lodging, and meals for a fixed sum paid by the month, or week, in accordance with previous arrangement.

(b15) Bondsman - means any person habitually engaged in the business of furnishing bonds in civil actions or for persons arrested or detained for prosecution.

(b16) Boiler Room - any room containing a steam or hotwater boiler.

(b17) Boxing Arena or Stadium - means a place or compound whether open or enclosed, where only professional boxing contests are held.

(b18) Boxing Exhibition - includes every exhibition of the art of attack and defense with the fists.

(b19) Buildable Area - the remaining space in a lot after deducting the required minimum open spaces.

(b20) Building - refers to all kinds of structure more or less permanently attached to a piece of land, excluding those which are merely superimposed on the soil; any structure built for the support, shelter, or enclosure of persons, animals, chattels, or property of any kind.

(b21) Building Height - the vertical distance from the established grade elevation to the highest point of the coping of a flat roof, to the average height of the highest gable or a pitch or hip roof, or to the top of the parapet if the roof is provided with a parapet. In case of sloping ground, the average ground level of the buildable area shall be considered the established grade elevation.

(b22) Building Length - its general linear dimensions usually measured in the direction of the bearing wall for girders.

(b23) Building Line - the line formed by the intersection of the outer surface of the enclosing wall of the building and the surface of the ground.

(b24) Building Permit - is a permit issued by the City Government to a person, firm, or corporation, including any government agency or instrumentality, authorizing them to erect, construct, alter, repair, move, convert or demolish any building or structure, or cause the same to be done.

(b25) Building Width - its shortest linear dimensions usually measured in the direction of the floor, beams or joists.

(b26) Business - means trade or commercial activity regularly engaged in as a means of livelihood or with a view to profit.

(b27) Business Agent - includes all persons who act as agent of others in the transaction of business with any public officers, as well as those who conduct collection or advertising for another.

(b28) Business Sign - an identification on premises or accessory sign that directs attention to a profession, business, commodity, service or entertainment conducted, sold or offered in the same place where the business is located.

(c) Cabaret/Dance Hall - includes any place or establishment where dancing is permitted to the public in consideration of any admission, entrance, or any other fee paid on, before or after the dancing, and where professional hostesses or dancers are employed.

(c1) Calling - means one's regular business, trade, profession, vocation or employment which does not require the passing of an appropriate government board or bar examination, such as professional actors and actresses, hostesses, masseurs, commercial stewards and stewardesses, etc.

(c2) Carenderia - refers to any public eating place where foods already cooked are served at a price.

(c3) Capital - signifies the actual estate, whether in money or property owned by an individual or corporation, it is a fund with which it transacts its business and which would be liable to each creditor, and which in case of insolvency, passes to a receiver.

(c4) Capital Investment - is the capital which a person employs in any undertaking, or which he contributes to the capital of a partnership, corporation, or any other juridical entity or association in a particular taxing jurisdiction.

(c5) Cellar - the portion of a building between floor and ceiling which is wholly or partly below grade and so located that the vertical distance from grade to the floor below is equal to or greater than the vertical distance from grade to ceiling.

(c6) Charges - refer to pecuniary liability, as rents or fees against persons or property.

(c7) Chimney Classifications:

c7.1.Residential Appliance Type - a factory-built or masonry chimney suitable for removing products of combustion from residential type appliance producing combustible gases not in excess of 538°C measured at the appliance flue

outlet.

c7.2.Low-Heat Appliance Type - a factory-built masonry or metal chimney suitable for removing products of combustion from fuel-burning low-heat appliances producing combustible gases not in excess of 538°C under normal operating conditions but capable of producing combustible temperatures measured at the appliance flue outlet.

c7.3.Medium-Heat Appliance Type - a factory-built or masonry or metal chimney suitable for removing products of combustion from fuel-burning medium-heat appliance producing combustible gases not in excess of 1093°C measured at the appliance flue outlet.

(c8) Chimney Connector - the pipe which connects a flue-burning appliance to a chimney.

(c9) Chimney Linear - the lining materials of fire clay or other approved materials.

(c10) Chimney Masonry - the chimney of solid masonry units bricks, stones, listed hollow units, masonry units or reinforced concrete.

(c11) Chiropractor - means one skilled in treating diseases of the hand and feet; but is not restricted to the treatment of ailment of the feet.

(c12) Circus - includes every building, tent, or area where feats of horsemanship, acrobatic performance, or similar acts are exhibited.

(c13) City/Municipal Waters - include not only streams, lakes and tidal waters within the City, not being the subject of private ownership and not comprised within the national parks, public forest, timber lands, forest reserves or fishery reserves, but also marine waters included between two (2) lines drawn perpendicularly to the general coastline from points where boundary lines of the City touch the sea at low tide and a third line parallel with the general coastline and fifteen (15) kilometers from it. Where two (2) municipalities are so situated on the opposite shores that

there is less than fifteen (15) kilometers of marine waters between them, the third line shall be equally distant from opposite shores of the respective municipalities;

(c14) City Public Market - refers to a public market maintained, owned and / or operated by the City Government within its territorial jurisdiction.

(c15) Club - includes any regularly organized club, voluntary association or organized action maintained, conducted or controlled for the amusement, recreation, or improvement of the members thereof, for which an initiation is necessary or membership dues or fees are required before admission, and that the same is not operated for profit.

(c16) Cocker (aficionado) - a person who participates and bets in cockfighting as a sports, amusements, recreation or form of relaxation.

(c17) Cockfighting (Sabong) - shall embrace and mean the commonly known game or term "Cockfighting derby", "pintakasi", "tupada", or its equivalent term in different Philippine localities.

(c18) Cockfight (Soltada) - the actual fighting or physical combat of two (2) pitted or evenly matched gamecocks where bets on either side are laid.

(c19) Cockpit - includes any place, compound, building or portion thereof, where cockfights are held whether or not money is bet on the result of such cockfights.

(c20) Cockpit Manager - a person who professionally, regularly and habitually manages a cockpit and cockfights therein. He may or may not be the owner of the cockpit himself.

(c21) Cocktail Lounge - same definition as Supper or Family Clubs.

(c22) Coliseum - includes amphitheater, covered or otherwise or other place where professional or non-professional athletic competitions, including boxing exhibitions, are held.

(c23) Collecting Agency - includes any person other than a practicing Attorney-at-Law engaged in the business of collecting or suing debts or liabilities placed in his hands, for said collection or suit, by subscribers or customers applying and paying therefor; while a "Mercantile Agency" is any person engaged in the business of gathering information as to the financial standing ability, or credit of persons engaged in business, and reporting the same to subscribers or to customers applying and paying therefor.

(c24) Commercial Broker - includes all persons other than importers, manufacturers, producers or bona fide employees, who, for compensation or profit, sell or bring about sale or purchase of merchandise for other persons; bring proposed buyers and sellers together; or negotiate freight or other business for owners of vessels or other means of transportation, or for the shippers, consigners, or non-consigners of freight carried by vessels or other means of transportation. The term includes commission merchants.

(c25) Commercial Land - land area devoted principally for the object of profit and is not classified as agricultural, industrial, mineral, timber, or residential land.

(c26) Compounder - comprises every person who, without rectifying, purifying, or refining distilled spirits, wine, or other liquor with any materials except water, manufacture any intoxicating beverage whatever.

(c27) Concerto or Concert - a musical performance by a number of voices or instruments, or both; the combination of voices or instruments to produce harmony; a performance of music before an audience. The term is sometimes reserved for a performance by several musicians. The word concert originally meant a combination of performers ("a consort of viols") rather than the performance itself.

(c28) Concrete Block - a hollow or solid concrete masonry unit made from cement and suitable aggregates such as sand, gravel, crushed stone, bituminous or anthracite cinders, burned clay, pumice, volcanic scoria, air-cooled or

expanded blast furnace slugs.

(c29) Confiscatory - is that which amounts to undue seizure or forfeiture of private property in favor of the public treasury;

(c30) Construction - all on-site work done from site preparation, excavation, foundation, assembly of all the components and installation of utilities and equipment of building/structures.

(c31) Consumer - includes those who directly purchase or acquire from manufacturers, producers, and distributors of articles or goods for their direct use or consumption, or for distribution for the use or consumption of others as the end users or ultimate consumers.

(c32) Contractor - includes persons, natural or juridical, not subject to professional tax under Section 139 of the Local Government Code of 1991, whose activity consists essentially of the sale of all kinds of services for a fee, regardless of whether or not the performance of the service calls for the exercise or use of the physical or mental faculties of such contractor or his employees.

It is deemed synonymous with the term "Builder" and hence, any person who undertakes or offers to undertake or submits a bid to, or does himself or through others, constructs, alters, repairs, adds to, subtracts from, improves, moves, wrecks or demolishes any building, highway, road, railroad, excavation or other structure, or work in connection therewith. The term "contractor" includes sub-contractor, general engineering, general building, specialty and service contractors, as defined under applicable laws;

1) A "General Engineering Contractor" - is a person whose principal contracting business is in connection with fixed works requiring specialized engineering knowledge and skill, including the following divisions or subjects: Irrigation, drainage, water power, water supply, flood control, in-land waterways, harbors, docks and wharves, shipyards and ports, dams, hydro-electric projects, levees, river control and reclamation works, railroads, highways, waste reduction plants, bridges, overpasses, underpasses and other similar works, pipelines, and other systems for the transmission of petroleum and other liquid or gaseous substances, land leveling and earth moving projects, excavation, grading, trenching, paving and surfacing works, filling, demolition, and salvage work contractors; persons engaged in the installation of gas or electric light, heat energy or power, and all of similar works not specifically provided herein.

2) A "General Building Contractor" - is a person whose principal contracting business is in connection with any structure built, being built, or to be built, for the support, shelter and enclosure of persons, animals, chattels or movable property of any kind, requiring in its construction the use of more than two unrelated building trades or crafts, or to do or superintend the whole or any part thereof. Such structure includes sewers and sewerage disposal plants and systems, parks, playgrounds and other recreational works, refineries, chemical plants and similar industrial plants, requiring specialized engineering knowledge and skill, powerhouses, power plants and other utility plants and installations, mines and metallurgical plants, cement and concrete works in connection with the above-mentioned fixed works. All other similar works not specifically provided herein.

A person who merely furnishes materials or supplies without fabricating them into, or consuming them in the performance of the work of the general building contractor does not necessarily fall within this definition.

3) A "Specialty Contractor" - is a person whose operations pertain to the performance of construction work requiring special skill and whose principal contracting business involves the use of specialized building trades or crafts.

4) A "Service Contractor" - is any person principally rendering or offering services, whether by manual labor, the use of expertise or with the use of facilities or machines for a fee, and shall include engraving, plating, and plastic lamination establishments; photostat, white/blue printing, reproduction or duplicating establishment; photograph studios; motor repair, and welding shops; proprietors or operators of establishments for construction or repairing, repainting, upholstering, washing or greasing of motor vehicles, animal-drawn vehicles, tricycles, heavy equipment; vulcanizing, recapping and auto electrical services; battery charging; proprietors or operators of furniture shops; establishments for planning or surfacing and recutting of lumber, and sawmills under contract to saw or cut logs belonging to others; proprietors or operators of dry-cleaning or dyeing establishments, steam laundries using washing machines; proprietors or owners of shops for the repair of tools, instruments, apparatus and appliances; furniture and shoe repairing by machine or by any mechanical contrivances; proprietors or operators of establishments of stables, garages or lots for parking purposes, public warehouses and bodegas; berthing and wharfage, drafting or towing services; proprietors or operators of tailor and dress shops, milliners and hatters; beauty parlors, barbershops, massage and therapeutic clinics, sauna, Turkish and Swedish baths; slenderizing and body building saloons and similar establishments; funeral parlors, proprietors or operators of hotels, motels and lodging houses/boarding houses/lessors of real estate, internet café, Internet Service Provider (ISP)

Proprietors or operators of shopping centers and privately-owned public markets;

Proprietors or operators of arrastra and stevedoring, warehousing and forwarding or messengerial services; master plumber, smiths and house or sign painters; printers, bookbinders, lithographers, video coverage; publishers, except those engage in the publication or printing of any newspaper, magazine, review or bulletin which appears at regular intervals with fixed prices for subscription and sale and which is not devoted principally to the publication of advertisement; advertising agencies; business agents, private detective or watchman agencies; proprietors or operators of smelting plants, or assaying laboratories;

Shops for searing animals; vaciar shops, upholstery shops; shipping agencies; collecting agencies; hampgrading establishments; indentor and/or indent services; litherages; permapress establishments;

Business consultants and management agencies; skin care specialists or consultants; booking offices for local exchange (except imported films), brokerages; interior decoration services; employment services; private hospitals,

medical, dental and optical clinics; animal hospitals; public ferries; purchasing warehouses and bodegas; purchasing agents and/or purchasing agencies; recapping plants; rental of equipment, document safety boxes furniture, bicycles, vehicles suits and vestments, skates, brakes, rent-a-car services, sound system; roasting of pigs and fowls not sold for retail; sand and gravel contractors; sculpture shops; painting, silk-screening and T-shirt printing; wood carving and handicraft shops; tanners;

Travel agencies; vocational and/or driving schools; schools and universities; review schools; watch repair center shops; off-tract betting centers for races;

Business agents and other independent contractors (juridical or natural) not included among individual subject to professional tax and whose activity consists essentially of the sale of all kinds of services for a fee;

Commercial, immigration, and customs brokers; and cinematograph film owners, lessors or distributors, and video coverage;

Proprietors or operators of mine drilling apparatus; proprietors or operators or dockyards.

And all other similar establishments or services not herein expressly provided.

As use in this Code, Article Ten: Graduated Tax on Business, the term "contractor" shall include proprietors or operators of: mine drilling apparatus; dockyards; establishment engaged in the installation of water system and gas or electric light or heat; smelting plants; engraving, plating, or plastic lamination establishments; establishment for repairing, repainting, upholstering, washing or greasing of vehicles, heavy equipment, vulcanizing, recapping and battery charging; furniture shops; establishment for planning or surfacing and re-cutting of lumber and sawmills under contract to saw or cut logs belonging to others; dry-

(c33) Cooperative - is a duly registered association of persons, with a common bond of interest, who have voluntarily joined together to achieve a lawful, common, social, or economic end, making equitable contributions to the capital required and accepting a fair share of the risks and benefits of the undertaking in accordance with universally accepted cooperative principles.

(c34) Corporations - includes partnerships, no matter how created or organized, joint-stock companies, joint accounts (cuentas en participación), associations or insurance companies but does not include general professional partnerships and a joint venture or consortium formed for the purpose of undertaking construction projects or engaging in petroleum, coal, geothermal, and other energy operations or consortium agreement under a service contract with the government. General professional partnerships are partnerships formed by persons for the sole purpose of exercising their common profession, no part of the income of which is derived from engaging in any trade or business;

The term "resident foreign" when applied to a corporation means a foreign corporation not otherwise organized under the laws of the Philippines but engaged in trade or business within the Philippines.

(c35) Convention - is any gathering for the purpose of exchanging or disseminating views, technical expertise, experiences, knowledge, skills, information, policies or any other related activity. It does not include corporate meetings or events where participation is limited to company personnel only. The term embraces the following:

c35a. Conference - is usually a general session and face-to face groups with high participation to plan, get facts, solve organization and member problems.

c35b. Congress - is a more commonly used European designation for convention and mainly international in scope.

c35c. Seminar - is usually a one face-to-face group sharing experiences in a particular field under the guidance of an expert discussion leader, with a maximum attendance of thirty (30) persons.

c35d. Lecture - is a formal presentation by an expert sometimes followed by question and answer period.

c35e. Symposium - is a panel discussion by experts in a given field before a large audience, some audience participation but appreciably less than a forum.

c35f. Forum - is a panel discussion taking opposite sides of an issue by experts in a given field with liberal opportunity for audience participation.

c35g. Workshop - is usually a general session and face-to-face groups of participants training each other to gain new knowledge, skills or insights to problems. Attendance is generally from thirty to thirty-five (30-35) participants.

c35h. Colloquium - is a program in which the participants determine the matter to be discussed. The leaders would then construct the program around the most frequent problems, usually attended by a maximum of thirty-five (35) persons with equal emphasis on instruction and discussion.

c35i. Professional Congress Organizer (PCO) - is any person, natural or juridical, who manages conventions, either as an official of an organization, consultant, volunteer or as a retained professional.

(c36) Conversion - a change in the use or occupancy of a building/structure to increase its value, utility and/or to improve its aesthetic quality.

(c37) Coping - the material or units used to form a cap of finish on top of a wall, pier or pilaster.

(c38) Corrosion-Resistant - the non-ferrous metal, or any metal having an unbroken surface of non-ferrous metal, or steel with not less than ten percent (10%) chromium or with less than 0.20 percent copper.

(c39) Corrosion-Resistant Material - materials that are inherently rust-resistant or materials to which an approved rust-resistant coating has been applied either before or after forming or fabrication.

(c40) Cottage Enterprise - an enterprise with an asset size of Five Hundred Thousand (P 500,000.00) and below.

(c41) Course - a continuous horizontal layer of masonry units.

(c42) Court - an occupied space between building and lot lines other than a yard; free, open, and unobstructed by appendages from the ground upward.

(d) Dancing Pavilion - includes any space within the duly licensed restaurants or other public eating places other than a night club or bar where the operator thereof allows the use of the said space by its patrons or customers for casual dancing to the accompaniment of music by an orchestra or "rondalla" or by an amplifier or jukebox.

(d1) Dancing School - includes any establishment where ballroom dancing is taught and permitted to the public in consideration of an enrollment, admission, membership or any other fee.

(d2) Dealer - means one whose business is to buy and sell merchandise, goods and chattels, as a merchant. He stands immediately between the producer or manufacturer and the consumer, and depends for his profit not upon the labor he bestows upon his commodities but upon the skill and foresight with which he watches the market.

(d3) Dealer in Securities - includes all persons who for their own account, are engaged in the sale of stock, bonds, exchange, bullion, coined money, bank notes, promissory notes, or other securities.

(d4) Demolition - the systematic dismantling or destruction of a building/structure, in whole or in part.

(d5) Department Store - is a store that sells or carries lines of merchandise that is organized into separate sections for the purpose of promotion, service, accounting and control.

(d6) Depreciated Value - is the value remaining after deducting depreciation from the acquisition cost.

(d7) Dispersal Area (safe) - An area which will accommodate a number of persons equal to the total capacity of the stand and building it serves, in such a manner from the stand or building. Dispersal areas shall be based upon an area of not less than 0.28 square meter per person.

(d8) Display Sign - any material, device or structure that is arranged, intended, designed, or used as an advertisement, announcement, or directory that includes a sign, sign screen, billboard or advertising device of any kind.

(d9) Display Stand - any movable structure, table, showcase cabinet and the like where goods or periodicals are displayed.

(d10) Display Surface - the entire area enclosed by the extreme limits or perimeter of a sign.

(d11) Display Window - that portion of a building abutting the sidewalk open to public view protected by grills, screens or transparent materials for the display of goods.

(d12) Distiller of Spirits - comprises all who distill spirituous liquor by original and continuous distillation from mash, wort, wash, sap, or syrup through continuous closed vessels and pipes until manufacture thereof is complete.

(d13) Dwelling - any building or any portion thereof which is not an "apartment house", "lodging house", or a hotel "as defined in this Code which contains one or two "dwelling unit" or "guest rooms", used, intended or designed to be built, used, rented, leased, let or hired out to be occupied, or which are occupied for living purposes.

(d14) Dwelling, Indigenous Family - a dwelling intended for the use and occupancy of the family of the owner only. It is one constructed of native

materials such as bamboo, nipa, logs, or lumber, the total cost of which does not exceed Fifteen Thousand Pesos (P 15,000.00).

(d15) Dwelling, Multiple - a building used as a home or residence of three or more families living independently from one another, each occupying one or more rooms as a single housekeeping unit.

(d16) Dwelling, One Family - a detached building designated, for, or occupied exclusively by one family.

(d17) Dwelling Unit - one or more habitable rooms which are occupied or which are intended or designated to be occupied by one family with facilities for living, sleeping, cooking and eating.

(e) Economic Life - is the estimated period over which it is anticipated that a machinery or equipment may be profitably utilized.

(e1) Electrical Sign - any sign which has characters, letters, figures, designs, faces, backgrounds or outline illuminated by incandescent or fluorescent lamps or luminous tubes as part of the sign proper, neon signs included. These light sources being either external or internal.

(e2) Entertainment Dancers - any entertainer professionally engaged in dancing for a fee.

(e3) Erection - installation in place of components of a building/structure.

(e4) Excessive - means that which is characterized by whatever is notably greater than what is moderate, reasonable proper, usual, necessary and just.

(e5) Existing Building Structure - is one constructed under R.A. 6541 or PD 1096, if legally done in accordance therewith.

(e6) Exit - a continuous and unobstructed means of egress to a public way, and shall include intervening doors, doorways, corridors, exterior exit balconies ramps, stairways, smoke proof enclosures, horizontal exits, exit passageways, exit courts, and yards. An exit shall be deemed to be that point which opens directly into a safe dispersal area or public way. All measurements are to be made to that point when determining the permissible distance of travel.

(e7) Exit Courts - a yard or court providing egress to a public way for one or more required exits.

(e8) Exit Horizontal - a means of passage from one building into another building occupied by the same tenant through a separation wall having a minimum fire resistance of one hour.

(e9) Exit Passageway - an enclosed means of egress connecting a required exit or exit court with a public way.

(f) Facing - Any masonry, forming an integral part of a wall used as finished surface (as contrasted to veneer, see definition).

(f1) Fair Market Value - is the price at which a property may be sold by a seller who is not compelled to sell and bought by a buyer who is not compelled to buy.

(f2) Fee - a charge fixed by law or ordinance for the regulation or inspection of a business or activity. It shall also include charges fixed by law or agency for the services of a public officer in the discharge of his official duties;

(f3) Firebrick - a refractory brick.

(f4) Fireclay - a finely ground clay used as plasticizer for masonry mortars, varies widely in physical properties.

(f5) Fireplace - a hearth and fire chamber or similarly prepared place in which fire may be made and which is built in conjunctions with a chimney.

(f6) Fire Retardant-Treated Wood - lumber or plywood impregnated which chemicals and when tested in accordance with accepted fire standards for a period of thirty (30) minutes shall have a flame-spread or not over twenty five percent (25%) and show no evidence of progressive combustion. The fire-retardant properties shall not be considered permanent when exposed to the weather.

(f7) First Storey - the storey floor of which is at or above the level of the sidewalk or adjoining ground, the remaining storeys being numbered in regular succession upward.

(f8) Flash Point - means the temperature at which liquid gives a vapor sufficient to form ignitable mixture with the air near the surface of the liquid or within the vessel used.

(f9) Floor Area - the area included within the surroundings exterior walls of a building or portion thereof, exclusive of vent shafts and courts. The floor area of a building or portion thereof, not provided with surrounding exterior walls shall be the usable area under the horizontal projection of the roof or floor above.

(f10) Footing - that portion of the foundation of a structure which spreads and transmits loads directly to the soil of the pile.

(f11) Foundation - all the portions of the building or structure below the footing, the earth upon which the structures rests.

(f12) Franchise - is a right or privilege, affected with public interest that is conferred upon private persons or corporations, under such terms and conditions as the government and its political subdivisions may impose in the interest of public welfare, security and safety;

(f13) Frolic Device - includes amusement rides, sideshows, ferries, shooting galleries, and booths with shows for amusement.

(f14) Forest Lands - include the public forest, the permanent forest or the forest reserves, and forest reservations.

(f15) Forest Products - means timber, pulp-wood/chip wood, firewood, fuel wood and minor forest products such as bark, tree tops, resins, gum, wood, oil, honey, beeswax, nipa, rattan or other forest growth such as grass, shrub, and flowering plants, the associated water, fish, scenic, historical, recreational, and geologic resources in forest lands.

(g) Gaffer (Mananari) - a person knowledgeable in the technique or arming fighting cocks with gaffs on either or both legs.

(g1) Gamecock - refers to domesticated fowls, whether imported or locally bred, as well as the native fighting cock, indigenous to the country, especially bred, trained and conditioned for actual cockfighting or for propagation and breeding purposes for eventual use in cockfighting.

(g2) Garbage - shall include the refuse of animal or vegetable matter or food supplies as were intended for human food but have been rejected for such use, waste or used papers, posted cars, woven materials, straws, wood, hush, cans, broken glass or porcelain, loose or decayed materials, dirt like substance, sweepings and carting and waste products or materials of manufacturing establishments and construction works, including all matters already completely abandoned and considered as waste by the owner and thrown outside the residential warehouse and manufacturing premises of the owner.

(g3) Garage - a building or portion thereof in which a motor vehicle containing gasoline, distillate, or other volatile, flammable liquid in its tank, is stored, repaired, or kept.

(g4) Garage, Commercial - a garage where automobiles and other motor vehicles are housed, cared for, equipped, repaired or kept for remuneration, hire or sale.

(g5) Garage, Open Parking - a structure of one or more tiers in height which is at least fifty percent (50%) open on two or more sides and is used exclusively for the parking or storage of passenger motor vehicles having a capacity of not more than nine (9) persons per vehicle. Open parking garages are further classified as either ramp-access or mechanical -access. Ramp-access, open parking garages are those employing a series of continuously rising floors permitting the movement of vehicles under their own power from and to the street level. Mechanical access parking garages are those employing parking machines, lifts, elevators, or other mechanical service for vehicles moving from and to street level and in which public occupancy is prohibited above the street level.

(g6) Garage Private - a building or a portion of a building in which only motor vehicles used by the tenants of the building or buildings on the premises are stored or kept.

(g7) Girder - a horizontal structural piece which supports the end of the floor beams or joists or walls over opening.

(g8) Golf Link - includes any place, compound or any portion thereof, where, for a fee or compensation, customers and club members are allowed to play golf or simulated golf games or practice golf.

(g9) Government Owned and/or Operated Public Markets - refers to those established out of public funds or those leased/ acquired by any legal modes or means from private persons, natural or juridical, to be operated by the government either thru its instrumentality, branch or political subdivisions.

(g10) Grade (Adjacent Ground Elevation) - the lowest point of elevation of the finished surface of the ground between the exterior wall of a building and a point one and one-half (1.50) meters distant from said wall, or the lowest point of elevation of the finished surfaced of the ground between the exterior wall of a

(g11) Gross Output - means the actual market value of the manufactured or produced products without any deduction for manufacturing, producing, milling, transporting, handling, marketing or any other expenses, except in the case of manufacturer or producer under the term CIF, in which case, the actual cost of ocean freight and insurance shall be deducted.

(g12) Gross Sales or Receipts - include the total amount of money or its equivalent representing the contract price, compensation or service fee, including the amount charged or materials supplied with the services and deposits or advance payments actually received during the taxable quarter for the services performed or to be performed for another person excluding discounts if determinable at the time of sales, sales return, excise tax, and value added tax (VAT);

(g13) Gross Receipts of Hotels, Restaurants, etc. - means the charges or prices, or compensation paid by the guest for their lodging, meals and for such other services and attention as are necessary incident to the use of hotels as temporary abode. In the case of restaurants, cafe or refreshment parlor, it refers to the charges, prices or compensation paid for the meals, cooked foods, or refreshment served to the patrons.

(g14) Ground Floor - the storey at or near the level of the grade, the other storeys, beginning with second, for the first next above, shall be designated by the successive floor numbers counting upward.

(g15) Ground Sign - a sign resting on the ground.

(g16) Guest Room - any room or rooms used, or intended to be used by a guest floor sleeping purposes, every 9.30 square meters or superficial floor area in a dormitory shall be considered to be a guest room.

(h) Handler (Soltador) - a person who personally takes physical custody and control, inside the area of pitted gamecock and who actually released the same for actual fight and combat in a cockfight.

(h1) Habitable Room - any room meeting the requirement of this Code for sleeping, living, cooking or dining purposes, excluding such enclosed spaces as closets, pantries, bath or toilet room, service rooms, connecting corridors, laundries, unfinished attics, storage, space cellars, utility rooms, and similar spaces.

(h2) Hall, Common - a corridor or passageway used in common by all the occupants within a building.

(h3) Hall, Stair - a hall which includes the stair, stair landings and those portions of the common halls through which it is necessary to pass in going between the entrance floor and the room.

(h4) Heliport - an area of land or water or a structural surface which is used, or intended for use in the landing and take off of helicopters and any appurtenant areas which are used, or intended for use, for heliport buildings and other heliport facilities.

(h5) Helistop - the same as heliport except that no refueling, maintenance, repairs, or storage of helicopters is permitted.

(h6) Highly-Built-Up Urban Area - a commercial and/or industrial site which is characterized by high-rise buildings or establishment.

(h7) Hostess - woman entertainer whose services are hired by a night club or day club operator for the purpose of entertaining its patrons, guests or customers, allowing said hostess to dance and/or converse, talk or chat with them usually for an honorarium at the discretion of the patrons, guest, or customers.

(h8) Hotel - a building, edifice or premises or a completely independent part thereof, which is used for the regular reception, accommodation or lodging for travelers and tourists and the provision of services incidental thereto for a fee.

h8.a. De Luxe - luxurious, elegant or expensive hotel that is complete with all the facilities and amenities pertaining to hotel establishments.

h8.b. First Class - a hotel of high quality but of inferior quality to De Luxe Hotels in terms of facilities and amenities.

h8.c. Standard - a sound and usable but not of top quality hotel conforming to the standards established by custom and law.

h8.d. Economy - thrifty and efficient hotel.

(h9) Hotel, Apartment - an apartment house which may furnished dining room service and other services for the exclusive use of its tenants.

(i) Importer - means any person who brings articles, goods, wares or merchandise of any kind or class into the Philippines from abroad, for unloading therein, or which after such entry are consumed herein to become incorporated

into the general mass of property in the Philippines. In the case of tax-free articles brought or imported into the Philippines by persons, entities, or exchanged in the Philippines to non-exempt private persons or entities, the purchasers or recipients shall be considered importers thereof.

(i1) Imprint - a plaque or sticker or lettering to be painted on either the top or the bottom of the poster or sign as a means of identifying the company to whom the structure belongs and the permits issued therefore.

(i2) Improvement - is a valuable addition made to a real property or an amelioration in its condition, amounting to more than a mere repair, or replacement of parts involving capital expenditures and labor, which is intended to protect or enhance its value, beauty or utility or to adapt it for new or further purposes.

(i3) Inbound Tour - is a tour to or of the Philippines or any place within the Philippines

(4) Incombustible - as applied to building construction materials, as material which, in form it is used, is either one of the following:

(a) Material having a structural base of incombustible material not over 3.2 millimeters thick which has a flamed-spread rating of fifty (50) or less.

(b) "Incombustible" does not apply to surface finish materials. Material required to be incombustible for reduced clearance to flues, heating appliances, or other materials shall refer to material conforming to the provisions of this Code. No material shall be classed as incombustible which is subject to increase in combustibility or flame-spread rating beyond the limits herein established, through the effects of age, moisture, or other atmospheric conditions.

(5) Incombustible Material - when referred to as structural material, means brick, stone, terracotta, concrete, iron, steel, sheet metal, or tiles used either singly or in combination.

(j6) Incombustible Roofing - a partition plastered on both sides upon metal lath or wire cloth for the full height, and fire-stopped between the studs with incombustible material twenty (20) centimeters above the floor and at the ceiling.

(7) Industrial Land - land devoted principally to industrial activity as capital investment and is not classified as agricultural, commercial, timber, mineral or residential land.

(8) International Derby - refers to an invitational cockfight participated in by local and foreign gamecocks or cockfighting "afficionados" with "pot money" awarded to the proclaimed winning entry.

(9) Internet - refers to the interactive communication and information technology sourced through computers.

(10) Internet Café - means a business establishment using the worldwide web or Internet system that enable users to view and interact with a variety of information accessed through a computer connected to a Local Area Network (LAN).

(11) Internet Service Provider (ISP) - refers to a local or national network provider of Internet services.

(j) Jai-Alai - means a place, usually enclosed and built for the purpose, where pelotari game is played and money is bet on the game.

(1) Jukebox - means a musical instrument mechanically devised for the purpose of furnishing music for compensation.

(l) LTFRB - the Land Transportation Franchising and Regulatory Board of the Republic of the Philippines

(l) LTO - the Land Transportation Office of the Republic of the Philippines.

(2) Large Cattle - includes horses, mules, asses, carabaos, cows, and other domestic members of the bovine family.

(3) Large Enterprise - an enterprise with an asset size of over Ten Million Pesos (P10-M).

(4) Lending Investor - includes all persons who make a practice of lending money for themselves or others at interest.

(5) Levy - means an imposition or collection of an assessment, tax, fee, charge, or fine.

(6) License or Permit - is a right or permission granted in accordance with law or by a competent authority to engage in some business or occupation or to engage in some transactions.

(7) Lien - a charge upon real or personal property for the satisfaction of some debt or duty ordinarily arising by operation of law.

(8) Line, Building - the line formed by the intersection of the outer surface of the enclosing wall of the building and the surface of the ground.

(9) Lintel - the beam or girder placed over an opening in a wall, which supports the wall construction above.

(10) Load, Dead - the weight of the permanent portions of a building or structure; it includes the weight of the walls, permanent partitions, framing, floors, roofs, and all other permanent and stationary fixtures, mechanism, and other construction entering into and becoming a part of a building or structure.

(11) Load, Lateral - that load caused by winds, earthquakes, or other dynamic forces.

(12) Load, Live - the weight of the contents of a building or structure; it includes all loads except dead and lateral, and weight of temporary partitions, cases, counters, and similar equipment, and all loads imposed due to the occupancy of the building or structure.

(13) Load, Occupant - the total number of persons that may occupy a building or portion thereof at any one time.

(14) Local Derby - an invitational cockfight participated in by gamecocks or cockfighting "afficionados" of the Philippines with "pot money" awarded to the proclaimed winning entry.

(15) Local Government - includes provinces, cities, municipalities and barangays.

(16) Lodging House/Lessors of Real Estate - includes any house or building or portion thereof, in which any person or persons may be regularly harbored or received as transients for compensation. Taverns or inns shall be considered as lodging house; any building or portion thereof, containing not more than five (5) guest rooms which are used by not more than five (5) guests where rent is paid in money, goods, labor or otherwise.

(I17) Long-Haul Trip - travel of considerable distance in terms of period of time, which shall be measured at a minimum of four (4) hours from point of embarkation to final destination.

(I18) Lot - a parcel of land on which a principal building and its accessories are placed or may be placed together with the required open spaces. A lot may or may not be the land designated as lot on recorded plot.

(I19) Lot, Corner - a lot situated at the junction of two or more streets forming an angle of not more than one hundred thirty-five (135) degrees.

(I20) Lot, Depth of - the average horizontal distance between the front and the rear lot lines.

(I21) Lot, Front - the front boundary line of a lot bordering on the street and in the case of a corner lot, it may be either frontage.

(I22) Lot, Inside - a lot fronting on but one street or public alley and the remaining sides bounded by lot lines.

(I23) Lot Line - the line of demarcation between either public and private property.

(I24) Lot Open - a lot bounded on all sides by street lines.

(I25) Lot, Width of - the average horizontal distance between the side lot lines.

(m) Machinery - embraces machines, equipment, mechanical contrivances, instruments, appliances or apparatus, which may or may not be attached, permanently or temporarily, to the real property. It includes the physical facilities for production, the installations and appurtenant service facilities, those which are mobile, self-powered or self-propelled, and those not permanently attached to the real property which are actually, directly and exclusively used to meet the needs of the particular industry, business or activity and which by their very nature and purposes are designed for, or necessary to its manufacturing, mining, logging, commercial, industrial or agricultural purposes.

Machinery which are of general purpose use, including but not limited to, office equipment, typewriters, telephone equipment, breakable or easily damaged containers (glass or cartons), microcomputers, facsimile machines, telex machines, cash dispensers, furniture and fixtures, freezers, refrigerators, display cases or racks, fruit juice or beverage automatic dispensing machine which are not directly and exclusively used to meet the needs of a particular industry, business or activity shall not be considered within the definition of machinery under this rule. Residential machinery shall include machines, equipment, appliances or apparatus permanently attached to residential land and improvements or those immovable by destination.

(m1) Magazine and/or Newspaper Stand - means an outdoor stall or center where newspapers, periodicals and/or other reading materials are sold and may include as items for sale, cigars and cigarettes, sweepstakes tickets only and no other commodity, provided a separate permit fee is paid for the retail of cigar and cigarettes as provided in this code.

(m2) Manufacturer - includes every person who for the purpose of sale or distribution to others and not for his own use or consumption, by physical or

chemical process; (1) alters the exterior texture or form or inner substance of any raw materials, or manufactured or partially manufactured products in such manner as to prepare it for a special use or uses to which it could not have been put in its original condition; or (2) alters the quality of any raw materials, or manufactured or partially manufactured products so as to reduce it to marketable shape or prepare it for any use or industry, or (3) combines any raw materials, or products of the same or of different kind in such manner that the finished product of such process or manufacture can be put to a special use or uses to which such materials, or manufactured or partially manufactured products in its original condition could not have been put.

(m3) Manufacturer of Cigars or Cigarettes - includes those whose business it is to make or manufacture cigars or cigarettes or both for sale or who employs others to make or manufacture cigars or cigarettes for sale; but the term does not include artisans or apprentices employed to make cigars or cigarettes from materials supplied by the employer, the latter being lawfully engaged in the manufacture of cigars or cigarettes.

(m4) Manufactured Tobacco Products - includes cigars, cigarettes, chewing tobacco and snuff and all other forms, of manufactured and partially manufactured tobacco.

(m5) Manufacturer of Tobacco - includes every person whose business is to manufacture tobacco or snuff, or who employs others to manufacture tobacco or snuff, who whether such manufacture be by cutting, pressing, grinding or rubbing any raw or leaf tobacco, or otherwise preparing raw or leaf tobacco or manufactured or partially manufactured tobacco and snuff, or putting for consumption scraps, refuse or stems of tobacco resulting from any waste by shifting, twisting, screening or by any other process.

(m6) Marginal Farmer or Fisherman - refers to an individual engaged in subsistence farming or fishing which shall be limited to the sale, barter or exchange of agricultural or marine products produced by himself and his immediate family, and whose annual net income from fishing does not exceed Fifty Thousand Pesos (P 50,000.00) or the poverty line established by NEDA for the particular region or locality whichever is higher.

(m7) Market Commodities - refers to the body whose duty is to conduct the drawing of lots and opening of bids in connection with the adjudication of vacant or newly constructed stalls in the City Markets and to certify to the City Mayor the results thereof.

(m8) Market Premises - refers to any open space in the market compound; part of the market lot consisting of bare ground not covered by market buildings, usually occupied by transient vendors specially during market days.

(m9) Market Rental Fee - refers to the fee paid to and collected by the City Treasurer for the privilege of using public market facilities.

(m10) Market Section - refers to contiguous stalls/ booths/ spaces in the market classified according to the kind of merchandise offered for sale therein;

m10.1 Fish Section - refers to the area where only fresh fish, clams, oyster, crabs. Lobsters, shrimp, seaweeds and other seafoods and marine products shall be sold;

m10.2 Meat Section - refers to the area where only all kinds of meat and other meat products shall be sold, provided that meat, pork and dressed chicken shall be separately displayed and properly labeled;

m10.3 Dry Goods Section - refers to the area where only all kinds of textiles, ready made dresses and native products, toiletries, novelties, footwears, laces kitchenwares, utensils, and other household articles, handbags and school and other supplies shall be sold;

m10.4 Groceries Section - refers to the area where only all kinds of cakes, biscuits, pastries, crackers, butter, cheese, confections, candies, canned or bottled foods, beverages, softdrinks, cigarettes, flour, oatmeal, ham, bacon, sugar, nuts, sauce, onions, garlic, potatoes, eggs, sausages, starch, smoked fish, dried fish, salt, feeds, soap, mango and the like, and other household and food products shall be sold;

m10.5 Rice and Corn Section - refers to the area where purely rice, corn and other cereals shall be sold;

m10.6 Vegetables and Fruit Section - refers to the area where only all kinds of vegetables, fruits, coconuts and root crops such as camotes, cassava, garlic and the like shall be sold;

m10.7 Eatery Section - refers to the area where only all kinds of cooked/prepared food shall be sold. This includes refreshment parlors, cafeterias, and other delicacies;

m10.8 Poultry Products Section - refers to the area where only live chickens, ducks, turkeys, other fowls and birds, suckling and piglets and other like shall be sold;

m10.9 Flower Shop Section - refers to the area where only all kinds of flowers whether fresh or artificial flowers, pots, and other materials needed in floral arrangements shall be sold;

m10.10 Cold Storage Service Section - refers to the area where only refrigeration services shall be made available and the sale of ice in whatever form shall be conducted;

m10.11 Miscellaneous Section - refers to the area where any other business not classified herein above shall be allowed;

(m11) Market Stall - refers to any specific space or booth in the public market where merchandise is sold or offered for sale, or intended for such purposes in the public market.

(m12) Masonry - a form of construction composed of stone, brick, concrete, gypsum, hollow clay tile, concrete block or tile, or other similar building units or materials or combination of these materials laid up unit and set in masonry.

(m13) Masonry Solid - masonry of solid units built without hollow spaces.

(m14) Masonry Unit - brick, block, tile, stone, or other similar building unit or combination thereof, made to be bounded together by a cementation agent.

(m15) Medium Enterprise - an enterprise with an asset size of Two Million to Ten Million Pesos (P2-M to P10-M).

(m16) Mercantile Agency - is any person engaged in the business of gathering information as to the financial standing ability, or credit of persons engaged in the business, and reporting the same to subscribers or to customers applying and paying therefore.

(m17) Mezzanine or Mezzanine Floor - a partial intermediate floor in any storey or room of a building having an area not more than one-half (1/2) of the area of the room or space in which it is constructed.

(m18) Minerals - refers to all naturally occurring inorganic substances (found in nature) whether in solid, liquid, gaseous or any intermediate state including coal, soil which supports organic life, sand and gravel, guano, petroleum, geothermal energy and natural gas are included in this term but are governed by special laws.

(m19) Mineral Lands - are lands in which minerals, metallic or non-metallic, exist in sufficient quantity or grade to justify the necessary expenditures to extract and utilize such materials.

(m20) Mineral Products - shall mean things produced and prepared in a workable state by simple treatment processes such as washing or drying but without undergoing any chemical change or process or manufacturing by the lessee, concessionaire or owner of mineral lands.

(m21) Money Shop - is an extension service unit of a banking institution usually operating in public markets with authority to accept money for deposit and extend short-term loans for specific purposes.

(m22) Motorist hotel (Motel) - any structure with several separate units, primarily located along the highway with individual or common parking space at which motorists may obtain lodging and, in some instances, meals.

(m23) Motel - includes any house or building, or portion thereof, in which any person or persons may be regularly harbored or received as transients or guest and which is provided with a common enclosed garage or individually enclosed garages where such transients or guests may park their motor vehicles.

(m24) Motorized Tricycle - is a motor vehicle propelled other than by muscular power, composed of a motorcycle fitted with a single wheel sidecar or a motorcycle with a two wheeled cab, the former having a total of four wheels, otherwise known as the motorela.

(m25) Motorized Tricycle Operator's Permit (MTOP) - is a document granting franchise or license to a person, natural or juridical, allowing him to operate tricycles-for-hire over specified zones.

(m26) Motor Vehicle - means any vehicle propelled by any power other than muscular power using the public roads, but excepting road rollers, trolley/cars, street sweepers, sprinklers, lawn mowers, bulldozers, graders, forklifts, amphibian trucks, and cranes if not used on public roads, vehicles which run only on rails or tracks and tractors, trailers and traction engines of all kinds used exclusively for agricultural purposes.

(m27) Moving - the transfer of any building/structure or portion(s) thereof from its original location or position to another, either within the same lot or to different one.

(m28) Museum - is an institutional establishment where a collection of valuable objects and artifacts on history and culture, arts and sciences are put on exhibition for the general public.

(n) National Derby - means a cockfight promotion with nationwide participants.

(n1) National Homestay Program - is a program of the Department of Tourism which provides travelers with comfortable accommodations with Filipino families in areas near tourist attractions.

(n2) National Wealth - refers to all natural resources situated within the Philippine territorial jurisdiction including lands public domain, waters, minerals, coal, petroleum, mineral oils, potential energy forces or sources, gas and oil deposits, forest products, wildlife, flora and fauna, fishery and aquatic resources, and all quarry products.

(n3) Neon Sign - a discharged lamp where the neon tube contains a large proportion of neon gas, made/outlined to project letters or characters for the purpose of advertising.

(n4) Night or Day Club - includes places frequented at nights or days, as the case maybe, where foods, wines, and drinks are served and music is furnished by the operator and the patrons are allowed to dance with their own partners or with hostesses furnished by the management.

(n5) Non-Conforming Building - a building which does not conform with the regulations of the district where it is situated as to height, yard requirement, lot area, and percentage of occupancy.

(n6) Non-Conforming Use - the use of any building or land or any portion of such building or land which does not conform with the use and regulation of the zone where it is situated.

(o) Occupancy - the purpose for which the building is used or intended to be used. The term shall also include the building or room housing such use. Change of occupancy is not intended to include change of tenants or proprietors.

(o1) Occupation - means one's regular business or employment or an activity which principally takes up one's time, thought, and energies. It includes any calling, business, trade, profession or vocation.

(o2) Occupation Fee - is a fee payable by any locator or occupant of any mining claim.

(o3) Operator - includes the owner, manager, administrator, or any other person who operates or is responsible for the operation of a business establishment or undertaking.

(o4) Oppressive - means unreasonably burdensome, unjustly severe or harsh.

(o5) Owner - any person, company, or corporation owning of the property or properties under consideration or the receiver or trustee thereof.

(p) Panic Hardware - a bar which extends across at least one-half the width of each door leaf, which will open the door if subjected to pressure.

(p1) Partition - an interior subdividing wall.

(p2) Passenger Accommodation Area - is a passenger seating area and/or cabin/sleeping area.

(p3) Passenger Ship - is any vessel which is authorized to carry more than twelve (12) passengers as further defined in the Philippine Merchant Marine Rules and Regulations.

(p4) Pawnbroker - includes every person engaged in granting loans or deposits or pledges of personal property on the condition of returning the same at a stipulated price; displaying at his place of business three gilt of yellow bills or exhibiting a sign of money to loan on personal property or pledge; or otherwise engaged in the business known as pawnbroker.

(p5) Peddler - means any persons, who either for himself or on commission, travels from place to place and sells his goods or offers to sell and deliver the same. Whether a peddler is a wholesale peddler or a retail peddler of a particular commodity shall be determined from the definitions of wholesale dealer or retail dealer as provided in this Code.

(p6) Peddler, Hawker or Hustler - includes any person, whether adult or minor, who peddles or hawks goods, wares, merchandise, or any articles, in any manner, from place to place; or one who offers for sale articles without any regular fixed and established place of business in Davao City.

(p7) Pedicab (Pedal-operated tricycle) - otherwise known as "trisikads" is a vehicle having three (3) wheels and operated by means of a pedal to include bicycle with sidecar.

(p8) Pedicab for commercial use - is being used to transport commercial goods of its owner for delivery to customers.

(p9) Pedicab for hire - is being used in transporting passengers, goods or both for a fee.

(p10) Private Pedicab - is one being used by its owner for transport of his own goods and for personal use.

(p11) Pension House - a private or family-operated tourist boarding house, tourist guest house or tourist lodging house employing non-professional domestic helpers regularly conducting several independent lettable rooms, providing common facilities such as toilets, bathrooms/showers, living and dining rooms and/or kitchen and where a combination of board and lodging may be provided.

(p12) Persistent Sidewalk Vendors or Persistent Vendors - are vendors who are engaged in business of vending or selling goods continuously despite the opposition or prohibition of the government.

(p13) Persons - mean every natural or juridical being, susceptible of rights and obligations or of being the subject of legal relations.

(p14) Pilaster - a portion of the wall which projects on one or both sides and acts as a vertical beam, a column, or both.

(p15) Pilaster, Portland Cement - a mixture of Portland Cement, or Portland Cement and lime, and aggregate and other approved material as specified.

(p16) Plastic, Approved - plastic materials which have a flame spread rating of two hundred twenty-five (225) or less.

(p17) Platform, Enclosed - a partially enclosed portion of an assembly room the ceiling of which is not more than one and one-half (1.5) meters above the proscenium opening and which is designed or used for the presentation of plays, demonstrations, and other entertainment wherein scenery, drops, decorations, of the effects may be installed or used.

(p18) Pleasure Yacht - is any vessel, which is used for pleasure only as defined in the Philippine Merchant Marine Rules and Regulations.

(p19) Pit Manager - refers to a person who professionally, regularly and habitually manages a cockpit and cockfights therein. He may or may not be the owner of the cockpit.

(p20) Poster - a fabricated flat surface upon which a message is either posted or painted.

(p21) Privately-Owned or -Operated Public Markets - means those established by a private fund and operated by private persons, natural or juridical, under government permit.

(p22) Private Place - includes privately-owned streets or yards, rice fields or farmlands, or lots owned by an individual other than the owner of the animal.

(p23) Privilege - means a right or immunity granted as a peculiar benefit, advantage or favor.

(p24) Producer - means essentially the same as "Manufacturer" except that it is more commonly used to denote a person who raises agricultural crops and puts them in a condition for the market.

(p25) Profession - means a calling which requires the passing of an appropriate government board or bar examination such as the practice of law, medicine, public accountancy, engineering, etc.

(p26) Professional Dancing Partner - includes any person employed in entertainment establishments who offers himself or herself as dancing partner for a fee.

(p27) Projecting Sign - a sign fastened to, suspended from or supported on a building or structure the display surface of which is perpendicular from the wall surface or is at an angle therefrom.

(p29) Promoter - a person who is engaged in the convening, meeting, holding and celebration of specially programmed and arranged cockfighting like local and international derbies or competitions, special mains or matches or encounter, pintakasi and ordinary fights or hack fights.

(p29) Public Market - refers to any place, building or structure of any kind recognized as such under existing laws or ordinances and those to be established upon recommendation of the local government concerned. It embraces all market stalls, tiendas, buildings, roads, subways, waterways drainage and other connections, parking spaces, and other appurtenances thereto.

(p30) Public Place - includes national, city, or barangay streets, parks, plazas, and such other places open to the public.

(p31) Public Way - a parcel of land unobstructed from the ground to the sky, more than three (3) meters in width, appropriated to the free passage of the general public.

(q) Quarry Resources - means any common stone or other common mineral substances such as but not restricted to marble, granite, volcanic cinders, basalt, tuff, and rock phosphate.

(r) Race Track - includes any place or compound, where exhibitions or trials for a purse or price consideration are run by the competitors usually on horse or any other animal, or powered conveyances as trucks, automobiles or race cars.

(r1) Real Estate Broker - includes any person, other than a real estate salesman as hereinafter defined, who for another, and for a compensation or in the expectation or promise of receiving compensation: (1) sells or offers, for sale, buys or offers to buy, lists of solicits for prospective purchasers, or negotiates the purchase, sale or exchange of real estate or interest therein; (2) or negotiates loans on real estate; (3) or leases or offers to lease or negotiates the sale, purchase or exchange of a lease or rents or places for rent or collects rent from real estate or improvements thereon; (4) or shall be employed by or on behalf of the owner or owners of lots or other parcels of real estate on salary, on commission, or otherwise to sell such real estate or any parts thereof in lots or parcels. "Real Estate Salesman" means any natural person regularly employed by a real estate broker to perform in behalf of such broker any or all of the functions of real estate broker. One act of a character embraced within the above definition shall constitute the person performing or attempting to perform the same real estate broker. But the foregoing definitions do not include a person who shall directly perform any of the acts aforesaid with reference to his own property. Where

such acts are performed in the regular course of or as acting pursuant to a duly executed power of attorney from the owner authorizing final consummation by performance of a contract conveying real estate by sale, mortgage or lease; nor shall they apply to any receiver, trustee or assignee in bankruptcy or insolvency, or to any person acting pursuant to the order of any court; nor to a trustee selling under a deed of trust.

(r2) Real Estate Dealer - includes any person engaged in the business of buying, selling, exchanging leasing or renting property as principal and holding himself out as a full or part time dealer in real estate or as an owner of rental property or properties rented or offers to rent for an aggregate amount of one thousand pesos or more a year. Any person shall be considered as engaged in

(r3) Real Property - refers only to lands, building and machineries intended by the owner of the land or building for an industry or work which may be carried on in a building or on a land and which tend directly to meet the needs of the said industry or works.

(r4) Reassessment - is the assigning of new assessed values to property, particularly real estate, as the result of a general, partial, or individual reappraisal of the property.

(r5) Recital - a performance by one or two players or by a string quartet.

(r6) Rectifier - comprises every person who rectifies, purifies or refines distilled spirits or wines by any process other than by original and continuous distillation from mash, wort, wash, or syrup through continuous closed vessels and pipes until the manufacture thereof is complete. Every wholesale or retail liquor dealer who has in his possession any still or mash tub, or who keeps any other apparatus for the purpose of distilling spirits, or in any manner refining distilled spirits, shall also be regarded as a rectifier and as being engaged in the business of rectifying.

(r7) Referee (Sentenciador) - refers to a person who watches and oversees the proper gaifting of fighting cocks; determines the physical condition of gamecocks while cockfighting is in progress; the injuries sustained by the cocks and their capability to continue fighting; and, decides and make known his decision either by word or gesture the result of the cockfighting by announcing the winner or deciding a tie in a contest game.

(r8) Refrigerating - means the storage or keeping of articles at a temperature not to exceed forty (40) degrees Fahrenheit above zero (0) degree in a refrigerating case.

(r9) Regional Derby - means a cockfight promotion with participants from a particular region.

(r10) Regular Cockfights - means a cockfight held on Sundays and/or legal holidays.

(r11) Remaining Economic Life - is the period of time expressed in years from the date of appraisal to the date when the machinery becomes valueless.

(r12) Remaining Value - is the value corresponding to the remaining useful life of the machinery.

(r13) Renovation - any physical change made on a building/structure to increase its value, utility and/or to improve its aesthetic quality.

(r14) Rental - means the value of the consideration, whether in money, or otherwise, given for the enjoyment or use of a thing.

(15) Repacker of Wines or Distilled Spirits - includes all persons who remove wines or distilled spirits from the original containers for repacking and selling the same at wholesale.

(16) Repair - the reconstruction and renewal of any part of an existing building for the purpose of restoring the same to its original condition and for maintenance. The word "repair" shall not apply to any change of construction.

(17) Replacement or Reproduction Cost - is the cost that would be incurred, on the basis of current prices, in acquiring an equally desirable, substitute property, or the cost of reproducing a new replica of the property, on the basis of the current prices with the same or closely similar material.

(18) Residents - refer to natural persons who have their habitual residence in the province, city, or municipality where they exercise their civil rights and fulfill their civil obligations, and to juridical persons for which the law or any other provision creating or recognizing them fixes their residence in a particular province, city or municipality. In the absence of such laws, juridical persons are residents of the province, city or municipality where they have their legal residence or principal place of business or where they conduct their principal business or occupation;

(19) Residential Land - is the land principally devoted to habitation.

(20) Residential Property - real property principally devoted to habitation.

(21) Resort - any place or places with pleasant environment and atmosphere conducive to comfort, healthful relaxation and rest, offering food, sleeping accommodation and recreational facilities to the public for a fee or remuneration.

(22) Restaurant - refers to any place which provides food to the public and accepts orders from them at a price. This term includes caterers.

(23) Retail - means a sale where the purchaser buys the commodity for his consumption irrespective of the quantity of the commodity sold.

(24) Retail Dealer in Fermented Liquor - includes every person, except retail dealers of tuba, basi and tapuy, who for himself or on commission sells or offers for sale fermented liquors in quantities of five liters or less at any one time and not for resale.

(25) Retail Leaf Tobacco Dealer - includes every person who for himself or on commission sells leaf tobacco or offers the same for sale to any person except a registered dealer in leaf tobacco or a manufacturer of cigars, cigarettes or manufactured tobacco but the term does not include a planter or producer so far as concerns the sale of leaf tobacco

of his own production.

(26) Retail Liquor Dealer - includes every person except a retail vino dealer, who for himself or on commission sells or offers for sale wine or distilled spirits (other than denatured alcohol) in quantities of five liters or less at any one time and not for resale.

(27) Retail Wine Dealer - includes every person who for himself or on commission sells or offers for sale only domestic distilled spirits in quantities of five liters or less at any one time and not for resale.

(r28) Revenue includes taxes, fees and charges that a state or its political subdivision collects and receives into the treasury for public purposes.

(r29) Roof Sign - any sign installed on roofs, roof decks, parapets or eaves.

(s) Services - mean the duties, work or functions performed or discharged by a government officer, or by a private person contracted by the government, as the case may be.

(s1) Shaft - a vertical opening through a building for elevators, dumbwaiters, mechanical equipment, or similar purposes.

(s2) Shop - is a small retail establishment offering a line of goods or services.

(s3) Shopping Center - means a building, establishment, or a place or part thereof, leased to several different persons but not less than ten (10) persons to be used principally by them, separately for selling, assorted, non-perishable and dry goods, merchandise or articles including refrigerated goods.

(s4) Short-Haul Trip - is the travel of a considerable distance in terms of period of time, which shall be measured at a maximum of four (4) hours from point of embarkation to final destination.

(s5) Show Window - a store window in which goods are displayed.

(s6) Sign - any letter, word, numeral, pictorial presentation, illustration, decoration, emblem, device, symbol or trademark, flag banner, or pennant, or any other figure of similar character that is; attached to, painted on or in any manner represented on a building or structure; used to announce, direct attention to or advertise and visible to the public.

(s7) Signboard - a broad flat piece of wood or other material bearing information and/or advertising less than six (6) square meters in area.

(s8) Sign Stand - any movable structure upon which sign is mounted or supported.

(s9) Sign Structure - that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

(s10) Skating Rink - includes any private place or compound where, for a fee or compensation, the customers are allowed to skate in or around the place.

(s11) Slum - blighted area; eyesore; an area where the values of real estate tend to deteriorate because of the dilapidated, obsolescent, and unsanitary condition of the building within the area; any eyesore is a building or area which is markedly unpleasant to look at.

(s12) Small Enterprise - an enterprise with an asset size of Five Hundred Thousand Pesos (P 500,000.00) to Two Million Pesos (P 2-M).

(s13) Socalo, Masonry - the wall between the bottom of the window sill and the ground.

(s14) Soda Fountain/Refreshment Parlor - includes all places where refreshment and/or drinks are served, provided that, in such places, there is a counter stand with chairs and where customers are not permitted to congregate and loiter within the premises, such as in bars, and saloons or in restaurants and public eating places.

(s15) Soffit - the underside of a beam, lintel, or reveal.

(s16) Special Cockfights - means a cockfight held on days other than Sundays and legal holidays for special purposes.

(s17) Special Cockfight Permit - means a permit secured from the Sangguniang Panlungsod to hold cockfighting on days other than Sundays and legal holidays.

(s18) Sports and Recreational Club/Center - is any establishment offering sports and recreational facilities to tourists and to the general public.

(s19) Stable - any structure designed and intended for the enclosure, shelter, or protection of any horse, carabao, or other cattle.

(s20) Stable, Commercial - a stable wherein the animals are kept for business, racing or breeding purposes.

(s21) Stage - a partially enclosed portion of an assembly building which is designed of used for the presentation of plays, demonstrations, or other entertainment wherein scenery, drops or other effects may be installed or used, and where the distance between the top of the proscenium opening and the ceiling above the stage is more than one and one-half (1.5) meters.

(s22) Stall - refers to any allotted space or booth in the public market where merchandise of any kind is sold or offered for sale.

(s23) Stallholder - refers to the awardees of a definite space within a public market that pays rentals thereon for the purpose of selling his/her goods/commodities or services.

(s24) Stairway - two or more riser shall constitute a stairway.

(s25) Stairway, Private - a stairway serving one tenant only.

(s26) Stockbroker - includes all persons whose business is for themselves as such brokers or for other brokers, to negotiate purchases or sales of stocks, bond, exchange, bullion, coined money, bank notes, promissory notes, or other securities; but does not include underwriters of one or more investment companies as defined in the Investment Company Act; "Dealer in Securities" includes all persons who for their own account are engaged in the sale of stock, bond, exchange, bullion, coined money, bank notes, promissory notes, or other securities.

(s27) Storey - that portion of building included between the upper surface of any floor and the upper surface of the floor next above, except the topmost floor and ceiling or roof above. If the finished floor level directly above a basement, cellar or unused underfloor space is more than 3.6 meters above grade as defined herein at any point, such basement, cellar or unused underfloor space shall be considered as a storey.

(s28) Storey, Height of - the perpendicular distance from top to top on two (2) successive floors, floor beams, or joists. The clear height of a storey or a room is the distance from the floor to the ceiling. The Clear height of balconies is measured from the highest point of the sidewalk grade to the underside of the balcony floor joists. If these joists are sealed, this clear height measured to the underside of the ceiling.

(s29) Streamer - any advertising material made of light substance such as cloth, canvas, plastic and the like, hunged or installed outdoor for public view.

(s30) Street - any thoroughfare or public space which has been dedicated or deemed to the public for public use.

(s31) Structure - that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

(s32) Structural Frame - the framing system including the columns and the girders, beams, trusses, and spandrels having direct connections to the stability of the building as a whole. The members of floor or roof which have no connection to the columns shall be considered secondary and not a part of the structural frame.

(s33) Supper of Family Club - includes any establishment where food and drinks are served to its patrons to the accompaniment of music furnished by such establishment with musicians under its employ or by jukeboxes installed within its premises and where patrons are allowed to dance with partners whom they bring along but not hostesses as in the case of night clubs and bars.

(s34) Supportales - the vertical supports, such as posts or stanchions, as used in indigenous or traditional type of construction. These may be freestanding as stilts or integrated into the wall structure. In case of former, pie de gallos (knee Braces) or corsettas (cross bracings) are sometimes used.

(s35) Surface, Exterior - weather-exposed surface.

(s36) Surface, Interior - other than weather-exposed surface.

(s37) Surface, Weather-Exposed - all surfaces of walls, ceilings, floors, roofs, soffits, and similar surfaces exposed to the weather except the following:

(a) Ceiling and roof soffits enclosed by walls, or by beams extend a minimum of three hundred (300) millimeters below such ceiling or roof soffits;

(b) Walls or portions of walls within an unenclosed roof area, when located a horizontal distance from an exterior opening equal to twice the height of the opening; and

(c) Ceiling and roof soffits beyond a horizontal distance of three (3) meters from the outer edge of the ceiling or roof soffits.

(t) Tax - means an enforced contribution, usually monetary in form, levied by the law making body on persons and property subject to its jurisdiction for the precise purpose of supporting governmental needs.

(t1) Temporary Sign - a sign of cloth or other light and/or combustible material, with or without frame, installed for a limited period of time.

(2) Theater or Cinema House - includes any place, edifice, building or enclosure where motion pictures are exhibited and/or presentation of plays or other shows including performances, stage shows, musical or dramatic shows, concerts, or gymnastic or acrobatic feats are held.

(t3) Tour guide - is an individual who guides tourists, both foreign and domestic, for a fee, commission, or any other form of lawful remuneration

(t4) Tour operator - is an entity which may either be a single proprietorship, partnership or corporation regularly engaged in the business of extending to individuals or groups, such services pertaining to arrangements and bookings for transportation and/or accommodation, handling and/or conduct of inbound tours whether or not for a fee, commission, or any form of compensation.

(t5) Tourism-Oriented and Related Establishments - refer to those that do business regarding and catering to tourism industry which includes among others restaurants, department stores, shops, sports and recreational clubs/centers, museums, training centers, homestays, rest areas in gasoline stations.

(t6) Tourism-Oriented and Related Occupation - means one's regular business or employment, or an activity, which principally takes up one's time, thought and energy. It includes any calling, business, trade, profession or vocation regarding and relating to tourism industry.

(t7) Tourist Air Transport - is any air conveyance catering to tourists.

(t8) Tourist Inn - a lodging establishment catering to transients, which does not meet the minimum requirements of an economy hotel.

(t9) Tourist Land Transport Operator - is a person or entity which may either be a single proprietorship, partnership or corporation, regularly engaged in providing for a fee or lawful consideration, tourist transport services as herein defined, either on charter or regular run.

(t10) Tourist Water Transport - is any watercraft catering to tourists.

(t11) Training Center - is any establishment, which offers one or more training programs for tourism manpower development and which is equipped with training facilities, equipment and instructional staff.

(t12) Training Program - is a module designed for tourism manpower development.

(t13) Trainer - is any individual who conducts training programs as specified in the preceding paragraph.

(t14) Travel Agency - an agency engaged in selling and arranging personal transportation and accommodation for travelers.

(t15) Travel Agent - a person engaged in selling and arranging transportation tours or trips for travelers.

(t16) Tricycle For Hire - is a vehicle composed of a motorcycle fitted with a single-wheel sidecar or a motorcycle with a two-wheel cab operated to render transport services to the general public for a fee.

(t17) Tricycle Operators - are persons engaged in the business of operating tricycles.

(u) Unjust - means deficient in justice and fairness.

(u1) Utilization and Development - refers to the use or employment of improvement for practical expenditure and profitable measures.

(v) Value or Valuation of a building - the estimated cost to replace the building in kind, based on current replacement costs.

(v1) Vault - any surface or underground construction covered on top, or any fire-proof construction intended for the storage of valuables.

(v2) Veneer Adhered - veneer secured and supported by approved mechanical fasteners attached to an approved backing supported through adhesion to an approved bonding material applied over an approved backing.

(v3) Veneer, Exterior - veneer applied to weather-exposed surfaces.

(v4) Veneer, Interior - veneer applied to surfaces other than weather-exposed surfaces.

(v5) Vessels - include every type of boat, craft or other artificial contrivance, capable of being used, as a means of transportation on water.

(w) Waiter/Waitress - a man or woman entertainer whose services are hired by a business establishment whose duty is to serve food and/or drinks to its customers or patrons and is allowed by such business establishment to entertain its customers or patrons only by congregating, conversing, talking or chatting with them and for no other purpose.

(w1) Wall, Bearing - a wall which supports any load other than its own weight.

(w2) Wall, Cross - a term which may be used synonymously with a partition.

(w3) Wall, Curtain - the enclosing wall of an iron or steel framework or the nonbearing portion of an enclosing wall between piers.

(w4) Wall, Dead - A wall without openings.

(w5) Wall, Exterior - any wall or element of a wall or any number or group of members, which defines the exterior boundaries or courts of a building.

(w6) Wall, Faced - a wall in which the facing and backing are so bonded together that they act as a composite element, and exert a common action under load.

(w7) Wall, Fire - any wall which subdivides a building so as to resist the spread of fire, by starting at the foundation and extending continuously through all storeys to, or above the roof. Extension above the roof is one (1) meter.

(w8) Wall, Foundation - that portion of an enclosing wall below the first tier of floor-joists.

(w9) Wall, Height of - the perpendicular distance measured from its base line either at the grade or at the top of the girder to the top of the coping thereof. Foundation and retaining walls are measured from the grade downward to the base of the footing.

(w10) Wall, Non-bearing - a wall which supports no load other than its own weight.

(w11) Wall, Parapet - that part of any wall entirely above the roof line.

(w12) Wall, Party - a wall separating two (2) or more buildings, and used in common by the said buildings.

(w13) Wall, Retaining - any wall used to resist the lateral displacement of any material; a subsurface built to resist the lateral pressure of internal loads.

(w14) Wall, Thickness of - the minimum thickness measured on the bed.

(w15) Wall Sign - a sign painted on, attached or fastened to the surface of the wall or any part of a building or structure, the display surface of which is parallel to the wall surface.

(w16) Warehouse - includes every building or portion thereof where goods, wares, merchandise, articles or other personal property are received and stored. A warehouse that accepts orders or issues sales invoice shall be considered a branch or sales office.

(w17) Watercraft - is every description of conveyance, except seaplane, used or being capable of use as a means of transportation on water which shall include passenger ship, ferry, pleasure yacht and other similar and analogous conveyances.

(w18) Wharfage - means a fee assessed against the cargo of a vessel engaged in foreign or domestic trade based on the quantity, weight or measure received and/or discharged by such vessel.

(w19) Wholesale - means a sale where the purchaser buys or imports the commodities for resale to persons other than the end-users, regardless of the quantity of the transaction.

(w20) Wholesaler - means a person or entity that resells goods or merchandise at a profit to persons other than the end-users, the goods being unaltered when resold, regardless of the quantity sold. As a general rule, wholesale deals only with respect to persons who buy for resale.

(w21) Wholesale Dealer in Fermented Liquors - means any one who for himself or on commission sells or offers for sale fermented liquors in larger quantities than five liters at any one time, or who sells or offers for sale such fermented liquor (excluding tuba, basi, tapuy and similar domestic fermented liquors) for the purpose of resale, regardless of quantity.

(w22) Wholesale Dealer of Distilled Spirits and Wines - comprehends every person who for himself or on commission sells or offers for sale wines or distilled spirits in larger quantities than five liters at any one time, or who sells or offers the same for sale for the purpose of resale irrespective of quantity.

(w23) Wholesale Dealer in Liquor - includes every person who for himself or on commission sells or offers for sale wines, or distilled spirits for the purpose of resale regardless of quantity

(w24) Wholesale Tobacco Dealer - comprehends every person who for himself or on commission sells or offers for sale cigars, cigarettes or manufactured tobacco in larger quantities than two hundred cigars, eight hundred cigarettes or five kilos of manufactured tobacco at any one time or who sells or offers the same for the purpose of resale, regardless of quantity; retail tobacco dealer comprehends every person who for himself or on commission sells or offers for sale not more than two hundred cigars, not more than eight hundred cigarettes, or not more than five kilos of manufactured tobacco at any one time and not for sale.

(w25) Window - an opening through a wall of a building to the outside air for the purpose of admitting natural light and air.

(w26) Window, Oriel - a projecting window similar to a bay window, but carried on brackets or corbels. The term "bay window" may also be applied to an oriel window projecting over the street line.

(w27) Wire Backing - horizontal strands of tautened wire attached to surfaces of vertical wood supports which, when covered with building paper, provide a backing for Portland Cement Plaster.

(y) Yard or Patio - the vacant space left in a lot between the building and the property line.

(z) Zone - is a contiguous land area of block, say a subdivision or barangay where tricycles-for-hire may operate without a fixed origin and destination.

(z1) Zoning Law or Ordinance - either or both national or local legislation which logically arranges, prescribes, defines and apportions a given political subdivision into specific land uses at present and future projection, if needs warrant in accordance with the Housing and Land Use Regulatory Board.

CHAPTER 2: CITY TAXES

Article One. - Real Property Tax

SECTION 6. IMPOSITION OF THE BASIC REAL PROPERTY TAX

There is hereby levied an annual ad valorem tax at the rate of one and one-half percent (1.5%) of the assessed value of real property, such as lands, buildings, machinery and other improvements affixed or attached to real property located in this City.

SECTION 7. ADDITIONAL LEVY ON REAL PROPERTY FOR THE SPECIAL EDUCATION FUND (SEF)

There is hereby levied a one percent (1%) tax on the assessed value of real property which shall be in addition to the basic real property tax. The proceeds thereof shall accrue exclusively to the Special Education Fund (SEF).

SECTION 8. EXEMPTIONS TO THE IMPOSITION

The following are exempted from payment of the basic real property tax and the SEF tax:

1. Real property owned by the Republic of the Philippines or any of its political subdivisions except when the beneficial use thereof has been granted, for consideration or otherwise, to a taxable person;

2. Charitable institutions, churches, and parsonage or convents appurtenant thereto, mosques, nonprofit or religious cemeteries and all lands, buildings and improvements actually, directly, and exclusively used for religious, charitable or educational purposes;

3. All machineries and equipment that are actually, directly and exclusively used by local water districts and government-owned or controlled corporations engaged in the supply and distribution of water and/or generation and

transmission of electric power;

4. All real property owned by duly registered cooperatives as provided for under RA 6933; and

5. Machinery and equipment used for pollution control and environmental protection.

Except as provided herein and pursuant to Section 234 of the Local Government Code, any exemption from payment of real property tax previously granted to, or presently enjoyed by all persons, whether natural or juridical, including all government-owned or controlled corporations are hereby withdrawn effective last January 1, 1992.

SECTION 9. TIME OF PAYMENT

The real property tax herein levied together with the additional levy on real property for the Special Education Fund (SEF) shall be due and payable on the first day of January. The same may, however, at the discretion of the taxpayer, be paid without interest/penalty in four (4) equal installments: the first installment, on or before March 31; the second installment, on or before June 30; the third installment, on or before September 30; and the last installment, on or before December 31.

Both the basic tax and the additional SEF tax must be collected simultaneously. Payments of real property tax shall first be applied to prior years delinquencies, interests and penalties, if any, and only after said delinquencies are settled may tax payments be credited for the current period.

SECTION 10. TAX DISCOUNT FOR ADVANCED AND PROMPT PAYMENT

If the basic real property and additional SEF tax are paid on or before the deadlines as provided for in Section 9 of this Code, the taxpayer shall be entitled to a discount of ten percent (10%). If the above-mentioned taxes are paid in full for the whole year before the end of the first (1st) quarter of the year, the taxpayer shall be entitled to twenty percent (20%) tax discount.

The above-mentioned discount shall only be granted to properties without any delinquency.

SECTION 11. COLLECTION AND DISTRIBUTION OF PROCEEDS

The collection of the real property tax with interest thereon and related expenses, and the enforcement of the remedies provided for in this Article or any applicable laws, shall be the responsibility of the City Treasurer. The City Treasurer may deputize the Barangay Treasurer to collect all taxes on real property located in the barangay: Provided, that the Barangay Treasurer is properly bonded for the purpose: Provided, further, that the premium on the bond shall be paid by the City Government.

The proceeds of the basic real property tax, including interest thereon, and proceeds from the use, lease or disposition, sale or redemption of property acquired at a public auction, shall be distributed as follows:

1. Seventy percent (70%) shall accrue to the General Fund of the City;

2. Thirty percent (30%) shall be distributed among the component barangays of the city where the property is located in the following manner:

a. Fifty percent (50%) shall accrue to the barangay where the property is located.

b. Fifty percent (50%) shall accrue equally to all component barangays of this city.

The share of the barangay shall be released directly to the Barangay Treasurer on a quarterly basis within five (5) days after the end of each quarter, without need of any further action, and shall not be subject to any lien or holdback for whatever purpose subject to such rules as may be prescribed by the Commission on Audit for this purpose.

The proceeds of the additional one percent (1%) SEF tax shall be automatically released to the city school board for the operation and maintenance of public schools, construction and repair of school buildings, facilities and equipment, educational research, purchase of books and periodicals, and sports development as determined and approved by the city school board.

SECTION 12. ADMINISTRATIVE PROVISIONS

1. Assessor to Furnish Treasurer with Assessment Roll. The City Assessor shall prepare and submit to the City Treasurer on or before the thirty-first (31st) day of December each year, an assessment roll containing a list of all persons whose real properties have been newly assessed or reassessed and the values of such properties.

2. Notice of Time for Collection of Tax. The City Treasurer shall, on or before the thirty-first (31st) day of January each year, in the case of basic real property tax and the additional tax for the SEF or on any other date to be prescribed by the Sangguniang Panlungsod in the case of any other tax levied under this Article, post the notice of the dates when the tax may be paid without interest at a conspicuous and publicly accessible place at the city hall. Said notice shall likewise be published in a newspaper of general circulation in the locality once a week for two (2) consecutive weeks.

3. Payment Under Protest.

(a) No protest shall be entertained unless the taxpayer first pays the tax. There shall be annotated on the tax receipts the words "paid under protest." The protest in writing must be filed within thirty (30) days from payment of the tax with the City Treasurer who shall decide the protest within sixty (60) days from receipt.

(b) Fifty percent (50%) of the tax paid under protest shall be held in trust by the City Treasurer. The other fifty percent (50%) shall form part of the proceeds to be distributed in accordance with Section 7 of this Article.

(c) In the event that the protest is finally decided in favor of the taxpayer, the amount or portion of the tax protested shall be refunded to the protestant or applied as tax credit against his existing or future tax liability.

(d) In the event that the protest is denied or upon the lapse of the sixty (60) day period prescribed in subparagraph (a), the taxpayer may, within sixty (60) days from receipt of the written notice of assessment or the day next following the lapse of the 60-day period, appeal to the City Board of Assessment Appeals by filing a petition under oath in the standard form prescribed therefore, together with copies of the tax declaration and such affidavits or documents in support of the appeal.

4. Repayment of Excessive Collection. When as assessment of basic real property tax, or any tax levied under this Article, is found to be illegal or erroneous and tax is accordingly reduced or adjusted, the taxpayer may file a written claim for refund or credit for taxes and interests with the City Treasurer within two (2) years from the date the taxpayer is entitled to such reduction or adjustment.

The City Treasurer shall decide the claim for tax refund or credit within sixty (60) days from receipt thereof. In case the claim for tax refund or credit is denied, the taxpayer may within sixty (60) days from the date of receipt of the written notice of assessment, appeal to the City Board of Assessment Appeals by filing a petition under oath in the standard form prescribed therefor, together with copies of the tax declaration and such affidavits or documents in support of the appeal.

5. Notice of Delinquency in the Payment of the Real Property Tax.

(a) When the real property tax or any other tax imposed under this Article becomes delinquent, the City Treasurer shall immediately cause a notice of delinquency to be posted at the main entrance of the hall and in a publicly accessible and conspicuous place in each barangay. The notice of delinquency shall also be published once a week for two (2) consecutive weeks, in a newspaper of general circulation in the city.

(b) Such notice shall specify the date upon which the tax became delinquent and shall state that personal property may be distrained to effect payment. It shall likewise state that at any time before the distraint of personal property, payment of tax with surcharges, interests, and penalties may be made in accordance with Section 9 of this Article, and unless the tax, surcharges and penalties are paid before the expiration of the year for which the tax is due, except when the notice of assessment or special levy is contested administratively or judicially, the delinquent real property will be sold at public auction, and the title to the property will be vested in the purchaser, subject, however, to the right of the delinquent owner of the property or any person having legal interest therein to redeem the property within one (1) year from the date of sale.

6. Remedies for the Collection of Real Property Tax. For the collection of the basic real property tax and any other levied under this Article, the city may avail of the remedies by administrative action through levy on real property and sale of real property by public auction or by judicial action.

7. City Government's Lien. The basic real property tax and any other tax levied under this Article constitutes a lien on the property subject to tax, superior to all liens, charges or encumbrances in favor of any person, irrespective of the owner or possessor thereof, enforceable by administrative or judicial action, and may only be extinguished upon payment of the tax and related interests and expenses.

8. Levy on Real Property. After the expiration of the time required to pay the basic real property tax or any other tax levied under this Article, real property subject to such tax may be levied upon through issuance of a warrant on or before, or simultaneously with the institution of the civil action for the collection of the delinquent tax. The City Treasurer when issuing a warrant of levy shall prepare a duly authenticated certificate showing the name of the delinquent owner of the property or person having legal interest therein, the description of the property, the amount of tax due and the interest thereon. The warrant shall operate with the force of a legal execution throughout the City. The warrant shall be mailed to or served upon the delinquent owner of the real property or person having legal interest therein, or in case he is out of the country or cannot be located to the administrator or occupant of the property. At the same time, written notice of the levy with the attached warrant shall be mailed to or served upon the City Assessor and Register of Deeds of the City, who shall annotate the levy on the tax declaration and certificate of title of the property, respectively.

The levying officer shall submit a report on the levy to the Sangguniang Panlungsod within ten (10) days after receipt of the warrant by the owner of the property or person having legal interest therein.

9. Penalty for Failure to Issue and Execute Warrant. Without prejudice to criminal prosecution under the Revised Penal Code and other applicable laws,

10. Advertisement and Sale. Within thirty (30) days after the service of the warrant of levy, the City Treasurer shall proceed to publicly advertise for sale or auction the property or a usable portion thereof as may be necessary to satisfy the tax delinquency and expenses of sale. The advertisement shall be affected by posting a notice at the main entrance of the city hall, and in a publicly accessible and conspicuous place in the barangay where the property is located, and by publication once a week for two (2) consecutive weeks in a newspaper of general circulation in the city. The advertisement shall specify the amount of the delinquent tax, the interest due thereon and expenses of sale, the date and place of sale, the name of the owner of the real property or person having legal interest therein, and a description of the property to be sold. At any time before the date fixed for the sale, the owner of the real property or person having legal interest therein may stay the proceedings by paying the delinquent tax, the interest due thereon and the expenses of sale. The sale shall be held either at the main entrance of the city hall, or on the property to be sold, or at any other place as specified in the notice of sale.

Within thirty (30) days after the sale, the City Treasurer or his deputy shall make a report of the sale to the Sangguniang Panlungsod and which shall form part of his records. The City Treasurer shall likewise prepare and deliver to the purchaser a certificate of sale which shall contain the name of the purchaser, a description of the property sold, the amount of the delinquent tax, the interest due thereon, the expenses of sale and a brief description of the proceedings. Provided, however, that proceeds of the sale in excess of the delinquent tax, the interest due thereon, and the expenses of sale shall be remitted to the owner of the real property or person having legal interest therein.

The City Treasurer may advance an amount sufficient to defray the cost of collection through the remedies provided for in this Article, including the expenses of advertisement and sale.

11. Redemption of Property Sold. Within one (1) year from the date of sale, the owner of the delinquent real property or person having legal interest therein, or his representative, shall have the right to redeem the property upon payment to the City Treasurer of the amount of the delinquent tax, including the interest due thereon, and the expenses of sale from the date of delinquency to the date of sale, plus interest of two percent (2%) per month on the purchase price from the date of sale to the date of redemption. Such payment shall invalidate the certificate of sale issued to the purchaser and the owner of the delinquent real property or person having legal interest therein shall be entitled to a Certificate of Redemption which shall be issued by the City Treasurer or his deputy.

From the date of sale until the expiration of the period of redemption, the delinquent real property shall remain in possession of the owner or person having legal interest therein who shall be entitled to the income and other fruits thereof.

The City Treasurer or his deputy, upon receipt from the purchaser of the certificate of sale, shall forthwith return to the latter the entire amount paid by

12. Final Deed to Purchaser. In case the owner or person having legal interest therein fails to redeem the delinquent property as provided herein, the City Treasurer shall execute a deed conveying to the purchaser said property, free from lien of the delinquent tax, interest due thereon and expenses of sale. The deed shall briefly state the proceedings upon which the validity of the sale rests.

13. Purchase of Property by the City Government for Want of Bidder. In case there is no bidder for the real property advertised for sale as provided herein, or if the highest bid is for an amount insufficient to pay the taxes, fees, or charges, related surcharges, interests, penalties and costs, the City Treasurer conducting the sale shall purchase the property in behalf of the city government to satisfy the claim and within two (2) days thereafter shall make a report of his proceedings which shall be reflected upon the records of his office. It shall be the duty of the Registrar of Deeds upon registration with his office of any such declaration of forfeiture to transfer the title of the forfeited property to the city government without the necessity of an order from a competent court.

Within one (1) year from the date of such forfeiture, the taxpayers or any of his representative, may redeem the property by paying to the City Treasurer the full amount of the taxes, fees, charges, and related surcharges, interests, or penalties, and the costs of sale. If the property is not redeemed herein, the ownership thereof shall be fully vested on the city government.

14. Resale of Real Estate Taken for Taxes, Fees or Charges. The Sangguniang Panlungsod may, through a separate ordinance and upon notice of not less than twenty (20) days, sell and dispose of the real property acquired under the preceding subsection at public auction. The proceeds of the sale shall accrue to the General Fund of the City.

15. Further Distract or Levy. Levy may be repeated if necessary until the full amount due, including all expenses, is collected.

16. Collection of Real Property Tax Through the Courts. The City Government may enforce the collection of the basic real property tax or any tax levied under this article by civil action in any court of competent jurisdiction. The following civil action shall be filed by the City Treasurer within the period prescribed in Section 13 of this Article:

a. The City Treasurer shall furnish the City Legal Office a certified statement of delinquency who, within fifteen (15) days after receipt, shall file the civil action in the name of the city, the proper court of competent jurisdiction. The jurisdiction of the court is determined by the amount sought to be recovered exclusive of interests and costs.

b. Where cognizable in an inferior court, the action must filed in the city where the delinquent property is located. Where the Regional Trial Court has jurisdiction, the plaintiff Local Government Unit shall file the complaint in the city where the property is situated.

c. In both cases, that is, where the claim is either cognizable by an inferior court or by the Regional Trial Court, the City Treasurer shall furnish the City Legal

17. Action Assailing Validity of Tax Sale. No court shall entertain action assailing the validity of any sale at public auction of real property or rights therein under this Article until the taxpayer shall have deposited with the court the amount for which the real property was sold, together with interest of two percent (2%) per month from the date of sale to the time of the institution of the action. The amount so deposited shall be paid to the purchaser at the auction sale if the deed is declared invalid but it shall be refunded to the depositor if the action fails.

Neither shall any court declare a sale at public auction invalid by reason of irregularities or informalities in the proceedings unless the substantive right of the delinquent owner of real property or the person having legal interest therein have been impaired.

18. Payment of Delinquent Taxes on Property Subject of Controversy. In any action involving the ownership or possession of, or succession to, real property, the court may motu proprio or upon representation of the City Treasurer or his deputy, award such ownership, possession or succession to any party to the action upon payment to the court of

the taxes with interest due on the property and all other costs that may have accrued, subject to the final outcome of the action.

19. Treasurer to Certify Delinquencies Remaining Uncollected. The City Treasurer or his deputy shall prepare a certified list of all real property tax delinquencies which remained uncollated or unpaid for at least one (1) year in his jurisdiction, and a statement of the reason or reasons for such non-collection or non-payment, and shall submit to the Sangguniang Panlungsod on or before the thirty-first (31st) of December of the year immediately succeeding the year in which the delinquencies were incurred, with a request for assistance in the enforcement of the remedies for collection provided herein.

SECTION 13. SPECIAL PROVISIONS

1. Condonation or Reduction of Real Property Tax and Interest. In case of a general failure of crops or substantial decrease in the price of agricultural or agri-based products, or calamity in the city or when public interests so require, the Sangguniang Panlungsod by ordinance passed prior to the first (1st) day of January of any year and upon recommendation of the Local Disaster Coordinating Council, may condone or reduce, wholly or partially, the taxes and interest thereon for the succeeding year or years in the city affected by the calamity.

2. Condonation or Reduction of Tax by the President of the Philippines. The President of the Philippines may, when public interest so requires, condone or reduce the real property tax and interest for any year in the city.

3. Duty of Register of Deeds and Notaries Public to Assist the City Assessor. It shall be the duty of the Register of Deeds and Notaries Public to furnish the City Assessor with copies of all contracts selling, transferring, or otherwise conveying, leasing, or mortgaging real property received by, or acknowledged before them.

4. Insurance Companies to Furnish Information. Insurance companies are hereby required to furnish the City Assessor copies of any contract or policy insurance on buildings, structures and improvements insured by them or such other documents which may be necessary for the proper assessment thereof and the latter to ensure compliance therein.

5. Fees in Court Actions. As provided for in Sec. 280 of the Local Government Code, all court actions, criminal or civil, instituted at the instance of the City Treasurer shall be exempt from the payment of court and sheriff's fees.

6. Fees in Registration of Papers or Documents on Sale of Delinquent Real Property to City. As provided for in Section 281 of the Local Government Code, all certificates, documents, and papers covering the sale of delinquent property to the city if registered in the Registry of Property, shall be exempt from the documentary stamp tax and registration fees.

7. Real Property Assessment Notices or Owner's Copies of Tax Declarations to be Exempt from Postal Charges or Fees. As provided for in Sec. 282 of the Local Government Code, all real property assessment notices or owner's copies of tax declaration sent through mails by the assessor shall be exempt from the payment of postal charges or fees.

8. Sale and Forfeiture Before Effectivity of this Code. Tax delinquencies incurred, and sales and forfeitures of delinquent real property effected, before the effectivity of this Code shall be governed by the provisions of applicable ordinance or laws then in force.

SECTION 14. INTERESTS ON UNPAID REAL PROPERTY TAX. FAILURE TO PAY THE REAL PROPERTY TAX OR ANY OTHER TAX LEVIED UNDER THIS ARTICLE UPON THE EXPIRATION OF THE PERIODS AS PROVIDED IN SECTION 5, SHALL SUBJECT THE TAXPAYER TO THE PAYMENT OF INTEREST AT THE RATE OF TWO PERCENT (2%) PER MONTH ON THE UNPAID AMOUNT OR A FRACTION THEREOF, UNTIL THE DELINQUENT TAX SHALL HAVE BEEN FULLY PAID. IN NO CASE SHALL THE TOTAL INTEREST ON THE UNPAID TAX OR PORTION THEREOF EXCEED THIRTY

six (36) months.

SECTION 15. PENALTIES FOR OMISSION OF PROPERTY FROM ASSESSMENT OR TAX ROLLS BY OFFICERS AND OTHER ACTS. ANY OFFICER CHARGED WITH THE DUTY OF ASSESSING A REAL PROPERTY WHO WILLFULLY FAILS TO ASSESS OR WHO INTENTIONALLY OMITS FROM THE ASSESSMENT OR TAX ROLL ANY REAL PROPERTY WHICH HE KNOWS TO BE TAXABLE, OR WHO WILLFULLY OR NEGLIGENTLY UNDER

assesses any real property, or who intentionally violates or fails to perform any duty imposed upon him by law relating to the assessment of taxable real property, shall, upon conviction, be punished by a fine of not less than One Thousand Pesos (P1,000.00) nor more than Five Thousand Pesos (P5,000.00), or by imprisonment of not less than one (1) month nor more than six (6) months, or both such fine and imprisonment, at the discretion of the court.

The same penalty shall be imposed upon any officer charged with the duty of collecting the tax due on real property who willfully or negligently fails to collect the tax and institute the necessary proceedings for the collection of the same.

Any other officer required in this Article to perform acts relating to the administration of the real property tax or to assist the assessor or treasurer in such administration, who willfully fails to discharge such duties shall, upon conviction, be punished by a fine of not less than Five Hundred Pesos (P500.00) nor more than Five Thousand Pesos (P5,000.00), or imprisonment of not less than one (1) month nor more than six (6) months, or both such fine and punishment, at the discretion of the court.

SECTION 16. PENALTIES FOR DELAYING ASSESSMENT OF REAL PROPERTY AND ASSESSMENT APPEALS. ANY GOVERNMENT OFFICIAL WHO INTENTIONALLY AND

deliberately delays the assessment of real property or the filing of any appeal against its assessment shall, upon conviction, be punished by a fine of not less than Five Hundred Pesos (P500.00) nor more than Five Thousand Pesos (P5,000.00), or imprisonment of not less than one (1) month nor more than six (6) months, or both such fine and punishment, at the discretion of the court.

SECTION 17. PENALTIES FOR FAILURE TO DISPOSE THE DELINQUENT REAL PROPERTY AT PUBLIC AUCTION

The City Treasurer who fails to dispose of delinquent real property at public auction in compliance with the pertinent provisions of this Article or any other local official whose acts hinder the prompt disposition of delinquent real property at public auction shall, upon conviction, be subject to a fine of not less than One Thousand Pesos (P1,000.00) nor more than Five Thousand Pesos (P5,000.00), or by imprisonment of not less than one (1) month nor more than six (6) months, or both such fine and imprisonment, at the discretion of the court.

SECTION 18. PERIODS WITHIN WHICH TO COLLECT REAL PROPERTY TAXES

The basic property tax and any other tax levied under this Article shall be collected within five (5) years from the date they become due. No action for the collection of tax, whether administrative or judicial, shall be instituted after the expiration of such period. In case of fraud or intent to evade payment of the tax, such action may be instituted for the collection of the same within ten (10) years from the discovery of such fraud or intent to evade payment.

The period of prescription within which to collect shall be suspended for the time during which:

1. The City Treasurer is legally prevented from collecting the tax;
2. The owner of the property or the person having legal interest therein requests for reinvestigation and executes a waiver in writing before the expiration of the period within to collect; and
3. The owner of the property or the person having legal interest therein is out of the country or otherwise cannot be located.

SECTION 19. FILING OF ASSESSMENT APPEALS

Any owner or person having legal interest in the property who is not satisfied with the action of the City Assessor in the assessment of his property may, within sixty (60) days from the date of receipt of the written notice of assessment, appeal to the City Board of Assessment Appeals by filing a petition under oath in the form prescribed for the purpose, together with the copies of the tax declarations and such affidavits or documents submitted in support of the appeal.

SECTION 20. ORGANIZATION, POWERS, DUTIES, AND FUNCTIONS OF THE CITY BOARD OF ASSESSMENT APPEALS

(a) The City Board of Assessment Appeals shall be composed of the Register of Deeds of the City, as Chairperson, the City Prosecutor and the City Engineer as members, who shall serve as in an officio capacity without additional compensation;
(b) The Chairperson of the Board shall have the power to designate any employees of the City to serve as Secretary to the Board also without additional compensation.

(c) The Chairperson and members of the City Board of Assessment appeals shall assume their respective positions without need of further appointment or special designation immediately upon effectiveness of this Code. They shall take an oath or affirmation of office in the manner herein set forth:

OATH OF OFFICE

I, _____, after having been appointed to the position of _____ in the City of Davao, and now assuming my position as _____ of the City Board of Assessment Appeals, solemnly swear that I will faithfully discharge to the best of my ability the duties of this position and all of others that I am holding, or hereinafter hold, under the Republic of the Philippines, and that I will support and defend the Constitution of the Philippines, and that I will obey the laws and legal orders promulgated by the duly constituted authorities of the Republic of the Philippines, and that I will well and truly hear and determine all matters and issues between taxpayers and the City Assessor submitted for my decision, and that I impose this obligation upon myself voluntarily, without reservation or purpose of evasion.

So help me God.

Signature

Subscribed and sworn to before me on this _____ day of _____, Philippines.

Signature of Officer Administering Oath

SECTION 21. MEETINGS AND EXPENSES OF THE CITY BOARD OF ASSESSMENT APPEALS

The City Board of Assessment Appeals shall meet once a month and as often as may be necessary for the prompt disposition of appealed cases. No member of the Board shall be entitled to per diems or traveling expenses for his attendance in Board Meetings, except when conducting an ocular inspection in connection with a case under appeal.

All expenses of the Board shall be charged against the General Fund of the City. The Sangguniang Panlungsod shall appropriate the necessary funds to enable the Board to operate effectively.

SECTION 22. ACTION BY THE CITY BOARD OF ASSESSMENT APPEALS

(a) The Board shall decide the appeal within one hundred twenty (120) days from the date of receipt of such appeal. The Board, after hearing shall render its decision based on substantial evidence or such relevant evidence on record as a reasonable mind might accept as adequate to support the conclusion.

(b) In the existence of its appellate jurisdiction, the Board shall have the power to summon witnesses, administer oaths, conduct ocular inspections, take depositions, and subpoena and sub-poea duces tecum. The proceedings of the Board shall be conducted solely for the purpose of ascertaining the facts without necessarily adhering to technical rules of applicable judicial proceedings.

(c) The Secretary of the Board shall furnish the owner of the property or the person having legal interest therein and the City Assessor with a copy of the decision of the Board. In case the City Assessor concurs in the revision or the assessment, it shall be his duty to notify the owner of the property or the person having legal interest therein of such fact using the form prescribed for the purpose. The owner of the property or the person having legal interest therein or the City Assessor who is not satisfied with the decision of the Board may, within thirty (30) days after receipt of the decision of said Board, appeal to the Central Board of Assessment Appeals. The decision of the Central Board of Assessment appeals shall be final and executor.

SECTION 23. EFFECT OF APPEAL ON THE PAYMENT OF REAL PROPERTY TAX. APPEAL ON ASSESSMENT OF REAL PROPERTY MADE UNDER THE PROVISIONS OF THIS ARTICLE SHALL IN NO CASE SUSPEND THE COLLECTION OF THE CORRESPONDING REALTY TAXES ON THE PROPERTY INVOLVED AS ASSESSED BY THE CITY ASSESSOR, WITHOUT PREJUDICE TO SUBSEQUENT ADJUSTMENT DEPENDING UPON THE FINAL OUTCOME OF THE APPEAL

Article Two. - Tax On Idle Lands

SECTION 24. TAX ON IDLE LANDS

There is hereby levied an annual tax on idle lands at the rate of twenty five percent of one percent (25% of 1%) of the assessed value of the property which shall be in addition to the basic real property tax.

SECTION 25. COVERAGE

For purposes of real property taxation, idle lands shall include the following:

(a) Agricultural lands, more than one (1) hectare in area, suitable for cultivation, dairying, inland fishery, and other agricultural uses, one-half (1/2) of which remain uncultivated or unimproved by the owner of the property or person having legal interest therein. Agricultural lands planted to permanent or perennial crops with at least fifty (50) trees to a hectare shall not be considered idle lands. Lands actually used for grazing purposes shall likewise not be considered idle lands.

(b) Lands, other than agricultural, located in the city, more than one thousand (1,000) square meters in area one-half (1/2) of which remain unutilized or unimproved by the owner of the property or person having legal interest therein.

Regardless of land area, this Article shall likewise apply to residential lots in subdivisions duly approved by proper authorities, the ownership of which has been transferred to individual owners, who shall be liable for the additional tax. Provided, however, that individual lots of such subdivisions, the ownership of which has not been transferred to the buyer shall be considered as part of the subdivision, and shall be subject to the additional tax payable by subdivision owner or operator.

SECTION 26. EXEMPTION

The idle land tax shall not apply to idle lands wherein the landowner is physically or legally prevented from improving, utilizing or cultivating the same by reason of force majeure, civil disturbance, natural calamity, legal dispute, or any justifiable cause or circumstance.

Any persons having legal interest on the land desiring to avail of the exemption under this section shall file the corresponding application with the Sangguniang Panlungsod. The application shall state the ground(s) under which the exemption is being claimed.

SECTION 27. LISTING OF IDLE LANDS BY THE ASSESSOR

The City Assessor shall make and keep an updated record of idle lands located within his area of jurisdiction. And for this purpose shall regularly publish in any conspicuous places within the vicinity of the Sangguniang Panlungsod and the City Hall building or in publication or to be published in a newspaper of general circulation within the City of Davao. City. For purposes of collection, the City Assessor shall furnish a copy thereof to the City Treasurer who shall notify, on the basis of such record, the owner of the property or person having legal interest therein of the imposition of the additional tax.

Any violation of this provision, the City Assessor shall be held liable for a fine of not less than Five Hundred Pesos (P 500.00) nor more than Five Thousand Pesos (P 5,000.00), or imprisonment of not less than one (1) month nor more than six (6) months, or both such fine and punishment, at the discretion of the court.

SECTION 28. COLLECTION AND ACCRUAL OF PROCEEDS

The annual tax on idle lands shall be collected at the same time and in the same manner as that of the basic real property tax. The proceeds shall accrue to the General Fund of the City.

Article Three. - Tax On Transfer Of Real Property Ownership

SECTION 29. TAX ON TRANSFER OF REAL PROPERTY OWNERSHIP

There is hereby levied a tax on the sale, donation, barter, or on any other mode of transferring ownership or title of real property at the rate of eighty percent (80%) of one percent (1%) of the total consideration involved in the acquisition of the property or the fair market value in case the monetary consideration involved in the transfer is not substantial, whichever is higher.

The fair market value as used herein shall be that reflected in the prevailing schedule of fair market values enacted by the Sangguniang Panlungsod.

SECTION 30. EXEMPTION

The sale, transfer or other disposition of real property pursuant to RA 6657 shall be exempt from this tax.

SECTION 31. TIME OF PAYMENT

It shall be the duty of the seller, donor, transferor, executor or administrator to pay to the City Treasurer the tax herein imposed within one hundred eighty (180) days from the date of the execution of the deed or from the date of the property owner's death.

SECTION 32. ADMINISTRATIVE PROVISIONS

(a) The Registrar of Deeds of the city shall, before registering any deed, require the presentation of the evidence of payment of this tax. The City Assessor

shall likewise make the same requirement before canceling an old tax declaration and issuing a new one.

(b) Notaries Public shall furnish the City Treasurer with a copy of any deed transferring ownership or title to any real property within thirty (30) days from the date of notarization.

Article Four. - Tax on Printing and Publication

SECTION 33. TAX ON PRINTING AND PUBLICATION

There is hereby levied a tax at the rate of eighty two percent (82%) of one percent (1%) of the gross annual receipts for the preceding calendar year on the business of persons engaged in the printing and/or publication of books, cards, posters, leaflets, handbills, certificates, receipts, pamphlets, and others of similar nature.

In the case of a newly started business, the tax shall be three-forthieth (3/40) of one percent (1%) of the capital investment. In the succeeding calendar year, regardless of when the business started to operate, the tax shall be based on the gross receipts for the preceding calendar year, or any fraction thereof, as provided herein.

SECTION 34. EXEMPTION

The receipts from the printing and/or publishing of books or other reading materials prescribed by the Department of Education, as school texts or references, shall be exempt from the tax herein imposed.

SECTION 35. TIME OF PAYMENT

The tax imposed in this Article shall be due and payable in quarterly installments to the City Treasurer, within the first twenty (20) days following each quarter. In the case of a newly started business, the tax shall be paid before the business starts to operate.

Article Five. - Franchise Tax

SECTION 36. FRANCHISE TAX

There is hereby imposed a tax on business enjoying a franchise, at a rate of eighty two percent (82%) of one percent (1%) of the gross annual receipts, which shall include both cash sales and sales on account realized during the preceding calendar year within the territorial limits of the city.

In the case of a newly started business, the tax shall be three-forthieth (3/40) of one percent (1%) of the capital investment. In the succeeding calendar year, regardless of when the business started to operate, the tax shall be based on the gross receipts for the preceding calendar year, or any fraction thereof, as provided herein.

The capital investment to be used as basis of the tax of a newly started business as herein provided shall be determined in the following manner:

(a) If the principal office of the business is located in the city, the paid-up capital stated in the articles of corporation in case of corporations, or in any similar document in case of other types of business organization, shall be considered as capital investment.

(b) In the case of a branch or sales office located in the city which commences business operations during the same year as the principal office but which is located in another locality, the paid-up capital referred in paragraph (a) shall mean the amount of the capital investment made for the said branch or sales office.

(c) Where the newly started business is a branch or sales office commencing operations at a year later than that of the principal office, capital investment shall mean the total funds invested in the branch or sales office.

SECTION 37. EXEMPTION

The term businesses enjoying franchise shall not include holders of certificates of public convenience for the operation of public vehicles for reason that such certificates are not considered as franchises.

SECTION 38. TIME OF PAYMENT

The tax imposed in this Article shall be due and payable in quarterly installments to the City Treasurer, within the first twenty (20) days following each quarter. In the case of a newly-started business, the tax shall be paid before the business starts to operate.

Article Six. - Tax on Sand, Gravel and Other Quarry Resources

SECTION 39. TAX ON SAND, GRAVEL AND OTHER QUARRY RESOURCES

There is hereby imposed a tax of Fifteen Pesos (P 15.00) per cubic meter of ordinary stones, sand, gravel, earth, and other quarry resources, such as but not limited to marl, marble, granite, volcanic cinders, basalt, tuff and rock phosphate, extracted from the public lands or from the beds of seas, lakes, rivers, streams, creeks, and other public waters within the territorial jurisdiction of the city.

Private lands shall not be quarried for business purposes without permit from the City Mayor and shall be taxed as retailer.

In case the concessionaire is engaged in the retail of ordinary stones, sand, gravel, earth and other quarry resources at any place other than the quarry area, or delivers the same to the middlemen and/or end-user, the same shall be taxed not only as concessionaire but also as retailer, however, the amount of the said quarry resources at cost from the quarry shall be deducted to determine the gross sales as retailer.

Every person or entity who shall establish, operate and maintain quarry yards within Davao City shall first secure a special permit from the City Mayor and pay annually the corresponding fees:

Annual Fee

a) with an area of 500 sq. m. or less - P 1,000.00
b) over 500 sq.m. but not more than 1,000 sq. m. - P 1,250.00
c) over 1,000 sq.m. but not more than 1,500 sq. m. - P 1,500.00
d) over 1,500 sq.m. but not more than 2,000 sq. m. - P 2,000.00
e) over 2,000 sq.m. - P 3,000.00

The City Treasurer when it deems necessary may post an inspector in the quarry area to determine the volume of quarry resources extracted. Provided, however, that should the City concession area no quarrying shall be done upon due notice to the concessionaire concerned without the presence of the inspector.

SECTION 40. ISSUANCE OF PERMIT

Every person who shall extract sand and gravel and other quarry resources shall secure a permit from the City Mayor and pay a special permit fee of Two Hundred Pesos (P200.00), pursuant to the procedural guidelines embodied in the Mines Administrative Order No. MRD - 27, Series of 1980, the applicable provisions of which are hereby adopted as an integral part of this ordinance.

SECTION 41. EXEMPTION

Any government agency that has been granted a gratuitous permit to extract the above-mentioned materials for the purpose of governmental projects within the City shall be exempt from the payment of the tax herein prescribed.

Every person granted a gratuitous permit to remove or take the building or construction materials, shall be exempted from the payment of this fee if the same materials are for the grantee's exclusive personal use and not for sale.

SECTION 42. TIME AND PLACE OF PAYMENT

The tax shall be due and payable in advance to the City Treasurer or his duly authorized representative before the materials are extracted, and shall be based on the volume applied for in the application for quarry concession.

SECTION 43. SURCHARGE FOR LATE PAYMENT

Failure to pay the tax imposed in this Article on time shall subject the taxpayer to a surcharge of twenty-five percent (25%) of the original amount of tax due, such surcharge to be paid at the same time and in the same manner as the tax due.

SECTION 44. INTEREST ON UNPAID TAX

In addition to the surcharge for the late payment, there shall be imposed upon the unpaid amount an interest of two percent (2%) per month from the date it is due until the tax is fully paid but in no case shall the total interest on the unpaid amount or a portion thereof exceed thirty-six (36) months.

SECTION 45. SHARING OF PROCEEDS

The proceeds of the tax on sand, gravel, and other quarry resources shall be distributed as follows:
(a) City, sixty percent (60%)
(b) Barangay where the sand and other quarry resources are extracted, forty percent (40%)

SECTION 46. PERIODIC INSPECTION BY CITY OFFICIALS

All operations under the permit shall be subject to periodic inspection by the City Mayor, City Environment and Natural Resources Officer, City Engineer, and City Treasurer or by their duly authorized representative for the purpose of determining:

a) that the operation is confined within the permit area;
b) that the materials extracted are in accordance with the terms and conditions of the permit;
c) that the operation is not within one kilometer radius of an existing public/ private structure;
d) that the permit is used exclusively by the permittee and shall not be transferred to any person, partnership or corporation without prior approval by the City Mayor;
e) that the permittee or his agent shall post a copy of the permit in the area where the materials are being removed and shall be made available at all times for inspection by a representative of the City Mayor, the City Environment and Natural Resources Officer or the City Treasurer.

SECTION 47. MANDATORY REQUIREMENT

All vehicles carrying sand, gravel, earth and other quarry resources shall at all times be covered with canvas. Any violation of this section shall be punished in accordance with existing applicable laws.

SECTION 48. AUTHORITY TO IMPOUND VEHICLES CARRYING EXTRACTED MATERIALS WITHOUT PERMIT

The City Mayor or the City Treasurer, or their representatives shall have the authority to impound any vehicle carrying stones, sand, gravel and other quarry materials extracted without the delivery receipt and corresponding permit to extract, and retailer's permit in case of concessionaire and retailer respectively, or for non-payment of the corresponding taxes and fees which maybe assisted by the members of the PNP and/or Traffic Management Center upon request.

The City Engineer or his authorized representative shall be the custodian of all impounded vehicles. The impounded vehicle shall only be released upon payment by the owner of the vehicle of the corresponding taxes, fees, charges and surcharges of twenty-five percent (25%) plus an interest of two percent (2%) per month until the amount is fully paid but not to exceed seventy-two percent (72%) and storage fee of Two Hundred Pesos (P200.00) per day with proper clearance issued by the City Treasurer or his duly authorized representative.

SECTION 49. PRINTING OF DELIVERY RECEIPTS

The office of the Treasurer is hereby authorized to print or cause the printing of serially numbered delivery receipts as maybe necessary for issuance to permittees or concessionaires who shall procure the same at the City Treasurer's Office.

SECTION 50. ISSUANCE OF DELIVERY RECEIPTS

The concessionaire or permittee shall at all times issue delivery receipts to any person/driver engaged in hauling sand, gravel, earth, stones and other quarry materials for purposes of inspection by the duly authorized representatives of the City Mayor, City Environment and Natural Resources Officer, City Treasurer. Such receipt must always be carried by the driver, which shall be shown upon demand. The original copy shall be issued to and carried by the driver, duplicate copy shall be attached to the monthly report of the permittee, the triplicate copy shall be given to the checkers of the City Treasurer at the checkpoints and the fourth copy shall be kept by the permittee which shall be made available during inspection by proper authorities. Any quarry material hauled or delivered to any destination

Article Seven. - Professional Tax

SECTION 51. PROFESSIONAL TAX

There is hereby imposed an annual professional tax on each person engaged in the exercise or practice of his profession requiring government examination at the rate of Three Hundred Pesos (P300.00).

SECTION 52. COVERAGE

Professionals who passed the bar examinations conducted by the Supreme Court, or any board or other examinations conducted by the Professional Regulation Commission (PRC) shall be subject to the professional tax.

SECTION 53. EXEMPTION

Professionals, exclusively employed in the government, shall be exempt from the payment of this tax.

SECTION 54. PAYMENT OF THE TAX

The professional tax shall be paid before any profession herein specified can be lawfully pursued. A line of profession does not become exempt even if conducted with some other profession for which the tax has been paid.

SECTION 55. TIME AND PLACE OF PAYMENT

The professional tax shall be payable annually, on or before the thirty-first (31st) day of January of each year to the City Treasurer. Any person first beginning to practice a profession after the month of January must, however, pay the full tax before engaging therein.

Every person legally authorized to practice his profession in this city shall pay to the city where he maintains his principal office in case he practices his profession in several places.

SECTION 56. ADMINISTRATIVE PROVISIONS

(a) A person who paid the professional tax shall be entitled to practice his profession in any part of the Philippines without being subjected to any other national or local tax or fee for the practice of such profession.

(b) The City Treasurer or his duly authorized representative shall require from professionals their unexpired professional licensed card or Profession Identification Card issued by PRC or a certification from PRC that the professional ID/license card is still on process before accepting payment of their professional tax for the current year. In case of a lawyer, he/she must present his/her latest official receipt in payment of his/her Integrated Bar of the Philippines (IBP) membership fee issued by the latter.

(c) Any individual or corporation employing a person subject to the professional tax shall require payment by that person of the tax on his profession before employment and annually thereafter.

(d) Any person subject to the professional tax shall write in deeds, receipts, prescriptions, reports, books of account, plans and designs, survey's and maps, as the case may be, the number of the official receipt issued to him.

Article Eight. - Amusement Tax on Admission

SECTION 57. IMPOSITION OF TAX FOR AMUSEMENT PLACES AND ACTIVITIES

There is hereby levied a tax to be collected from the proprietors, lessees, or operators of amusement places and other places of amusement at the rate of the gross receipts from admission fees.

Amusement Place Rate
a) Movie Theaters or Cinema - 30% from the showing of foreign films
- 15% from the showing of local films
b) Concert Halls, Comedy Bars, KTV Clubs, Cocktail Lounges and other Night Spots - 15%
c) Carnivals, Theme Parks, Video and Game Arcades, Mechanical Rides And other Fun Houses - 15%
d) Cockpits - 30%
e) Sports Stadia and Multi-Purpose Coliseum - 15%
f) All other Amusement Places not specifically falling under the above Enumeration - 5%
g) All other amusement places for the preservation of wildlife or the environment as well as educational purposes - 5% provided that admission fees for students and senior citizens shall be 50% less than the admission fee.

There shall be collected from the producers and promoters or amusement activities, a tax with the rate of the gross receipts from admission fees:

Amusement Activities Rate
a) Movie Premiers - 30% from the showing of foreign films
- 15% for the showing of local films
b) Musical Concerts, Theatrical Plays, Fashion Shows and other Live Performances - 15% from those performed by foreign Artists
- 5% from those performed by local artists
c) Special Cockfights and Derbies held in a regular licensed cockpit < Sultada - 30%
d) All other Amusement Activities not specifically falling under the above enumeration - P 50.00
- 10% from those performed by foreign artists/athletes
- 5% from those performed by local artists.

For the purpose of this Article, "Admission Fees" shall mean any amount paid or consideration given for entrance, seats, tables, reserved or otherwise, and other similar accommodations in an amusement place, including charges for the use of facilities therein, irrespective of whether or not an admission ticket is issued in exchange for such admission fee or consideration. The same shall also include: show, table, minimum, consumable, cover and other similar charges; charges for

the first drink and other similar coupons; and V.I.P. room, equipment and other similar rental charges and consumables.

Failure to pay the tax within the time fixed herein shall render those person or entity concerned liable to a surcharge of twenty-five percent (25%) of the original amount plus an interest of two percent (2%) per month on the amount due until the tax is fully paid but in no case shall the total interest on the unpaid amount or a portion thereof exceed thirty-six (36) months.

SECTION 58. MANNER OF COMPUTING TAX

In the case of theaters or cinemas, the tax shall first be deducted and withheld by their proprietors, lessees, or operators and paid to the City Treasurer before the gross receipts are divided between said proprietors, lessees, or operators and the distributors of the cinematographic films.

SECTION 59. EXEMPTIONS

The tax herein imposed does not apply in the following cases, provided that exemption should first be obtained for this purpose from the Sangguniang Panlungsod:

a. Where the admission fees are collected for and in behalf of the charitable, educational or religious institutions or associations who are declared by law or presidential proclamation as exempted from the payment of amusement tax on paid admission; provided, further, that such exhibition, show, performance, and the like, shall be limited to only three (3) days in a calendar year;

b. Where the admission fees are collected in connection with the holding of operas, concerts, dramas, recitals, paintings and art exhibitions, flower shows, musical programs, literary and oratorical presentations except pop rock, or similar concerts not intended primarily for profit and furthermore, not including film exhibitions; and

c. Provided, further, that said exemption shall be applicable only to the share of the sponsoring exempt institutions or organizations as aforementioned. However, the remaining proceeds, including those accruing to the promoter, shall be subject to the payment of amusement tax, in accordance with the above rates.

SECTION 60. FORM OF TICKETS; THEIR REGISTRATION

Every proprietor, lessee or operator of amusement place or producer or promoter of amusement activities as above described, shall provide tickets that shall be serially numbered, indicating therein the name of the amusement place and the amount of admission or entrance fee. All tickets to be used, whether regular, special or complimentary, shall be presented to the Office of the Treasurer for registration. Whenever the proprietor, lessee or operator of places of amusement or producer or promoter of amusement activities changes the amount of admission or entrance fee after registration, a notice to the effect shall be registered with the City Treasurer and be conspicuously posted in the place of business or activities for the information of the public. Sub-numbering of such tickets is hereby prohibited. The serial number must be printed on both ends of tickets such that when divided into two upon being presented for admission, the serial number shall appear on both parts. The gatekeeper shall drop one-half of the torn ticket in a locked box or receptacle and

the other half to be returned to the customer. The box or receptacle shall only be opened by the representative of the Office of the City Treasurer.

It shall unlawful for any proprietor, operator and lessee of an amusement place to keep on his possession or have unregistered tickets in the amusement place

SECTION 61. TIME AND PLACE OF PAYMENT

The amusement tax on admission herein imposed shall be due and payable by the proprietor, lessee or operator concerned, within the first ten (10) days of the month next following that for which they are due to the City Treasurer before the gross receipts are divided between the proprietors, lessees, or operator and the distributors of the cinematographic films.

In the case of itinerant operators of similar modes of amusement, the tax herein prescribed shall be paid immediately after the last full show or performance.

SECTION 62. VERIFICATION OF TICKETS

The City Mayor or City Treasurer shall, whenever they deem it necessary for the good of the service, post their duty authorized inspectors at the gates of amusement places for the purpose of verifying all tickets sold thereat or the number of persons admitted therein.

Said duly authorized inspectors shall have access to all admission tickets being sold to the public from opening time of the amusement place up to closing time.

SECTION 63. FILING OF PERFORMANCE BONDS; FORFEITURE THEREOF

Persons engaged in the business as operators of amusement places or as promoters or sponsors of amusement activities with office address outside or within the City of Davao, shall upon registration of their admission tickets, file a performance bond in an amount equal, as nearly as can be estimated, to the amount of amusement taxes payable by them during an average month in the case of those regularly operating as amusement places, or the amount of amusement taxes computed on the basis of the admission tickets registered, in the case of those not regularly operating an amusement place.

Such bond shall be returned to the operator, promoter or sponsors upon payment of all taxes due. Failure to pay such taxes within ten (10) working days from the time it become due will subject the confiscation of such bond by the city Treasurer to satisfy such liability to the government.

SECTION 64. FILING OF RETURN

Upon payment of the tax due, the proprietors, lessees, or amusement places or producers or promoter of amusement activities, shall attach a true and complete sworn return showing the gross receipts from admission fees to be reconciled with the reports submitted by the monitoring team of the City Treasurer's Office. Failure to submit such return shall make the report of the monitoring team from the City Treasurer's Office final due and payable..

Article Nine. - Annual Fixed Tax for Every Delivery Truck or Van of Manufacturers or Producers, Wholesalers of, Dealers or Retailers in Certain Products.

SECTION 65. IMPOSITION OF TAX

There is hereby imposed an annual fixed tax for every truck, van, or any motor vehicle used by manufacturers, producers, wholesalers, dealers or retailers in the delivery or distribution of distilled spirits, fermented liquors, soft drinks, cigar and cigarettes, and other essential products including but not limited to dairy products, as may hereafter be determined by the Sangguniang Panlungsod, to sales outlets, or consumers, whether directly or indirectly within the City in the following rates:

a. Two Hundred Pesos (P 200.00) for every motorcycle and motorized tricycle.
b. Five Hundred Pesos (P 500.00) for every delivery jeepney, and similar utility vehicle.
c. Eight Hundred Twenty-Five Pesos (P 825.00) for every truck, van, or any vehicle with six wheels and above.

SECTION 66. EXEMPTION

The manufacturers, producers, wholesalers, dealers, and retailer referred to in the preceding sections shall be exempt from the payment of the peddlers tax in the sale of any merchandise or article of commerce imposed by the city.

SECTION 67. TIME AND PLACE OF PAYMENT

The tax imposed in this Article shall accrue on the first day of January and shall be paid to the City Treasurer within the first twenty (20) days of January.

SECTION 68. ANNUAL REGISTRATION STICKER

An annual registration sticker shall be issued by the Office of the City Treasurer upon payment of One Hundred Pesos (P100.00) and the same shall be displayed at the right windshield of any delivery van, truck or vehicle.

Article Ten. - Graduated Tax on Business

SECTION 69. IMPOSITION OF TAX

There is hereby imposed on the following persons who establish, operate, conduct or maintain their respective business within the City a graduated business tax in the amounts hereafter prescribed:

(a) On Manufacturers, Assemblers, Repackers, Processors, Brewers, Distillers, Rectifiers, and Compounders of liquors, distilled spirits, and wines or manufacturers of any article of commerce of whatever kind or nature in accordance with the following schedule:

Amount of Gross Sales/Receipts for the Preceding Calendar Year Amount of Tax Per Annum

Less than 10,000.00 272.25
10,000.00 or more but less than 15,000.00 363.00
15,000.00 or more but less than 20,000.00 498.30
20,000.00 or more but less than 30,000.00 726.00
30,000.00 or more but less than 40,000.00 1,089.00
40,000.00 or more but less than 50,000.00 1,361.25

Amount of Tax Per Annum	
50,000.00 or more but less than 75,000.00	2,178.00
75,000.00 or more but less than 100,000.00	2,722.50
100,000.00 or more but less than 150,000.00	3,630.00
150,000.00 or more but less than 200,000.00	4,537.50
200,000.00 or more but less than 300,000.00	6,352.50
300,000.00 or more but less than 500,000.00	9,075.00
500,000.00 or more but less than 750,000.00	13,200.00
750,000.00 or more but less than 1,000,000.00	16,500.00
1,000,000.00 or more but less than 2,000,000.00	22,887.00
2,000,000.00 or more but less than 3,000,000.00	27,225.00
3,000,000.00 or more but less than 4,000,000.00	32,670.00
4,000,000.00 or more but less than 5,000,000.00	38,115.00
5,000,000.00 or more but less than 6,500,000.00	40,218.75
In excess of 6,500,000.00	At a rate of forty-one &half percent (41.50%) of one percent (1%)

The preceding rates shall apply only to amount of domestic sales of manufacturers, assemblers, repackers, processors, brewers, distillers, rectifiers and compounders of liquors, distilled spirits, and wines or manufacturers of any article of commerce of whatever kind or nature other than those enumerated under paragraph (c) of this Article.

(b) On Wholesalers, Distributors, or Dealers in any article of commerce of whatever kind or nature in accordance with the following schedules:

Gross Sales/Receipts for the Preceding Calendar Year	Amount of Tax Per Annum
Less than 10,000.00	330.00
10,000.00 or more but less than 15,000.00	385.00
15,000.00 or more but less than 20,000.00	495.00
20,000.00 or more but less than 30,000.00	550.00

30,000.00 or more but less than 40,000.00	770.00
40,000.00 or more but less than 50,000.00	1,100.00
50,000.00 or more but less than 75,000.00	1,650.00
75,000.00 or more but less than 100,000.00	2,200.00
100,000.00 or more but less than 150,000.00	3,300.00
150,000.00 or more but less than 200,000.00	4,400.00
200,000.00 or more but less than 300,000.00	5,500.00
300,000.00 or more but less than 500,000.00	7,700.00
500,000.00 or more but less than 750,000.00	11,000.00
750,000.00 or more but less than 1,000,000.00	14,520.00
1,000,000.00 or more but less than 2,000,000.00	16,500.00
In excess of 2,000,000.00	At a rate of fifty-five (55%) percent of one percent (1%)

The businesses enumerated in paragraph (a) above shall no longer be subject to the tax on wholesalers, distributors, or dealers provided in this Article.

(c-1) On Exporters at one-third (1/3) of the rates prescribed under subsections (a), (b), and (d) of this Article.

(c-2) On Producers of processed products, Wholesalers, Distributors, Dealers or Retailers of essential commodities, enumerated hereunder, at a rate not

exceeding one-half (1/2) of the rates prescribed under subsections (a), (b), and (d) of this Article;

(1) Rice and Corn;
(2) Wheat or cassava flour, meat, dairy products, locally manufactured, processed or preserved food, sugar, salt and agricultural marine, and fresh water products, whether in their original state or not;
(3) Cooking oil and cooking gas;
(4) Laundry soap, detergents, and medicine;
(5) Agricultural implements, equipment and post-harvest facilities, fertilizers, pesticides, insecticides, herbicides and other farm inputs; Poultry feeds and other animal feeds;
(6) School supplies; and
(7) Cement

For purposes of this provision, the term exporters shall refer to those who are principally engaged in the business of exporting goods and merchandise, as well as manufacturers and producers whose goods or products are both sold domestically and abroad. The amount of export sales shall be excluded from the total sales and shall be subject to the rates not exceeding one-half (1/2) of the rates prescribed under paragraphs (a), (b), and (d) of this Article.

(d) On Retailers:

Gross Sales/Receipts for the Preceding year Rate of Tax Per Annum
More than P 50,000 but not over P 400,000.00 2%
In excess of 400,000.00 1 1⁄2%

However, barangays shall have the exclusive power to levy taxes on stores whose gross sales or receipts of the preceding calendar year does not exceed Fifty Thousand Pesos (P 50,000.00) subject to existing laws and regulations.

(e) On Contractors and other Independent Contractors in accordance with the following schedule:

Gross Sales/Receipts for the Preceding Calendar Year Amount of Tax Per Annum
Less than 5,000.00 46.04
5,000.00 or more but less than 10,000.00 101.65
10,000.00 or more but less than 15,000.00 172.42
15,000.00 or more but less than 20,000.00 272.25
20,000.00 or more but less than 30,000.00 453.75
30,000.00 or more but less than 40,000.00 635.25
40,000.00 or more but less than 50,000.00 907.50
50,000.00 or more but less than 75,000.00 1,452.00
75,000.00 or more but less than 100,000.00 2,178.00
100,000.00 or more but less than 150,000.00 3,267.00
150,000.00 or more but less than 200,000.00 4,358.00
200,000.00 or more but less than 250,000.00 5,989.50
250,000.00 or more but less than 300,000.00 7,623.00
300,000.00 or more but less than 400,000.00 10,164.00
400,000.00 or more but less than 500,000.00 13,612.50
500,000.00 or more but less than 750,000.00 15,262.50
750,000.00 or more but less than 1,000,000.00 16,912.50

1,000,000.00 or more but less than 2,000,000.00 19,085.00
In excess 2,000,000.00 At a rate of fifty-five percent (55%) of one percent (1%)

For purposes of this section, the tax on general engineering, general building, and specialty contractors shall initially be based on the total contract price, payable in equal annual installments within the project term. Should a contractor (applicable only to general engineering and general building contractor) undertake to furnish the materials in the construction work, only the cost of such materials shall be deducted from his gross receipts for the purpose of

determining the tax due.

Upon completion of the project, the taxes shall be recomputed on the basis of the gross receipts for the preceding calendar years and the deficiency tax, if there be any, shall be collected as provided in this Code or the excess tax payment shall be refunded.

(f) On Banks and Other Financial Institutions, at the rate of fifty-five percent (55%) of one percent (1%) of the gross receipts of the preceding calendar year derived from interest, commissions and discounts from lending activities, income from financial leasing, dividends, rentals on property, and profit from exchange or sale of property, insurance premium. All other income and receipts not herein enumerated shall be excluded in the computation of the tax.

(g) On Restaurants, Cafes, Cafeterias, Carenderias, Eateries, Food Caterers, Ice Cream and Other Refreshment Parlors, and Soda Fountain Bars, and places wherein customers thereof actively participate without making bets or wagers, including but not limited to night clubs, or day clubs, cocktail lounges, cabarets or dance halls, karaoke bars, skating rinks, bath houses, swimming pools, exclusive clubs such as country and sports clubs, resorts and other similar places, billiard and pool tables, bowling alleys;

On Lessors, Dealers, Brokers, of Real Estate;

On Subdivision Owners/Private Cemeteries and Memorial Parks;

On Privately-Owned Markets;

On Therapeutic Clinics, Laboratories;

The same rates of graduated taxes, viz:

Gross Sales/Receipts for the Preceding Calendar Year Amount of Tax Per Annum
Less than 10,000.00 272.25
10,000.00 or more but less than 15,000.00 399.30
15,000.00 or more but less than 20,000.00 525.80
20,000.00 or more but less than 30,000.00 816.20
30,000.00 or more but less than 40,000.00 1,107.15
40,000.00 or more but less than 50,000.00 1,361.25
50,000.00 or more but less than 75,000.00 1,565.30
75,000.00 or more but less than 100,000.00 1,831.50

100,000.00 or more but less than 150,000.00 2,142.80
150,000.00 or more but less than 200,000.00 2,506.90
200,000.00 or more but less than 250,000.00 2,933.15
250,000.00 or more but less than 300,000.00 3,432.00
300,000.00 or more but less than 400,000.00 4,015.00
400,000.00 or more but less than 500,000.00 4,818.00
500,000.00 or more but less than 750,000.00 5,782.70
750,000.00 or more but less than 1,000,000.00 6,939.35
1,000,000.00 or more but less than 2,000,000.00 8,327.55
In excess 2,000,000.00 At a rate of thirty-eight &half percent (38.5%) of one percent (1%)

SECTION 70. PRESUMPTIVE INCOME LEVEL

For every tax period, the office of the City Treasurer shall prepare a stratified schedule of "presumptive income level" to validate the declarations of gross receipts of each business classification.

SECTION 71. TAX ON NEWLY

Started Business. - In the case of a newly started business under this Article, the tax shall be one-twentieth of one percent (1/20 of 1%) of the asset size. In the succeeding calendar year, regardless of when the business started to operate, the tax shall be based on the gross receipts for the preceding calendar year or any fraction thereof, as provided in the pertinent schedules in this Article.

Article Eleven. - Situs of Tax

SECTION 72. SITUS OF THE TAX

(a) For purposes of collection of the business tax under the "situs" of the tax law, the following definition of terms and guidelines shall be strictly observed:

1. Principal Office - the head or main office of the businesses appearing in the pertinent documents submitted to the Securities and Exchange Commission, or the Department of Trade and Industry, or other appropriate agencies as the case may be.

The city or municipality specifically mentioned in the articles of the incorporation or official registration papers as being the official address or said principal office shall be considered as the situs thereof.

In case there is a transfer or relocation of the principal office to another city or municipality, it shall be the duty of the owner, operator or manager of the business to give due notice of such transfer or relocation to the City Mayor within fifteen (15) days after such transfer or relocation is effected.

2. Branch or Sales Office - a fixed place in a locality which conducts operations of the businesses as an extension of the principal office. A warehouse which accepts orders and/or issues sales invoices independent of a branch with sales

office shall be considered as a sales office.

3. Warehouse - a building utilized for the storage of products for sale and from which goods or merchandise are withdrawn for delivery to customers or dealers, or by persons acting on behalf of the business. A warehouse that does not accept orders and/or issue sales invoices as aforementioned shall not be considered a branch or sales office.

4. Plantation - a tract of agricultural land planted to trees or seedlings whether fruit bearing or not, uniformly spaced or seeded by broadcast methods or normally arranged to allow highest production. For purpose of this Article, inland fishing ground shall be considered as plantation.

5. Experimental Farms - agricultural lands utilized by a business or corporation to conduct studies, tests, researches or experiments involving agricultural, agri-business, marine or aquatic livestock, poultry, dairy and other similar products for the purpose of improving the quality and quantity of goods and products.

However, on-site sales of commercial quantity made in experimental farms shall be similarly imposed the corresponding tax under Section 69 Article Ten of this Code and allocated under paragraph (b) of this Article.

(b) Sales Allocation

1. All sales made in the Davao City where there is branch or sales office or warehouse shall be recorded in said branch or sales office or warehouse and the tax shall be payable to the City where the same is located.

2. If the business concerned has no branch office or sales outlet in Davao City, the sale or transaction may be recorded in the place where the principal office of the said business is located. The taxes, however, shall accrue and be paid to Davao City where the sale or transaction was made or consummated, associated with the delivery of the articles, commodities or things which are the subject matter of the contract of sale.

3. In cases where there is a factory, project office, plant or plantation in pursuit of business, thirty percent (30%) of all sales recorded in the principal office shall be taxable by the city where the principal office is located and seventy percent (70%) of all sales recorded in the principal office shall be taxable by the city where the factory, project office, plant or plantation is located.

The sales allocation in (a) and (b) above shall not apply to experimental farms.

Local Government Units (LGUs) where only experimental farms are located shall not be entitled to the sales allocation herein provided for.

4. In case of a plantation located in a locality other than that where the factory is located, said seventy percent (70%) sales allocation shall be divided as follows:

a. Sixty percent (60%) to the city where the factory is located; and

b. Forty percent (40%) to the city where the plantation is located.

5. In cases where there are two (2) or more factories, project offices, plants or plantations located in different localities, the seventy percent (70%) sales allocation shall be pro-rated among the localities where such factories, project offices, plants and plantations are located in proportion to their respective volumes of production during the period for which the tax is due.

In the case of project offices of services and other independent contractors, the term production shall refer to the costs of projects actually undertaken during the tax period.

6. The foregoing sales allocation under par. (3) hereof shall be applied irrespective of whether or not sales are made in the locality where the factory, project office, plant or plantation is located. In case of sales made by the factory, project office, plant or plantation, the sale shall be covered by paragraph (1) or (2) above.

7. In case of manufacturers or producers which engage the services of an independent contractor to produce or manufacture some of their products, the rules on status of taxation provided in this article as clarified in the paragraphs above shall apply except that the factory or plant warehouse of the contractor utilized for the production or storage of the manufacturer's products shall be considered as the factory or plant and warehouse of the manufacturer.

8. All sales made by the factory, project office, plant or plantation located in this City shall be recorded in the branch or sales office which is similarly located herein and shall be taxable by this City. In case there is no branch or sales office or warehouse in this City, but the principal office is located therein, the sales made in the factory shall be taxable by this City along with the sales made in the principal office.

(c) Port of Loading - the City where the port of loading is located shall not levy and collect the tax imposed under Article Ten (10) Chapter 2 of this Code unless the exporter maintain in said City its principal office, a branch, sales office, warehouse, factory, plant or plantation in which case the foregoing rule on the matter shall apply accordingly.

(d) Route Sales - sales made by route trucks, vans or vehicles in this City where a manufacturer, producer, wholesaler, maintains a branch or sales office or warehouse shall be recorded in the branch or sales office or warehouse and shall be taxed herein.

This City shall tax the sales of the products withdrawn by route trucks from the branch, sales office or warehouse located herein but sold in another locality.

Article Twelve. - Payment of Business Taxes

SECTION 73. PAYMENT OF BUSINESS TAXES

(a) The taxes imposed under Section 69 of this Code shall be payable for every separate or distinct establishment or place where the business subject to the tax is conducted and one line of business does not become exempted

by being conducted with some other businesses for which such tax has been paid. The tax on a business must be paid by the person conducting the same.

The conduct or operation of two or more related businesses provided for under Section 69 of this Code by any one person, natural or juridical, shall require the issuance of a separate permit or license to each business.

(b) In cases where a person conducts or operates two (2) or more of the businesses mentioned in Section 69 of this Code which are subject to the same rate of imposition, the tax shall be computed on the combined total gross sales or receipts of the said two (2) or more related businesses.

(c) In cases where a person conducts or operates two (2) or more businesses mentioned in Section 69 of this Code which are subject to different rates of imposition, the taxable gross sales or receipts of each business shall be reported independently and tax thereon shall be computed on the basis of the pertinent schedule.

SECTION 74. ACCRUAL OF PAYMENT

Unless specifically provided in this Article, the taxes imposed herein shall accrue on the first day of January of each year.

SECTION 75. TIME OF PAYMENT

The tax shall be paid once within the first twenty (20) days of January or in quarterly installments within the first twenty (20) days of January, April, July, and October of each year. The Sangguniang Panlungsod may, for a justifiable reason or cause, extend the time for payment of such taxes without surcharges or penalties, but only for a period not exceeding six (6) months.

SECTION 76. ADMINISTRATIVE PROVISIONS

(a) Requirement. Any person who shall establish, operate or conduct any business, trade or activity mentioned in this Article in this city shall first obtain a Mayor's Permit and pay the fee therefore and the business tax imposed under the pertinent Article.

(b) Issuance and Posting of Official Receipt. The City Treasurer shall issue an official receipt upon payment of the business tax. Issuance of the said official receipt shall not relieve the taxpayer of any requirement imposed by the different departments of this city.

Every person issued an official receipt for the conduct of a business or undertaking shall keep the same conspicuously posted in plain view at the place of business or undertaking. If the individual has no fixed place of business or office, he shall keep the official receipt in his person. The receipt shall be produced upon demand by the City Mayor, City Treasurer, or their duly authorized representatives.

(c) Invoices or Receipt. All persons subject to the taxes on business shall, for each sale or transfer of merchandise or goods, or for services rendered, valued at Twenty-Five Pesos (P 25.00) or more at any one time, prepare and issue sales or commercial invoices and receipts serially numbered in duplicate, showing among others, their names or styles, if any, and business address. The original of each sales invoice or receipts shall be issued to the purchaser or customer and the duplicate to be kept and preserved by the person subject to the

said tax, in his place of business for a period of five (5) years. The receipts or invoices issued pursuant to the requirement of the Bureau of Internal Revenue for determination of national internal revenue taxes shall be sufficient for purposes of this Code.

(d) Sworn Statement of Gross Receipts or Sales. Operators of business subject to the taxes on business shall submit a sworn statement of their assets before the start of their business operations and upon application for a Mayor's permit to operate the business. Upon payment of the tax levied in this Article, any person engaged in business subject to the business tax paid based on gross sales and/or receipts shall submit a sworn statement of his gross sales/receipts for the preceding calendar year or quarter in such manner and form as may be prescribed by the City Treasurer. Should the taxpayer fail to submit a sworn statement of gross sales or receipts, due among others or his failure to have a book of accounts, records or subsidiaries for his business, the City Treasurer or his authorized representatives may verify or assess the gross sales or receipts of the taxpayer under the best available evidence upon which the tax may be based.

Any voluntary declaration of additional gross sales shall be made within fifteen (15) working days from the deadline of the filing of income tax return. Thereafter, declaration of additional final gross sales, whether voluntary or involuntary, shall be penalized according to the provisions as provided under this Code.

(e) Submission of Certified Income Tax Return Copy. All persons who are granted a permit to conduct an activity or business and who are liable to pay the business tax provided in this Code shall submit a certified photocopy of their income tax returns (ITR) on or before April 30 of each year. The deficiency in the business tax arising out of the difference in gross receipts or sales declared in the application for Mayor's Permit/ Declaration of gross sales or receipts and the gross receipts or sales declared in the ITR shall be payable on or before May 20 of the same year with interest at the rate of ten percent (10%) corresponding to the two percent (2%) per month from January to May. Payments of the deficiency tax made after May 20 shall be subject to the twenty-five percent (25%) surcharge and two percent (2%) interest for every month counted from January up to the month payment is made.

(f) Issuance of Certification. The City Treasurer may, upon presentation or satisfactory proof that the original receipt has been lost, stolen or destroyed, issue a certification to the effect that the business tax has been paid, indicating

therein, the number of the official receipt issued, upon payment of a fee of Twenty-Five Pesos (P25.00).

(g) Transfer of Business to Other Location. Any business for which a city business tax has been paid by the person conducting it may be transferred and continued in any other place within the territorial limits of this city without payment of additional tax during the period for which the payment of the tax was made.

(h) Retirement of Business. Any person natural or juridical, subject to the tax on business shall, upon termination of the business, inform the City Treasurer of such cessation and submit a sworn statement of the gross sales or receipts for the current calendar year within thirty (30) days following the closure. Any tax due shall first be paid before any business or undertaking is fully terminated. Failure on the part of the permittee to retire the business within the period stated above shall be fined in the amount of not more than Five Thousand Pesos (P 5,000.00).

For the purposes hereof, termination shall mean that business operations are stopped completely. Any change in ownership, management and/or name of the business shall not constitute termination as herein contemplated. Unless stated otherwise, assumption of the business by any new owner or manager or re-registration of the same business under a new name will only be considered for record purposes in the course of the renewal of the permit or license to operate the business.

The City Treasurer shall see to it that the payment of taxes of a business is not avoided by simulating the termination or retirement thereof. For this purpose, the following procedural guidelines shall be strictly followed:

a. The City Treasurer shall assign every application for the termination or retirement of business to an inspector in his office who shall go to the address of the business on record to verify if it is really not operating. If the inspector finds that the business is simply placed under a new name, manager and/or new owner, the City Treasurer shall recommend to the City Mayor the disapproval of the application of the termination or retirement of said business;

b. Accordingly, the business continues to become liable for the payment of all taxes, fees, and charges imposed thereon under existing local tax ordinance; and

c. In addition, in the case of a new owner to whom the business was transferred by sale or other form of conveyance, said new owner shall be liable to pay the tax or fee for the business and shall secure a new Mayor's permit therefore.

1. In case it is found that the retirement or termination of the business is legitimate and the tax paid during the current year be less than the tax due for the current year based on the gross sales or receipts, the difference in the amount of the tax shall be paid before the business is considered officially retired or terminated.

2. The permit issued to a business retiring or terminating its operation shall be surrendered to the City Treasurer who shall forthwith cancel the same and record such cancellation in his books.

(i) Death of Licensee. When any individual paying a business tax dies, and the business is continued by a person interested in his estate, no additional payment shall be required for the residue of the term for which the tax was paid.

Article Thirteen. - Tax on Peddlers

SECTION 77. TAX ON PEDDLERS

There is hereby imposed a tax on peddlers engaged in the sale of any merchandise or article of commerce, at the following rates:

a. Peddlers of any article or merchandise carried in trucks or jeeps or delivery panels, cars or any other vehicle P 500.00

b. Peddlers of any article or merchandise carried in motorized bicycle, tricycle or similar motorized vehicle not specified above (A) P 200.00

c. Peddlers of any article or merchandise carried in a carretela, or other animal drawn vehicle P 100.00

SECTION 78. EXEMPTION

Delivery trucks, vans or vehicles used by manufacturers, producers, wholesalers, dealers or retailers enumerated under Section 65 of this Code shall be exempt from the peddlers tax herein imposed.

SECTION 79. TIME OF PAYMENT

The tax herein imposed shall be payable within the first twenty (20) days of January. An individual who will start to peddle merchandise or articles of commerce after January 20 shall pay the full amount of the tax before engaging in such activity.

Article Fourteen. - Tax on Mining Operations

SECTION 80. TAX ON MINING OPERATIONS

There is hereby levied an annual tax at the rate of one and one-half percent (1 1/2%) based on the gross receipts for the preceding year of mining companies and/or entities operating in the City.

SECTION 81. SITUS OF THE TAX

Payment of the tax shall be made to Davao City which has jurisdiction over the mining area.

SECTION 82. EXCLUSION

Extraction of the following are excluded from the coverage of the tax levied herein:

(a) Mineral Products such as ordinary stones, sand, gravel, earth and other quarry resources;

(b) Indigenous petroleum such as mineral oil, hydrocarbon gas, bitumen, crude asphalt, mineral gas and all other similar or naturally associated substances.

SECTION 83. TIME OF PAYMENT

The tax shall be paid once within the first twenty (20) days of January or in quarterly installments within the first twenty (20) days of January, April, July, and October of each year.

SECTION 84. ADMINISTRATIVE PROVISION

(a) The City Treasurer shall keep a registry of mining operators on which all instruments concerning mining rights, such as acquisition, sub-lease, operating agreements, transfers, assignments, condonment, cancellation and others, are recorded.

(b) It shall be the duty of every lessee, owner, or operator to make a true and complete return setting forth the quantity and the actual market value of the minerals or mineral products or quarry resources to be removed.

Article Fifteen. - Tax on Forest Products

SECTION 85. TAX ON FOREST PRODUCTS

There is hereby imposed a tax on forest products at a rate of one and one-half percent (1 1/2%) of the annual gross receipts derived during the preceding year on companies and/or entities operating in the City.

SECTION 86. TIME OF PAYMENT

The tax shall be paid once within the first twenty (20) days of January or in quarterly installments within the first twenty (20) days of January, April, July, and October of each year.

CHAPTER 3: PERMIT AND REGULATORY FEES

Article One. - Mayor's Permit Fee on Business

SECTION 87. MAYOR'S PERMIT FEE

It shall be unlawful for any person or entity to conduct or engage in any of the business, trade or occupation within the territorial jurisdiction of the City of Davao for which permit is required for the proper supervision and enforcement of existing laws and ordinance governing the sanitation, security and welfare of the public and the health of the employees engaged in the business, trade or occupation specified in this Revenue Code and other ordinances that may hereafter be enacted, without first having secured a permit therefore from the City Mayor and paying the necessary fees to the City Treasurer.

There shall be collected an annual fee for the issuance of a Mayor's Permit to operate a business, pursue an occupation or calling, or undertake an activity within the City.

The permit fee is payable for every distinct or separate business or place where the business or trade is conducted. One line of business or trade does not become exempt by being conducted with some other business of trade for which the permit fee has been obtained and the corresponding fee paid for.

For purpose of the Mayor's Permit Fee, the following Philippine definition of business size is hereby adopted:

Characteristics	Asset Size
Cottage	PhP 500,000 and below.
Small	Over PhP 500,000 to PhP 2M
Medium	Over PhP 2M to PhP 10M
Large	Over PhP 10M

On business subject to Graduated Fixed Taxes:

Annual Fee
On Manufacturers/Importers/Producers
Cottage	PhP 800.00
Small	2,000.00
Medium	5,000.00
Large	7,000.00
On Banks
Rural, Thrift and Savings Banks	2,000.00
Commercial, Industrial and Development Banks	5,000.00
Universal Banks	7,000.00
On Other Financial Institutions
Cottage	1,000.00

Small
Medium

Large
2,000.00
3,000.00
5,000.00

4. On Contractors/Service Establishments
Cottage
Small
Medium
Large
800.00
1,000.00
2,000.00
5,000.00

5. On Wholesalers/Retailers/Dealers or Distributors
Cottage
Small
Medium
Large
800.00
1,000.00
3,000.00
5,000.00

6. On Transloading Operations
Cottage
Small
Medium
Large
800.00
2,000.00
3,000.00
5,000.00

7. Other Businesses
Cottage
Small
Medium
Large
500.00
1,000.00
3,000.00
5,000.00

SECTION 88. TIME AND MANNER OF PAYMENT

The fee for the issuance of a Mayor's Permit shall be paid to the City Treasurer upon application before any business or undertaking can be lawfully begun or pursued and within the first twenty (20) days of January of each year in case of renewal thereof.

For a newly started business or activity that starts to operate after January 20, the fee shall be reckoned from the beginning of the calendar quarter. When the business or activity is abandoned, the fee shall not be exacted for a period longer than the end of the calendar quarter. If the fee has been paid for a period longer than the current quarter and the business activity is abandoned, no refund of the fee corresponding to the unexpired quarter or quarters shall be made.

SECTION 89. ADMINISTRATIVE PROVISIONS

(a) Supervision and Control Over Establishments and Places - The City Mayor shall supervise and regulate all establishments and places subject to the payment of the permit fee. He shall prescribe rules and regulations as to the mode or manner on which they shall be conducted in so far as may be necessary to maintain peaceful, healthy, and sanitary conditions in the city.

(b) Application for Mayor's Permit: False Statement - An application for a Mayor's Permit shall be filed with the Office of the City Mayor. The form for the purpose shall be issued by the same Office and shall set forth the requisite information including the name and residence of the applicant, the description of business or undertaking that is to be conducted, and such other data or information as may be required.

1. For a newly-started business

a) Location Sketch of the new business;
b) Paid-up capital of the business as shown in the Articles of Incorporation, if a corporation or partnership, or a Sworn Statement of the capital invested by the owner or operator, if a sole proprietorship;

c) A Certificate attesting to the tax exemption if the business is tax exempt;
d) Certification from the office in charge of zoning that the location of the new business is in accordance with zoning regulations;
e) Tax Clearance showing that the operator has paid all tax obligations in the City;
f) Barangay Clearance;
g) Three (3) passport size pictures of the owner or operator, or in cases of a partnership or corporation the picture of the senior or managing partners and that of the President or General Manager;
h) Health Certificate for all food handlers, and those required under this Code.

i) A birth certificate, marriage certificate or any valid identification.

2. For renewal of existing Business Permits

a) Previous year's Mayor's Permit;
b) Original copies of the annual or quarterly tax payments;
c) Original copies of all receipts showing payment of all regulatory fees as provided for in this Code;
d) Available Financial Statement of the previous year.
e) Other clearances as maybe required by existing laws.

Upon submission of the application, it shall be the duty of the proper authorities to verify if other city requirements regarding the operation of the business or activity such as sanitary requirements, installation of power and light requirements, as well as other safety requirements are complied with. The permit to operate shall be issued only upon compliance with such safety requirements and after the payment of the corresponding inspection fees and other impositions required by this Revenue Code and other city tax ordinances.

Any false statement deliberately made by the applicant shall constitute sufficient ground for denying or revoking the permit issued by the Mayor, and the applicant or licensee may be prosecuted in accordance with the penalties provided in this Article.

A Mayor's Permit shall be refused to (1) any person who previously violated any ordinance or regulation governing permits granted; (2) whose business establishment or undertaking does not conform with zoning regulations, and safety, health and other requirements of the city; (3) who has unsettled tax obligation, debt or other liability to the government; (4) who is disqualified under any provision of law or ordinance to establish or operate the business applied for.

Likewise, a Mayor's permit shall be denied to any person or applicant for a business who declares an amount of gross sales or receipts that are manifestly

below industry standards or the Presumptive Income Level of gross sales or receipts as established in the city for the same or a closely similar type of activity or business.

(c) Issuance of Permit; Contents of Permit. Upon approval of the application of a Mayor's Permit, two (2) copies of the application duly signed by the City Mayor shall be returned to the applicant. One (1) copy shall be presented to the City Treasurer as basis for the collection of the Mayor's Permit fee and the corresponding business tax.

The Mayor's Permit shall be issued by the City Mayor upon presentation of the receipt for the payment of the Mayor's Permit and the official receipt issued by the City Treasurer for the payment of the business tax. Every permit issued by the Mayor shall show the name and residence of the applicant, his nationality and marital status; nature of the organization, that is, whether the business is a sole proprietorship, corporation or partnership, etc.; location of the business; date of issue and expiration of the permit; and other information as may be necessary. The city shall, upon presentation of satisfactory proof that the original of the permit has been lost, stolen or destroyed, issue a duplicate of the permit upon the payment of Twenty-Five Pesos (P 25.00).

(d) Posting of Permit. Every permittee shall keep his permit conspicuously posted at all times in his place of business or office or if he has no place of business or office, he shall keep the permit in his person. The City Mayor, upon demand by the City Treasurer or any of their duly authorized representatives, permittee shall immediately produce the permit.

For non-posting of business permit in a conspicuous place within the business establishment, a penalty of one hundred pesos (P 100.00) per day shall be imposed until such time the permit shall be posted but in no case shall it be more than Five Thousand Pesos (P 5,000.00).

(e) Duration of Permit and Renewal. The Mayor's Permit shall be granted for a period of not more than one (1) year and shall expire on the thirty-first (31st) of December following the date of issuance unless revoked or surrendered earlier. Every permit shall cease to be in force upon revocation or surrender thereof. The permit issued shall be renewed within the first twenty (20) days of January. It shall have a continuing validity only upon renewal thereof and payment of the corresponding fee.

(f) Revocation of Permit. When a person doing business under the provisions of this Code violates any provision of this Article, refuses to pay an indebtedness or liability to the city or abuses his privilege to do business to the injury of the public moral or peace; or when a place where such business is established is being conducted in a disorderly or unlawful manner, is a nuisance, or is permitted to be used as a resort for disorderly characters, criminals or place used for prostitution, the City Mayor may, after investigation, revoke the Mayor's Permit. Such revocation shall operate to forfeit all sums which may have been paid in respect of said privilege, in addition to the fines and imprisonment that maybe imposed by the Court for violation of any provision of this Ordinance governing the establishment and maintenance of business, and to prohibit the exercise thereof by the person whose privilege is revoked, until restored

by the City Mayor.

Refusal to subject a business establishment to inspection shall be a ground for the revocation of the business permit.

SECTION 90. RULES AND REGULATIONS ON CERTAIN ESTABLISHMENTS

(a) On restaurants, cafes, cafeterias, carenderias, eateries, food caterers, ice cream and other refreshment parlors, soda fountain bars. No owner of said establishments shall employ any cook, or food dispenser without a Food Handler's Certificate from the City Health Officer, renewable every six (6) months.

(b) Establishments selling cooked and readily edible foods shall have them adequately covered and protected from dust, flies and other insects, and shall follow strictly the rules and regulations on sanitation promulgated by the City Health Officer and existing laws or ordinances.

(c) Sauna bath, massage, barber and beauty shops. Said shops shall not be allowed to operate with masseurs, barbers, and beauticians without having secured the necessary corresponding health certificate from the City Health Officer.

Article Two. - Permit Fee for Cockpit Owners/ Operators/ Licensees/ Promoters and Cockpit Personnel

SECTION 91. IMPOSITION OF FEES

There shall be collected the following Mayor's Permit Fees from cockpit operators/ owners/ licensees and cockpit personnel:

(a) From the owner/ operator/ licensees of the cockpit:
1. Application Filing Fee P 100.00
2. Annual Cockpit Permit Fee
a. In the Poblacion, Talomo, Agdao, Buhangin 3,000.00
b. Toril, Tugbok, Calinan & Bunawan 1,500.00
c. In other districts 1,000.00

(b) From Cockpit Personnel
1. Promoters/Hosts P 500.00
2. Pit Manager 200.00
3. Referee 200.00
4. Bet Taker "Kristo/Llamador" 100.00
5. Bet Manager "Maciador/Kasador" 200.00
6. Gaffer "Mananari" 100.00
7. Cashier 200.00
8. Derby (Matchmaker) 200.00
9. Handler 200.00

SECTION 92. LICENSING THE COCKPITS

Subject to the provisions of Book II of Republic Act 7160, the Sangguniang Panlungsod shall enact an Ordinance authorizing the issuance of licenses to operate cockpits in the City of Davao pursuant to the provisions of Article 99 Section (a) Subsection (3) Paragraph (v) of the Rules and Regulations Implementing the Local Government Code of 1991. The following requirements must be fully complied with prior to the issuance of licenses:

a) New License:
1. Location and Vicinity Plan of the Cockpit;

2. Building Plan and Design as approved by the City Engineer and a certificate by him to the effect that the cockpit constructed in accordance with such approved plan/design;

3. A Certification by the Zoning Administrator to the effect that the cockpit building was constructed in the area allowed by the Zoning Ordinance and that it is not within a radius of 200 meters from any existing residential or commercial area, hospitals, school buildings, churches or other public buildings;

4. Official Receipts showing payments of the required City taxes and fees;

5. Sanitary Permit/Clearance.

b) Annual Renewal:

1. Official Receipts showing payments of the required City taxes and fees before the date of renewal of application, a certification from the City Engineer to the effect that such cockpit is free from material, structural or other physical hazards.

SECTION 93. REGISTRATION OF COCKPITS

All cockpits in Davao City after having been granted authority to operate by the Sangguniang Panlungsod shall register with the City Mayor through the Business Bureau. No cockpits shall be allowed to operate without the proper registration certificate. In order to secure a registration certificate, the applicant shall submit the following documents:

1. An application stating therein the name of the cockpit;
2. A copy of the location and vicinity plan of the cockpit;

3. A copy of the cockpit building plan/design;
4. A certified copy of the Mayor's Permit/License;
5. A copy of the Sanitary Permit/Clearance;
6. Xerox copy/copies of the official receipt of payments;
7. Two (2) perspective photographs of the cockpit;
8. A list of all duly licensed personnel and copy of their respective licenses.

SECTION 94. TIME AND MANNER OF PAYMENT

(a) The application filing fee is payable to the City Treasurer upon application for a permit or license to operate and maintain cockpits.

(b) The cockpit registration fee is also payable upon application for a permit before a cockpit can operate and shall be secured within the first twenty (20) days of January of each year in case of renewal thereof.

(c) The permit fees on cockpit personnel shall be paid before they participate in a cockfight and shall be paid annually upon renewal of the permit on the birth month of the permittee.

(d) Every application for the annual renewal of a license to operate or manage a cockpit shall be submitted not later than the last working day of December of each year.

SECTION 95. ADMINISTRATIVE PROVISIONS

(a) Ownership, Operation and Management of Cockpit. Only Filipino Citizens not otherwise inhibited by existing ordinances or laws shall be allowed to own, manage and operate cockpits. Cooperative capitalization is encouraged.

(b) Establishment of Cockpit. The Sangguniang Panlungsod shall determine the number of cockpits to be allowed in this City.

(c) Cockpit-Size and Construction. Cockpits shall be constructed and operated within the appropriate areas as prescribed in the Zoning Law or Ordinance. In the absence of such law or ordinance, the City Mayor shall see to it that no cockpits are constructed within or near existing residential or commercial areas, hospitals, school buildings, churches or other public buildings. Owners, lessees, or operators of cockpits which are now in existence and do not conform to this requirement are required to comply with these provisions within a period to be specified by the City Mayor. Approval or issuance of building permits for the construction of cockpits shall be made by the City Engineer in accordance with existing ordinances, laws and practices.

(d) Taking Part in Cockfights. Only duly registered and licensed promoters, referees, cashiers, bet managers, pit referees, bet takers, or gaffers shall take part in all kinds of cockfights held in this City. No operator or owner of a cockpit shall employ or allow to participate in a cockfight any of the above-mentioned personnel unless he has registered and paid the fee herein required.

(e) Upon payment of the fees herein imposed, the corresponding Mayor's Permit shall be issued.

SECTION 96. APPLICABILITY CLAUSE

The provision of PD 449, otherwise known as the Cockfighting Law of 1974, PD 1802 (Creating the Philippine Gamefowl Commission), and such other pertinent laws shall apply to all matters regarding the operation of cockpits and the holding of cockfights in this City.

Article Three. - Special Permit Fee for Cockfighting

SECTION 97. IMPOSITION OF FEES

There shall be collected the following fees per day for cockfighting:

(a) Special Cockfights (Pintakasi)
First three (3) days P 1,500.00
Succeeding days 1,000.00/day

(b) Special Derby Assessment from Promoters of :
Two-Cock Derby 500.00
Three-Cock Derby 1,000.00
Four-Cock Derby 1,500.00
Five-Cock Derby 2,000.00
More than five-cock derby 6,000.00

SECTION 98. EXCLUSION

Regular cockfights i.e., those held during Sundays, legal holidays and local fiestas and international derbies shall be excluded from the payment of fees herein imposed.

SECTION 99. TIME AND MANNER OF PAYMENT

The fees herein imposed shall be payable to the City Treasurer before the special cockfights and derbies can be lawfully held.

SECTION 100. RULES AND REGULATIONS IN THE ISSUANCE OF SPECIAL PERMITS:

(a) Special Permits can be issued only under the circumstances enumerated in paragraphs (a) and (b), Section 101 of this Article. Provided, that derbies and cockfighting covered by these permits shall be held only on days other than Sundays and Legal Holidays.

(b) No Special cockfighting shall be allowed unless authorized by the Sangguniang Panlungsod through an approved resolution at least thirty (30) days before the event.

(c) Every application shall be signed by the owner/operator of the cockpit where such special cockfights are to be held, and countersigned by the promoter or a representative of the beneficiary, to be supported with the necessary documents, as follows:

1. A copy of Presidential or Mayor's Proclamation authorizing the fund raising campaign;

2. Letter request of the beneficiary to the cockpit owner, operator or licensee to stage special cockfights in particular cockpit;

3. Resolution of the Sangguniang Panlungsod during official town fiestas and agricultural, industrial or commercial fairs, carnivals or expositions;

4. Resolution of the Sangguniang Panlungsod for the support of national fund raising campaign for charitable or other purposes as may be authorized by the Office of the President or the City Mayor.

5. No international cockfight derby may be held without an approved resolution by the Sangguniang Panlungsod authorizing the same for the promotion of not more than eight (8) international cockfight derbies every year in Davao City, for the support of national fund-raising campaigns as may be authorized by the Office of the President, upon application of duly qualified promoters and countersigned by the owner/operator or licensee of the cockpit. Such application shall be filed at least sixty (60) days before the scheduled international cockfight derby. In all these cases, the above requirements are necessary.

SECTION 101. ADMINISTRATIVE PROVISIONS

(a) Holding of cockfights. Except as provided in this Article, cockfighting shall be allowed in this City only in licensed cockpits during Sundays and legal holidays and during local fiestas of not more than five (5) days. It may also be held during City agricultural, commercial, or industrial fairs, carnival, or exposition for a similar period upon resolution of the Sangguniang Panlungsod.

No cockfighting on the occasion of such affair, carnival or exposition shall be allowed within the month if a local fiesta or for more than two (2) occasions a year. No cockfighting shall be held on December 30 (Rizal Day), June 12 (Philippine Independence Day), November 30 (National Heroes Day), Holy Thursday, Good Friday, Election or Referendum Day and during Registration Days for such election or referendum.

(b) Cockfighting for entertainment of tourists or for charitable purposes. Subject to the preceding subsection hereof, the holding of cockfights may also be allowed for the entertainment of foreign dignitaries or for tourists, or for returning Filipinos, commonly known as "Balikbayans", or for the support of national fund-raising campaigns for charitable purposes as may be authorized upon resolution of the Sangguniang Panlungsod, in licensed cockpits or in playgrounds or parks. This privilege shall be extended for only one (1) time, for a period not exceeding three (3) days, within a year.

(c) Cockfighting Officials. Gaffers, referees, bet takers, or promoters shall not act as such in any cockfight in the City without first securing a license renewable every year on their birth month from the City where such cockfighting is held. Only gaffers, referees, bet takers, or promoters licensed by the City shall officiate in all kinds of cockfighting authorized herein.

(d) Other Games during prescribed Cockfights. No gambling of any kind shall be permitted on the premises of the cockpit or place of cockfighting during cockfights. The owner, manager, or lessees of such cockpit and the violators of this injunction shall be criminally liable under Section 102 hereof.

(e) No person less than fifteen (15) years of age shall be allowed inside the premises of the cockpit during cockfights. The Operator/Manager/Licensee shall be responsible for the strict compliance of this rule.

(f) All breeders of gamefowl are required to register with the City Agriculturist. The City Agriculturist shall furnish the City Mayor, copy furnish the Sangguniang Panlungsod, with a complete record of duly registered breeders.

(g) All persons involved in cockfighting and in the operation of cockpits, including, among others, the owner or operator of cockpits, the cockpit officials, the cockers (afficionados) and government officers involved in the issuance of permits or licenses and the inspection of cockpits, must observe utmost honesty, fair play, good faith, and peace and order.

(h) In case of complaints and protests, the Legal Officer shall take cognizance of complaints and protests relative to the operation and management of cockpits or the conduct of cockfights, and violation of this Ordinance, which complaints and protest must be in writing and under oath. The City Legal Office shall prescribe the rules and procedures governing such cases, subject to the approval of the City Mayor.

SECTION 102. APPLICABILITY CLAUSE. THE PROVISION OF PD 449, OTHERWISE KNOWN AS THE COCKFIGHTING LAW OF 1974, PD 1802 (CREATING THE PHILIPPINE GAMEFOWL COMMISSION), AND SUCH OTHER PERTINENT LAWS SHALL APPLY TO ALL MATTERS REGARDING THE OPERATION OF COCKPITS AND THE HOLDING OF COCKFIGHTS IN THIS CITY

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Article Four. - Fees on Transportation Business and Golf Cart Owners

SECTION 103. IMPOSITION OF ANNUAL FEES

There is hereby imposed an annual fee for every motor vehicle or water vessel on operators of public utility vehicles or vessels, maintaining terminal, or waiting station for the purpose of carrying passengers or freight for hire from this City under a certificate of public convenience and necessity or similar franchises:

Annual Fees
(1) Buses	P 1,000.00
(2) Primovers with trailers & Cargo Trucks such as: 10 wheelers & above 1,000.00 8 wheelers & below 700.00 (3) Tourist Buses & Vans 500.00 (4) Taxis, Jeepneys, AUV's & Car for rent/hire, motor launch 300.00

The same annual fee is hereby imposed on the owners of motorized banca and golf cart units at the following rates, viz:

(1) Motorized Banca P 200.00
(2) Golf Cart/Unit 500.00

SECTION 104. EXEMPTION

Provided that all motorized tricycles for hire and utility tricycles for hire and utility tricycles shall not be subjected to the above imposition.

SECTION 105. TIME OF PAYMENT

The tax herein imposed shall be payable within the first twenty (20) days of January.

Article Five. - Permit Fee on Pedaled Tricycle

SECTION 106. WHO ARE AUTHORIZED TO OPERATE

Only Filipino Citizens, corporation or entity, sixty percent (60%) of the ownership of which are owned by Filipino Citizens;

SECTION 107. RULES AND REGULATIONS IN THE REGISTRATION OF PEDALED TRICYCLE

(a) No person shall operate a pedicab unless the same is registered with the Traffic Division of the Davao PNP.

(b) Registration of pedicabs shall be done within the first twenty (20) days of January of each year.

(c) Newly acquired pedicabs shall be registered within thirty (30) days from date of acquisition without prejudice to sub-paragraph (b) hereof.

(d) Failure to register within the period specified above shall make the owner of the pedicab liable to a fifty percent (50%) surcharge on the registration fee;

(e) No registration or renewal of registration shall be allowed on units, which are unfit for public use or not roadworthy as determined by the Chief of the Traffic Division, Davao PNP.

SECTION 108. IMPOSITION OF FEES

There shall be collected from the owner pedaled tricycle operated within the City the following annual registration fees:

Annual Fee
(a) For hire	P 150.00
(b) For commercial use	P 150.00
(c) Private Use	75.00

Payment of registration fees as per above rates plus the cost of plate shall be made to the City Treasurer's Office which shall issue a corresponding receipt thereof.

A minimum insurance of Five Thousand Pesos (P 5,000.00) with a time coverage of one year for property damage and physical injuries shall be required upon registration of each pedal-operated pedicabs.

SECTION 109. DISPLAY OF PLATE NUMBER AND CARRYING A PHOTOSTAT COPY OF THE REGISTRATION

The registration plate number of a pedicab shall be prominently displayed at the rear portion of the pedicab clearly visible at a distance of fifteen (15) meters and the driver/operator shall always carry his photocopy of the registration papers.

SECTION 110. COMPLIANCE OF ALL TRAFFIC RULES AND REGULATIONS

The driver or operators of pedicabs shall at all times comply with the traffic rules and regulations while operating their units.

Every pedicab being operated at night shall be equipped with light on the front which shall emit a white light from a distance of at least sixty five (65) meters to the front and with a rear reflex mirror or reflectorized tape visible for a distance of sixty-five (65) meters to the rear.

No person shall operate a pedicab unless it is equipped with a device capable of giving a signal for a distance of at least ten (10) meters.

SECTION 111. PENALTY

The following administrative penalty shall be imposed upon the owner/operator of the pedicab for the violations indicated hereunder:

Penalty	P 300.00
No registration	250.00
No plate number	250.00
No light or rear red reflex mirror or warning signal device	250.00
Operating in Non-designated Areas:	
First offense	50.00
Second offense	500.00
Failure to comply registration paper	100.00

SECTION 112. TIME OF PAYMENT

The fee imposed herein shall be due on the first (1st) day of January and payable to the City Treasurer within the first twenty (20) days of January of every year. For pedaled tricycle acquired after the first twenty (20) days of January, the permit fee shall be paid without the penalty within the first twenty (20) days of the quarter following the date of purchase. Failure to register within the period specified shall be subject to the penalty above stated.

SECTION 113. ADMINISTRATIVE PROVISIONS

(a) A metal plate or sticker shall be procured by the owner from the City Treasurer's Office to be installed in the pedaled tricycle granted a permit.
(b) The City Treasurer shall keep a register of all pedaled tricycles containing information such as the make and brand of the tricycle, the name and address of the owner, and the number of the permit plate.

Article Six. - Registration and Immunization of Dogs

SECTION 114. IMPOSITION OF FEE

There shall be paid to the City Treasurer an annual dog registration fee of the following:
(a) For Imported Dogs - P 200.00
(b) For Ordinary Dogs - 10.00

SECTION 115. ADMINISTRATIVE PROVISIONS

(a) No person shall keep or own any dog over three (3) months old without first securing a Registration Certificate from the City Veterinarian. The latter shall keep a register of all licensed dogs, describing the same by the name, breed, color and sex, date of immunization, and shall enter therein the name and address of owner, amount paid, number and date of official receipt.
(b) No dog can be registered without being immunized against rabies by the City Veterinarian or any Veterinarian. Immunization fee shall be paid at cost.

SECTION 116. TIME OF PAYMENT

The registration fee shall be paid annually based on the registry date. A Ten Pesos (P 10.00) penalty shall be imposed for every month of delay.

Article Seven. - Fees on Impounding of Astray Animals

SECTION 117. IMPOSITION OF FEE

There shall be imposed the following fees for each day or fraction thereof on each head of astray animal found running or roaming at large, or fettered in public places:
(a) Large Cattle
Succeeding day(s)
Amount of Fee
P 1,000.00
100.00

(b) All other animals
Succeeding day(s)
250.00
50.00

SECTION 118. TIME OF PAYMENT

The impounding fee shall be paid to the City Treasurer prior to the release of the impounded animal to its owner.

SECTION 119. ADMINISTRATIVE PROVISIONS

(a) For purposes of this Article, the Barangay Officials and/or Barangay Tanods of the City are hereby authorized to apprehend and impound astray animals in the City corral or a place duly designated for such purpose. He shall also cause the posting of notice of the impounded astray animal in the City Hall or Barangay Hall for seven (7) consecutive days, starting one day after the animal is impounded, within which the owner is required to claim and establish ownership of the impounded animal. The City Mayor and City Treasurer shall be informed of the impounding.

(b) Impounded animals excluding dogs and cats not claimed within three (3) days after the date of impounding shall be sold at public auction under the following procedures:

1. The City Treasurer shall post notice for seven (7) days in public areas including the main door of the City Hall and the public markets. The animal shall be sold to the highest bidder. Within seven (7) days after the auction sale, the City Treasurer shall make a report of the proceedings in writing to the City Mayor.

2. The owner may stop the sale by paying, at any time before or during the auction sale, the impounding fees due and the cost of the advertisement and conduct of sale to the City Treasurer, otherwise, the sale shall proceed.

3. The proceeds of the sale shall be applied to satisfy the cost of impounding, advertisement and conduct of sale. The residue over these costs shall accrue to the General Fund of the city.

4. In case the impounded animal is not disposed of within the seven (7) days from the date of notice of public auction, the same shall be considered sold to the City Government for the amount equivalent to the poundage fees due.

SECTION 120. PENALTY

Owners whose animals are caught astray and incurring damages to plants and properties shall pay the following fines:

(a) First offense P 100.00 per day
(b) Second offense 200.00 per day
(c) For the third offense and each subsequent offense 300.00 per day

In addition to the fine, the owners shall pay the amount of damage incurred, if any, to the property owner.

Article Eight. - Building and Other Construction Permit Fees

SECTION 121. ADMINISTRATIVE PROVISION

No person, firm or corporation, including government agencies, is allowed to erect, construct, alter, move, convert or demolish any building or structure without first obtaining a Building Permit issued by the City Engineer/Building Official.

SECTION 122. ASSESSMENT FEES

a. Assessment of building permit fees shall be based on the following:

1) Character of occupancy or use of building/structure;
2) Cost of construction;
3) Floor area; and
4) Height

b. For the purpose of fixing the amount of fees based on the use or occupancy of the building/structure, the group occupancy classification shall be the term of reference:

1) CATEGORY I - Residential
2) CATEGORY II - Commercial and Industrial
3) CATEGORY III - Social, Educational and Institutional
4) CATEGORY IV - Agricultural
5) CATEGORY V - Ancillary

SECTION 123. FILING FEE (NON

Refundable):

Per permit or certificate of occupancy application- P 100.00

SECTION 124. ESTABLISHMENT OF LINE AND GRADE

a) All sides fronting or abutting streets, rivers and creeks:

Linear Meter Rates/Fee
1. First 10 meters P 22.00
2. Every meter or fraction thereof in excess of 10 meters 2.20

b) All other sides:
Every meter or fraction thereof 1.10

SECTION 125. SCHEDULE OF BUILDING PERMIT FEES

(a) The Building Permit Fee includes the excavation fee for foundation. However, while the application is still being processed, the Building Official may authorize all excavations for foundation and basement, for which the following fees shall be charged:

Volume Rates/Fee
1. Excavation for foundation, per cu. m. of excavation P 2.20
2. Excavation for basement, per cu. m. of excavation 2.20

(b) Construction, addition, renovation, alteration of building under CATEGORY I (Residential) shall be assessed according to the following rates:

Area Rates/Fee per sq. m.
1. Original complete construction up to 20 sq. m. Exempted
2. Addition/Renovation/Alteration up to 20 sq. m. P 2.20
3. Above 20 sq. m. up to 50 sq. m. 2.20
4. Above 50 sq. m. up to 100 sq. m. 4.40
5. Above 100 sq. m. up to 150 sq. m. 5.50
6. Above 150 sq. m. 6.60

(c) Construction/addition/renovation/alteration of buildings under CATEGORY II (Commercial/Industrial):

Area Rates/Fee per sq. m.
1. Up to 5,000 sq.m. P 13.20
2. Above 5,000 up to 6,000 sq.m. 12.10
3. Above 6,000 up to 7,000 sq.m. 11.55
4. Above 7,000 up to 8,000 sq.m. 11.00
5. Above 8,000 up to 9,000 sq.m. 10.45
6. Above 9,000 up to 10,000 sq.m. 10.15
7. Above 10,000 up to 15,000 sq.m. 8.80
8. Above 15,000 up to 20,000 sq.m. 7.70
9. Above 20,000 up to 30,000 sq.m. 6.60
10. Above 30,000 sq.m. 5.50

(d) Construction/addition/renovation/alteration of buildings under CATEGORY III (Social/Educational/Institutional):

Area Rates/Fee per sq. m.
1. Up to 5,000 sq.m. P 11.00
2. Above 5,000 up to 6,000 sq.m. 9.90
3. Above 6,000 up to 7,000 sq.m. 9.35
4. Above 7,000 up to 8,000 sq.m. 8.80
5. Above 8,000 up to 9,000 sq.m. 8.25
6. Above 9,000 up to 10,000 sq.m. 7.70
7. Above 10,000 up to 15,000 sq.m. 6.60
8. Above 15,000 up to 20,000 sq.m. 6.05
9. Above 20,000 up to 30,000 sq.m. 5.50
10. Above 30,000 sq.m. 4.40

(e) Construction, addition, alteration of buildings under CATEGORY IV (Agricultural, such as granaries, green houses, poultry houses, piggeries, hatcheries, stables, cow sheds, etc.):

Area Rates/Fee per sq. m.
1. Up to 20 sq.m. Exempted P 2.20
2. Above 20 up to 500 sq.m. P 1.65
3. Above 500 up to 1,000 sq.m. P 1.35
4. Above 1,000 up to 5,000 sq. m. P 1.10
5. Above 5,000 up to 10,000 sq. m. P 0.55
6. Above 10,000 sq.m.

(f) Construction/addition/renovation/alteration of buildings/structures under CATEGORY V (Ancillary):

1. Buildings such as private garages and carports shall be charged fifty percent (50%) of the rate of the principal building of which they are accessories;

2. All parts of buildings which are open on two (2) or more sides, such as balconies, terraces, lanais and the like, shall be charged fifty percent (50%) of the rate of the principal building of which they are a part;

3. Aviaries, aquariums, zoo structures and the like shall be charged in accordance with the rates for agricultural structures.

(g) Footings or foundations of buildings/structures. Per sq. m. or fraction thereof of footing or foundation encroachment - (P 220.00)

(h) Buildings with a height of more than eight (8) meters shall be charged an additional fee of twenty-five centavos (P 0.25), per cubic meter above eight (8) meters.

(i) Alteration/renovation/improvement on vertical dimensions of buildings/structures, such facades, exterior and interior walls, shall be assessed in accordance with the following rates:

Rates/Fee
1. Concrete, bricks hollow block and the like P 4.40

2. Others P 3.30

(j) Alteration/renovation/improvement on horizontal dimensions of be assessed in accordance with the following percentage of the cost of construction, including labor and material fees provided in this Article, whichever category applies:

1. Concrete, bricks or tiles and the like 50%
2. Others 30%

(k) Repairs on Buildings and Structures:

1. CATEGORIES I, II and III (Cost):
(a) Repairs costing up to Five Thousand Pesos (P5,000.00) shall be exempted.

(b) Repairs costing more than Five Thousand Pesos (P5,000.00) shall be charged one percent (1%) of the estimated cost of repair.

2. CATEGORIES IV (Cost):
(a) Repairs costing up to One Thousand Pesos (P1,000.00) shall be exempted.
(b) Repairs costing more than One Thousand Pesos (P1,000.00) shall be charged one percent (1%) of the estimated cost of repair.

3. CATEGORIES V (Cost):
(a) Repairs costing up to Two Thousand Pesos (P2,000.00) shall be exempted.
(b) Repairs costing more than One Thousand Pesos (P1,000.00) shall be charged one percent (1%) of the estimated cost of repair.

SECTION 126. ANCILLARY STRUCTURE

Volume Rates/Fee
(a) Bank and Records Vaults:
1. Per cu. m. or fraction thereof P 33.00
(b) Swimming Pools:
1. Residential, per cu. m. or fraction thereof 5.50
2. Commercial, per cu. m. or fraction thereof 16.50
3. Social / Institutional, per cu. m. or fraction thereof 10.10

Swimming pools improvised from local indigenous materials such as rocks, stones and/or small boulders and with plain cement flooring shall be charged fifty percent (50%) of the above rates.

Ancillary structures to swimming pools, such as shower rooms, locker rooms and the like shall be charged fifty percent (50%) of the rates corresponding to the category of the swimming pool.

(c) Construction of firewalls separate from the building:
1. Per sq. m. or fraction thereof P 2.20
2. Provided, that the minimum fee shall be 44.00

(d) Construction / Erection of towers including radio and TV towers, water-tank supporting structures, and the like:
1. Residential Exempted
2. Commercial/industrial towers, self-supporting trilion or guyed trilion:

Self-Supporting Rates/Fee Guved Trilion Rates/Fee
a.) Up to 10 meters in height P 2,200.00 220.00
b.) Every meter or fraction thereof in excess of 10 m. in height 110.00 11.00
3. Institutional (Height):
a.) Up to 10 meters in height 1,650.00 110.00
b.) Every meter or fraction thereof in excess of 10 m. in height 110.00 11.00

(e) Commercial/Industrial Storage Silos (Height):
1. Up to 10 m. in height P 2,200.00
2. Every meter or fraction thereof in excess of 10 m. 110.00

Silos with platforms or floors shall be charged an additional fee in accordance with this Section.

(f) Construction of Smokestacks and Chimneys for Commercial/Industrial Use:
1. Smokestacks (Height):
a.) Up to 10 m. in height measured from the base P 220.00
b.) Every meter or fraction thereof in excess of 10m. in height 10.10

2. Chimneys (Height):
a.) Up to 10 m. in height measured from the base 44.00
b.) Every meter or fraction thereof in excess of 10 m. in height 1.10

(g) Construction of commercial/industrial fixed ovens:
Per sq. m. or fraction thereof on interior floor areas - P 44.00

(h) Construction of industrial silo/furnace/kiln:
Per cu. m. or fraction thereof of volume - P 11.00

(i) Construction of reinforced concrete or steel tanks for Category I buildings:
1. Up to 2 cu. m.
2. Every cu. m. or fraction thereof in excess of 2 cu. m. P 11.00

(j) Construction of reinforced concrete tanks for Commercial/Industrial use:
1. Up to 10 cu. m.
2. Every cu. m. or fraction thereof in excess of 10 cu. m. P 440.00 22.00

(k) Construction of waste treatment tanks (including sedimentation and chemical treatment tanks):
Per cu. m. of volume - P 2.20

(l) Construction of steel tanks for commercial/industrial use:
1. Above ground (Volume): Rates/Fee

a.) Up to 10 cu. m.
P 440.00

b.) Every cu. m. or fraction thereof in excess of 10 cu. m. up to 100 cu. m.
22.00

c.) Every cu. m. or fraction thereof in excess of 100 cu. m. up to 1,000 cu. m.
17.60

d.) Every cu. m. or fraction thereof in excess of 1,000 cu. m. up to 5,000 cu. m.
13.20

e.) Every cu. m. or fraction thereof in excess of 5,000 cu. m. up to 10,000 cu. m.
8.80

f.) Every cu. m. or fraction thereof in excess of 10,000 cu. m. up to 20,000 cu. m.
6.60

g.) Every cu. m. or fraction thereof in excess of 20,000 cu. m.
4.40

2. Underground (Volume):
a.) Up to 20 cu. m.
660.00

b.) Per cu. m. or fraction thereof in excess of 20 cu. m.
22.00

(m) Pull-outs and Installation of Commercial / Industrial Steel Tanks:
Rates/Fee

1. Underground:
a.) Per cubic or fraction thereof of excavation
2.20

b.) Saddle or trestle mounted horizontal tanks per cu. m. or fraction thereof
2.20

(n) Booths, Kiosks, Platforms, Stage and the like:
1. Construction of permanent type booths, kiosks, platforms, stage and the like:
Per sq. m. or fraction thereof floor area - P 8.80

2. Construction of temporary type booths, kiosks, platforms, stages, field offices, laborers quarters and the like:
Per sq. m. or fraction thereof floor area - P 4.40

3. Inspection of knock-down type temporary booths, platforms, stage and the like:
Per unit - P 22.00

(o) Construction of Tombs and Canopies, Mausoleums and Niches in Cemeteries and Memorial Parks (Area):
Rates/Fee

1. Plain tombs or monuments without backdrop wall, canopy or roofing
Exempted

2. Canopied tombs, whether partially totally roofed over, per sq. m. of covered area
4.40

3. Semi-enclosed mausoleums, whether canopied or not, per sq. m. of built-up area
4.40

4. Totally enclosed mausoleums, per sq. m. of floor area, per level
11.00

5. Multi-level interment niches, per sq. m. of floor area, per level
4.40

SECTION 127. SANITARY / PLUMBING PERMIT FEES

Plumbing Permit Fees shall be collected based on the following rates (Per unit):
(a) For the installation of a unit composed of one (1) water closet, two (2) floor drains, one (1) lavatory, two (2) faucets

and one (1) showerhead - P 22.00

(b) For every fixture in excess of a unit under (a) above:
1. Per water closet
Rates/Fee P 6.60
2. Per floor drain
2.20
3. Per sink
2.20
4. Per lavatory
6.60
5. Per faucet
1.65
6. Per showerhead
1.65
7. Per clop sink
6.60
8. Per urinal
3.30
9. Per bath tub
6.60
10. Per grease trap
6.60
11. Per garage trap
6.60
12. Per bidet
3.30
13. Per dental cuspidor
3.30
14. Per gas fired water heater
3.30
15. Per hot water boiler
3.30
16. Per drinking fountain
1.65
17. Per laundry sink
3.30
18. Per bar or soda fountain sink
3.30
19. Per laboratory sink
3.30
20. Per fixed-type sterilizer
1.65
21. Per water meter
1.65

(c) Construction of septic vault:
1. Category I (Residential)
Rates/Fee Exempted
2. All other categories (volume):
a.) Up to 5 cu. m. of digestion chamber
22.00
b.) Every cu. m. or fraction thereof
in excess of 5 cu. m.
6.60

SECTION 128. PLUMBING INSPECTION FEES

Fees for Plumbing inspection shall be based on the following rates (Per Inspection):
Rates/Fee
For every inspection of water test
P 110.00
For every inspection of connection to sewer
33.00
For every inspection of connection of a single fixture
22.00
For every inspection of connection of a group
of fixtures of not more than three (3) fixtures

of any kind to the existing installation
33.00
For every fixture in excess of this group of any kind
11.00
For every inspection of water service only
55.00
For every inspection of water connection, special
or miscellaneous
55.00
For every inspection trip during construction
4.40
Annual inspection of plumbing system
16.50

SECTION 129. FENCING PERMIT FEES

Fees for Fencing Permit shall be based on the following rates (Length):

Rates/Fee
a) Fencing made of indigenous materials and/or barbed wire, chicken wire, hog wire Exempted
b) Fences up to 1.80 meters in height made of materials other than those mentioned above, per linear meter or fraction thereof 2.20
c) Fences in excess of 1.80 meters in height made of materials other than those of (a) above, per linear meter or fraction thereof 2.20

SECTION 130. CONSTRUCTION OF SIDEWALKS (SQ. M.):

a) Up to 20 sq. m. - P 22.00
b) Every sq. m. or fraction thereof in excess of 20 sq. m. - P 1.10

SECTION 131. PAVED OR CEMENTED AREAS

Paved Areas intended for Commercial/Industrial/Social/Institutional use, such as Parking Area, Gasoline Stations, Premises, Skating Rinks, Pelota Courts, and the like:
For every sq. m. or fraction thereof - P 1.10

SECTION 132. USE OF STREETS AND SIDEWALKS AS PERMITTED:

Rates/Fee
1. Use of Sidewalks (sq. m.)
a.) Up to 20 sq. m. of sidewalk, per month P 220.00
b.) Every sq. m. or fraction thereof in excess of 20 sq. m. per month 10.10
2. Erection of Scaffolding occupying Public Areas (1. m.):
a.) Up to 10 lineal meters of frontage, per month 132.00
b.) Every lineal meter, or fraction thereof of frontage in excess of 10 lineal meters, per month 11.00

SECTION 133. CERTIFICATE OF USE OR OCCUPANCY

Schedule:
(a) Category I (Cost):
1. Buildings of traditional indigenous materials Exempted
2. Buildings costing more than P50,000.00 55.00
3. Buildings costing more than P50,000.00 up to P100,000.00 110.00
4. Buildings costing more than P100,000.00 up to P150,000.00 165.00
5. Buildings costing more than P150,000.00 up to P250,000.00 220.00
6. Buildings costing more than P250,000.00 up to P500,000.00 440.00
7. Buildings costing more than P500,000.00 880.00
(b) Category II (Cost):
1. Buildings costing up to P50,000.00 110.00
2. Buildings costing more than P50,000.00 up to P100,000.00 220.00
3. Buildings costing more than P100,000.00 up to P250,000.00 440.00
4. Buildings costing more than P250,000.00 up to P500,000.00 880.00
5. Buildings costing more than P500,000.00 1,760.00

(c) Category III (Cost):
1. Buildings costing up to P50,000.00 66.00
2. Buildings costing more than P50,000.00 up to P150,000.00 165.00
3. Buildings costing more than P150,000.00 up to P250,000.00 330.00
4. Buildings costing more than P250,000.00 up to P500,000.00 660.00
5. Buildings costing more than P500,000.00 1,320.00

(d) Category IV (Floor Area):
1. With floor area up to 20 sq. m. Exempted

2. With floor area above 20 sq. m. up to 500 sq. m. 22.00
3. With floor area above 500 sq. m. up to 1,000 sq. m. 33.00
4. With floor area above 1,000 sq. m. up to 5,000 sq. m. 44.00
5. With floor area above 5,000 sq. m. up to 10,000 sq. m. 110.00
6. With floor area above 10,000 sq. m. 220.00

(e) Garage, carport, balcony, terrace, lanai, and the like: 50% of the rate of the principal building, according to category.

(f) Aviary, aquarium, zoo structure, and the like: same rate as Category IV above.

(g) Ancillary Structures:
Rates/Fee
1. Banks and Record Vaults, per cu. m. of interior volume P 2.20
2. Swimming Pools, per unit:
a. Residential 2.20
b. Commercial / Industrial 33.00
c. Social / Institutional 22.00
d. Improvised swimming pools made of materials listed under this Article: 50% of above rates
3. Swimming pool, Shower Rooms/ Locker Rooms, per unit:
a. Residential 5.50
b. Commercial/Industrial 16.50
c. Social / Institutional 11.00

(h) Towers (per unit):
Self-Supporting Rates/Fee Guved Trilon Rates/Fee
1. Residential Exempted Exempted
2. Commercial / Industrial P 44.00 22.00
3. Social / Institutional 22.00 11.00

(i) Commercial/Industrial Storage Silos (Per Unit) - P 44.00

(j) Smokestacks (Per Unit) - P 22.00

(k) Chimneys (Per Unit) - P 11.00

(l) Commercial/Industrial Fixed Ovens (Per Unit) - P 11.00

(m) Industrial Kilns/Furnaces, (Per Unit) - P 22.00

(n) Reinforced Concrete Tanks:
1. Residential
a. Up to 2 cu. m. Exempted
b. Above 2 cu. m. P 11.00
2. Commercial / Industrial 44.00
3. Social/Institutional 22.00

(o) Steel Tank (Per Unit):
1. Residential
a. Up to 2 cu. m. Exempted
b. Above 2 cu. m. P 11.00
2. Commercial/Industrial
a. Above ground 44.00
b. Underground 33.00
3. Social/Institutional 22.00

(p) Booth, Kiosks, Platforms, Stage, and the like (Per Unit) - P 11.00

SECTION 134. CHANGE IN USE / OCCUPANCY

For every sq. m. or fraction of area affected - P 4.40

SECTION 135. ANNUAL BUILDING INSPECTION FEES

Annual building inspection fees shall be collected at the following rates:
Rates/Fee
(a) Category I:
1. Single detached dwelling units and duplexes Exempted
2. If the owner requests building inspection, the fee for each of the services enumerated below is:
a.) Land Use Conformity P 110.00
b.) Architectural Presentability
c.) Structural Stability
d.) Sanitary and Health Requirements

e.) Fire Resistive Requirements

(b) Category II and III (Assessed Value):
Commercial (excluding amusement houses and gymnasias), industrial, social and institutional buildings with assessed value of:
1. With 1 million P 110.00
2. Above 1 million up to 5 million 220.00
3. Above 5 million up to 10 million 440.00
4. Above 10 million up to 50 million 660.00
5. Above 50 million up to 100 million 880.00
6. Above 100 million 1,100.00

(c) Amusement Houses, Gymnasias and the like (Per Unit):
1. First Class cinematographs or theaters P 1,100.00
2. Second Class cinematographs or theaters 660.00
3. Third Class cinematographs or theaters 440.00
4. Grandstands/Bleachers 1,100.00
5. Gymnasias and the like 660.00

Gymnasias, grandstands, bleachers, concert halls, little theaters, and the like, that are integral parts of a school, college or university complex shall be charged in accordance with Category III rates, under (c) above.

SECTION 136. FINES

The following fines shall be collected for non-compliance with work stoppage for construction without permit:

Light Violations	Less Grave Violations	Grave Violations
Category I	Minimum	P 50.00	P 250.00	P 500.00
	Medium	P 50.00	P 500.00	1,000.00
	Maximum	P 50.00	P 1,000.00	2,000.00

Category II and III
Minimum P 100.00 P 1,000.00 P 2,000.00
Medium P 100.00 P 2,500.00 5,000.00
Maximum P 100.00 P 5,000.00 10,000.00

SECTION 137. IMPOSITION OF FINES

The minimum fines shall be imposed for failure to comply with the terms of the first notice. The medium fines shall be imposed for failure to comply with the terms of the second notice. The maximum fines shall be imposed for failure to comply with the terms of the third and final notice.

SECTION 138. SURCHARGES / PENALTIES

Without prejudice to the provisions of the preceding Section, the City Engineer / Building Official is hereby authorized to impose a penalty of surcharge in the following cases, amount and manner:

(a) For constructing, installing, repairing, altering or causing any change in the use or occupancy of any building or part thereof or appurtenances thereto without any permit, there shall be imposed a surcharge of twenty-five percent (25%) of the building permit fee. When the work in the building or structure is started during the pendency of the final action or pending approval by the City Engineer/Building Official of the application for the building permit, the amount of the surcharge shall be according to the following:

1. Excavation for foundation 10% of BPF
2. Construction of foundation (including pile driving and laying of reinforcing bars) 25% of BPF
3. Construction of superstructure up to two meters above established grade 50% of BPF
4. Construction of superstructure above two meters above established grade 100% of BPF

SECTION 139. EXEMPTIONS

No fees shall be charged on the following applications:

(a) Construction, addition, renovation, alteration of public buildings, undertaken by the government.

(b) Construction, addition, renovation, alteration of government owned tenement houses and other housing units while the title of the lot is still in the name of the government.

(c) Construction of building or structures damaged or destroyed by typhoons, fires, earthquakes or other calamities provided that reconstruction shall not exceed twenty percent (20%) of the original construction cost filed with the City Engineer/Building Official together with the certificate of damage not later than sixty (60) days after the occurrence of such calamity.

(d) Construction of buildings, or structures by civic organizations, charitable institutions to be donated to the government for public use.

(e) Construction/addition/renovation/alteration/repair of buildings/structures and/or electrical equipment/installations owned by electric cooperatives.

(f) Construction/addition/renovation/alteration of traditional indigenous family dwelling units.

SECTION 140. PENAL PROVISION

Any person violating any of the provisions of this Article shall, upon conviction, be punished by a fine of not less than One Thousand Pesos (P 1,000.00) or imprisonment of not less than thirty (30) days nor more than six (6) months or both at the discretion of the court. In case of a corporation, partnership or association, the president, manager, or the person-in-charge of the project shall be liable therefore.

Article Nine. - Electrical Installation Permit and Inspection Fees

SECTION 141. IMPOSITION OF FEE

Every person or entity who shall install or alter, or cause to be installed or altered any exterior or interior electrical lighting, power, telephone, or telegraph, or any electrical system or line; or install or cause to be installed any electrical apparatus or machine shall pay for every installation the following fees:

(a) Lighting and Power System:
1. Lighting and power installation:
a.) Each switch lighting and/or convenience outlet
0.90
b.) Each remote control master switch
22.00
c.) Each special purpose outlet of 20 amperes capacity or more
2.20
d.) Each time switch
2.20

2. Appliances for commercial/industrial use:
a.) Each range, or heaters up to 1 KW
2.20
Every KW or fraction thereof
1.10
Each refrigerator or freezer
4.40
Each washing machine or dryer
4.40
Each commercially used hair curling apparatus or hair dryer
4.40
Each fixed type electric fan
2.20
Each electrical typewriter, cash register or adding machine
2.20

b.) Air conditioning system (Per Unit):
Individual
For each air conditioning outlet
2.20
Window type or package:
Each unit of 1 HP (745 KW)
4.40
Each unit of more than 1 HP
11.00
Package or centralized 3 HP (2.3 KW) or less than 5 HP
22.00
For each succeeding HP
4.40
Blower and air handling unit
11.00
For each motor of 1/4 HP or less

c.) Electrical equipment/apparatus for commercial/industrial use (Per Unit):
1. For each bell annunciator system
4.40
2. For each fire alarm unit
2.20
3. For each arc (light) lamp
11.00
4. For each flasher, Beacon light
4.40
5. For each X-ray equipment

22.00
6. For each battery charging rectifier
11.00
7. For each electric welder
4.40
1st KVA/KW
For each succeeding KVA/KW or fraction thereof
2.20
8. For each heating equipment 1 KW or fraction thereof
For each additional KW or fraction thereof
4.40
9. For each telephone switchboard (PBX, PABX, etc.)
Each trunkline
For each telephone apparatus
11.00
4.40
2.20
10. For intercom master
For each slave
For each neon sign transformer
For each neon sign unit
2.20
1.10
2.20
2.20
d.) Motion picture projectors for commercial use
16 mm., per unit
35 mm., per unit
70 mm. and above, per unit
66.00
88.00
154.00
e.) TV Cameras for commercial / industrial use per unit
44.00
f.) Motors and Controlling Apparatus (Per Unit):
1. 1⁄4 HP or less
Above 1⁄2 HP up to 1 HP
Above 1 HP up to 5 HP
Above 5 HP up to 10 HP
Above 10 HP up to 20 HP (15 KW)
Every HP in excess of 20 HP
4.40
6.60
8.80
13.20
22.00
1.10
(g) Generators (Per Unit):
1. Up to 1 KW
Above 1 KW up to 5 KW
Above 5 KW up to 10 KW
Above 10 KW up to 20 KW
Every KW or fraction thereof in excess of 20 KW
4.40
8.80
11.00
22.00
1.10
(h) Transformers and Sub-stations Equipment (Per Unit):
1. Each transformer up to 1 KVA
2. Every KVA or fraction thereof in excess of 1 KVA up to 2,000 KVA (based on nameplate rating)
3. Each transformer above 2,000 KVA
4. Each safety switch or circuit breaker up to 50 amperes and not exceeding 600 volts
5. Each safety switch, air circuit breaker, oil circuit breaker or vacuum circuit breaker, other than motor controlling apparatus, above 50 amperes up to 100 amperes, and not exceeding 600 volts
6. Every 50 amperes or fraction thereof in excess of 100 amperes
7. Every 10,000 amperes or fraction thereof of interrupting capacity of every circuit breaker, oil circuit breaker,

or vacuum circuit, breaker operating above 600 volts
4.40

(i) Each temporary lighting or convenience outlet for celebrations, ferias, or construction purposes
0.90

(j) Other electrical apparatus not otherwise provided for in this Section Every KW or fraction thereof
4.40

(k) Pole/attachment location plan permit:
1. Approved pole location plan permit, per pole 22.00
2. Approved attachment location plan permit, per attachment 22.00

(l) Inspection and other miscellaneous fees:
1. For every inspection trip 4.40
2. For condemnation 4.40
3. For each union separation, relocation, alteration, reconnection of electric meter:
a.) Residential 11.00
b.) Commercial / Industrial 44.00
c.) Social/ Institutional/ Agricultural 22.00
4. For issuance or cancellation of wiring permit:
a.) Residential 8.80
b.) Commercial/ Industrial 22.00
c.) Social/ Institutional/ Agricultural 7.70
5. For each true copy of electrical certificate 25.00

(m) Temporary current connection:
1. Temporary current connection shall be issued for testing purpose only in commercial and/or industrial establishments and the regular fees provided for in this section shall be charged and collected.
2. If the temporary current shall be used for period not more than sixty (60) days, the regular fees paid for the temporary current connection shall be deducted from the total fees for the final inspection.
3. If no final approval is done within sixty (60) days, the wiring permit shall be automatically canceled, and all fees paid shall be forfeited.

SECTION 142. TIME OF PAYMENT

The fees imposed in this Article shall be paid to the City Treasurer before securing a Building or Repair Permit from the City Engineer/Building Official and upon application for a permit from the City Engineer to install or alter any electrical lighting, power, telephone or telegraph, or any other electrical system or line, exterior or interior, or to install any electrical apparatus or machine.

SECTION 143. ADMINISTRATIVE PROVISIONS

(a) Application for the permit from the City Engineer shall be filed by the actual contractor who must be a registered electrical contractor. The permit issued shall be posted in a conspicuous place in the premises of the building, together with the Building Permit issued by the Building Official/City Engineer.

If the work is found not in conformity with the requirements of law or Ordinance, or the conditions set forth in the permit, the fees thereon shall be forfeited.

(b) The contractor or owner of the house or building shall apply for inspection and approval of the new interior electrical installation, repair, or alteration as soon as the work is on process, and as soon as conformity with the requirements is determined, the Building Official shall issue a certificate of completion.

No interior electrical installation, repair, alteration or concealed or enclosed electrical installation shall be done or used without prior inspection and approval of the City Engineer/Building Official.

In case of a condemned installation, if the owner of the building or user fails to repair or remove the condemned installation, the electrical wires, poles or fittings and other appliances and apparatus within ten (10) days after notice, the City Engineer/Building Official shall immediately disconnect the electric service.

Article Ten. - Mechanical Permit Fees

SECTION 144. IMPOSITION OF FEE

There shall be collected Mechanical Permit Fees for the installation of any machinery or mechanical equipment, enumerated hereunder.

(a) Mechanical Permit Fees

1. Refrigeration, Air Conditioning and Mechanical Ventilation:
a.) Refrigeration (cold storage) per ton or fraction thereof 44.00
b.) Ice Plants, per ton or fraction thereof 66.00
c.) Package and Centralized Air Conditioning Systems:
Up to 100 tons, per ton 88.00
Every ton or fraction thereof, above 100 tons 44.00
d.) Window type air conditioning, per unit 66.00
e.) Mechanical ventilation, per HP or fraction thereof of blowers or fan or metric equivalent 22.00

f.) Household or residential use: refrigerators, freezers, fans, blowers and window type air conditioning units are exempted from the above fees. In a series of AC/FEF systems located in one establishment, the total installed tons of refrigeration shall be used as the basis of computation for purpose of installation/inspection fees, and shall not be considered individually.

g.) For evaluation purpose, the required tonnage of refrigeration capacity shall be as follows:

For Ice Making:
(a) 3.5 HP per ton, for compressors up to 50 tons capacity
(b) 3.25 HP per ton, for compressors above 50 tons up to 200 tons capacity

(c) 3.10 HP per ton, for compressors above 200 tons capacity

For Air Conditioning:
(a) 1.25 HP per ton, for compressors of 1.2 tons up to 5 tons capacity
(b) 1.10 HP per ton, for compressors above 5 tons up to 50 tons capacity
(c) 1.00 HP per ton, for compressors above 50 tons capacity

For Commercial/Industrial Refrigeration without Ice Making:
(a) 1.5 HP per ton, for compressors of 1 ton up to 5 tons capacity
(b) 1.4 HP per ton, for compressors above 5 tons up to 50 tons capacity
(c) 1.3 HP per ton, for compressors above 50 tons capacity

h.) Escalators and moving walk (Per Unit):
1. Up to 50 lineal meters 22.00
2. Every lineal meter or fraction thereof in excess of 50 lineal meters 11.00

i.) Elevators (Per Unit):
1. Up to 1,000 kg. Capacity 4,400.00
2. Above 1,000 kg. Capacity 5,500.00
3. Freight elevators 5,500.00
4. Motor driven dumbwaiters 440.00
5. Construction elevators for materials 1,100.00
6. Car elevators 5,500.00

j.) Boilers (Per Unit):
1. Up to 10 HP 440.00
2. Above 10 HP up to 30 HP 660.00
3. Above 30 HP up to 50 HP 880.00
4. Above 50 HP up to 70 HP 1,100.00
5. Above 70 HP up to 80 HP 1,320.00
6. Above 80 HP up to 100 HP 1,540.00
7. Every HP or fraction thereof Above 100 HP 4.40

The above rating shall be computed on the basis of one (1) sq. m. of heating surface for one (1) boiler HP.

k.) Pressurized Water Heaters (except those used in single detached, duplex or multiple family dwellings), per unit - P 220.00

l.) Water pumps and sewerage pumps for building/structure used for commercial/industrial purposes, per unit per HP or fraction thereof - P 44.00

m.) Automatic fire extinguisher, per sprinkler head - P 2.20

n.) Stationary stand-by, internal combustion/engine generating sets, (per unit):
1. Up to 10 HP 330.00

2. Above 10 HP up to 30 HP 440.00
3. Above 30 HP up to 50 HP 550.00
4. Above 50 HP up to 70 HP 660.00
5. Above 70 HP up to 90 HP 770.00
6. Above 90 HP up to 100 HP 880.00
7. Every HP or fraction thereof above 100 HP 2.20

o.) Compressed air, vacuum, institutional gases,
per outlet - P 11.00

p.) Other internal combustion engines, including cranes,
forklifts, loaders, pumps, mixers, compressors and the like, not
registered with the LTC (Horsepower):
1. Up to 10 HP 220.00
2. Above 10 HP up to 30 HP 286.00
3. Above 30 HP up to 50 HP 352.00
4. Above 50 HP up to 70 HP 418.00

5. Above 70 HP up to 90 HP 484.00
6. Every HP or fraction thereof,
Above 90 HP 2.20

q.) Pressure vessels; per cu. m. or fraction
thereof - P 44.00

r.) Other machinery/equipment for commercial / industrial use
not elsewhere specified, per HP or fraction thereof - P 44.00

s.) Pneumatic tubes, conveyors, monorails for materials
handling, per lineal meter - P 11.00

t.) Processing fee for checking of plans - P 44.00

u.) Annual Mechanical Inspection Fees:
(a) Refrigeration and ice plant, (tonnage):
1. First 100 tons capacity 22.00
2. Above 100 tons up to 150 tons 17.60
3. Above 150 tons up to 300 tons 13.20
4. Above 300 tons up to 500 tons 8.80
5. Every ton or fraction thereof
Above 500 tons 4.40

Household or residential use of refrigerators, freezers, fans are exempt from annual inspection.

(b) Air conditioning system:
-Window type air conditioners, per unit 33.00
-Package or centralized air conditioning system
(tonnage):
1. First 100 tons, per ton 22.00
2. Above 100 tons up to 200 tons, per ton 17.60
3. Above 200 tons up to 300 tons, per ton 13.20
4. Above 300 tons up to 500 tons, per ton 8.80
5. Every ton or fraction thereof above 500 tons 6.60

Household or residential use of window type air conditioners are exempt from the annual inspection.

(c) Mechanical ventilations (per unit):
1. Up to 1 HP 11.00
2. Above 1 HP up to 5 HP 22.00
3. Above 5 HP up to 10 HP 44.00
4. Above 10 HP up to 20 HP 88.00
5. Above 20 HP up to 5 HP 22.00

(d) Escalators and moving walks (per unit)
110.00

(e) Elevators (per unit):
1. Passenger elevators:
First 5 landings 440.00
Each landing above the 5th 22.00
2. Freight elevators 330.00
3. Motor driven dumbwaiters 44.00
4. Construction elevators for materials 330.00
5. Car elevators 440.00

Additional floor stops/landing shall be inspected and charged in accordance with above rates.

(f) Boilers (Horsepower):
1. Up to 10 HP 330.00
2. Above 10 HP up to 30 HP 440.00
3. Above 30 HP up to 50 HP 550.00
4. Above 50 HP up to 70 HP 660.00
5. Above 70 HP up to 90 HP 770.00
6. Above 90 HP up to 100 HP 880.00
7. Every HP or fraction thereof in excess of 100 HP 4.40

Boiler rating shall be computed on the basis of one (1) sq. m. of heating surface for one (1) boiler HP.

(g) Pressurized water heaters (per unit):
110.00

Pressurized water heaters used in single detached, duplex or multiple family dwelling are exempted from inspection fees.

(h) Automatic fire extinguishers, per sprinkler head
2.20

(i) Water pumps and sewage pumps for buildings/structures for commercial / industrial purposes (per unit):
1. Up to 1 HP 11.00
2. Above 1 HP up to 3 HP 33.00
3. Above 3 HP up to 5 HP 66.00
4. Above 5 HP up to 10 HP 88.00
5. Above 10 HP up to 20 HP 110.00
6. Above 20 HP up to 30 HP 132.00
7. Above 30 HP up to 40 HP 154.00
8. Above 40 HP up to 50 HP 178.00
9. Above 50 HP up to 60 HP 198.00
10. Above 60 HP up to 70 HP 220.00
11. Above 70 HP up to 80 HP 242.00
12. Above 80 HP up to 90 HP 264.00
13. Every HP up or fraction thereof Above 90 HP 2.20

Water pumps and sewage pumps used in single detached or duplex family dwellings are exempted from inspection.

(j) Standby generating sets (per unit):
1. Up to 10 HP 22.00
2. Above 10 HP up to 30 HP 88.00
3. Above 30 HP up to 50 HP 132.00
4. Above 50 HP up to 70 HP 176.00
5. Above 70 HP up to 90 HP 220.00
6. Above 90 HP up to 100 HP 264.00
7. Every HP or fraction thereof Above 100 HP 2.20

(k) Other internal combustion engines, including cranes, forklifts, loaders, pumps, mixers, compressors and the like (per unit):
1. Up to 10 HP 88.00
2. Above 10 HP up to 30 HP 154.00
3. Above 30 HP up to 50 HP 220.00
4. Above 50 HP up to 70 HP 286.00
5. Above 70 HP up to 90 HP 352.00
6. Above 90 HP up to 100 HP 418.00
7. Every HP or fraction thereof Above 100 HP 2.20

(l) Other machinery or equipment for commercial/industrial use not elsewhere specified (per unit):
1. Up to 1⁄2 HP 6.60
2. Above 1⁄2 HP up to 1 HP 22.00
3. Above 1 HP up to 3 HP 44.00
4. Above 3 HP up to 5 HP 66.00
5. Above 5 HP up to 10 HP 88.00
6. Above 10 HP up to 20 HP 110.00
7. Above 20 HP up to 30 HP 132.00
8. Above 30 HP up to 40 HP 176.00
9. Above 40 HP up to 50 HP 220.00
10. Above 50 HP up to 60 HP 264.00
11. Above 60 HP up to 70 HP 308.00
12. Above 70 HP up to 80 HP 352.00
13. Above 80 HP up to 90 HP 396.00
14. Above 90 HP up to 100 HP 440.00
15. Every HP or fraction thereof Above 100 HP 2.20

(m) Pressure vessels, per cubic meter or fraction thereof - P 33.00

(n) Pneumatic tubes, conveyors, monorails for materials handling, per lineal meter of fraction thereof - P 2.20

(o) Testing/calibration of pressure gauge, per unit - P 22.00

(p) Gas meters:
Each gas meter tested, proved and sealed (Lights):
1. Up to 10 lights 13.20
2. Above 10 lights up to 50 lights 17.60
3. Above 50 lights up to 100 lights 26.40
4. Above 100 lights 44.00

(q) Every inspection of mechanical rides used in amusement centers or fairs, such as ferris wheels, merry go-rounds, roller coasters and the like, per unit - P 22.00

(r) Compressed air, institutional and/or industrial gases, per outlet - P 5.50

SECTION 145. ADMINISTRATIVE PROVISIONS

(a) Any machinery or mechanical equipment installations within the jurisdiction of the City shall secure a Mechanical Permit from the City Engineer prior to installation.

(b) A certificate of operation shall be issued for the continuous use of said machinery or mechanical equipment, after compliance with health and safety and mechanical regulation requirements.

(c) No business license shall be issued by the Mayor's Office to commercial, industrial, agro-industrial construction and institutional establishments without first registering at the Industrial Safety Division, City Engineer's Office.

(d) Every boiler, internal combustion engine, mechanical apparatus moved by any motive power in permanent installation, shall be placed on a solid foundation, the construction of which shall be in accordance with approved plans and specifications accompanying the application for Mechanical Permit for such boiler, internal combustion engine, or mechanical apparatus, subject to the direction and supervision of the City Engineer or his duly authorized representative.

Article Eleven. - Sign Permit Fee

SECTION 146. IMPOSITION OF FEE

Fees for the application of Sign Permits to be paid at the Office of the City Treasurer shall be as follows:

I. Display Surface

(a) Sign fee shall be collected per square meter of the display surface of billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, signboards and wall signs for such amount as follows:
a.1 Outdoor Video Screen P 150.00
a.2 Tri-wind Billboard 100.00
a.3 Neon 75.00
a.4 Illuminated 50.00
a.5 Painted-On 30.00
a.6 Others 15.00

(b) Posters (per Piece) 5.00

(c) Temporary Signs (per square meter) 5.00

(d) Other Advertising and/or Propaganda Materials (per square meter) 10.00

(e) Building Lines / Staking Line and Grade (fixed amount) 200.00

II. Structure
Erection of support for any signboard, billboard and the like shall be charged a fee as follows:
(a) Up to four (4) square meter of Signboard P 100.00
(b) In every square meter or fraction thereof 50.00

III. Renewal Fee
Renewal of Sign Permit shall include among others the corresponding payment for the display surface and support structure of the sign as determined in accordance with this Section.

IV. Other Fees
Sign Fees paid under this Article shall be without prejudice to an additional payment of Electrical Permit Fee for signs with electrical devices as required in accordance with the provisions of the National Building Code.

SECTION 147. EXEMPTION TO THE IMPOSITION OF FEE

Sign fees are not required for the following advertising and/or propaganda materials but in no case shall the same be exempted from taking a sign permit as thereof provided:

(a) Those displayed by government agencies and/or offices, either national or local.

(b) Those which are of charitable, religious in nature and for civic purposes; except when sponsored by advertisers/persons whose logo or name(s) appear on the sign displayed, which advertisers/persons are not exempt by law. However, they shall be subject to an administrative fee of ten pesos (P 10.00) per location where such signs/streamers are installed.

(c) Those displayed in the premises of the person displaying it, if the material does not exceed six (6) square meters in area except: (1) When it is a billboard, business sign, electrical sign, ground sign, projecting sign, roof sign, signboard and wall signs; or (2) When sponsored by advertisers/persons whose logo or name(s) appear on the sign displayed, said advertisers/persons are not exempt by law.

Provided, however, that this exemption shall not relieve the owner from responsibility in case of any accident arising out of that design, construction, installation, maintenance and removal of signs displayed or exhibited.

SECTION 148. ISSUANCE OF SIGN PERMITS

It shall be unlawful for any person, juridical or natural, to hang temporary signs, post posters or install billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, signboards and wall signs, or display similar advertising and propaganda materials, unless:

(a) An application for a sign permit is filed with the Office of the Local Building Official and approved by the City Mayor or his duly designated representative.

(b) The application is accompanied with location plan, structural design, written consent of the owner of the premises and such other pertinent data as may be required by the Local Building Official.

(c) Payment of sign fee is made with the Office of the City Treasurer in accordance with Section 146 of this Article.

(d) For billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, and wall signs, there must be compliance with the requirements and limitations imposed by this Article and other applicable statutes and/or Ordinances.

SECTION 149. EFFECTIVITY OF SIGN PERMIT

Sign permits shall be automatically revoked upon lapsed of the following periods, to be counted from the date of issuance of an approved sign permit:

(a) One (1) year for billboards, business signs, electrical signs, ground signs, projecting signs, roof signs, signboards and wall signs.

A sign permit issued under the provisions of this Article shall expire and become null and void if the work authorized therein is not commenced within a period of ninety (90) days from the date of the issuance of the permit, or if the work so authorized is suspended or abandoned at anytime after it has been commenced for a period of ninety (90) days. Provided that, no construction and/or display shall be allowed upon abandonment, non-commencement or suspension of work unless upon payment of the sign permit fee with a corresponding surcharge of twenty-five percent (25%) of the total fees.

(b) Two (2) months for posters.

(c) Two (2) months for temporary signs.

(d) Two (2) months for other advertising and/or propaganda materials.

SECTION 150. EXTENSION OF SIGN PERMITS

Extension of sign permits shall be granted upon filling of an application in accordance with Section 148 and payment of sign fee in accordance with Section 146, provided, that the application and payment for extension shall be done within the period sought to be extended.

In cases where the application for extension is done beyond the period sought to be extended, the applicant shall be imposed in addition to an extension sign permit fee, a surcharge equivalent to twenty-five percent (25%) of the amount due, for reason of delay.

Provided further, that all signs and sign structures must be in good and presentable condition, as may be determined by the Building Official, until such period sought to be extended.

SECTION 151. MARKING REQUIREMENTS

It shall be unlawful for any person who has been issued a permit to install, erect, construct, post, paste, hang or attach advertising and/or propaganda materials unless the same bear the following:

(a) The name or names of the structure owner.

(b) The permit number and its date of issuance.

(d) The duration of the display which shall not exceed the period stated in Section 149 of this Code.

Exemption. Marking is not required for advertising and/or propaganda materials displayed in the premises of the person displaying it, except, (1) When such material is a billboard, business sign, electrical sign, ground sign, projecting sign, roof sign, signboard and wall sign, or (2) When sponsored by advertisers/persons whose logo or name(s) appear in the sign displayed, said advertisers/persons are not exempt by law.

SECTION 152. RESTRICTED AREAS

It shall be unlawful for any person to install or display any advertising and/or propaganda materials in the following areas:

(a) Across public thoroughfares.
(b) On any electrical post along streets / islands.
(c) On parks and playgrounds.
(d) On church and school fences.
(e) On sidewalks and public waiting sheds.
(f) Traffic light posts.
(g) On bridges and bridge approaches (for streamers)
(h) On trees along main streets or thoroughfares.
(i) Pedestrian overpasses and flyovers,
(j) Waiting sheds.

Exemption. Except when propaganda materials are displayed by or under authority of a government agency, whether national or local, provided such materials are covered with a prior sign permit from the Office of the Local Building Official which shall be removed upon expiry date as indicated in the sign permit.

SECTION 153. MONITORING OFFICIAL

The Building Official has the authority to monitor and supervise the appropriateness of the location, site, design, materials and anchorage of signs and sign structures so as to ensure that all those displayed are installed, hanged and posted in accordance with the regulation provided in this Article.

SECTION 154. SIGNS AND SIGN STRUCTURES, IN GENERAL

All advertising signs, business signs, roof signs, ground signs, projecting signs, wall signs, temporary signs, streamers, posters and the like shall be maintained by the owner of the structure in a safe and presentable condition. Should a sign become, in the opinion of the Local Building Official, unsafe or an eyesore, the owner and/or advertiser shall, upon notice from the Local Building Official, immediately restore the sign to a safe and satisfactory condition, within fifteen (15) days from receipt of notice.

Such notice shall contain therein that non-compliance to the order within the period stipulated shall warrant the removal of the signs or sign structures.

SECTION 155. REMOVAL

The City Engineer or his duly authorized representatives shall remove, upon recommendation of the Building Official, the following at the expense of the displaying party:

(a) Those displayed without permit from the Local Building Official, provided that the displaying party shall be given a reasonable period of sixty (60) days from receipt of the notice to comply with the sign permit requirement provided hereof.

(b) Those displayed with a permit but without bearing the necessary permit marking requirement as provided in Section 152, provided that the

displaying party shall be given a reasonable period of sixty (60) days from receipt of the notice to comply with the marking permit requirement provided hereof.

(c) Those displayed beyond the expiry date as provided in Section 149, however, if the displaying party intends to renew such permit even beyond the period sought to be extended, the same shall be given a reasonable period of sixty (60) days from receipt of the notice to comply with the renewal requirement provided hereof without prejudice to the payment of surcharge of twenty-five percent (25%) of the total fees for such delay.

(d) Those displayed in public places and/or structures as stated in Section 152.

(e) Those billboards, business signs, electrical signs, ground signs, projecting signs, roof signs or wall signs which are installed or constructed in violation of this Article or other applicable Statutes and Ordinances.

SECTION 156. PENALTY

Any person, whether natural or juridical, found violating the provisions of this Article shall be penalized as follows:

(a) For the first offense, a fine of not less than One Thousand Five Hundred Pesos (P1,500.00) but not more than Three Thousand Pesos (P3,000.00), or an imprisonment of not less than seven (7) days but not more than one (1) month, or both fine and imprisonment at the discretion of the court.

(b) For the second or subsequent offense, a fine of not less than Three Thousand Pesos (P3,000.00) but not more than Five Thousand Pesos (P5,000.00), or an imprisonment of not less than one (1) month and one (1) day but not more than two (2) months, or both fine and imprisonment at the discretion of the court.

(c) In case the violation is in pursuance of the business of the violator, it shall be meted with a penalty of revocation of business permit upon the second or subsequent offenses.

(d) In case the violation has been committed by a juridical person, the person in-charge of management and who has knowledge thereof shall be held responsible.

Article Twelve. - Permit Fee for Zoning / Locational Clearance

SECTION 157. IMPOSITION OF FEE

There shall be collected a Mayor's Permit Fee for Zoning/Locational Clearance for all structures constructed within City of Davao in accordance with the prescribed HLURB rates:

(a) Application/Filing Fees:
1. Locational Clearance P 75.00
2. Motion for reconsideration 100.00
3. Petition/request for reclassification/variance 700.00
4. Filing Complaint 300.00

This excludes the cost of reclassification proceedings such as production/reproduction of maps and other documents, public hearings

The 2005 Revenue Code
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and publication which shall likewise be charged to the account of the
applicant/proponent.

(b) Zoning and Land Use Verification Fees:
1. Residential P 75.00

2. Commercial/Industrial 300.00
3. Social/Educational Institution 200.00
4. Ancillary (according to category of
principal building/structure)

(c) Processing Fee:
1. Residential P0.75/sq.m. of TFA
2. Commercial establishments including
apartments, mass housing, townhouses
constructed primarily for profit purposes P1.50/sq.m. of TFA
3. Industrial establishments
3. a heavy 2.25/sq.m. of TFA
3. b medium 1.50/sq.m. of TFA
3. c light 1.00/sq.m. of TFA
4. Institutional (Schools, hospitals, Etc.) P0.75/sq.m. of TFA
5. Memorial Parks/Cemeteries P0.75/sq.m. of TFA
6. Agro-industrial
6.a manufacturing P1.50/sq.m. of TFA
6.b non-manufacturing P0.75/sq.m. of TFA
7. Telecommunications/towers P0.75sq.m of TFA
8. Billboards P0.75/sq.m./ of TFA
9. Yards utilized for industrial purpose P1.00/sq.m. of TLA
10. Yards utilized for commercial purposes P0.75/sq.m. of TLA
11. Reclamation projects P1.50/sq.m. of TLA
12. All types of renovation 50% of prescribed rates
13. Renewal of temporary use of permit - same as under schedule of (b).

The Zoning Administrator is hereby authorized to increase the rates herein prescribed by not more than fifty percent (50%) if he so sees its propriety with the consent or prior approval of the Sangguniang Panlungsod. However, such increase or decrease shall not be done oftener than once a year.

Except for government-owned or controlled corporation, all government projects, whether national or local, are exempted from the payment of the prescribed fees; provided, however, that the locational clearance must be secured prior to the finalization of the plans and the issuance of the corresponding building permit.

Owners or operators of subdivision projects shall pay the following fees to the City Treasurer based on the order of payment issued by the City Planning

and Development Coordinator or by his duly authorized representative in accordance with the following schedules:

RESIDENTIAL SUBDIVISIONS:

I. Simple Subdivision Project P 150/ha.

II. Subdivision approval P 400/ha.

III. Complex subdivision project under P.D. 957

a. Preliminary Approval and Locational Clearance (PALC) plus P10.00 Legal Research fee

1. First 10 hectares P 150/ha

2. For every hectare or fraction thereof in excess of 10 hectares P 50/ha.

b. Final Development Plan (DP)

1. Density of 20 lots has. and below P 800/ha or fraction thereof with inspection fee of P 300/ha or a fraction thereof

2. Density of 21-65 lots/300/ha with inspection fee of P 400/ha.

3. Density of 66 lots/ha and above With inspection fee of P 500 ha. P 400 ha.

4. With housing component floor area in sq.m.- P 1.00/sq.m.

c. Alteration Plan Same as Final Development Permit without inspection fee Alteration of Simple Subdivision Application (SSA) Less than one hectare P 400.00

IV. Complex Subdivision Project under P.D. 200 BP 220

a. Preliminary Approval Locational Clearance (PALC)

1. First ten hectares P 150.00

2. For every hectare or fraction thereof in excess of ten hectares P 50/ha.

b. Final Development Permit

1. For every hectare or fraction thereof P 400/ha.

2. With inspection fee of or a fraction thereof P 300/ha.

3. With housing component floor area in sq. m. P 1.50/sq.m.

c. Building Permit Floor area in sq. m. P 3.00/sq.m.

d. Alteration of Plan Same as the Final Development Permit without inspection fee.

COMMERCIAL SUBDIVISION

I. Preliminary Approval and Locational Clearance

a) First 2 hectares P 150.00

b) For every hectare and fraction thereof in excess of 2 hectares P 30/ha.

II. Final Development Permit P 2.00/sq.m. of total land area With Inspection Fee P 800/ha. Or a fraction thereof

III. Alteration of Plan Same as the Final Development Permit without inspection fee

SECTION 158. EXEMPTIONS

Except for government-owned or controlled corporation, all government projects, whether national or local, are exempt from the payment of the prescribed fees; provided, however, that the locational clearance must be secured prior to the finalization of the plans and the issuance of the corresponding building permit.

SECTION 159. TIME OF PAYMENT

The fees in this Article shall be paid by the applicant or his representative to the City Treasurer prior to the issuance of locational clearance.

SECTION 160. ADMINISTRATIVE PROVISION

The City Mayor shall administer the provision of this Article and other existing ordinances, executive orders, laws relating to and governing zoning / locational clearance.

Article Thirteen. - Permit Fee for Temporary Use of Roads, Streets, Sidewalk, Alleys, Patios, Plazas and Playgrounds

SECTION 161. IMPOSITION OF FEE

Any person that shall temporarily use and/or occupy a street, sidewalk, or alley or portion thereof in this city in connection with their construction works and other purposes, shall first secure a permit from the Mayor and pay a fee in the following schedule:

1) For construction P 3.00/sq.m. per week or a fraction thereof

2) Others P 1.50/sq.m. per day

For wake and other charitable, religious and educational purposes, use and/or occupancy of not more than ten (10) days is exempted from the payment of permit fee provided a corresponding permit is secured prior to such use and/or occupancy.

SECTION 162. TIME OF PAYMENT

The fee shall be paid to the City Treasurer upon application of the permit with the City Mayor.

SECTION 163. ADMINISTRATIVE PROVISIONS

The period of occupancy and/or use of the street, sidewalk, or alley or portion thereof shall commence from the time the construction permit is issued and shall terminate only upon the issuance of the certificate of building occupancy. The City Engineer shall report to the City Treasurer the area occupied for purposes of collecting the fee.

Article Fourteen. - Permit Fee for the Storage of Flammable and Combustible Materials

SECTION 164. IMPOSITION OF FEE

Every person or entity who operates and maintains storage facilities and depots, used for flammable, combustible or explosive substance within the City shall secure a yearly permit or Certificate of Inspection as to compliance with standard safety requirements and regulations from the City Health Office and the City Engineer's Office in coordination with the City Fire Marshall and shall pay the following Regulatory Fees on business of hazardous and dangerous life and limb, to be computed on the bases of the total volume or weight, as the case maybe on the substances which are stored in or used by the facilities or depots during the preceding calendar year.

A. Storage of Flammable, Combustible, or Explosive Substance:

1. Flammable liquids with flash points at 20 degrees Fahrenheit or below such as gasoline and other carbon basophile, naptha, benzon, alldin and acetone:

Over 25 to 50 gals	P 22.00
Over 50 to 100 gals	44.00
Over 100 to 500 gals	88.00
Over 500 to 1,000 gals	132.00
Over 1,000 to 1,500 gals	198.00
Over 1,500 to 2,000 gals	264.00
Over 2,000 to 2,500 gals	330.00
Over 2,500 to 3,000 gals	396.00

Over 3,000 to 3,500 gals	495.00
Over 3,500 to 4,000 gals	605.00
Over 4,000 to 8,000 gals	715.00
Over 8,000 to 10,000 gals	825.00
Over 10,000 to 50,000 gals	1,320.00
Over 50,000 to 200,000 gals	2,200.00
Over 200,000 to 500,000 gals	3,300.00
Over 500,000 to 1,500,000 gals	4,400.00
Over 1,500,000 gals	5,500.00
In excess of 2,000,000 gals	6,600.00
Plus P 1.00/100 gals	6,600.00

2. Flammable liquids with flash point at above 20 degrees Fahrenheit and below 100 degrees Fahrenheit such as alcohol, amyl acetate, toluol, ethyl acetate:

1 to 25 gals	P 27.50
Over 25 to 50 gals	44.00
Over 50 to 100 gals	66.00
Over 100 to 500 gals	82.50
Over 500 to 1,000 gals	165.00
Over 1,000 to 5,000 gals	330.00
Over 5,000 to 25,000 gals	550.00
Over 25,000 to 50,000 gals	1,100.00
Over 50,000 gals	1,650.00

B. Combustible Liquids

1. Combustible liquids with flash point at 100 degrees Fahrenheit to 200 degrees Fahrenheit such as turpentine, thinner, prepared paints, diesel oil, fuel oil, kerosene, varnish, cleansing solvent, polishing liquids:

1 to 25 gals	P 22.00
Over 25 to 100 gals	44.00
Over 100 to 500 gals	82.50
Over 500 to 2,000 gals	165.00
Over 2,000 to 10,000 gals	550.00
Over 10,000 to 50,000 gals	1,100.00
Over 50,000 to 100,000 gals	1,650.00
Over 100,000 gals	2,750.00

2. Combustible liquids with flash point over 200 degrees Fahrenheit when subject to spontaneous ignition or is artificially heated or higher than its flash point as petroleum oil, crude oils and others:

1 to 25 gals	P 22.00
Over 25 to 50 gals	33.00
Over 50 to 100 gals	55.00
Over 100 to 500 gals	142.00
Over 500 to 1,000 gals	242.00
Over 1,000 to 20,000 gals	330.00
Over 20,000 gals	550.00

C. Acetylene, hydrogen, coal, gas, and other flammables in gaseous form, including liquefied petroleum gas and other compressed gases:

1 to 25 gals	P 11.00
Over 25 to 100 gals	22.00
Over 100 to 500 gals	66.00
Over 500 to 2,000 gals	132.00
Over 2,000 to 10,000 gals	330.00
Over 10,000 to 50,000 gals	660.00
Over 50,000 to 100,000 gals	990.00
Over 100,000 gals	1,650.00

D. Combustible Solids

1. Calcium Carbide
- 1 to 20 kgs. P 44.00
- Over 20 kgs. but not more than 50 kgs. P 55.00
- Over 50 kgs. but not more than 500 kgs. P 72.50
- Over 500 kgs. but not more than 1,000 kgs. P 110.00
- Over 1,000 kgs. but not more than 5,000 kgs. P 165.00
- Over 5,000 kgs. but not more than 10,000 kgs. P 220.00
- Over 10,000 kgs. but nor more than 50,000 kgs. P 330.00
- Over 50,000 kgs. P 440.00

2. Pyrolyxin
- 1 to 50 kgs. P 44.00
- Over 50 kgs. to 200 kgs. P 82.50
- Over 200 kgs. to 500 kgs. P 110.00
- Over 500 kgs. to 1,000 kgs. P 220.00
- Over 1,000 kgs. to 3,000 kgs. P 440.00
- Over 3,000 kgs. to 10,000 kgs. P 660.00
- Over 10,000 kgs. P 1,375.00

3. Matches
- 1 to 100 kgs. P 44.00
- Over 100 to 500 kgs. P 165.00
- Over 500 to 1,000 kgs. P 275.00
- Over 1,000 to 5,000 kgs. P 550.00
- Over 5,000 kgs. P 1,100.00

4. Nitrate, phosphorous, bromine sodium, picric acid & other hazardous explosive, corrosive oxidizing & lachrymatory properties:
- 1 to 25 kgs. P 44.00
- Over 25 to 100 kgs. P 55.00
- Over 100 to 500 kgs. P 110.00
- Over 500 to 1,000 kgs. P 220.00
- Over 1,000 to 5,000 kgs. P 330.00
- Over 5,000 kgs. P 440.00

5. Shredded combustible materials such as wood shavings (kusot) waste (estopa), sisal, oakum and other similar combustible shaving and fine materials:
- 1 to 100 cu. ft. P 44.00
- Over 100 to 500 cu. ft. P 82.50
- Over 500 to 1,000 cu. ft. P 110.00
- Over 1,000 to 2,500 cu. ft. P 220.00
- Over 2,500 cu. ft. P 330.00

6. Tar resin, waxes, copra, rubber, coal, bituminous coal & similar combustible materials:
- 1 to 100 kgs. P 44.00
- Over 100 to 500 kgs. P 82.50

Over 500 to 1,000 kgs.
Over 1,000 to 3,000 kgs.
Over 3,000 to 5,000 kgs.
Over 5,000 to 10,000 kgs.
Over 10,000 kgs.

7. Cinematograph films. (As amended by Ord. No. 008, Series of 1998)

With total aggregate weight of not more than 500 kgs. P 220.00
With total aggregate weight of more than 500 kls but not more than 2,000 kls. 440.00
With total aggregate weight of more than 2,000 kls. 660.00

SECTION 165. TIME OF PAYMENT

The fees imposed in this Article shall be paid to the City Treasurer upon application for his permit with the Mayor to store the aforementioned substances.

SECTION 166. ADMINISTRATIVE PROVISIONS

(a) No person shall keep or store at his place of business any of the following flammable, combustible or explosive substances without securing a permit therefore. Gasoline or naphtha not exceeding the quantity of one hundred (100) gallons, kept in and used by launches or motor vehicles shall be exempt from the Permit fee herein required.

(b) The Mayor shall promulgate regulations for the proper storing of said substances and shall designate the proper official and shall supervise therefore.

Article Fifteen. - Regulation and Fees for the Conveyance or Transportation of any Explosive or Hazardous Inflammable Liquids within the limits of the City of Davao

SECTION 167. PERMIT

It shall be unlawful for any person, firm or corporation to convey or transport any explosive or hazardous inflammable liquid within the City of Davao in any truck, tank, trailer, vessels, boat or craft or any motor vehicle without first having obtained a permit from the City Mayor for said conveyance, upon recommendation by the Chief of Local Fire Service.

SECTION 168. HAZARDOUS INFLAMMABLE LIQUID

Shall be considered to include those liquids with points below one hundred (100) degrees Fahrenheit such as gasoline, oil, kerosene and other similar materials.

SECTION 169. IMPOSITION OF FEES

For every permit granted under the provisions of this Title, the following fees shall be paid by the manufacturer, distributors, the dealers and the gasoline oil depot:

(a) Cargo trucks a payload capacity of 20-50 gallons or equivalent P 500.00
(b) Over 50 gallon drums or equivalent 750.00

© Tank trucks, tank trailer and semi-tank trailers, having capacity of:
6,000 liters or less 500.00
over 6,000 liters 750.00

(d) Self-propelled or non-self propelled package 500.00

(e) Self-propelled or non-propelled bulk/craft 750.00

Provided that no fuel for consumption, conveyance and storage tank deposited on the conveyance up to fifty (50) gallons, shall be permitted without first securing permit or paying the above fees. Provided, further, that no person shall be allowed to store, display or sell any hazardous inflammable liquid, except those that were granted permit by the City Mayor.

Provided, finally, that the government of the Republic of the Philippines and/or any of its political subdivisions, the United States Army and Navy, United States Embassy and members of its staff, diplomatic and consular representatives and officers of foreign powers are hereby exempted from the imposition of the fees mentioned therein.

Article Sixteen. - Fee on Ambulant and Itinerant Amusement Operators

SECTION 170. IMPOSITION OF FEE

There is hereby imposed a special permit fee on ambulant and itinerant amusement operators, during fiestas and fairs at the following rates, subject further to the payment of amusement tax:

Circus, carnivals, or the like per day P 200.00 for the first 5 days 50.00 per day thereafter

Merry-Go-Round, roller coaster, ferries wheel, swing, shooting gallery and other similar contrivances per day P 100.00 for the first 5 days 20.00 per day thereafter

Sports contest/exhibitions per day P 100.00

SECTION 171. TIME OF PAYMENT

The fee herein imposed shall be payable before engaging in such activity.

Article Seventeen. - Permit Fee on Circus and Other Parades

SECTION 172. IMPOSITION OF FEE

There shall be collected a Mayor's Permit Fee of Two Hundred Pesos (P 200.00) per day on every circus and other parades using banners, floats or musical instruments carried on in this City.

SECTION 173. TIME AND MANNER OF PAYMENT

The fee imposed herein shall be due and payable to the City Treasurer upon application for a permit to the City Mayor at least five (5) days before the scheduled date of the circus or parade and on such activity shall be held.

SECTION 174. EXEMPTION

Civic and military parades as well as religious processes shall not be required to pay the permit fee imposed in this Article.

SECTION 175. ADMINISTRATIVE PROVISIONS

(a) Any person who shall hold a parade within this city shall first obtain from the City Mayor before undertaking the activity. For this purpose, a written application in a prescribed form shall indicate the name, address of the applicant, the description of the activity, the place or places where the same will be conducted and such other pertinent information as may be required.

(b) The Station Commander of the Philippine National Police shall promulgate the necessary rules and regulations to maintain an orderly and peaceful conduct of the activities mentioned in this Article. He shall also define the boundary within which such activities may be lawfully conducted.

Article Eighteen. - Fee for Sealing and Licensing of Weights and Measures

SECTION 176. IMPLEMENTING AGENCY

The City Treasurer shall strictly enforce the provisions of the Regulation of Practices Relative to Weights and Measures, as provided in Chapter II of the Consumer Act, Republic Act No. 7394.

SECTION 177. SEALING AND TESTING OF INSTRUMENTS OF WEIGHTS AND MEASURES

All instruments for determining weights and measures in all consumer and consumer related transactions or be for personal use shall be tested, calibrated and sealed every three (3) months by the official sealer who shall be the City Treasurer or his duly authorized representative upon payment of fees required under this Article: Provided, That all instruments of weights and measures shall continuously be inspected for compliance with the provisions of this Article.

SECTION 178. IMPOSITION OF FEES

Every person before using instruments of weights and measures within the City shall first have them sealed and licensed every three (3) months and pay therefore to the City Treasurer the following fees excluding sticker or seal which shall be issued at cost, viz:

Amount of Fee

(a) For sealing linear metric measures:
Not over one (1) meter P 10.00
Measure over one (1) meter 20.00

(b) For sealing metric measures of capacity:
Not over ten (10) liters 40.00
Over ten (10) liters 80.00

(c) For sealing metric instruments of weights:
With capacity of not more than 30 kg. 80.00
With capacity of more than 30 kg.
but not more than 300 kg. 120.00
With capacity of more than 300 kg.
but not more than 3,000 kg. 160.00
With capacity of more than 3,000 kg. 200.00

(d) For sealing apothecary balances of precision
30 kgs. or less 20.00
Over 30 kgs but not more than 300 kgs. 50.00
Over 300 kgs. but not more than 3,000 kgs. 70.00
Over 3,000 kgs. 100.00

(e) For sealing of gasoline/diesel pumps
Per pump 100.00
Per pump (oil dispenser) 50.00

(f) For sealing of every tanker compartment
of gasoline/diesel and other petroleum products per compartment 50.00

(g) For each and every re-testing and re-sealing of weights and measures instruments including gasoline pumps outside the office upon request of the owner or operator, an additional service charge of One Hundred Pesos (P 100.00) for each instrument shall be collected.

SECTION 179. PAYMENT OF FEES AND SURCHARGE

The fees herein imposed shall be paid and collected by the City Treasurer when the weights or measures instruments are sealed, before their use and thereafter, on or before the anniversary date thereof.

The official receipt serving as license to use the instrument is valid for three (3) months from the date of sealing unless such instrument becomes defective before the expiration period. Failure to have the instrument re-tested and the corresponding fees therefore paid within the prescribed period shall subject the owner or user to a surcharge of five hundred percent (500%) of the prescribed fees which shall no longer be subject to interest.

SECTION 180. PLACE OF PAYMENT

The fees herein levied shall be paid in the city where persons are conducting their business. A peddler or itinerant vendor using only one (1) instrument of weight or measure shall pay the fee in the city where he maintains his residence.

SECTION 181. EXEMPTIONS

(a) All instruments for weights and measures used in government work or maintained for public use by any instrumentality of the government shall be tested and sealed free.

(b) Dealers of weights and measures instruments intended for sale.

SECTION 182. ADMINISTRATIVE PROVISIONS

(a) The official receipt for the fee issued for the sealing of a weight or measure shall serve as a license to use such instrument for three (3) months from the date of sealing, unless deterioration or damage renders the weight or measure inaccurate within that period. The license shall expire on the day and the month of the year following its original issuance. Such license shall be preserved by the owner and together with the weight or measure covered by the license, shall be exhibited on demand by the City Treasurer or his deputies.

(b) The City Treasurer is hereby required to keep full sets of secondary standards, which shall be compared with the fundamental standards in the Department of Science and Technology annually. When found to be sufficiently accurate, the secondary standards shall be distinguished by label, tag or seal and shall be accompanied by a certificate showing the amount of its variation from the fundamental standards. If the variation is of sufficient magnitude to impair the utility

of instrument, it shall be destroyed at the Department of Science and Technology.

(c) The City Treasurer or his deputies shall conduct periodic physical inspection and test weights and measures instruments within the locality.

(d) Instruments of weights and measures found to be defective and such defect is beyond repair shall be confiscated in favor of the government and shall be destroyed by the City Treasurer in the presence of the City Auditor or his representative.

SECTION 183. FRAUDULENT PRACTICES RELATIVE TO WEIGHTS AND MEASURES

The following acts related to weights and measures are prohibited:

(a) For any person other than the official sealer or his duly authorized representative to place an official tag, seal, sticker, mark, stamp, brand or other characteristic sign used to indicate that such instrument of weight and measure has officially been tested, calibrated, sealed or inspected;

(b) For any person to imitate any seal, sticker, mark stamp, brand, tag or other characteristic design used to indicate that such instrument of weight or measure has been officially tested, calibrated, sealed or inspected;

(c) For any person other than the official sealer or his duly authorized representative to alter in any way the certificate or receipt given by the official sealer or his duly authorized representative as an acknowledgement that the instrument for determining weight or measure has been fully rested, calibrated, sealed or inspected;

(d) For any person to make or knowingly sell or use any false or counterfeit seal, sticker, brand, stamp, tag, certificate or license or any dye for printing or making the same or any characteristic sign used to indicate that such instrument of weight or measure has been officially tested, calibrated, sealed or inspected;

(e) For any person other than the official sealer or his duly authorized representative to alter the written or printed figures, letters or symbols on any official seal, sticker, receipt, stamp, tag, certificate or license used or issued;

(f) For any person to use or reuse any restored, altered, expired, damaged stamp, tag certificate or license for the purpose of making it appear that the instrument of weight or measure has been tested, calibrated, sealed or inspected;

(g) For any person engaged in the buying and selling of consumer products or of furnishing services the value of which is estimated by weight or measure to possess, use or maintain with intention to use any scale, balance,

(h) For any person to fraudulently alter any scale, balance, weight or measure after it is officially sealed;

(i) For any person to knowingly use any false scale, balance, weight or measure, whether sealed or not;

(j) For any person to fraudulently give short weight or measure in the making of a scale;

(k) For any person, assuming to determine truly the weight or measure of any article brought or sold by weight or measure, to fraudulently misrepresent the weight or measure thereof; or

(l) For any person to procure the commission of any such offense above mentioned by another instruments officially sealed at some previous time which have remained unaltered and accurate and the seal or tag officially affixed therein remains intact and in the same position and condition in which it was placed by the official sealer or his duly authorized representative, if presented for sealing, be sealed promptly on demand by the official sealer or his duly authorized representative without penalty except a surcharge equal to two (2) times the regular fee fixed by law for the sealing of an instrument of its class, this surcharge to be collected and accounted for by the City Treasurer in the same manner as the regular fees for sealing such instruments.

SECTION 184. PENALTIES

(a) Any person who shall violate the provisions of paragraphs (a) to (f) and paragraph (l) of Section 183, upon conviction, be subject to a fine of not less than One Thousand Pesos (P1,000.00) but not more than Five Thousand Pesos (P5,000.00) or by imprisonment of not more than six (6) months, or both, upon the discretion of the court.

(b) Any person who shall violate the provisions of paragraph (g) of Section 183, the following penalties shall be imposed, in addition to the sealing registration fee imposed under this Article:

A. FIRST OFFENSE:

1. With Business Permit:
- when correct but without seal P 300.00 plus payment for sticker and sealing
- when incorrect P 500.00 plus payment for sticker and sealing

2. Without Business Permit:
- correct or incorrect confiscation of weighing scale and further prosecution before the court.

B. SECOND OFFENSE:

1) with permit revocation and cancellation of business permit

(c) The owner-possessor or user of instrument of weights and measure enumerated in paragraph (h) to (k) of Section 183 shall, upon conviction, be subject to a fine of not less than Three Hundred Pesos (P300.00) or imprisonment not exceeding one (1) year, or both, upon the discretion of the court.

Article Nineteen. - Registration and Transfer Fees on Large Cattle

SECTION 185. IMPOSITION OF FEE

The owner of a large cattle is hereby required to register said cattle with the City Treasurer for which a certificate of ownership shall be issued to the owner upon payment of a registration fee as follows:

Amount of Fee

(a) For Certificate of Ownership P 100.00

(b) For Certificate of Transfer of Ownership 200.00

(c) For Registration of Private Brand 300.00

The transfer fee shall be collected only once if the ownership of large cattle is transferred more than once in a day.

SECTION 186. TIME AND MANNER OF PAYMENT

The registration fee shall be paid to the City Treasurer upon registration or transfer of ownership of the large cattle.

SECTION 187. ADMINISTRATIVE PROVISIONS

(a) Large cattle shall be registered with the City Treasurer upon reaching the age of two (2) years.

(b) The ownership of large cattle or its sale or transfer of ownership to another person shall be registered with the City Treasurer. All branded and counter-branded large cattle presented to the City Treasurer shall be registered in a book showing among others, the name and residence of the owner, the consideration or purchase price of the animal in cases of sale or transfer, and the class, color, sex, brands and other identification marks of the cattle. These data shall also be stated in the certificate of ownership issued to the owner of the large cattle.

(c) The transfer of the large cattle, regardless of its age, shall be entered in the registry book setting forth, among others, the names and the residence of the owners and the purchaser; the consideration or purchase price of the animal for sale or transfer, class, sex, brands and other identifying marks of the animals; and a reference by number to the original certificate of ownership with the name of the city issued to it. No entries of transfer shall be made or certificate of transfer shall be issued by the City Treasurer except upon the

SECTION 188. APPLICABILITY CLAUSE

The pertinent provisions of the Revised Administrative Code and other applicable laws, ordinances and rules and regulations shall govern all other matters relating to the registration of large cattle.

Article Twenty. - Permit Fee for Excavation

SECTION 189. IMPOSITION OF FEE

There shall be imposed the following fees on every person who shall make or cause to be made any excavation on public or private streets within this city.

(1) Processing Fee:
(a) Poles and house connections P 60.00
(b) All other excavations 100.00

(2) Excavation permit:
(a) For 50 lineal meter or less 300.00
(b) Over 50 lineal meter 20.00 l.m.
(c) Concrete curbs, for every lineal meter or a fraction thereof 600.00
(d) For installation of wooden/concrete poles 50.00 /pole

(3) Deposit for restoration and maintenance work/sq. m. or fraction thereof:

(a) concrete paved streets
a-1 9" thick 1,000.00
a-2 8" thick 900.00
a-3 7" thick 800.00
a-4 6" thick 700.00
a-5 5" thick 600.00

(b) asphalt-paved streets 400.00

(c) macadam-surfaced streets 150.00

(d) concrete sidewalk 600.00

Restoration works and other consequential responsibilities or obligations over excavations after the completion of the underground works shall be done by the contractor/implementing agency within one (1) month thereafter. For individual connection, restoration shall be done by the City Engineer.

A cash deposit and/or performance bond for restoration cost of the project undertaken by the implementing agency such as (PLDT, DCWD, etc.) based on the schedule of restoration rates of the City Government shall be made refundable one month after the expiration of one (1) year period.

For restoration works to be undertaken by contract, the contractor shall post a guarantee bond equivalent to the computed restoration cost. A certified photo copy of the guarantee bond posted to the implementing agency is accepted.

For individual connections a cash payment for restoration works shall be made to the City Government.

SECTION 190. FILING OF APPLICATION

Applications for permit to undertake excavations shall be filed with the City Engineer. The permit shall be released within five (5) working days after submission of all requirements.

SECTION 191. CONDITIONS IN THE PERMIT

The permit to undertake excavations shall contain, among others, such conditions, as maybe necessary to ensure public safety and convenience. All such excavations shall be in accordance with the excavation and installation plans approved by the City Engineer.

SECTION 192. EXERCISE OF SUPERVISION

All excavation works shall be under the supervision of the City Engineer to ensure compliance with the installation plans and other conditions in the permit.

SECTION 193. EXCAVATION AFFECTING ADJOINING PROPERTIES:

(1) Temporary Support of Adjoining Properties - the person causing any excavation to be made shall provide such sheet piling and bracing as maybe necessary to prevent materials or structures of adjoining property from caving in before permanent support shall have been provided for the sides of an excavation.

(2) Permanent Support of Adjoining Property - whenever provisions are made for the permanent support of the sides of an excavation, the person causing such excavation to be made shall construct an appropriate retaining wall which shall be carried to a height sufficient to retain the soil of the adjoining area.

(3) Entrance to Adjoining Premises - for the purpose of providing temporary support to adjoining premises, the person causing an excavation to be made shall get the consent of the owner of the adjoining premises and construct the temporary support. However, if such consent and entrance are not granted, the owner of adjoining premises shall be responsible for providing necessary support as the case may be, to his premises at his own expense, and for that purpose, he shall be given authority to enter the premises where the excavation is to be made.

SECTION 194. EXCAVATION AFFECTING ADJOINING STRUCTURES:

(1) Excavation more than four (4) Feet Deep - whenever an excavation is carried to the depth of more than four (4) feet long below the curb, the person causing the excavation to be made at all times, if granted the consent of the owner of the adjoining structure to enter, at his own expense, preserve and protect from damage all existing structures, the safety of which may be affected by that part of the excavation which extends more than four (4) ft. below the curb line. He shall support such structure by proper function. If the owner's consent to make and provide the necessary foundations, and when necessary for the purpose, such owner shall be given authority to enter the premises where such excavation is to be made.

(2) Excavation Four (4) Feet or Less in Depth - the person causing the excavation shall preserve the safety of the structures which may be affected by the excavation and protect them from injury and support them by proper foundation, (except as otherwise provided in excavations more than four (4) feet

deep; and when necessary for that purpose the owners of the structures shall be given the authority to enter the premises where such excavation is to be made.

SECTION 195. APPROPRIATE GUARDS AND MARKERS:

(1) The excavations shall be provided with appropriate markers and safety to traveling vehicles and pedestrians. Such markers and safety guards shall carry the identity of the person or agency undertaking the excavation.

(2) In the event of death, injury and/or damages caused by the non-completion of such works and/or failure of the one undertaking work to adopt the required precautionary measures for the protection of the general public or violation of any of the terms and conditions of the permit, the permittee or excavator shall assume fully all liabilities for such death, injury or damages arising therefrom. For the purpose, the excavator/permittee shall purchase insurance coverage to answer for third party liability.

SECTION 196. PROHIBITION

All excavation passing through canals and insertion pipes are strictly prohibited.

SECTION 197. PRIVATE ROADS, SIDEWALKS AND PASSAGEWAYS

The City Engineer or his authorized representative shall have the authority to inspect all diggings and excavations being undertaken on all private roads, passageways and sidewalks and to require that restoration of the excavated area meets the standard specifications prescribed by the city.

SECTION 198. TIME AND MANNER OF PAYMENT

The fees imposed herein shall be paid to the City Treasurer by every person who shall make any excavation or cause any excavation to be made upon application for Mayor's Permit, but in all cases, prior to the excavation.

SECTION 199. ADMINISTRATIVE PROVISIONS

(a) No person shall undertake or cause to undertake any digging or excavation, of any part or portion of the city streets of Davao City unless a permit shall have been first secured from the Office of the City Mayor specifying the duration of the excavation.

(b) Should there be an increase in the cost of labor and/or materials, including the increase in cost of operation and maintenance of equipment, upon the recommendation of the City Engineer and subsequent approval of the City Mayor, a corresponding increase shall be adjusted in the restoration cost listed herein but not to exceed fifty percent (50%) of the increase in the cost of items and not more often than once a year.

Article Twenty-One. - Permit Fee on Film-Making

SECTION 200. IMPOSITION OF FEE

There shall be collected the following permit fee from any person who shall go on location filming within the territorial jurisdiction of this City.
Rate of Fee Per Filming
or Until its Completion

(a) Commercial Movies P 2,000.00

(b) Commercial Advertisements 2,000.00
(c) Documentary Film 1,000.00
(d) Video Coverage 1,000.00

SECTION 201. TIME OF PAYMENT

The fee imposed herein shall be paid to the City Treasurer upon application for the Mayor's Permit.

SECTION 202. EXEMPTION

Filming activities for educational and religious purposes, and the like, for as long as it is not for commercial purposes shall be exempted to pay the permit fee imposed in this Article.

Article Twenty-Two. - Permit Fee for Agricultural Machinery and Other Heavy Equipment

SECTION 203. IMPOSITION OF FEES

There shall be collected an annual permit fee at the following rates for each agricultural machinery or heavy equipment from operators of said machinery, renting out said equipment in this City.

Rate of Fee Per Annum

a. Hand tractors P 300.00
b. Light Tractors 500.00
c. Heavy Tractors 1,000.00
d. Bulldozer 2,000.00
e. Forklift 2,000.00
f. Heavy Graders 2,000.00
g. Light Graders 1,500.00
h. Mechanized Threshers 500.00
i. Manual Threshers 200.00
j. Cargo Truck 1,000.00
k. Dump Truck 1,500.00
l. Road Rollers 1,000.00
m. Pay loader 1,500.00
n. Prime movers/Flatbeds 2,000.00
o. Backhoe 2,000.00
p. Rock crusher 2,000.00
q. Batching Plant 2,000.00
r. Transit/Mixer Truck 2,000.00
s. Crane 2,000.00
t. Other agricultural machinery or heavy equipment not enumerated above 1,000.00

Resident owners of heavy equipment are exempted from the imposition considering that they are covered by Article 10, Section 69, Paragraph (e).

SECTION 204. TIME AND MANNER OF PAYMENT

The fee imposed herein shall be payable prior to the rental of the equipment upon application for a Mayor's permit.

SECTION 205. ADMINISTRATIVE PROVISIONS

The City Treasurer shall keep a registry of all heavy equipment and agricultural machinery which shall include the make and brand of the heavy equipment and agricultural machinery and name and address of the owner.

Article Twenty-Three. - Permit Fees on Tricycle Operation

SECTION 206. IMPOSITION OF FEES

There shall be collected an annual fee in the amount of Two Hundred Pesos (P 200.00) for the operation of tricycle-for-hire.

Other fees on tricycle operations:
1. Filing fee
a. For the first five (5) units P 300.00
b. For each additional unit 25.00
2. Fare adjustment fee for fare increase 200.00
3. Filing fee for amendment of TOP 150.00

SECTION 207. FRANCHISE AND OTHER FEES

The following fees shall be imposed and collected upon the filing of the application with the City Government of Davao through the Office of the City Treasurer, to wit:

(1) Annual Franchise Fee or Supervision Fee. To be collected once a year on or before the anniversary date of the TOP from all holders of TOP.
(2) Filing Fee. To be collected upon application for an TOP based on the number of units.
(3) Fare Adjustment Fee for Fare Increase. To accrue upon approval of fare increase and to be collected with the annual franchise fee.
(4) Filing Fee for Amendment of TOP. To be collected upon application.
(5) Confirmation Fee. To be collected from all applicants which will answer for documentation and/or postage expenses.

A. REQUIREMENTS FOR NEW TRICYCLE OPERATOR'S PERMIT

1) 5 copies Verified Application;
2) 3 copies Proof of Filipino Citizenship (any of the following: Birth Certificate or Voter's Affidavit, Voter's ID or Land Title for natural persons, SEC Certificate, Articles of Incorporation, Certificate of filing of By-Laws
3) 3 copies Certificate of registration; Official Receipt for payment of registration or Proforma Invoice;
4) 3 copies Sketched Location of garage;

5.) 3 copies Income Tax Return together with Statement of Assets and Liabilities and Bank Deposit or Land Title, if motor vehicle is encumbered;

6.) 1 copy Picture of the unit (front view only).

B. REQUIREMENTS FOR EXTENSION OF TRICYCLE OPERATOR'S PERMIT (TOP)

1) Same as in "A" Numbers 1 to 5, with additional requirements:

2) 3 copies Certificate of Public Convenience Motorcycles- For-Hire (MCH) permit or Provisional Authority (PA) to operate an MCH; Service Decisions or Computerized Certificate, whichever is applicable, previously issued by the Land Transportation and Regulatory Board or the TOP issued by the City as the case may be;

3) 3 copies Proof of payment of quarterly percentage taxes for the preceding year;

4) 3 copies Clearance Security System;

5) 3 copies Clearance from the Department of Labor and Employment.

C. PETITION FOR DROPPING AND SUBSTITUTION

1) 5 copies Verified Petition;

2) 3 copies Certificate of Public Convenience, MCH-PA, Decision Computerized Certificate or TOP, whichever is applicable;

3) 3 copies Certificate of Registration and official receipt for payment of registration;

4) 3 copies Receipt of Returned Plate;

5) 3 copies Official Receipt for Payment of Annual; Franchise Fee or Supervision Fee;

6) 3 copies Certificate of Registration and Official Receipt for payment of registration or Proforma Invoice of unit(s) in substitution.

D. PETITION TO REGISTER UNIT IN LIEU OF THOSE AUTHORIZED

1) 5 copies Verified Petition;
2) 3 copies OR/CR or proforma Invoice of the unit/s to be registered;
3) 3 copies CPC, MCH, PA, Decision or computerized Certificate or TOP, whichever is applicable.

E. PETITION FOR AMENDMENT OF LINE

1) 5 copies Verified Petition
2) 3 copies CPC, MCH, PA, Decision or Computerized Certificate or TOP, whichever is applicable;
3) 3 copies OR/CR;
4) 3 copies Proof of Payment of quarterly percentage taxes for preceding year;
5) 3 copies Proof of payment of Annual Franchise Fee or Supervision Fees.

F. PETITION FOR INCREASE OF EQUIPMENT OR UNITS

1) 5 copies Verified Petition;
2) 3 copies CPC, MCH, PA, Decision or Computerized Certificate of TOP, whichever is applicable;

3) 3 copies Certificate of Registration & Official Receipt of existing units;
4) 3 copies Certificate of Registration & Official Receipt or Proforma Invoice of the Additional Units;
5) 3 copies Official Receipt of Payment for Annual Franchise Fees or supervision fees;
6) 3 copies Proof of payment of quarterly percentage taxes for the preceding year.

G. PETITION FOR APPROVAL OF SALE AND TRANSFER OF CPC, MCH, PA, DECISION OR COMPUTERIZED CERTIFICATE OR TOP, WHICHEVER IS APPLICABLE WITH EQUIPMENT.

1) 5 copies Joint Verified petition of Vendor/Grantee and Vendeepetitioner;

2) 3 copies Deed of Sale and Transfer

3) 3 copies CPC, MCH, PA, Decision, Computerized Certificate or TOP, whichever is applicable;

4) 3 copies Certificate of Registration or Official Receipt

5) 3 copies Proof of Payment of Quarterly Percentage Taxes for preceding year;

6) 3 copies Proof of Payment of Annual Franchise Fee or Supervision Fee;

7) 3 copies SSS Clearance;

8) 3 copies Department of Labor and Employment Clearance.

H. EXTENSION OF TIME TO REGISTER

1) 5 copies Verified petition;

2) 3 copies Certificate of Registration or Official Receipt;

3) 3 copies CPC, MCH, PA, Decision, Computerized; Certificate or MTOP, whichever is applicable.

SECTION 208. ADMINISTRATIVE PROVISIONS

(a) Prospective operators of tricycles should first secure a Tricycle Operator's Permit (TOP) from the Sangguniang Panlungsod.

(b) The Sangguniang Panlungsod of this City shall:

1. Issue, amend, revise, renew, suspend, or cancel TOP and prescribe the appropriate terms and conditions therefore; determine, fix, prescribe or periodically adjust fares or rates for the service provided in a zone after public hearing; prescribe and regulate zones of service in coordination with the barangay; fix, impose and collect, and periodically review and adjust but not oftener than once every three (3) years, reasonable fees and other related charges in the regulation of tricycles-forhire; and establish and prescribe the conditions and qualifications of service.

2. Only Filipino citizens and partnership or corporation with sixty percent (60%) Filipino equity shall be granted the TOP. No TOP shall be granted by the city unless the applicant is in possession of units with valid registration papers form the Land Transportation Office (LTO).

3. The grantee of the TOP shall carry common carriers insurance sufficient to answer for any liability it may incur to passengers and third parties in case of accidents.

4. Operators of tricycles-for-hire shall employ drivers duly licensed by LTO for tricycles-for-hire.

5. Operators who intend to stop service completely, or suspend service for more than one (1) month shall report in writing such termination or suspension to the Sangguniang Panlungsod;

6. Tricycle operators are prohibited to operate on national highways utilized by 4-wheel vehicles greater than four (4) tons and where normal speed exceeds forty (40) KPH. The Sangguniang Panlungsod may provide exceptions if there is no alternative route.

7. Tricycles-for-hire shall be allowed to operate like a taxi service, i.e., service is rendered upon demand and without a fixed route within a zone.

(c) The Sangguniang Panlungsod may impose a common color for tricycles for hire in the same zone. Each tricycle unit shall be assigned and bear an identification number, aside from its LTO license plate number.

It shall establish a fare structure that will provide the operator a reasonable return or profit, and still be affordable to the general public. The fare structure may either be flat (single fare regardless of distance) as a minimum amount plus a basic rate per kilometer.

Operators of tricycles-for-hire are required to post in the conspicuous part of the tricycle the schedule of fares.

(d) The zones must be within the boundaries of this city. The existing zones which covers the territorial unit not only of the city but other adjoining municipalities or cities as well shall be maintained provided the operators serving the said zone secure the TOP.

(e) The City Treasurer shall keep a registry of all tricycle operators, which shall include among others, the name and address of the operator and the number and brand of tricycles owned and operated by said operator.

Article Twenty-Four. - Impounding of Motor Vehicles and Authorizing the Collection of Impounding Fees

SECTION 209. PUBLIC POUND

A public pound or motor vehicle is hereby authorized to be maintained and established under the supervision of the City Administrator in such location as may be designated by the City Mayor.

There shall be created the positions of a Pound Keeper and Assistant Pound Keeper and such number of employees and/or laborers as may be necessary for the proper maintenance and administration of the public pound.

SECTION 210. DUTIES OF PNP AND CITY POUND KEEPER

The Davao PNP shall tow or impound all motor vehicles abandoned or parked under any of the circumstances enumerated and defined in Section 211 of this Article. Upon being advised by the PNP, it shall be the duty of the Pound Keeper to receive all motor vehicles found abandoned or improperly parked under any of the circumstances enumerated and defined in Section 211.

Within twenty-four (24) hours after the receipt of an impounded motor vehicle, the Pound keeper shall notify the person in whose name said vehicle is registered in the Land Transportation Commission, if known, of the fact that said motor vehicle has been impounded.

He shall keep a complete record of each impounded motor vehicle, engine and chassis number and such other identifying description of said motor vehicle as he may deem necessary, furnishing the owner of the vehicle of such data and the manner and mode of disposal. He shall also keep a record of the amount collected on each motor vehicle in case of redemption of sale as provided for in this Article.

SECTION 211. A MOTOR VEHICLE CONSIDERED TO BE ABANDONED OR IMPROPERLY PARKED

For the purpose of this Article, a motor vehicle shall be considered abandoned or improperly parked if not being under the care of responsible person, and it is found in any of the following conditions, to wit:

(a) A motor vehicle abandoned or parked in such manner as to block, obstruct or interfere with the free movement of vehicular or pedestrian traffic.

(b) A motor vehicle abandoned in the national highway in such a manner that a part of the motor vehicle is parked in the cemented or asphalted portion of the road.

(c) A motor vehicle parked for repair and/or assembly work in any public street or place by motor vehicle repair shop and/or any assembly plant shall be immediately be liable for impounding under this Article; and

(d) A motor vehicle parked or left on a public street or place for eight (8) hours for any reason not specified in the foregoing paragraphs.

(e) A motor vehicle parked on left on a public place in violation of traffic rules and regulations.

SECTION 212. RATE OF FEES

For the towing of each impound motor vehicle to the public pound, the following fees shall be collected:

(a) For each truck of over two (2) tons capacity P 1,000.00

(b) For each truck of two (2) tons or less capacity 750.00

(c) For each automobile and other vehicles of over two (2) tons capacity 500.00

(d) For each automobile and other vehicles of two (2) tons or less capacity 350.00

(f) An additional fee of Twenty Five Pesos (P25.00) per kilometer shall be collected outside the City Poblacion.

In addition to the foregoing fees, there shall be charged and collected the following fees for the up keeping and/or maintenance of said impound motor vehicles while in public pound;

(a) For each truck of over two (2) tons capacity P 500.00/day or fraction thereof

(b) For each truck of two (2) tons or less capacity 350.00/day or fraction thereof

(c) For each automobile and other vehicles of over two (2) tons capacity 250.00/day or fraction thereof

(d) For each automobile and other vehicles of two (2) tons or less capacity 150.00/day or fraction thereof

A motor vehicle so impounded shall be held for a maximum period of three months from the date of its impoundment in accordance with this Article and the provisions of existing laws pertinent thereto.

SECTION 213. ADVERTISEMENT OF IMPOUNDED VEHICLE

Within forty-eight (48) hours after receipt of any motor vehicles in the public pound, the Pound Keeper, upon the approval of the City Mayor, shall advertise or cause to be advertised once a week for two consecutive weeks in one daily local newspaper of general circulation in the City, a NOTICE in the following form:

MOTOR VEHICLE POUND NOTICE

Impounded in the Public Pound is the following described motor vehicle: (Here state the description of said motor vehicle and its registered owner, if known). Unless redeemed, said motor vehicle will be sold at public auction for cash to the highest bidder, said sale to be held at the Public Pound at o'clock on the day of , 20 .

Pound Keeper

The date mentioned in said notice shall be at least three (3) months from the date the motor vehicle was received for impounding. If said motor vehicle is not redeemed before said date, an authorized representative of the City Treasurer shall proceed to sell the same in accordance with said notice, after a proper appraisal shall have been made by the City Engineer and the City Treasurer or their duly authorized representatives.

The owner and/or any authorized person redeeming the impounded vehicle shall pay the required fees and reimburse all necessary and incidental expenses relative thereto.

SECTION 214. DISPOSITION OF THE PROCEEDS OF IMPOUNDED VEHICLE. AFTER THE AUCTION SALE OF THE IMPOUNDED MOTOR VEHICLE THE POUND KEEPER SHALL RENDER TO THE CITY TREASURER A BILL OF THE AUTHORIZED FEES AND ACTUAL EXPENDITURES THEREOF TO BE CREDITED TO THE PROPER ACCOUNT. THE REMAINING BALANCE OF THE AMOUNT RECEIVED BY VIRTUE OF SAID SALE, DEDUCTING THEREFROM THE AMOUNT OF THE AUCTION EXPENSES AND ALL OTHER EXPENSES INCIDENTAL TO THE SALE, IF ANY, SHALL BE TURNED OVER TO THE OWNER OF SUCH MOTOR VEHICLE. IF SAID AMOUNT IS NOT CLAIMED WITHIN THIRTY (30) DAYS FROM THE DATE OF SALE, THEREAFTER, SAID BALANCE SHALL ACCRUE TO THE GENERAL FUND OF THE CITY

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SECTION 215. PROHIBITION

No Pound Keeper or employee in the public pound shall be allowed to participate, directly or indirectly, as a purchaser in the public auction sale of an impounded motor vehicle. Such sale to the Pound Keeper or other employees of the public pound shall be null and void.

SECTION 216. DUE CARE IN THE SAFEKEEPING OF THE IMPOUNDED MOTOR VEHICLE

It shall be the duty of the PNP Officer or the Pound keeper or other employees of the pound to exercise due care in towing or in the safekeeping of the impounded motor vehicles, as the case may be, so as to prevent or avoid any damage to the same.

Article Twenty-Five.- Fee on Occupation or Calling Not Requiring Government Examination

SECTION 217. IMPOSITION OF FEE

The following workers or employees whether working on temporary or permanent basis, shall secure the individual Mayor's Permit and shall be collected annual fees at the rates prescribed herewith:

(a) Employees or workers in generally considered offensive and dangerous business establishment at the rate of One Hundred Pesos (P100.00) per annum, such as but not limited to the following:

(1) Employees or workers in industrial or manufacturing establishment such as: Aerated water and soft drink factories; air rifle and pellets manufacturing; battery charging shops, blacksmith; breweries; candy and confectionery factories; canning factories; coffee cocoa and tea factories; cosmetics and toiletries factories; cigar and cigarette factories; construction and / or repair shops of motor vehicles; carpentry shop; drug manufacturing; distillers, edible oil or lard factories; electric bulbs or neon lights factories; electric plant, electronics manufacturing; oxidizing plants; food and flour mills; fish curing and drying shops; footwear factories, foundry shops; furniture manufacturing; garments manufacturing, general building and other construction jobs during the period of construction; glass and glassware factories; handicraft manufacturing; hollow block and tile factories; ice plants; milk, ice cream and other allied products factories; metal closure manufacturing; iron steel plants; leather and leatherette factories; machine shops, match factories, paints and allied products manufacturing; plastic products factories, perfume factories; plating establishment; pharmaceutical laboratories, repair shops of whatever kind and nature; rope and twine factories; sash factories; smelting plants; tanneries; textile and knitting mills; upholstery shops; vulcanizing shops and welding shops.

(2) Employees and workers in commercial establishments cinematography film storage; cold storage's or refrigerating plants; delivery and messengerial services; elevator and escalator services; funeral parlors; janitorial services; junk shop; hardwares; pest control services; printing and publishing houses; service station; slaughterhouses; textile stores; warehouses; and parking lots.

(3) Employees and workers on other industrial and manufacturing firms or commercial establishments who are normally exposed to excessive heat, light, noise, cold and other environmental factors that endanger their physical and health well-being.

(b) Employees and workers in commercial establishments who generally cater or attend to the daily needs of the general public such as but not limited to the following: employees and workers in drugstores; department stores; groceries supermarkets; beauty saloons; tailor shops; dress shop; bank teller; receptionist, receiving clerk in paying outlets of public utilities corporation, except transportation companies; and other commercial establishment whose employees and workers attend to the daily needs of the inquiring paying public at Fifty Pesos (P 50.00) per annum.

c) Employees and workers in food or eatery establishments at the rate of Fifty Pesos (P 50.00) per annum, such as but not limited to the following:

(1) Employees and workers in canteen, careneria, catering services, bakeries, ice cream or ice milk factories, refreshment parlor, restaurants, sari-sari stores, and soda fountains;

(2) Stallholders, employees and workers in public markets;

(3) Peddlers of cooked or uncooked foods;

(4) All other food peddlers, including peddlers of seasonal merchandise.

(d) Employees or workers in night and day establishments at an annual fee of Fifty Pesos (P 50.00), such as but not limited to the following: Workers or employees in bars; boxing stadium; bowling alleys; billiards and pool halls; cinema houses; cabarets and dance halls; cocktail lounges; circuses; carnivals and the like; day clubs and night clubs; golf

clubs; massage clinics, sauna baths or similar establishment; hotels; motels; horse racing clubs; peiota courts; polo clubs; private detective or watchman security agencies; supper clubs and all other business establishment whose business activities are performed and consumed during night time.

In cases of night and day clubs, nightclubs, day clubs, cocktail lounges, bars, cabarets, sauna bathhouses and other similar places of amusements, they shall under no circumstances allow hostesses, waitress, waiters, entertainers, or hospitality girl below 18 years of age to work as such. For those who shall secure the Permit on their 18th birth year, they shall present their respective baptismal or birth certificate duly issued by the local civil registrar concerned.

(e) All other employees and persons whose occupation or calling subject to periodic inspection, surveillance and/or regulation by the City Mayor, like animal trainer, auctioneer, barber, bartender, beautician, bondsman, bookkeeper, butcher, blacksmith, carpenter, carver, chambermaid, cook, criminologist, electrician, electronic technician, club/floor manager, forensic electronic expert, fortune teller, hair stylist, handwriting expert, hospital attendant, lifeguard, magician, make-up artist, manicurist, masonry worker, masseur attendant, mechanic, certified "hilot" painter, musician, pianist, photographer (itinerant), professional boxer, private ballistic expert, rig driver (cochero), dancer, stage performer, salesgirl, sculptor, waiter or waitress, welder and all other employees and persons who exercise their profession or calling within the jurisdiction limits of the City aside from those already specifically mentioned in this Section at an annual fee of One Hundred Pesos (P100.00) per annum;.

(f) Employees or workers engaged in occupation or calling such as but not limited to opticians, junior mechanical, marine surveyors, insurance agents, sub-agents, actuaries and insurance adjusters; commercial aviators, professional appraisers, or connoisseurs of tobacco and other domestic or foreign products; real estate brokers and appraisers, stock brokers, licensed ship masters, chief motor engineers, and professional actors and actresses shall pay annual fee of One Hundred Pesos (P100.00) per annum.

The Community Tax Certificate of the current year, Police Clearance or NBI Clearance, the City Court Clearance or City Prosecutor's Clearance and other requirements as may be required by law, shall be presented by the above-mentioned persons upon application of a Mayor's Permit.

SECTION 218. TIME AND MANNER OF PAYMENT

The fees prescribed in this Article shall be paid to the City Treasurer upon filing of the application for the first time and annually thereafter within the first twenty (20) days of January of each year. The permit fee is payable for every separate or distinct occupation or calling engaged in. Employer shall advance the fees to the city for its employees.

Every individual, association, partnership and corporation or any business establishment within the territorial jurisdiction of Davao City shall prepare and submit a certified list of employees under oath, under their employ to the City Treasurer on or before the last day of March of every year. Such list of employees shall include the following information:

1. Name and address of employee
2. Occupation and/or calling
3. Amount of tax paid
4. Date and number of official receipt/permit number
5. Year Covered
6. Place of payment

Any delay in compliance of this provision shall be subjected to a penalty One Hundred Pesos (P 100.00) for every month of delay or any fraction thereof.

SECTION 219. SURCHARGES FOR LATE PAYMENT

Failure to pay the fee prescribed in this Article within the time prescribed shall subject a taxpayer to a surcharge of twenty-five percent (25%) of the original amount of the fee due; Such surcharge shall be paid at the same time and in the same manner as the tax due.

Newly hired workers and/or employees shall secure their individual Mayor's Permit from the moment they are actually accepted by the management of any business or industrial establishment to start working.

The individual Mayor's Permit so secured shall be renewed during the respective birth month of the permittee next following calendar.

SECTION 220. ADMINISTRATIVE PROVISIONS

(a) The City Treasurer shall keep a record of persons engaged in occupation and/or calling not requiring government examination and the

corresponding payment of fees required under personal data for reference purpose.

(b) Persons engaged in the above-mentioned occupation or calling with valid Mayor's Permit shall be required to surrender such permit and the corresponding Official Receipt for the payment of fees to the City Treasurer and to the City Mayor respectively for cancellation upon retirement or cessation of the practice of the said occupation or calling.

Article Twenty-Six. - Permit Fee for the Conduct of Group Activities

SECTION 221. IMPOSITION OF FEE

Every person who shall conduct, or hold any program, or activity involving the grouping of people within the jurisdiction of this city shall obtain a Mayor's permit therefore for every occasion of not more than twenty-four (24) hours and pay

the City Treasurer the corresponding fee in the following schedule:

(a) Conference, meetings, rallies and demonstration in outdoor, in parks, plazas, roads/streets P 150.00

(b) Dances 150.00

(c) Coronation and ball 150.00

(d) Promotional sales 300.00

(g) Other Group Activities 150.00

SECTION 222. TIME OF PAYMENT

The fee imposed in this article shall be paid to the City Treasurer upon filing of application for permit with the City Mayor.

SECTION 223. EXEMPTION

Programs or activities conducted by educational, charitable, religious and governmental institutions, NGOs duly registered/ accredited with the City Government free to the public shall be exempted from the payment of the fee herein imposed, provided that the corresponding Mayor's Permit shall be secured accordingly. Programs or activities requiring admission fees for attendance shall be subject to the fees herein imposed even if they are conducted by exempt entities.

SECTION 224. ADMINISTRATIVE PROVISION

A copy of every permit issued by the City Mayor shall be furnished to the Chief of Police or Station Commander of the Philippine National Police (PNP) of the city who shall assign police officers to the venue of the program or activity to help maintain peace and order.

Article Twenty-Seven. - Permit Fee for Firing Range

SECTION 225. IMPOSITION OF FEE

Every person or entity who shall establish, operate and maintain gun clubs within Davao City shall first secure a

permit from the City Mayor through the Business Permit and Licensing Division and pay the corresponding annual fees:

1 - 5 firing range P 1,500.00
6 - 10 firing range P 3,000.00
more than 10 firing range P 5,000.00

SECTION 226. ADMINISTRATIVE PROVISIONS

(a) The pre-requisite of law relative to the establishment, operations and maintenance of firing ranges should be strictly complied with before a permit shall be issued.

(b) Upon the order of the City Mayor, his duly authorized representative, shall have the authority to inspect firing ranges to ensure that the standard verifications relative to Public Safety are strictly complied with.

SECTION 227. TIME OF PAYMENT

The annual fees imposed shall be paid to the City Treasurer and renewable on or before the prescribed period.

Article Twenty-Eight. - Registration Fee for Ownership of Chainsaw

SECTION 228. IMPOSITION OF FEE

There shall be collected an annual chainsaw registration fee payable to the City Treasurer the amount of Three Hundred Pesos (P 300.00).

SECTION 229. ADMINISTRATIVE PROVISIONS

(a) No person shall be allowed to possess any chain saw in Davao City unless it has been registered with the City Environment and Natural Resources Office (CENRO) and pay the annual registration fee.

(b) Possession of chainsaws use illegally without registration shall be subject to confiscation by the City Mayor, City Environment and Natural Resources Officer and the City Treasurer, and may only be returned upon payment of fine of Five Thousand Pesos (P 5,000.00) in addition to annual registration fee.

Article Twenty-Nine. - Air Gun Permit Fee

SECTION 230. IMPOSITION OF FEE

No person shall be allowed to carry an air gun within the Davao City unless the owner register the same with the Office of the City Mayor and pays to the City Treasurer an annual fee of One Hundred Pesos (P 100.00) within one month from the date of acquisition.

SECTION 231. ADMINISTRATIVE PROVISION

Possession and/or use of non-registered air guns shall be subject to confiscation and may only be returned upon payment of the fine of Three Hundred Pesos (P 300.00) in addition to the annual registration fee.

The 2005 Revenue Code
of the City of Davao

Article Thirty. - Ambulant Vending Fee.

SECTION 232. IMPOSITION OF FEE

There shall be collected the following ambulant vending fees for the privilege of selling in designated vending areas within the City of Davao:

Mayor's Vendor Permit per year .....P 100.00
Space occupied per sq. m. per day 4.00
Wheeled store per sq. m. of space occupied per day 10.00

Provided however, that special permit be secured by seasonal vendors during special occasion such as Araw ng Dabaw, Kadayawan Festival, City Fiesta, and other celebration or similar occasion with the following fees:

Special Permit Fee .....P 200.00
Space occupied/sq. m. day 25.00

SECTION 233. TIME AND MANNER OF PAYMENT

The City Treasurer is hereby authorized to assign or designate a collector for this purpose. The vending fee shall be collected daily.

SECTION 234. ADMINISTRATIVE PROVISIONS

(a) Ambulant vending shall be allowed only in designated places to be determined by the Sangguniang Panlungsod.

(b) Only those vendors permitted by the City Mayor might sell their wares in designated vending areas. For the purpose of the issuance of annual vendor's permit, priority shall be given to those who are residents of Davao City and whose income is on the poverty line.

(c) No vendor shall be allowed to permanently occupy any portion of the vending sites or to put any permanent structures; the occupancy of a portion of the vending site shall be on first come first serve basis each day and no person shall be allowed to use as his quarters the space authorized for him to vend.

Article Thirty-One. - Persistent Sidewalk Vendors or Persistent Vendors Fees

SECTION 235. IMPOSITION OF FEES

The following fees shall be paid for using sidewalk, street sides, lands of public dominion, government building and other properties owned by the government, for business purposes; to include individuals engaged in rental of huts, cottages within the shoreline of Davao City without the foreshore lease being approved by the Department of Environment and Natural Resources (DENR).

Space Occupied/sq. m. .....P 2.00/sq.m./day
Wheeled caterers 20.00/day

SECTION 236. ADMINISTRATIVE PROVISION

(a) Collection of fees under this Article does not legalize stay or use by any Persistent Sidewalk Vendors or Persistent Vendors in places above-mentioned but only for purposes of regulating them while engaged in the business.

(b) Provided, that each vendor shall be responsible for the cleanliness of his area and dispose of his waste in designated garbage dump area and that they can be demolished, removed or driven out at anytime when interest of the public so require.

The 2013 Revenue Code of the City of Davao

CHAPTER 4. SERVICE FEES

Article One. - Secretary's Fees

SECTION 237. IMPOSITION OF FEES

There shall be collected the following fees from every person requesting for copies of official records and documents from the offices of this city.

A. SECRETARY'S FEE Amount of Fee

(a) For every 100 words or fraction thereof typewritten (not including the certificate and notation)
P 25.00

(b) Where the copy to be furnished is in printed form. In whole or in part, for each page (every additional page at Ten Pesos (P 10.00) per page)
P 25.00

(c) For each certificate of correctness (with seal of Office) written on the copy or attached thereto (with seal of the office or for every additional page at Ten Pesos {P 10.00})
P 25.00

(d) For certifying the official act of the City Judge or other judicial certificate with seal
P 25.00

(e) For certified copies of any paper, records, decrees, judgment or entry of which any person is entitled to demand and receive a copy (in connection with judicial proceedings) for each page. (with seal of the office or for every additional page of Ten Pesos (P10.00))
P 15.00

(f) Clearances, certifications issued by other offices not herein specified (plus Ten Pesos {P 10.00} for every additional page)
P 25.00

(g) Photocopy or any other copy produced by copying machine per page
P 25.00

SECTION 238. EXEMPTION

The fees imposed in this Article shall not be collected for copies furnished to other offices and branches of the government for official business, except for those copies required by the Court at the request of the litigant, in which case, charges shall be in accordance with the above-mentioned schedule.

SECTION 239. TIME AND MANNER OF PAYMENT

The fees shall be paid to the City Treasurer at the time the request, written or otherwise, for the issuance of a copy of any city record or document is made.

Article Two. - Local Civil Registry Fees

SECTION 240. IMPOSITION OF FEES

There shall be collected for services rendered by the City Civil Registrar of this city the following fees:

Marriage Application Fee	P	250.00
Marriage License Fee	P	150.00
Marriage Certificate Registration Fee	P	200.00
Marriage Contract	P	25.00
Legal Separation	P	1,500.00
Annulment	P	2,500.00
Legitimation	P	200.00
Adoption	Foreign	1,000.00
Adoption	Local	500.00
Voluntary emancipation of minors	P	200.00
Court decision, recognizing or acknowledging natural children or impugning or denying such recognition	P	200.00
Judicial determination of paternity affiliation	P	200.00
Court decision on order on the custody of minors and guardianship	P	200.00
Change of name	P	200.00
Aliases	P	300.00
Naturalization	P	3,000.00
Election of Filipino citizenship	P	2,000.00
Repatriation or voluntary emancipation of citizenship	P	500.00

Registration of Birth
(a) after thirty days (30) from date of birth but not to exceed six (6) months | FREE |
(b) after six (6) but not more than one (1) year | FREE |
(c) after one (1) year | FREE |

Registration of Marriage
(a) late registration within six (6) months after the ceremony | 50.00 |
(b) after six (6) months but not more than one (1) year | 100.00 |
(c) after one (1) year | 200.00 |

Registration of Death
(a) late registration of death thirty (30) days after date of death | 50.00 |
(b) for each death certificates changed or corrected | 50.00 |
(c) after six (6) months but not more than one (1) year | 100.00 |
(d) after one (1) year | 200.00 |
Court decision or order to correct or change entry in any certificate of birth, marriage or death | 200.00 |
Filling supplemental birth certificate | 50.00 |
Registration of Other Legal Documents | 100.00 |

Filing fee under Republic Act No.9048
(a) Correction of clerical error (CCE) | 1,000.00 |
(b) Change of first name (CFN) | 3,000.00 |
Service Fee for Migrant Petitions under RA 9048
(a) Correction of Clerical Error (CCE) | 500.00 |

(b) Change of First Name (CFN)
Registration of affidavit to use surname of father pursuant to RA 9255

(a) for Local residents
(b) with foreign affiliations
Photocopy of document on file with the office of civil registry
Certified photocopy or or true copy of civil registry record for each page
Permit for cadaver disposition
Burial Permit fee
For exhumation of cadaver
For removal of cadaver
For cremation
Entrance from other cities/municipalities
Transfer to other cities, municipalities
Cemetery fees
Transfer of remains, bones, and ashes to other countries and vice versa

SECTION 241. EXEMPTIONS

The fee imposed in this Article shall not be collected in the following cases:
(a) Issuance of certified copies of documents for official use at the request of a competent court or other government agency, except those copies required by courts at the request of litigants, in which case the fee should be collected.
(b) Issuance of birth certificates of children reaching school age when such certificates are required for admission to the primary grades in a public school.
(c) Burial permit of a pauper, per recommendation of the City Mayor.
(d) In case where the applicant is an indigent and upon showing of a certification issued by the City Social Services and Development Office (CSSDO) that application is such;

SECTION 242. TIME OF PAYMENT

The fees shall be paid to the City Treasurer before registration or issuance of the permit, license or certified copy of local registry records or documents.

SECTION 243. ADMINISTRATIVE PROVISION

A marriage license shall not be issued unless a certification is issued by the Family Planning Coordinating Council or by the officiating priest or minister that the applicants have undergone lectures on family planning or precana seminar.

Article Three.- Fees for Library Services.

SECTION 244. IMPOSITION OF FEES

There shall be collected for services rendered by the Davao City Library Information Center, the following fees:

a. Library Fee (library card for in-house users) - P 30.00/annum

b. Additional Fees:
1. Borrower's Card (books for take out) - 30.00/annum
Overdue Book - 1.00/day

2. Machine Copy - (short) - P 1.00/page
(long) - 1.50/page

Internet Services:

1. Hard Copy - black (short & long) - 3.00/page
- colored (short & long) - 8.00/page

2. Internet Fee - 10.00/hour

SECTION 245. TIME AND MANNER OF PAYMENT

The annual fees shall be paid directly to the City Treasurer, while charges less than Twenty-Five Pesos (P25.00) shall be collected by the authorized personnel from the City Library which shall be remitted to the City Treasurer's Office everyday before the close of office hours for proper accounting and documentation.

Article Four. Fees for Services Catered by the City Planning & Development Coordinator's Office

SECTION 246. IMPOSITION OF FEES

There shall be collected for services rendered by the Office of the City Planning Development Coordinator, this City, the following fees:

a. Service Fee for issuance of certified true copies of documents/file from CPDO - P 25.00

b. Data/Information Sheets (RSD)

-For every bond-size copy of indicators, data sheets, profiles printed in black and white (every additional page at P 10.00 per page) - 25.00

-Socio Economic Indicators (average of 40 pages) - 300.00

-Flyers - 10.00

c. Map Production (GIS):

-For every short bond-size map printer in color (every additional square inch at P 0.60 per sq. in.) - 50.00

-For every short bond-size map printer in black & white (every additional sq. inch at P 0.30 per sq. inch) - 20.00

SECTION 247. TIME AND MANNER OF PAYMENT

The fees shall be paid to the City Treasurer at the time of the request, written or otherwise, for the issuance of a copy of any city record or document is made.

The 2003 Revenue Code of the City of Davao

Article Five. Police Clearance Fee

SECTION 248. IMPOSITION OF FEE

There shall be paid for each police clearance certificate obtained from the Station Commander of the Philippine National Police of this city the following fees:

Amount of Fee
1. For employment, scholarship, study grant, and other purposes not hereunder specified	P 25.00
2. For change of name	200.00
3. For application for Filipino citizenship	2,000.00
4. For passport or visa application	200.00
5. For firearms permit application	400.00
6. For PLEB clearance	100.00
7. For any alterations made to motor vehicle as to its body, painting, conversion from one make to another and the like	100.00

SECTION 249. TIME OF PAYMENT

The service fee provided under this Article shall be paid to the City Treasurer upon application for police clearance certificate.

Article Six. Sanitary Inspection Fee

SECTION 250. IMPOSITION OF FEE

There shall be collected the following annual fees from each business establishment in this city or house for rent, for the purpose of supervision and enforcement of existing rules and regulations and safety of the public in accordance with the following schedule:

A. Operational Permit fee shall be imposed on newly constructed buildings, houses as follows:
1. Residential | P 150.00 |
2. Commercial | 300.00 |
3. Industrial | 400.00 |

B. Financial institution such as banks, pawnshops, insurance companies, finance and other investment companies, dealers in securities and exchange dealers:
a) Main/branch office | 200.00 |
b) Every branch | 50.00 |

C. Gasoline Service/Filling stations | 150.00 |

D. Private Hospitals | 750.00 |

E. Medical, Dental and animal clinics | 225.00 |

The 2003 Revenue Code of the City of Davao

F. Sanitary permit for cleaning of septic vaults, and other permits required in connection with public health sanitation
75.00

G. Dwelling and other spaces for rent/lease, hotels, motels, apartels, pension/drive inns, dormitories, lodging or boarding houses;
1. Hotels per room accommodation
22.50/room
2. Buildings or office/residential space
37.50/office resd'l. space
3. Apartels, pensions, drive inns, motels per room accommodation
15.00
4. Commercial apartments per space/unit
37.50
5. Residential apartment per space/unit
30.00
6. Dormitories, lodging, boarding houses per room accommodation
15.00

H. Institution of Learning
225.00

I. Media Facilities
75.00

J. Telegraph, Teletypes, Cable and Wireless communications companies
1. Main (branch office)
225.00
2. Every branch/office
75.00

K. Telephone, electrical and power companies
1. Main (branch) office
600.00
2. Every branch/office
300.00

L. Peddlers
15.00

M. Lending Investors
225.00

N. All other business, industrial, commercial establishments not specifically mentioned above:
1. With an area of one thousand square meters or above (1,000 sq. m)
300.00
2. With an area of five hundred (500) or more but less than one thousand square meters (1,000 sq. m)
225.00
3. With an area of two hundred square meters (200 sq. m.) or more but less than five hundred square meters (500 sq. m)
150.00
4. With an area of one hundred or more but less than two hundred square meters (200 sq.m)
112.50
5. With an area of fifty or more but less than one hundred square meters (100 sq.m)
75.00

6. With an area of twenty five or more but less than fifty square meters (50 sq.m) 45.00
7. Less than twenty five square meters 30.00
O. Manufacturer, producers, foundry shops, laboratories, privately owned markets, shopping centers, talipapa and warehouses 375.00
P. Amusement places such as theaters, coliseum, sauna baths, massage clinics, operators of golf courses, cockpit arenas, bowling alleys, stadia 375.00
Q. Other amusement places not mentioned above 225.00
R. Importers, exporters, wholesalers and distributors 600.00
S. Public eating places such as restaurants, refreshment parlors, carenderia and etc.
1. with fifty or more personnel 750.00
2. with twenty five or more but less than fifty personnel 600.00
3. with ten or more but less than twenty-five personnel 300.00
4. less than ten personnel 150.00
T. Establishments offering services such as welding, vulcanizing shop, printer, publisher, tailor, dressmaking, barbershops, dancing, tutorial schools and other similar establishments 300.00
U. Funeral Parlors 600.00
V. Retailers 150.00

In case where a single person, partnership or corporation conducts or operates two or more businesses in one place of establishment, the sanitary inspection permit fee shall be imposed on the business with higher rate.

SECTION 251. TIME OF PAYMENT

The fees imposed in this Article shall be paid to the City Treasurer upon filing of the application for the sanitary inspection certificate with the City Health Officer and upon renewal of the same every year thereafter within the first twenty (20) days of January.

SECTION 252. ADMINISTRATIVE PROVISIONS

(a) The City Health Officer or his duly authorized representative shall conduct an annual inspection of all establishments and buildings, and accessories and houses for rent, in order to determine their adequacy of ventilation, general sanitary conditions and propriety for habitation.

(b) The City Health Officer shall require evidence of payment of the fee imposed herein before he issues the sanitary inspection certificate.

Article Seven . - Service Fees for Health Examination

SECTION 253. IMPOSITION OF FEE

There will be collected a following fees from any person who is given a physical examination by the City Health Officer or his duly authorized representative, as required by existing ordinances.

A. Medical Certificates in connection with;
1. Naturalization / Legitimation / Adoption / Annulment of Marriage and Other Similar Purposes P 300.00
2. Travel Abroad 300.00
3. Delayed Renewal of Health Certificate 100.00
4. Employment and all other not specified 30.00
5. School Requirements 50.00
6. Insurance 50.00
7. Physical Examination 30.00
8. Driver's License 30.00
9. Issuance of Health Cards 50.00
10. Issuance of Sanitary Permit 200.00
11. Dental Certification 30.00

B. Services Rendered:
1. Wound Dressing 50.00
2. Suturing, Removal of Stitches 50.00
3. Injection 25.00
4. Nebulization 50.00
5. Transfer Permits 100.00
6. Exhumation Permit 100.00
7. Cremation Permit 100.00

C. Other Services:
1. Issuance of Operational Permit 50.00
2. Sanitary Inspection Clearance 50.00
3. Re-Issuance of Health Certificate (lost, transfer) 100.00
4. Pre-Marriage Counseling 150.00

D. Laboratory Fees:
1. Routine Urinalysis 30.00
2. Blood Typing (Type of Blood) 30.00
3. Fecalysis 30.00
4. Sputum, for Microscopy Examination 40.00
5. Gram Staining 50.00
6. Hemoglobin Determination 30.00
7. Complete Blood Count 40.00
8. Pregnancy test 100.00
9. RPR (Syphilis) 150.00
10. HIV (AIDS) 350.00
11. Platelet Count 70.00
12. Hematocrit (Hct) 30.00
13. Occult Blood (Stool) 20.00
14. Stool (Concentration Method) 20.00
15. Hematocrit (Anemia) 20.00
16. Prothrombin Time 50.00

Laboratory Fees (Cont'd.)

17. Filarial, Micro Search 30.00
18. Vaginal smear 30.00
19. Urethral/Cervical smears 40.00
20. X-RAY for Physical Examination 120.00

E. Dental Fees:

1. Tooth Extraction (Per Tooth) 80.00
2. Filling (Per Surface) 50.00
3. Oral Prophylaxis 50.00

F. Medico Legal Services

1. Medico Legal Examination 80.00
2. Autopsy of Cadaver 500.00
3. Autopsies Reduced Into Writing 100.00
4. Interview and Physical Examination and Issuance of Medical Certificate to Alleged Crime Suspect for admission to Davao City Jail and DCPO Rehabilitation Center 50.00
5. Issuance/Signing of Death Certificate 30.00

6. Gender Examination Certification 30.00
7. Issuance of Health Cards 50.00

SECTION 254. TIME OF PAYMENT

The fee shall be paid to the City Treasurer before the physical examination is made and the medical certificate is issued.

SECTION 255. ADMINISTRATIVE PROVISIONS

(a) Individuals engaged in an occupation or working in the following establishments, are hereby required to undergo physical and medical examination before they can be employed and once every six months (6) thereafter.
1. Food establishments - establishments where food or drinks are manufactured, processed, stored, sold or served.
2. Public swimming or bathing places.
3. Dance schools, dance halls and nightclubs - include dance instructors, hostess, cooks, bartenders, waitresses, etc.
4. Tonsorial and beauty establishments - include employees of barber shops, beauty parlors, hairdressing and manicuring establishments, exercise gyms and figure slendening saloons, facial centers, aromatherapy establishments, etc.

The Book Revenue Code of the City of Davao

5. Massage clinics and sauna bath establishments - include masseurs, massage clinic/sauna bath attendants, etc.

6. Hotel, motels and apartments, lodging, boarding, or tenement houses, and condominiums.

(b) Owners, managers or operators of the establishments shall see to it that their employees who are required to undergo physical and medical examinations have been issued the necessary medical certificates.

(c) The City Health Officer shall keep a record of physical and other health examinations conducted, and the copies of medical certificates issued indicating the name of the applicant, the date and the purpose for which the examination was made.

(d) The City Health Officer is hereby empowered to give free laboratory examination to indigent patients and examination needed by the government such as for government insurance requirements for appointments and application for positions and civil service examinations.

SECTION 256. PENALTY

A fine of Two Hundred Pesos (P200.00) shall be paid by the owner, manager or operators of the establishment for each employee found to be without the necessary health certificates.

Article Eight. - Social Services Fees

SECTION 257. IMPOSITION OF FEES

There shall be imposed the following fees to be paid to the City Treasurer prior to the conduct of marriage:

a. Marriage Counseling Seminar P 50.00
b. Marriage Counseling Certificate P 100.00

However, couples declared by and certified to by the City Social Services and Development Office (CSSDO) as indigents shall be exempted from the payment of said fees.

SECTION 258. ADMINISTRATIVE PROVISIONS

Every couple who decides to get married shall first attend a marriage counseling seminar to be conducted by the City Social Services and Development Office (CSSDO).

The City of Davao

CHAPTER 5. CITY CHARGES

Article One. - Fishery Rentals, Fees and Charges

SECTION 259. FISHERY RENTALS, FEES AND CHARGES

This City shall have the exclusive authority to grant the following fishery privileges within its City Waters and impose rentals, fees, or charges therefrom:

(a) To erect fish corrals, oyster, mussel, or other aquatic beds or bangus fry areas.

(b) To gather, take or catch bangus fry, prawn fry or kawag-kawag or fry of other species and fish from city waters by nets, traps or other fishing gears. However, marginal fishermen shall be exempt from any rentals, charge or any other imposition whatsoever.

(c) To issue license for the operation of fishing vessels of three (3) tons or less, for which purpose the council is empowered to promulgate, subject to the approval of the Secretary of Agriculture and Natural Resources and rules and regulations, regarding the issuance of such license to qualified applicants under existing law.

SECTION 260. GRANT OF FISHERY RIGHTS BY PUBLIC AUCTION

Exclusive fishery privileges to erect fish, corrals, oyster mussel of aquatic beds or "bangus" fry areas and to take or catch "bangus" fry or "kawag-kawag" or fry of other species of fish for propagation shall be awarded to the highest

bidder in a public auction to be conducted by a committee upon authorization of the Sangguniang Panlungsod.

However, duly registered organizations and cooperatives of marginal fishermen shall have the preferential right to such fishery privileges without being required to undergo the bidding. In the absence of such organizations and cooperatives or upon failure to exercise their preferential right, other parties may participate in the said public bidding.

For this purpose, there is hereby created a committee to conduct the public auction to be constituted as follows:

(a) The Mayor or his duly authorized representative as Chairman;

(b) The Chairpersons of the Committee on Agriculture & Committee on Finance, Ways & Means, Members of the Sangguniang Panlungsod to be designated by said body,

(c) The City Treasurer.

The Committee shall advertise the call for sealed bids for the leasing or a zone or zones of city waters in public auction for two (2) consecutive weeks in the bulletin board of the City Hall. If no bids are received within two (2) weeks, such notice shall be posted for another two (2) weeks. If after said two (2) notices for the grant of exclusive fishery rights through public auction, there are no interested bidders, the Sangguniang Panlungsod shall grant the rights within the definite area or portion of the city waters to any interested individual upon payment of a license fee fixed herein.

The notice advertising the call for bids shall indicate the date and time when such bids shall be filed with the City Treasurer.

An application to participate in the public bidding shall be submitted to the City Mayor in a form prescribed thereof. Upon submitting a sealed bid, a person shall accompany such bid with a deposit of at least Five Thousand Pesos (P5,000.00) which amount shall be deducted from the first rental by the person should the bid be awarded to him.

At the time and place designated in the notice, the Committee sitting en banc shall open all the bids and award the lease to the qualified bidder offering the highest bid. The lease shall be executed within ten (10) days after the award is made by a committee and if the successful bidder refuses to accept, fails or neglects to execute the lease within such time, his deposit shall be forfeited to the city government, in such a case another bidding shall be held in the manner provided above.

The deposits of the unsuccessful bidders shall be returned upon the execution of the lease contract by the successful bidder or before the calling of another bid.

At the time and place designated in the notice, the Committee sitting en banc shall open all the bids and award the lease to the qualified bidder offering the highest bid. The lease shall be executed ten (10) days after the award is made by the Committee and should the successful bidder refuse to accept, fail or neglect to execute the lease within such time, his deposit shall be forfeited to the City Government. In such case, another bidding shall be held in the manner herein prescribed.

SECTION 261. DURATION OF LEASE

The grant of lease of fishery rights through public auction shall be for a period of one (1) year.

SECTION 262. ZONIFICATION OF CITY WATERS

The City Waters of this City are hereby divided and classified into zones for purposes of granting a lease or exclusive fishery rights through public auction as prescribed in Section 260, as follows:

Zone 1 - From Dumoy to Binugao shoreline (south)

Zone 2 - From Tibungco to Lasang shoreline (north)

SECTION 263. IMPOSITION OF FEES

(a) Fees for the Exclusive Privilege of Establishing Fish Corals, Shallow Water Fish Shelter "Payao" and Cages, Culture Beds, or Catching "Bangus" Fry or fry of other species.

Amount of Fee per Annum

1. Operation of fishponds or oyster culture beds, per hectare P 1,000.00

2. Catching "bangus" fry or "kawag-kawag"

Less than 2,000 sq.m. 500.00

2,000 sq.m. or more but less than 5,000 sq.m. 800.00

5,000 sq.m. or more but less than 6,000 sq.m. 1,000.00

6,000 sq.m. or more but less than 8,000 sq.m. 1,200.00

8,000 sq.m. or more 1,500.00

The 2012 Revenue Code of the City of Davao

3. Fish corrals or fishpens in inland fresh waters
Less than 500 sq.m.
500 sq.m. or more but less than 1,000 sq.m.
1,000 sq.m. or more but less than 5,000 sq.m.
5,000 sq.m. or more but less than 10,000 sq.m.
10,000 sq.m. or more

100.00
300.00
500.00
800.00
1,000.00

4. Fish Corals Established in the sea (high-tide level)
Less than 3 meters deep
3 meters deep or more but less than 5 meters
5 meters deep or more but less than 8 meters
8 meters deep or more but less than 10 meters
10 meters deep or more but less than 15 meters
15 meters deep or more
100.00
300.00
300.00
500.00
1,500.00
2,000.00

5. Fish Cages: Per 100 sq.m. or a fraction thereof
1,000.00

6. Per Payao
200.00

7. Oyster and Other Shelled Mollusk Culture Beds
Per 100 sq. m. or a fraction thereof
1,000.00

8. Mariculture/Sea Farming Seaweeds Culture, per hectare
1,000.00

(a) Fees for Licenses (General Schedule of License Fees):

Kind of Fishing Gear (vernacular)
License Fee per Annum

1. Fishermen using Nets:
a. Panamban
b. Pamanti
c. Laya
d. Panggal
e. Palaran
f. Pamo
P 200.00
200.00
50.00
200.00
200.00
500.00

2. Fishermen using Traps:
a. Bentol
b. Bobo
c. Bungsod
P 400.00
200.00
400.00

3. Fishermen using Hook and Line:
a. Subid
b. Palangre
P 200.00
200.00

(b) Fees for Fish Transport (From Davao City to any point outside Davao City)
Fee Per Set Kq. Wt.

1. Fresh Frozen Fish & Fishery Products
P 50.00/ton
(& fraction thereof)

2. Preserved/Processed fish, (iced, frozen, salted, dried smoked patis, baggoong, etc)
P 50.00/ton

(& fraction thereof)

The 2009 Revenue Code of the City of Davao

3. Trocha shell (smooth, rough, male & female) (more than 60 mm)
50.00/ton

4. Green Snail Shell
50.00/ton

5. Kapis Shell (more than 80 mm)
50.00/ton

6. Sea Cucumber/Balatan
50.00/ton

7. Dried Seaweed (eucheuma)
50.00/ton

8. Dried Sharkfin
50.00/ton

9. Salted Skin of Sea Snakes
50.00/ton

10. Dried Starfish
10.00/ton

11. Bangus fry or other species
10.00/thousand

12. Bangus fingerlings or other species
20.00/thousand

13. Empty Shells of non prohibited species
10.00/100kl.

SECTION 264. PRIVILEGE OF RESIDENTS TO TAKE FISH IN CITY WATERS

Any person who is not a grantee of license or privilege to engage in commercial fishing is hereby allowed to fish for domestic use, in every city water for as long as no communal fishery therein is yet established; Provided, that such fishing shall not take place within two hundred (200) meters from a fish corral licensed by this City; and that such fish caught under this privilege shall not be sold. Provided further that such fishing shall observe prohibition as prescribed in Section 267 of this Code.

Furthermore, no rental fee, charge, or any other imposition whatsoever shall be collected from marginal fishermen.

SECTION 265. TIME AND MANNER OF PAYMENT

(a) The annual rental for the lease shall be paid in advance. For the initial year of the lease, the rental shall be paid at the time all the necessary documents granting the lease are executed, and the subsequent installments within the first twenty (20) days after the anniversary date of the grant of such lease. The deposit made by the successful bidder accompanying the sealed bid shall be applied against the rental due from him.

The Sangguniang Panlungsod shall set aside not more than one-fifth (1/5) of the area earmarked for the gathering of fry, as may be designated by the Bureau of Fisheries, as government "bangus" fry reservation.

(b) The license fee for the grant of exclusive fishery rights in the City waters for at least the corresponding current quarter shall be paid in advance.

(c) The license fees for the privilege to catch fish from City Waters with nets, traps, and other fishing gears and the operation of fishing vessels shall be paid upon application for a license and within the first twenty (20) days of January of every year for subsequent renewal thereof.

The 2013 Revenue Code of the City of Davao

SECTION 266. ADMINISTRATIVE PROVISIONS

(a) A licensee of other localities shall not fish within the city waters of this city without first securing the necessary permit from the City Mayor and paying the corresponding fee to the City Treasurer.

(b) No fish net without eyelet or the mesh size of which is at least three (3) centimeters shall be used in this City Waters.

(c) Failure to pay the rental of license fees for fishery rights for two (2) consecutive years shall cause automatic cancellation of said fishing rights.

SECTION 267. PROHIBITIONS AND PENALTIES

(1) Fishing Without A License/Permit. It shall be unlawful for any person, whether natural or juridical, to engage in any fishing activity or operate any fishing boat/banca within the City Waters without the corresponding license/permit issued by the City Mayor through the City Agriculturist Office. The corresponding penalties shall be imposed on the following violation/s:

a. Fishing in City Waters without license/permit, a fine of:
- First offense: P 1,000.00
- Second offense: P 2,000.00
- Third offense: Confiscation of fishing boat/banca and fishing gears for public auction in favor of the City Government.

b. Engaging in Commercial Fishing within city waters: 5,000.00

c. Engaging in Recreational/Sport fishing without a license/permit: 5,000.00

d. Operating an aquaculture or mariculture facility without an operator's license/permit: 5,000.00

(2) Violations of the Terms and Conditions of a License/Permit. Any person, whether natural or juridical, who violates the terms and conditions of the fishing license/permit is liable for a fine of Five Thousand Pesos (P 5,000.00) or imprisonment for not less than six (6) months but not more than one (1) year and cancellation of License/Permit upon the discretion of the court.

(3) Fishing Within City Waters.

a. Fishing by Unregistered Person/Fisherfolk - It shall be unlawful for any person who is not registered with the Registry of City Fisherfolk to engage in any kind of fishing activity within the City Waters. Any person who violates this provision shall be liable for a fine of One Hundred Pesos (P100.00).

b. Fishing by Unregistered Boat/Banca - It shall be unlawful for any fishing boat/banca, which is not registered with the Registry of City Fishing Boat/Banca, to engage in any kind of fishing activity within the City Waters. The boat/banca operator/owner who violates this provision shall be liable for a fine in the amount of One Hundred Pesos (P100.00) for non-motorized and Three Hundred Pesos (P300.00) for motorized fishing boat/banca.

(4) Failure to Carry License/Permit. The failure to carry a copy of his fishing license/permit on board the fishing boat/banca, shall render the offender liable for a fine of One Hundred Pesos (P100.00).

(5) Fishing in Prohibited Areas. It shall be unlawful for any person to engage in fishing in any fishery reserve, refuge and sanctuary within the City Waters. A person who violates this provision shall be punished by imprisonment for six (6) months or a fine of Five Thousand Pesos (P5,000.00), forfeiture of the catch and cancellation of fishing permit/license or both at discretion of the court.

(6) Violation of Temporary Ban or Closure. It shall be unlawful for any person, whether or not possessing a valid fishing license to engage in any fishing activity in violation of a temporary ban or closure duly declared by the City Mayor. A person who violates this provision shall be liable for a fine of Five Thousand Pesos (P5,000.00) or imprisonment for not less than thirty (30) days and not more than sixty (60) days.

(7) Taking of Prohibited Species. It shall be unlawful for any person to take attempt to take or have in his possession any fish and fishery/aquatic species as listed in the Convention of the International Trade of Endangered Species (CITES). Anyone who violates this provision shall be liable for a fine of Two Thousand Pesos (P2,000.00) for each fish species or aquatic organism that has been taken and confiscation of the catch in favor of the City Government.

(8) Use of Active Gear Within City Waters. It shall be unlawful for any person or boat/banca to use active gear within the City Waters as provided for under Fisheries Administrative Order (FAO) 201 s. 2000. Violation of this provision shall be liable for a fine of Five Thousand Pesos (P5,000.00) or imprisonment for not less than six (6) months. The owner, and/or operator of a fishing boat/banca used in the commission of this offense shall be liable for the same penalty. The lists of active gears are listed herein;

1. Muro - ami
2. Scarelines - Serosca
3. Trawl - Galdgad, Norway
4. Purse Seine - Pangulong
5. Danish Seine -Hulbot-hulbot, Likisan, Liba-liba, Palisot, Patangko Bira-bira, Buli-buli, Hula hoop, Zipper, Lampornas,
6. Ring Net - Kubkob, Pangulong, Kalansi
7. Drive-in net - Pa-align/Kayakas
8. Round Haul Seine - Sapyaw/Lawag
9. Motorized push net - Sudsod
10. Bagnet - Basing, sakit

(9) Use of Fine Mesh or Any Other Prohibited Net. It shall be unlawful for any person to use a net with a mesh size of less than three (3) cms. provided, however, that this prohibition shall not apply to the catching of the following species of fish: padas, bangus fry, sugpo fry, banak fry, glass eels/elvers, hipon, marine aquarium/ornamental fishes; and other species which by nature are small but mature such as, but not limited to alamang, tabios/sinarapan, diis, dulong, olan-olan and snails. Violation of this provision shall render the offender liable for a fine of Five Thousand Pesos (P5,000.00) and imprisonment of not more than six (6) months and confiscation of fishing paraphernalias.

(10) Use of compressor in fishing. It shall be unlawful for any person to use compressor in fishing within City Waters. Violation of this provision shall render the offender liable for a fine of Five Thousand (P5,000.00) and imprisonment of not more than six (6) months and confiscation of fishing paraphernalias.

The 2003 Revenue Code of the City of Davao

(11) Fishing using explosives, noxious or poisonous substances, and/or electricity. It shall be unlawful for any person to catch, take or gather fish or any fishery species within City Waters with the use of explosives, noxious or poisonous

substances, and/or electricity. Violators shall be punished under the provisions Section 88, Chapter 6, Republic Act 8550, s.1998.

(12) Construction of Fish Pens, Cages and Traps in Prohibited Areas. It shall be unlawful for any person, whether or not in possession of a valid fishing license, to construct fish pens, cages, or traps in City Waters, or in a manner which obstructs safe and convenient navigation, the flow and ebb of tides, or the migration paths of fish and aquatic species. Violation of this provision shall render the offender liable for a fine in the amount of One Hundred Pesos (P100.00) for every day that the fish pen, cage, or trap remains in the City Waters, and/or imprisonment for not less than thirty (30) days and not more than sixty (60) days.

A fish pen, cage, or trap constructed or deployed in violation of this section may be removed or demolished by the City Mayor through the CFMO for being a public nuisance, after due notice and demand to the owner or operator thereof to voluntarily remove or demolish the same within fifteen (15) days from receipts of the notice and demand. This shall be without prejudice to subsequent prosecution, and reimbursement for expenses incurred in removing or demolishing the prohibited structures.

(13) Fishing by means of "muro-ami" and the like. The use of muro-ami and any of its variations and the like is prohibited within the city waters. Violation of this provision shall render the operator/owner liable for a fine of Five Thousand Pesos (P5,000.00) or imprisonment of not more than six months or both upon discretion of the court. All fishing paraphernalia used thereto including fish catch shall be confiscated in favor of the City Government.

(14) Non-compliance with Color Coding. It shall be unlawful for a fishing boat/banca duly licensed with the City Mayor, which does not comply with the prescribed color-coding scheme of the City. The operator/owner shall be liable for a fine in accordance with the following penalties:

Non-Motorized	Motorized
a. First Offense - P 50.00	P 100.00
b. Second Offense - 100.00	200.00
c. Third Offense - 200.00	500.00

(15) Failure to Secure Auxiliary Invoice. Any person transporting fish and fishery/aquatic products from the City to its point of destination without auxiliary invoice shall render such person a fine of One Thousand Pesos (P1,000.00).

(16) Abandonment of Fishing Gear. It shall be unlawful for any person to abandon his/her fishing gear or aquaculture/mariculture facility within the City Waters for a period of thirty (30) days. Violation of this provision shall render the person a fine of One Thousand Pesos (P1,000.00).

(17) Illegal Use of Superlights. The use of Superlights with the total power output of more than two hundred (200) watts shall be prohibited within the City Waters. Violation of this provision shall render the offender liable for a fine of Five Thousand Pesos (P5,000.00) and confiscation of fishing paraphernalia including fish catch in favor of the City Government.

(18) Cutting or Clearing of Mangroves. It shall be unlawful for any person to cut or clear any mangrove areas for the purpose of turning the same

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Ordinance Code of the City of Davao

(19) Obstruction of Fishery Officer. It shall be unlawful for any person to obstruct, hinder, or prevent the performance of the duties of a duly-accredited/Deputized Fishery Officer as provided herein. Violation of this provision shall render the offender liable for a fine of One Thousand Pesos (P1,000.00.)

(20) Prosecution Under National Law. Where a person commits an act which is punishable under the provisions of this Ordinance and the Fisheries Code and other related laws, the CFMO shall have the option of determining the appropriate complaint to be filed, as well as the proper forum where such complaint shall be lodged. Such a person may be prosecuted for as many offenses as may arise from the same act, unless the defense of double jeopardy becomes available and is raised in a proper time and forum.

(21) Injunction as Part of Penalty. Where a person is convicted of an offense under this Ordinance, in addition to any punishment imposed, the court may, having regard to the nature of the offense and the circumstances surrounding its commission, make an order containing any one or more of the following prohibitions, directions or requirements:

a. Prohibiting the person from doing any act or engaging in any activity that may, in the opinion of the court, result in the continuation or repetition of the offense;

b. Directing the person to take any action the court considers appropriate to remedy or avoid any harm to any fish, fishery or fish habitat that resulted or may result from the commission of the offense;

c. Directing the person to pay the City an amount of money as compensation, in whole or in part thereof for the cost of any remedial or preventive actions taken by or caused to be taken in behalf of the City as a result of the commission of the offense;

d. Directing the person to perform community service in accordance with any reasonable conditions that may be specified in the order;

e. Directing the person to post a bond or pay to the city government an amount of money the court considers appropriate for the purpose of ensuring compliance with any prohibition, direction, or requirement of the order;

f. Requiring the person to comply with any other conditions that the court considers appropriate for securing the person's good conduct and for preventing the person from repeating the offense or committing other offenses prescribed by this Ordinance.

(22) Collection of Fishery/Fees, Charges, Rentals and Penalties. The City Treasurer's Office (CTO) is hereby authorized to collect fees, charges, rentals and penalties incurred in all fishery activities within the City.

The 2003 Revenue Code of the City of Davao

SECTION 268. ADMINISTRATIVE SANCTIONS AND INDEMNITY

(1) Innate Value of Fishery and Aquatic Resources of the City. The fishery and aquatic resources of the City are natural resources which directly sustain the constituents of the City by providing subsistence, livelihood, and the foundation for many local businesses. As such, they are valuable resources of the City for which compensation is required in case of damages as well as costs of rehabilitation of the habitat or resource arising from acts violating this Article.

(2) Imposition of Fines and Penalties. The imposition of fines and penalties as punishment for violation of the provisions of this Article is without prejudice to administrative sanctions which may be imposed upon an offender for the purpose of fully or partially recovering the loss in revenue and/or cost incurred by the City Government on account of the violation, and indemnity to compensate for the loss of, damage to, and/or costs of rehabilitation of the fishery and aquatic resources of the City. Such sanctions and/or indemnity shall be determined by the CFMO and substantiated by records and receipts copies of which shall be furnished to the offender.

(3) Administrative Investigation. The CFMO is hereby authorized to conduct investigation and impose administrative sanctions and indemnity as provided herein, by any person apprehended within the City Waters for violating any provision of this Article. Such investigation shall be concluded within fifteen (15) days from the time the case is filed. Failure of the respondent to appear at an administrative investigation, appropriate legal charges shall immediately be filed before the regular courts.

(4) Contested Cases. If the decision of the CFMO is contested by the offender, the CFMO shall form an Arbitral Committee comprised of three (3) members within seven (7) days from rendition of its decision. The CFMO and the offender shall each choose one member from respected citizens of the City who are of known probity, integrity, and good standing, while the third member shall be chosen jointly from Committee on Fisheries of the Sanggunian. The contested case shall then be forwarded to the Arbitral Committee for decision within fifteen (15) days from receipt thereof. The decision of the Arbitral Committee shall be final and unappealable.

(5) Impoundment of fishing boat/banca/vessel and gear. The fishing boat/banca/vessel or gear used in committing violation of this Ordinance shall be impounded by the City, through the CFMO, pending resolution of an administrative investigation against the offender. The offender shall be issued Receipts for the items impounded, and shall bear the actual costs of storage and upkeep of the boat/banca/vessel and/or gear while it is under impoundment. Prior to resolution of the administrative investigation, the same shall not be released unless a security bond in the amount of at least ten percent (10%) of the fair market value of such boat/banca/vessel or gear, are paid or deposited with the City Government through the CFMO, to answer for any administrative sanctions or indemnity that may be imposed, provided, that items which are inherently illegal, such as dynamite, noxious and poisonous substances, and electro fishing gear, among others, shall not be released except upon lawful order of the court before which the criminal case is pending. Provided further, that should the offender be found guilty of the offense, the inherently illegal items shall be disposed of or destroyed.

(6) Unlicensed fishing activities. Any person found to have violated the provisions of this Article by undertaking any fishing activities without the appropriate license/permits shall be required to pay the amount of the license/permit and other regulatory fees plus a fine of One Thousand Pesos (P1,000.00).

(7) Revocation of license/permit. Any person found to have violated the terms and conditions of a valid license/permit in his favor shall be required to surrender the same to the CFMO, which shall thereafter revoke the license/permit for the remainder of the term. Such license/permit shall not be renewed unless the licensee has paid all administrative sanctions and indemnity that may have been imposed for the violation.

(8) Damage to Habitat. Any person found to have engaged in any act known to cause damage to the fragile habitat of fish and fishery/aquatic resources, shall pay the City Government the existing charges provided for under Fees and Charges under the Utilization of Natural Resources such as Coral Reef, Seagrass Bed, Mangrove Area and Fish Refuge/Sanctuary, hereunder:

Habitat	Indemnity
Coral Reef Area	P 5,000.00/ha.
Seagrass Bed	5,000.00/ha.
Mangrove Area	5,000.00/ha.
Fish Refuge/Sanctuary	5,000.00/ha.

(9) Discharging of Deleterious/Poisonous Substances & Aquatic Pollutants. It shall be unlawful for any person to discharge deleterious/poisonous substances and aquatic pollutants into bodies of City Waters. Violation of this provision shall render the offender liable for a fine of Five Thousand Pesos (P5,000.00), indemnity of actual cost of damage/s and without prejudice to the filling of charges provided for under related rules and regulations.

(10) Other sanctions and/or indemnity. The City Mayor may prescribe other administrative sanctions or indemnity by means of an executive order, provided, that the same shall have been subjected to consultations with the CFARMC.

SECTION 269. APPLICABILITY OF PERTINENT PROVISIONS OF LAWS

All existing laws, rules and regulations governing municipal waters and municipal fisheries are hereby adopted as part of this Article.

Article Two. - Rentals of Personal and Real Properties Owned by the City

SECTION 270. RATES OF RENTAL FEES

The rates of rental fees for the use of real and personal properties of this city such as lands and/or buildings located in commercial, industrial, residential, and in other areas, vehicles, equipment, and other properties that may be acquired after the promulgation of this Ordinance, shall be determined by the City Mayor upon approval by the Sangguniang Panlungsod.

SECTION 271. TIME OF PAYMENT

The fees imposed herein shall be paid to the City Treasurer or his duly authorized representative, before the use or occupancy of the property.

Article Three. - Service Charge for Garbage Collection

SECTION 272. JURISDICTION

The provision of this Article shall be applicable within the entire territory and jurisdiction of the City of Davao and shall be enforced by the City Environment and Natural Resources Officer.

SECTION 273. AREAS OF COLLECTION AND DISPOSAL

The areas of collection and disposal of garbage and other refuse shall include the Poblacion of the City of Davao and those covered by the barrios, sitios, subdivisions, settlements, or group of buildings, the feasibility of operation of the service of which shall be determined by the City Environment and Natural Resources Office duly approved by the City Mayor. For the purpose of this Article, the following are the garbage collection areas.

1. Davao City Poblacion Streets
2. MacArthur Highway, from Generoso Bridge to Lizada, Toril
3. Toril Poblacion Streets
4. New Matina, S.I.R.
5. Ecoland Subdivision
6. Juna Subdivision
7. DBP Subdivision
8. Lanzona Subdivision
9. GSIS Village, Matina
10. Talomo Poblacion Street and its outlying Sitios
11. Matina Alplaya, Pangi
12. Catalunan Grande
13. Davao-Bukidnon Road
14. Catalunan Pequeño
15. Mintal Poblacion
16. Calinan, Poblacion Street
17. Baguio District Poblacion only
18. Bo. Obrero Street
19. Buhangin District & its outlying sitios/subdivision/north highway
20. Agdao District and its outlying sitios
21. Jose P. Laurel Avenue
22. Sasa Poblacion Streets, including Airport and Wharf road
23. Panacan Highway/Relocation Areas
24. Tibungco Poblacion
25. Bunawan Poblacion
26. Other subdivisions/areas serviced by garbage trucks.

SECTION 274. LARGE AND UNUSUAL QUANTITIES OR RUBBISH, REMOVAL AND ADDITIONAL FEE REQUIRED

Whenever there are large quantities of rubbish or trade refuse to be removed from any private buildings, premises or place, the occupant thereof shall notify the City Environment and Natural Resources Office (CENRO) Officer at least twenty-four (24) hours before removal is necessary, to collect such rubbish or trade refuse, in order that proper transportation may be furnished for the same. An additional special garbage collection fee shall be collected for large and unusual quantities of garbage and other refuse for one truckload in the amount of Three Thousand Six Hundred Pesos (P 3,600.00) per truckload or a fraction thereof.

SECTION 275. SPECIAL COLLECTION OF REFUSE, PERMIT AND ADDITIONAL FEE REQUIRED

Upon previous permits obtained from the Office of the City Mayor, daily collection of refuse from within the compound or premises of any industrial, commercial business or other establishment may be allowed when it is convenient due to the nature of the refuse or lack of sidewalk, where the establishment can place their refuse receptacles or at the street edge, subject,

however, to the condition that such special collection service shall be allowed only when applied for and the party or parties concerned shall make an additional monthly service fee of Fifty Pesos (P50.00). In addition to the fee schedule and that the refuse shall be contained in appropriate receptacles.

SECTION 276. DISPOSAL

Time to Place Receptacle on Sidewalks. It shall be the duty of the occupant of every building, premises or place of business to have receptacle for garbage or rubbish place on the outer edge of the sidewalk each day, or at the edge of the street if there is no sidewalk, at such time, not earlier than one (1) hour before collection as maybe directed by the City Environment and Natural Resources Office that upon previous permit secured from the Office of the City Mayor, industrial, commercial or business establishments may place their receptacles outside their places of business earlier than 8:00 p.m. but not before 4:00 p.m. when such industrial, commercial, or business establishment can satisfactorily show to the City Mayor, that their closing hours are before 8:00 p.m. and that their refuse consist of rubbish only which includes waste or other used papers, pasteboards, woven materials, cutting or metallic vessels, broken glasses or porcelains of the like, subject however, to the condition that the receptacles to be used must be without leakage with appropriate cover and the design of which is approved by the City Environment and Natural Resources Officer, and that when the receptacles are outside, they shall be placed on the sidewalk in a manner that they will not in any way cause obstruction to pedestrians and the free flow of traffic and that no putrefying, decaying, or odorous matter shall be placed in the receptacles.

SECTION 277. PROHIBITION ON DISPOSAL

As soon as the garbage wagon or vehicle is loaded, it must be driven at once to the specified place of disposal and on no account shall it be allowed to stand in the vicinity of any human habitation, schoolhouse, or place of assembly. All such materials must be disposed of within twelve (12) hours after collection.

Human excreta shall not be disposed of through the garbage collection service of the City Environment and Natural Resources Office.

SECTION 278. IMPOSITION OF FEE

There shall be collected from every owner or operator of a business establishment an annual garbage fee in accordance with the following schedule:

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A. Financial Institutions
1. Bank
a. commercial banks for each office/branch P 4,000.00
b. savings bank for each office/branch 3,000.00
2. Savings and Loan associations, pawnshops, for each office/branch 2,000.00
3. Financial and/or lending investors, money shops, for each office/branch 2,000.00
> Authorized dealers in foreign currencies and stock brokers 1,600.00
B. Insurance, pre-need companies, adjusters 1,600.00

C. Amusement places
1. Club and other similar establishments:
a. day and night club 2,500.00
b. night club/day club only 1,500.00
c. cocktail lounges, bars, beer gardens, super clubs 1,000.00
d. cabarets, dance halls, discos, music lounge, videoke, sing-along 800.00
2. Amusement centers and establishments with coin operated machines, appliances, amusement rides and shooting galleries, side show booths and other similar establishments with contrivances for the amusement of customer per contrivance. 50.00
3. Billiard and/or pool halls per table 100.00
4. Bowling establishments
a. automatic per lane 100.00
b. non-automatic per lane 50.00
5. Cockpits
a. within Agdao, Matina and Buhangin area 3,500.00
b. all other places/areas 2,000.00
6. Casinos 5,000.00
7. Circuses, carnivals, and the like 1,500.00
8. Golf links and/or ranges 1,000.00
9. Gymnasiums 1,000.00
10. Membership clubs, association or organization;
a. serving food, drinks and lodging facilities 1,200.00
b. serving food, drinks without lodging facilities 1,000.00
11. Race track, coliseum or similar establishment 2,000.00
12. Resorts and other similar establishments 1,500.00
13. Sauna baths and massage clinics per cubicle 50.00

14. Skating rink 300.00
15. Stadia, sports complexes 1,600.00
16. Theaters or cinema houses with seating capacity of
a. more than two thousand person 3,000.00
b. 500 to 2000 person 2,400.00
c. less than 500 person 2,000.00
17. Pelota courts, tennis courts and other similar nature 500.00

D. Aircraft and water craft companies per office 2,000.00

E. Funeral parlors
1. With embalming establishment and depositing corpse in their funeral parlor by rendering funeral services by any kind of transportation 3,000.00

F. Hotels, motels, apartels, pension inns, drive inns, boarding houses, dormitories, dwellings and other spaces for

lease or for rent

1. Hotels
a. Five star per room
> Single bed P 25.00
> Double bed 50.00
> Suite 75.00
b. Four star per room
> Single bed 20.00
> Double bed 40.00
> Suite 60.00
c. Three star per room
> Single bed 15.00
> Double bed 20.00
> Suite 30.00
2. Motels and drive inns per room 25.00
3. Hotels, apartels, pension inn
a. with air conditioned per room
> Single bed 20.00
> Double bed 25.00
b. Without air conditioned per room
> Single bed 15.00
> Double bed 20.00
4. Boarding houses, lodging houses, dormitories per bed space (bed capacity) 15.00

G. Private hospitals and medical clinics with bed capacity
a. less than 50 persons 1,500.00
b. 50 to 100 persons 2,000.00
c. 101 to 150 persons 2,500.00
d. 151 to 200 persons 3,000.00
e. 201 to 300 persons 3,500.00
f. more than 300 persons 4,000.00
g. animal hospital and others 500.00

H. Lumberyard
1. Lumberyard without machinery;
a. with a yard for deposit of lumber having a space of more than 1,500 sq.m. 1,000.00
b. with a yard for deposit of lumber having a space of more than 1,000 sq.m but not over 1,500 sq.m. 800.00
c. with a yard for deposit of lumber having a space of more than 500 sq.m. but less than 1,000 sq.m. 600.00
d. with a yard for deposit of lumber having a space of less than 500 sq.m. 400.00

I. Exporter/Importer 1,000.00

J. Manufacturers, producers and processors;
a. Factory
> with an aggregate area of 1,000 sq.m. or more 4,000.00
> with an aggregate area of 500 but less than 1,000 sq.m. 3,000.00
> with an aggregate area of 200 sq.m. or more but less than 500 sq.m. 2,400.00

The legal text on this page is as follows:

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> Factory with an aggregate area of 100 sq.m. or more but less than 200 sq.m.
> 2,000.00

> Area of 50 sq.m. or more but less than 100 sq.m.
> 1,000.00

> Less than 50 sq.m.
> 600.00

b. Principal/branch or sales office with an aggregate area of:
> Factory within the locality
> 1,000 sq.m. or more
> 2,000.00
> 500 or more but less than 1,000
> 1,600.00
> 200 or more but less than 500 sq.m.
> 1,200.00
> 100 or more but less than 200 sq.m.
> 1,000.00
> 50 of more but less than 100 sq.m.
> 600.00
> Less than 50 sq.m.
> 400.00

> Factory is outside the locality
> 1,000 sq.m. or more
> 2,400.00
> 500 or more but less than 1,000
> 2,000.00
> 200 or more but less than 500 sq.m.
> 1,600.00
> 100 or more but less than 200 sq.m.
> 1,400.00
> 50 of more but less than 100 sq.m.
> 1,200.00
> Less than 50 sq.m.
> 1,000.00

c. Other producers such as duckery, poultry, garden and those not covered by (a) & (b)
> Commercial
> 600.00
> Backyard
> 300.00

K. Brewers, distillers, compounders and public eating places with an aggregate area of:
> 1,000 sq.m. or more
> 4,000.00
> 500 or more but less than 1,000
> 3,000.00
> 200 or more but less than 500 sq.m.
> 2,000.00
> 100 or more but less than 200 sq.m.
> 1,200.00
> 50 of more but less than 100 sq.m.
> 900.00
> Less than 50 sq.m.
> 800.00

L. Storage
> Storage of alcohol
> 300.00
> Cold storage;
> Refrigerating cases with less than 5 cu.m.
> 400.00
> Having an area of more than 1,000 but less than 1,500 sq.m.
> 600.00
> With total capacity of 51 cu.m. or more
> 1,200.00
> Motor oil storage
> 400.00

M.1 Gasoline service filling stations
> Having an area of 1,500 sq.m. or more
> 2,000.00
> Having an area of more than 1,000 but less than 1,500 sq.m.
> 1,500.00
> Having an area of 1,000 sq.m. or less
> 1,000.00

> Curb pumps and filling stations
> 400.00

M.2 Other combustible materials storage
> Over 5,000 kilos
> 600.00
> Resin over 3,000 to 5,000 kilos
> 400.00

N. Supermarkets, department stores, independent wholesalers, distributors, repackers and retailers, with an aggregate area of:
- 1,000 sq.m. or more P 4,000.00
- 500 or more but less than 1,000 sq.m 3,000.00
- 200 or more but less than 500 sq.m 2,000.00
- 100 or more but less than 200 sq.m. 1,000.00
- 50 of more but less than 100 sq.m 600.00
- less than 50 sq.m. 400.00

O. Institution of Learning
Universities, colleges, schools and educational or vocational institutions based on the total semestral enrollment as follows:
- 30,000 enrollees or more 4,000.00
- 20,000 enrollees or more but less than 30,000 3,000.00
- 10,000 enrollees or more but less than 20,000 2,400.00
- 5,000 enrollees or more but less than 10,000 2,000.00
- 1,000 enrollees or more but less than 5,000 1,500.00
- less than 1,000 enrollees 1,000.00

P. Owners or operators of business establishments rendering services:
a. Business offices of general contractors (building specialty engineering, manpower, service/employment agencies, private detective agencies, advertising agencies, with an aggregate area of;
- 1,000 sq.m or more 3,000.00
- 500 or more but less than 1,000 sq.m 2,000.00
- 200 or more but less than 500 sq.m 1,600.00
- 100 or more but less than 200 sq.m. 1,200.00
- 50 of more but less than 100 sq.m 600.00
- less than 50 sq.m 400.00

b. Other contractors/business establishments engage in offering services for fee such as millers, printers, publishers, dancing tutorial schools and other similar establishments not herein expressly provided with an aggregate area of :
- 1,000 sq.m or more 3,000.00
- 500 or more but less than 1,000 sq.m 2,400.00
- 200 or more but less than 500 sq.m 2,000.00
- 100 or more but less than 200 sq.m. 1,200.00
- 50 of more but less than 100 sq.m 800.00
- less than 50 sq.m 400.00

Q. Terminal garage for bus, taxi and other public utility vehicles except those used for home garage:
- With an area or 1,000 sq.m or more 3,000.00
- With an area of 700 or more but less than 1,000 sq.m 2,000.00

• With an area of 500 or more but less than 700 sq.m.
1,600.00

• With an area of 300 or more but less than 500 sq.m.
1,200.00

• With an area of less than 300 sq.m.
1,000.00

R. Private warehouse or bodega;
• With an area of 2,000 sq.m. or more
3,000.00

• With an area of 1,000 sq.m. to less than 2,000 sq.m.
2,000.00

• With an area of 500, sq.m. to less than 1,000 sq.m.
1,800.00

• With an area of less than 500 sq.m.
1,200.00

S. Vendors, peddlers, ambulant vendors except delivery trucks or vans
100.00

T. Electric and power companies
• Main branch office or each power plant
3,000.00

• Every branch office thereof
2,000.00

U. Liquefied petroleum
• Gas dealers
- Marketer
400.00

- Dealer
200.00

V. Market stall holders
• Public markets for each stall
200.00

• Private market for each stall
200.00

Stall holders with more than five sq.m. and/or rendering special services such as; pawnshop, appliance stores, banks and other similar establishments, shall be excluded under the term stallholders and levied garbage service charges in accordance with the pertinent provisions herein.

W. Media facilities
• Newspapers, books or magazine publications;
- Daily newspapers
600.00

- Weekly magazines
400.00

- Books and other magazine publications
200.00

• Radio stations
400.00

• TV stations
600.00

X. Communications companies
• Telegram, teletype, cable and wireless communications companies etc.
- Main branch office
3,000.00

- Every branch/stations thereof
1,000.00

• Telephone companies
- Main branch office
3,000.00

- Every branch/stations thereof
1,000.00

Y. Administrative office, display offices and/or offices professions
200.00

Z. Film showing per day
200.00

Z.a. Memorial Parks:

1. Private Cemetery
Burial Ground
a. 1,625 lots 5 hectares P 4,000.00
b. 975 - 1,300 lots 3-4 hectares 3,000.00
c. 651 - 974 lots 2-3 hectares 2,000.00
d. 325 - 650 lots 1-2 hectares 1,000.00

Z.b. Private Ports
No. of Vessels 4,000.00

Z.c. Private Slaughterhouse
Garbage fee x No. of heads butchered
Cow 1.80/cow
Hog 1.00/hog
Goat 0.75/goat

Chicken 0.50/chicken

Zd. Buyback Center - Sq. Meter
More than 1,500 sq.m. 4,000.00
1,001 - 1,500 sq.m. 3,000.00
501 - 1,000 sq.m. 2,000.00
500 sq. m. and below 1,000.00

Z.e. Private Hauler/Forwarder 2,000.00

Z.f. Shipping Yard - Per Sq. Meter
More than 1,500 sq.m. 3,000.00
1,001 - 1,500 sq.m. 2,000.00
501 - 1,000 sq.m. 1,000.00

Z.g. Carwash 500.00

All other business trades or occupation not included in the foregoing section P 100.00

Special Collection of voluminous garbage from establishments, companies, vessels and aircrafts P 3,600.00/truckload or fraction thereof

Environmental Solid Waste Certification 300.00

Residential Including Subdivisions:

Imposition of garbage fees shall be computed on the basis of the floor area of the buildings and structures, on or before the end of each month, as follows:

One Hundred (100) Square Meters and Above at Fifty Pesos (P 50.00) per month

Below One Hundred Square Meters at Twenty Pesos (P 20.00) per month

which shall be paid by the actual occupants of the building or structure on a monthly basis, provided however, that actual occupants of buildings and structures who are living below poverty line as certified to by the City Social Services and Development Office (CSSDO) shall be exempted from the payment of Residential Garbage Fees.

A surcharge of 10% per annum shall be imposed on any or all amounts on residential garbage fees that are due and payable.

SECTION 279. TIME OF PAYMENT

Unless provided in this Code, the annual garbage fees prescribed in this Article shall be paid to the City Treasurer by the owner or operator of the business establishment therein on or before the twentieth (20th) day of January of every year.

In the case of Residential Garbage Fees prescribed in this Code, the same shall be paid to the City Treasurer or his duly authorized deputies. The City Treasurer may designate the barangay treasurer as his deputy to collect such fees. In case a bond is required for the purpose, the city government shall pay the premium thereon in addition to the premiums of bond that may be required as prescribed under the Local Government Code. It is understood that the barangays from which the residential garbage fee is collected, shall be entitled to a share of twenty percent (20%) from the total amount collected, which share shall be remitted to the barangays concerned after deducting any or all expenses.

SECTION 280. GARBAGE SERVICE CHARGES FOR MULTIPLE BUSINESSES

Where two or more kinds of business subject to garbage service charges are conducted in the same place or establishments by the same owner/operator, the charge to be collected shall be that of the business which has the highest rate, plus ten percent (10%) thereof.

Manufacturers, producers, maintaining or operating principal offices, factories and/or sales office in the same premises, for purposes of collection of the garbage service charges, shall pay based on the total aggregate area of such business at a rate prescribed under Section 278(J) of this Code.

SECTION 281. WHEN A BUILDING IS USED BOTH FOR RESIDENTIAL AND COMMERCIAL PURPOSES

When a building is used both for Residential and Commercial purposes, the rate for commercial purposes shall be applied.

SECTION 282. ADMINISTRATIVE PROVISIONS

(a) For purposes of the imposition of fees, this charges shall only be collected in areas that are service by the City Government to be determined by the CENRO and the City Treasurer.

(b) The owner or operator of the aforementioned business establishments shall provide for his premises a separate container for each type of waste, which shall be placed in front of his establishment before the time of garbage collection properly marked as follows:

1. compostable;
2. non-recyclable;
3. recyclable or special waste; and/or

4. any other classification as may be determined by the City Environment and Natural Resources Office (CENRO)

(c) The Sanitary Inspector (for the City Health Officer) shall inspect once every month of the said business establishment to find out whether garbage is properly disposed of within the premises.

SECTION 283. OPERATIVE PROVISION

Penal Provision.

Any person who violates the provision of Section 278 of this Article shall, upon conviction, be punished with a fine not exceeding Five Thousand Pesos P 5,000.00 and/or imprisonment not exceeding one (1) year.

Article Four. - Guidelines of the Establishment of Privately-Owned Public Markets in the City of Davao; And Providing Penalties for the Violation Thereof; And for Other Purposes

SECTION 284. GENERAL PROVISIONS:

(1) The operator must obey the legal order of the duly constituted authorities and comply with all the requirements in accordance with existing laws, ordinances, rules and regulations, relative thereto.

(2) The privately-owned public market operation shall be duly authorized by the Sangguniang Panlungsod of Davao City.

(3) The market site must be within the allowable uses under the zonification ordinance of the City.

(4) The site of such private market shall not be less than five (5) kilometers from any existing public markets, within the City of Davao.

(5) The market shall have patronage of at least Fifty Thousand (50,000) to One Hundred Thousand (100,000) consumers in the area where it is established.

(6) The Applicant/Operator must secure building permit and pay the appropriate fees thereof, before starting the construction of the market building.

(7) The market site must have an adequate area for parking space and expansion which must be contiguous to the market site applied for.

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(8) The market premises shall be open to government inspection and supervision at any reasonable hour of the day or as may be required by circumstances, by the City Mayor or his duly authorized representatives.

(9) That the rates of market fees and stall/booth rentals or charges imposed in the market must not exceed the existing government-operated market fees and stall rentals or charges.

(10) Sanitation and health laws, rules and regulations must be strictly observed and complied with.

(11) The market operator must secure the proper business permit/license and pay the required taxes and fees upon approval of his authority.

(12) The market operator must require each stall or booth holder to secure his/her business permit or license and pay the required taxes and fees.

(13) The market operator must provide a public weighing scale that is accurate and properly calibrated by the City Treasurer's Office.

(14) No part of the building must be used as a residence of any vendor or lessee, except as an office only of the operator, to maintain sanitation and avoid trouble and disorder.

(15) The applicant/operator must see to it that the sidewalk and passageway shall not be utilized for vending purposes so as not to obstruct vehicular and pedestrian traffic.

(16) The market operators shall maintain a complete record of fish and meat entries in the market as required by the City Treasurer's Office for taxation and report purposes, in the following form:

Name of Vendor	Variety	Fish/Meat Weight

(17) Each stall in the Fish Section must be provided with running water coming from the Davao City Water District; Provided, that the Meat Section must be provided with an adequate section water coming from the DCWD;

SECTION 285. FACILITIES

Facilities therein must be provided, such as, but not limited to, the following:

(1) There must be an artesian well or flowing water to cushion DCWD water interruption.

(2) A functional storm drainage system must be provided throughout the market premises.

(3) For garbage disposal system, separate containers must be provided each for the dry and wet garbage.

(4) A janitor, security guard, and a collector must be employed immediately upon the opening of the market operation; Provided, that security guards must be posted round-the-clock.

(5) Overhead Illuminations:
(a) Adequate overhead illuminations for the building premises must be provided, including the four (4) corners of the market lot; Provided that, no electricity bulb shall be lower than twenty five (25) watts and no fluorescent lamp shall be lower than twenty (20) watts.
(b) Alleys must be adequately lighted

(6) Water Supply:
(a) Adequate potable water supply must be provided round-the-clock, for drinking purposes.
(b) Adequate mineral water for flushing market floors and comfort facilities must be provided.

(7) Clean and adequate comfort rooms for each sex, properly maintained and disinfected daily.

(8) Clean and convenient parking space.

(9) Electric connections must be complete and proper, with adequate outlets for contingent purposes.

SECTION 286. PROTECTION FOR THE BUYING PUBLIC/CONSUMER

Safeguard must be instituted, such as:

(1) Calibrated weighing scales must be checked by representatives of the City Treasurer.

(2) Meat shall come from slaughterhouse authorized or permitted by the City Government, under proper government supervision - inspected and passed for HUMAN CONSUMPTION.

(3) Adequate security services shall be provided for the safety of the public/consumers and their properties.

SECTION 287. PROPER AND IDENTIFIABLE SECTIONING OF MARKETS

1. Wet Division:
Fish, Meat, Vegetables and Fruits
2. Carenderia Section;
3. Refreshment Parlors;
4. Variety/Sari-Sari Section;
5. General Merchandise and Dry Goods Section;
6. Miscellaneous Section;
7. And the market operators must provide for the dropping zone for the producers/farmers to drop their farm products.

SECTION 288. ANY OTHER RULES

The City Administrator and the City Health Officer shall have the authority to promulgate rules they may deem proper in the premises, in accordance with and in pursuance of law, ordinances, rules or regulations subject to the approval of the City Mayor.

SECTION 289. PENAL PROVISIONS

Any violation of any of the provision of these guidelines shall be penalized by a fine of not more than Five Thousand Pesos (P5,000.00) or imprisonment of not more than six (6) months or both, at the discretion of the court, in addition to the revocation of the violator's permit or license and closure of his business.

Article Five. - Charges for Parking

SECTION 290. GENERAL PURPOSE

It shall unlawful for any vehicle owners/drivers to park their motor vehicles in designated city streets of Davao, without paying corresponding parking fees, as enumerated in the succeeding sections;

SECTION 291. IMPOSITION OF FEE

There shall be collected from all registered owners of motor vehicles operating in the City of Davao, annual parking fees for the use of the City owned parking area or designated streets for pay parking in accordance with the following schedule:

a. Annual Parking Rates

Vehicle Type	Annual
Tricycle	P
Private Cars and Service Vehicles	1,000.00
Jeepneys	1,000.00
Cargo Trucks/Delivery Vans	2,000.00
Buses	2,000.00

b. Daily Parking Rates. - (For those who will not opt to avail of the provisions under sub-paragraph [a] above).

Vehicle Type	Daily
1. For the first three (3) hours	
(a) Buses or cargo trucks	P 10.00
(b) Mini buses or jeepneys	5.00
© Cars	5.00

| (d) Tricycles/motorcycles | 2.00 |
| 2. For each succeeding hour or a fraction thereof: |
(a) Buses or cargo trucks	P	4.00
(b) Mini buses or jeepneys	2.00
© Cars	1.00
(d) Tricycles/motorcycles	1.00

Parking Fees prescribed in this Code shall be paid to the City Treasurer or his duly authorized deputies. The City Treasurer may deputize the barangay treasurer to collect such fees. In case a bond is required for the purpose, the city government shall pay the premium thereon in addition to the premiums of bond that may be required as prescribed under the Local Government Code. It is understood that the barangays from which the parking fee is collected, shall be entitled to a share of twenty percent (20%) from the total amount collected, which share shall be remitted to the barangays concerned after deducting any or all expenses.

SECTION 292. COLLECTED FEES

Parking fees collected under this Article shall accrue to the City Government of Davao and form part of the General Fund, except the share of the barangay mentioned in Section 291 of this Code.

SECTION 293. TIME COVERAGE

The provision of Section 291 of this Article shall be observed and enforced starting 6:00 o'clock in the morning until 9:00 o'clock in the evening, except Saturdays, Sundays, and holidays.

SECTION 294. LIABILITY OF DRIVERS AND/OR OWNERS

The drivers and/or owners of the motor vehicles shall be liable jointly and severally for the non-payment of parking fees.

Article Six. - City Hospital Service Fees

SECTION 295. IMPOSITION OF CITY HOSPITAL SERVICE FEES

The following schedule of fees is hereby imposed for services of facilities rendered by the City Hospital:

Amount of Fee

1. Medical Fees
In Patient:
Ward Room P 450.00
Delivery Room Normal Delivery (excluding medicine) 5,000.00

Out-Patient Service:
P.E. Consultation and Prescription (excluding laboratory and other specific examination)
Hypodermic, IM injection (excluding medicine)
Intravenous injection (excluding medicine)
General Surgical Dressing Suturing of Wound
*Free 50.00 50.00 50.00 50.00 50.00

2. Dental Services:
Extraction per tooth (including anesthesia) Temporary filling per surface Permanent filling per surface Silicate cement Composite filling Prophylaxis
80.00 50.00 50.00 50.00 50.00 50.00

3. X-Ray Examination Fees
Chest X-Ray (PA) AP 150.00
Thoracic - Lumbar (AP Lateral) APL 700.00
Lumbo - Sacral (AP Lateral) 300.00
Extremities, Long Bones, AP Lateral Hand and Wrist - AP 170.00

4. Laboratory Examination Fees:
Blood Chemistry
Fasting Blood Sugar Blood Urea Nitrogen Cholesterol Creatinine Uric Acid Complete blood count Hemoglobin/Hematocrit Determination
75.00 115.00 110.00 90.00 110.00 40.00 30.00

Bleeding/Clotting Time 60.00
Thrombocyte Count 70.00
Parasitology Routine Stool Examination 30.00
Pregnancy Test 100.00
Blood Banking 30.00
ABO -RH Testing (Blood Typing) 30.00
Gram Stain 50.00

SECTION 296. TIME AND MANNER OF PAYMENT

The fees herein shall be paid upon application or prior to the examination. In no case shall deposit be required in emergency cases requiring immediate attention.

SECTION 297. EXEMPTIONS

Residents who are certified by the assigned City Social Services Development Officer (CSSDO) as indigent and upon approval by the City Mayor may be exempted from the payment of any or all fees in this schedule.

An indigent is one who belongs to a family whose family income does not exceed Fifty Thousand Pesos (P 50,000.00) per year or the poverty line established by NEDA, whichever is higher.

Article Seven. Cemetery Charges

SECTION 298. COVERAGE

The provisions of this article shall apply to all unsold, undisposed grave lots/niches in all public cemeteries and all those that may hereafter be acquired by the City of Davao.

SECTION 299. ADMINISTRATION OF CEMETERIES

The administration, operation and maintenance of all public cemeteries within the territorial jurisdiction of the City of Davao shall be under the control and supervision of the Head of the City Economic Enterprise, who shall be the Cemetery Administrator and shall see to it that the provisions of this Article are strictly enforced and complied with.

SECTION 300. LOT CLASSIFICATION

There shall be two sections of grave lots for lease in all public cemeteries.

SECTION 301. LOT IDENTIFICATION

For purposes of identification and reference, lots in any public cemetery of Davao City shall be numbered consecutively with the corresponding block numbers by the Cemetery Administration, in accordance with the Sketch Plan prepared by the City Engineer's Office.

SECTION 302. IMPOSITION OF FEES

There shall be collected the following rental fees for a period of ten (10) years for the rental of City cemetery lots:

1. Fee for Lease Period of ten (10) years
a) Rental fee for Grave Lots
- Adult section P 2,000.00
- Children section 1,000.00
b) Rental fee for Niches
- Ground Level 8,000.00
- Second Level 7,200.00
- Third Level 6,400.00
- Fourth Level 5,600.00

SECTION 303. LEASE OF GRAVE LOTS

Lease of grave lots or cemetery spaces for burials at the Davao City public cemetery shall be per lot, in accordance with the above lot classification.

Grave lots must be lease according to the actual needs or numbers of deceased persons to be buried and shall in no case be leased, disposed of or possessed by reservation or for future use.

SECTION 304. NICHE RENTAL

Niches must be leased according to the actual needs or numbers of deceased persons to be buried and shall in no case be leased, disposed of or possessed by reservation or for future use, nor shall it be subleased.

The full rental fee of the niches in accordance with the above niche classification, as the case maybe, must be paid in advance or prior to their utilization or use.

SECTION 305. PERIMETER NICHES

There shall be constructed niches for lease along the perimeter fence, except the frontage thereof, of every existing public cemetery, if feasible, and in all public cemeteries to be hereafter established in accordance with the specifications indicated in the working plan prepared by the Office of the City Engineer.

SECTION 306. NICHE CLASSIFICATION

There shall be two (2) sections of niches for lease in all public cemeteries: one for children and one for adults.

SECTION 307. NICHE IDENTIFICATION

For purposes of identification and reference, niches constructed along the perimeter fence in all public cemeteries shall be numbered consecutively with the corresponding block numbers in the Cemetery Administration, as indicated in the plan of the City Engineer's Office.

SECTION 308. TIME OF PAYMENT

The fee shall be paid to the City Treasurer upon application for a burial permit prior to the construction thereon of any structure whether permanent or temporary, or to the interment of the deceased. Thereafter, the fee shall be paid within twenty (20) days before the expiration of the lease period.

The fee shall not be collected in a pauper's burial, upon recommendation of the City Mayor.

SECTION 309. PLACE OF TOMBSTONE

The lessee is required to place a grave marker and/or tombstone on the niche or on the grave within three (3) months from the date of burial in the following form:

| Name | Date of Birth | Date of Death |

SECTION 310. TOMBSTONE AND/OR MARKER REQUIREMENT

The grave marker and/or tombstone in any public cemetery in Davao City shall be made in accordance with the approved plans and specifications prepared by the Office of the City Engineer. In no case, shall the construction of niches or installation of grave markers and/or tombstone be permitted, if the same shall be made in the form other than that specified hereof.

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SECTION 311. AUTHORIZED PERSON/S TO SIGN CONTRACTS OF LEASE

The City Economic Enterprise, representing the City Mayor, is hereby authorized to sign, for and in behalf in the City Government of Davao, all contracts of lease which shall, among others include the name of the lessee, civil status nationality, address, relationship to the deceased, name of the deceased relative, the lot or niche classification and location, price and such other information or data as may be necessary.

SECTION 312. DUTY OF THE CEMETERY ADMINISTRATOR

It shall be the duty of the Cemetery Administrator or the Officer-In-Charge of the cemetery administration to ensure the strict compliance and observance of the above provisions, before releasing the lots/niche for lease or the installation of the corresponding grave marker or tombstone therefore, as the case may be.

SECTION 313. PENALTY

Failure to pay the rental fee within the time provided by this Article shall subject the lessee to pay a surcharge of twenty-five percent (25%) and an interest of fourteen percent (14%) per annum based on the unpaid amount until the same shall have been duly paid.

SECTION 314. ADMINISTRATIVE PROVISIONS

(a) As used in this Article, City Cemetery shall refer to the lot owned by the City Government.

(b) A standard cemetery lot shall be three (3) meters long and one (1) meter wide or three (3) square meters.

(c) Except in cases allowed under existing laws and regulations, no person may be buried or interred, permanently or temporarily, other than in properly designated cemeteries or burial grounds.

(d) In addition to the burial permit, a certificate of death issued by the attending physician or City Health Officer; or, if no medical officer is available, by the City Mayor, City Administrator, or any member of the Sangguniang Panlungsod shall be required.

(e) Any construction of whatever kind or nature in the public cemetery whether for temporary or perpetual use, shall only be allowed after the approval of a permit issued by the City Mayor, upon recommendation of the City Health Officer.

(f) In case a lessee intends to renew the lease after its termination, he must inform the City Treasurer within thirty (30) days before the expiry date of the lease, and shall pay the corresponding fees therefore.

(g) It shall be the duty of the City Treasurer to prepare and submit to the City Mayor a list of the leases that are to expire five (5) days prior to the expiration date. The City Treasurer shall send a reminder to the lessee of the expiration of his lease, two (2) weeks prior to the expiration date of the lease.

(h) The City Treasurer shall keep a register in account of the cemetery, together with such additional information as may be required by the Sangguniang Panlungsod.

The 2002 Revenue Code of the City of Davao

Article Eight. - Regulation on the Operation and Supervision Fee on Funeral Parlors, Privately-Owned Public Cemeteries and Memorial Parks

SECTION 315. AUTHORITY TO OPERATE FUNERAL PARLORS, PRIVATELY OWNED PUBLIC CEMETERIES AND MEMORIAL PARKS

(a) The Sangguniang Panlungsod may grant the establishment and operation of funeral parlor, privately owned public cemeteries and memorial parks for a period of not exceeding twenty-five (25) years. Existing covered establishment shall automatically be granted permits to operate subject to the conditions the Sangguniang Panlungsod may adopt for their operations.

(b) Privately-owned public cemeteries and memorial parks shall allocate ten percent (10%) of their total land areas common burial ground on which no fee or charge may be collected except the amount of One Hundred Pesos (P100.00). The remains of the interred person may be exhumed after five (5) years to give way to other who may be buried in the same way. The bones after exhumation shall be placed on plastic bags with identification of the dead and shall be stored in a bones warehouse for final disposition by their living relatives.

All private cemeteries and memorial parks shall submit annually their burial lot/lot plans and list of interred persons and their dates of burial, exhumation or transfer to the City.

(c) Funeral parades shall be made in coordination with the City Traffic Management Office.

(d) The rates of fees and charges including the sale/lease of niches, memorial lots and related services by funeral parlors, public cemeteries and memorial parks shall be approved by the Sangguniang Panlungsod.

SECTION 316. PAYMENT OF SUPERVISION FEE

The operation and management of funeral parlors and private cemeteries and memorial parks shall be under the supervision of the City Health Officer and the owners thereof shall pay an annual supervision fee of One Thousand Pesos (P1,000.00).

SECTION 317. ADMINISTRATIVE PROVISION

All funeral parlors private/public cemeteries and memorial parks shall strictly follow the provision of national laws and issuances and the City Ordinance relative to the care and disposition of dead persons such as:

a) No remains shall be buried without a death certificate signed by the attending physician.

b) The death certificate must be submitted to the City Civil Registrar within forty-eight (48) hours after death.

c) Graves must at least be one and one-half (1 1/2) meters deep.

d) In cases of death resulting from crime or violence, the remains cannot be buried without permission from the City Prosecutor or any government official authorized by law.

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e) Except when required by legal investigation or when permitted by City Health authorities, no unembalmed remains shall stay unburied longer than forty-eight (48) hours after death.

f) When the cause of death is a dangerous communicable disease, the remains must be buried twelve (12) hours after death; the cadaver shall not be taken to any place of public assembly and only the adult members of the family of the deceased may be permitted to attend the funeral.

g) Unclaimed remains shall be buried at the expense of the City Government or may be delivered to medical school or scientific institution upon authority of the City Health Officer.

h) Disinterment or exhumation may only be permitted after a period of five (5) years.

i) For death caused by dangerous communicable disease, disinterment may be granted after five (5) years.

j) The City Health Office may allow earlier disinterment with approval from the City Mayor.

k) Cremation may only be undertaken with the approval of the City Health Officer and the rules and regulations that may be issued for the purposes.

Article Nine. - Rental Fee on Mineral Lands

SECTION 318. COLLECTION OF FEE

There shall be collected an annual rental fee from the lessee of mineral lands in this City for the exploration, development and exploitation and disposition of minerals form said lands covered by lease in accordance with the following rates:

(a) On coal-bearing public lands
Five pesos (P 5.00) per hectare or fraction thereof for each and every year for the first ten (10) years; and

Ten pesos (P 10.00) per hectare or fraction thereof for each and every year thereafter during the lease period.

(b) On public lands bearing quarry resources
Fifty pesos (P50.00) per hectare or fraction thereof for each and every year during the lease period.

(c) On all other mineral lands containing metallic or non-metallic minerals under existing mining laws and decrees.
Ten pesos (P10.00) per hectare, or a fraction thereof for each and every year during the lease period.

SECTION 319. TIME OF PAYMENT

The rental fee shall be paid in advance to the City Treasurer or his duly authorized representative on the date of the granting of the lease and on the same date every year thereafter during the life of the lease.

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Article Ten. - Occupation Fee for Mining Claims

SECTION 320. COLLECTION OF FEE

There shall be collected an annual application fee on locator, holder or occupant of mining claim in the amount of Two Thousand Pesos (P 2,000.00) per hectare or fractional part thereof, until the lease covering the mining claim shall have been granted.

SECTION 321. TIME OF PAYMENT

The fee shall be payable to the City Treasurer on the date of registration of the mining claim and on the same date every year thereafter, until the lease covering the mining claim shall have been granted.

SECTION 322. ADMINISTRATIVE PROVISION

The City Treasurer shall keep a list of all registered mining claims indicating therein the name of locators, area in hectares and date of registration.

Article Eleven. - Regulation in the Establishment, Classification, Administration, and Operation of Government Owned / Operated Public Market

GENERAL PROVISIONS

SECTION 323. COVERAGE

This Ordinance shall govern the establishment, classification, administration and operation of government-owned/or operated public markets in the City of Davao and the imposition and collection of reasonable market rentals, fees and charges for occupancy and use thereof.

SECTION 324. AUTHORITY TO ESTABLISH PUBLIC MARKETS

The City of Davao, pursuant to existing laws and legal procedures, shall have the authority to establish, maintain and operate public markets within its territorial jurisdiction;

SECTION 325. MARKET SECTION

City Public Markets shall be divided into various sections to facilitate an efficient administration thereof.

SUPERVISION AND CONTROL

SECTION 326. CITY ADMINISTRATOR

The City Administrator or his duly authorized representative shall exercise direct and immediate supervision, administration and control over government owned/operated public markets and the personnel thereof, including those whose duties concern the maintenance, upkeep, peace and order of the market premises, except Revenue Collectors in accordance with laws, local ordinance and other rules and regulations pertinent thereto.

SECTION 327. MARKET SUPERVISOR

There shall be a Market Supervisor who under the direct supervision and control of the City Administrator or his duly authorized representative shall have supervision and control over government owned/operated public markets as well as those that may still be established. The said Market Supervisor shall also have full control of the administrative direction of all personnel, except Revenue Collectors and other personnel directly involved in the collection function under such markets and shall enforce the provisions of this articles and other rules and regulations governing the operation of Public Markets.

DUTIES AND RESPONSIBILITIES:

a. Implements and executes the plans and policies of the City Administrator or his duly authorized representative in the operation of all city owned/operated public markets which normally include sanitation, cleanliness, security, order and department inside the market premises.

b. Executes and implements directive and policies emanating from the City Administrator or his duly authorized representative pertaining to the operations of City-owned/operated public market within his/her respective jurisdictions which normally include sanitation, cleanliness, security, order and conduct inside the market premises and its immediate environs.

c. Sees to it that all stallholders are provided with the corresponding official receipts and prescribed cash tickets, respectively, for the stalls or spaces occupied by them;

d. Prepares weekly statistical data on prevailing prices of goods in the public markets, and other means of Consumer's Protection, including flea markets for the information of the City Administrator or his duly authorized representative.

e. Supervises and evaluates the activities and performance of all subordinate market personnel except market collectors and other personnel involved in the collection functions, and investigates complaints effecting their public performances and attitudes.

f. Manages the maintenance and efficient utilization of all market properties; facilities and supplies.

g. Sees to it that foods and other related products sold at the market are fit for human consumption.

h. Strictly implements that meat or carcasses for sale or disposal at the market must be slaughtered at the City-owned slaughterhouse/s or any National Meat Inspection Service (NMIS) approved slaughterhouse/s and must properly stamped or branded and issued with a Meat Inspection Certificate (MIC).

i. Performs such other functions and duties that maybe assigned by the City Administrator or his duly authorized representative.

SECTION 328. MARKET INSPECTOR/S

There shall be a Market Inspector/s for each city-owned or operated public market who shall be the staff-arm of the Market Supervisor.

DUTIES AND RESPONSIBILITIES:

(a) Inspects the Cash Tickets or Official Receipts issued to ambulant/transient and regular vendors;

(b) Inspects the sanitary conditions and upkeep of the Markets;

(c) Assists the Market Supervisor whether all sanitary rules and regulations of the market are complied with;

(d) Reports to the Market Supervisor any deficiencies found during the inspection;

(e) Assists the Market Supervisor to ensure that food and other related products sold at the market are fit for human consumption;

(f) Assists the Market Supervisor that only meat or carcasses for sale or dispose at the market must be slaughtered at the City-owned slaughterhouse/s or any National Meat Inspection Service (NMIS) approved Slaughterhouse/s and properly stamped or branded and issued with a Meat Inspection Certificate (MIC);

(g) Performs such other functions and duties that maybe assigned by the Market Supervisor.

SECTION 329. MARKET GUARD/S AND OTHER PERSONNEL

All market guards and other personnel as may be deemed shall be appointed in accordance with the existing civil service rules and regulations.

MARKET GUARD/S -DUTIES AND RESPONSIBILITIES:

(1) Ensures the protection and safety of all government properties inside the premises of the market and its immediate surroundings;

(2) Assists the Market Supervisor in the maintenance of peace and order in the market and apprehend those who violates the same;

(3) Assists the Market Supervisor and Market Inspector to ensure that meat or carcasses for sale or disposal at the market is properly stamped or branded and with a Meat Inspection Certificate (MIC);

(4) Performs such other functions and duties that maybe assigned by the Market Supervisor.

SECTION 330. WEARING OF UNIFORMS

All market personnel shall be required to wear the prescribed uniform provided by the City.

SECTION 331. CARRIER (CARGADORES) IN THE PUBLIC MARKET

A carrier in any city public market must be a Filipino citizen, of good moral character, as certified by the Barangay Captain of the Barangay where he resides and is registered as such in the Office of the Market Supervisor. Each carrier shall be provided by the Market Supervisor with registration certificate and identification card that which he shall wear conspicuously while working.

CLASSIFICATION AND COLLECTION OF FEES

SECTION 332. CLASSIFICATION OF PUBLIC MARKETS

For the purpose of this Code, City-owned and/or operated public markets are hereby classified into:

Class A - Those with an average monthly income of P 450,000.00 or more during the preceding six (6) months.

Class B - Those with an average monthly income of P 300,000.00 or more but not more than P 450,000.00 during the preceding six (6) months.

Class C - Those with an average monthly income of P 150,000.00 or more but not more than P 300,000.00 during the preceding six (6) months.

Class D - Those with an average monthly income of less than P 150,000.00 during the preceding six (6) months.

The "Average Monthly Income" refers to the total amount collected by the City Treasurer from the Market Vendors for the use of the booth/stall or booths/stalls or spaces they are occupying and all other income derived from market operations, excluding the amount for electric and water bills paid by the vendors/occupants.

The City Treasurer upon consultation with the City Administrator or his duly authorized representative, is hereby empowered to classify the City Government-owned and/or operated public markets immediately upon approval of this Ordinance in accordance with the above-stated classifications and taking into account also its revenue and profit potentials. Subsequent re-classifications may be on the basis of the preceding six (6) months collections but not more than once a year.

SECTION 333. MARKET RENTAL FEES, OTHER CHARGES

Monthly rental fees of market stalls/booths are based on the area in square meters used and occupied by vendors, but in the case of meat and fish sections, the basis shall be the size of the tables used and occupied. The rates of rental

fees are fixed and computed on a daily basis, per square meter, depending upon the market classification in accordance with the following rates:

RATES OF MARKET FEES

Market Rental Fees	Per Square Meter Per Day
Class A	Class B	Class C	Class D
1. Meat	P20.00	P14.25	P8.50	P6.75
2. Fish	18.00	12.75	8.75	6.00
3. Vegetables and Fruits	8.00	5.40	3.40	2.70
4. Rice, Corn, other cereals, dried and/or salted fish	8.00	5.40	3.40	2.70
5. General Merchandise, Dry Goods, Glasswares, Kitchenwares, Table Wares & Home Appliances	8.00	5.40	3.40	2.70
6. Groceries	8.00	5.40	3.40	2.70
7. Eateries, Cafeterias and Refreshment Parlors	8.00	5.40	3.40	2.70
8. Poultry Shops, Chicken, Live Chicken	8.00	5.40	3.40	2.70
9. Flower Shop	8.00	5.40	3.40	2.70
10. All other permanent stalls/booths special services not subject to any particular market fees but shall pay rental fees for occupancy	8.00	5.40	3.40	2.70

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Provided, that there shall be collected from persons, corporations, partnership or entities offering for sale merchandise in jeepneys, pick-up, trucks, bancas, fishing boats or any other conveyances parked or displayed at or in the vicinities of the public markets, or in other places within the territorial jurisdictions of the City of Davao, the following fees:

RATE OF FEES

a) For rice, corn, sugar, or similar commodities placed in sacks, per sack
P 2.00
b) For mongos, beans and ginger placed in sacks, per sack
4.00
c) For pigs (large) 80 kilos or more, per head
10.25
d) For pigs (medium) size 50 kilos or more, but less than 80 kilos, per head
6.25
e) For pigs (small) size less than 50 kilos, per head
4.25
f) For goats, sheepes etc., per head
4.25
g) For chicken, ducks, or fowls, per head
0.50
h) For fresh eggs, per dozen
0.50
i) For vegetables, placed in big baskets (bucag), per basket
4.25
j) For fruits placed in big baskets (bucag), per basket
4.25
k) For one jeepney, pick-up load of vegetables and/or fruits
104.00
l) For one truckload of vegetables and/or fruits
208.00
m) For every kilo of fish, sea foods and/or marine products brought into the vicinities of the public markets or in other places within the territorial jurisdiction of the City of Davao by Producers, Distributors or Wholesalers
0.44 per kilo
n) For one truckload of charcoal, scrapped iron, firewoods, copra and all other similar goods/ commodities/merchandise not subject to any particular fee above prescribed.

208.00

Provided, that goods and commodities delivered to stall, markets booths/holders and tiendas to replenish their stocks, covered by invoices of duly licensed merchants are exempted by the provisions of this article.

SECTION 334. MARKET FEES FOR AMBULANT / TRANSIENT VENDORS

Market fees for the occupancy of market premises by Ambulant/Transient Vendors are hereby fixed as follows:

Markets
Class A
Class B
Class C
Class D
Rate of Fees per square meter or fraction thereof per day
P 4.00
3.00
1.00
1.00

Which shall be due and payable daily: Provided that space occupancy shall in no case exceed an area of one and one-half (1 1⁄2) meters or two (2) square meters: Provided, further, that ambulant/transient vendors shall be limited to areas not earmarked and/or utilized as passage and/or entrance to the market building. Provided, finally, that no structure of any kind or nature, temporary or otherwise, shall be put up or constructed by ambulant/transient vendors.

PROVIDED, That for better located stall/stalls or booth/booths such as those front stall/booths facing the market periphery of streets, and corner stalls/booths, there shall be added to the above-prescribed fees, the following:

1. Front corner stall/stalls or booth/booths 20% of the rates imposed
2. Front stall/stalls or booth/booths 15% of the rates imposed
3. Inside comer stall/stalls or booth/booths 10% of the rates imposed

PROVIDED, FURTHER, that effective the year 2007 and every two (2) years thereafter, there shall be an automatic fifteen percent (15%) increase in rental rates to cover increasing costs of operation.

PROVIDED, FURTHERMORE, that with respect to ambulant vendors at Mintal, Calinan and other public markets which have not been provided by the government with buildings/structures or stalls for the use of the said vendors, who, as a consequence had to build or construct all at their own expense, these structures or stalls being used by them, their fees for the occupancy of the market premises shall remain at One Peso (P 1.00) per square meter per day, until the government shall have been able to provide them with appropriate buildings/structures or stalls.

SECTION 335. TIME FOR PAYMENT / PENALTIES FOR DELINQUENCY

The monthly rentals for market stalls shall become due and payable within the first twenty (20) days of the month. Failure to pay the rental within the period required herein shall subject the Lessee/Occupant to a surcharge of twenty-five (25%) of the amount of the rental fee plus an interest of fourteen percent (14%) per annum upon the unpaid amount from the due date until the rental fee is fully paid.

SECTION 336. OCCUPANCY FEE FOR AWARDEE

Upon the award of any market stall/booth, the awardee shall be required to pay the hereunder rates:

Occupancy Fee per stall/booth	Depending on Market Classification
Class A	Class B	Class C	Class D
Meat Section	P 2,000.00	P 1,450.00	P 850.00	P 700.00
Fish Section	2,000.00	1,450.00	850.00	700.00
Fruits and Vegetables	1,600.00	1,150.00	680.00	550.00
Rice and Corn	1,400.00	1,000.00	600.00	480.00
Groceries	1,400.00	1,000.00	600.00	480.00
Eateries and Ref. Parlor	1,400.00	1,000.00	600.00	480.00
Gen.Merchandise/Dry Goods/Varieties	1,400.00	1,000.00	600.00	480.00

SECTION 337. TRANSFER FEE FOR TRANSFEROR AND OCCUPANCY FEE FOR TRANSFEREE

(a) The awardee may relinquish or transfer his privilege over the stall/booth/space to another qualified person, after payment of Transfer Fee set forth hereunder and after complying with other requirements set by the Market Committee, viz:

Class A	**Class B**	**Class C**	**Class D**
Meat Section	P 50,000.00	P 35,000.00	P 21,000.00	P 17,000.00
Fish Section	50,000.00	35,000.00	21,000.00	17,000.00
Fruits and Vegetables	24,000.00	16,000.00	12,000.00	8,000.00
Rice and Corn	24,000.00	16,000.00	12,000.00	8,000.00
Groceries	24,000.00	16,000.00	12,000.00	8,000.00
Eateries and Ref. Parlor	24,000.00	16,000.00	12,000.00	8,000.00
Gen.Merchandise/Dry	24,000.00	16,000.00	12,000.00	8,000.00
Goods/Varieties				
Others	20,000.00	12,000.00	10,000.00	6,000.00

(b) The transferee may acquire a stall/booth/space from an awardee after complying with the requirements set by the Market Committee and after payment of the Occupancy Fee as provided for in Section 336 of this Article.

© In case of succession, the Transferor is not required to pay "Transfer Fee" but the Transferee or heir shall pay "Occupancy Fee" as set forth in Section 336, hereof.

SECTION 338. COLLECTION

Collection in the public markets of stall rentals, fees from transient vendors, fees from delivery trucks and other conveyances, Mayor's Permit fees and licenses and other fees due the City Government, shall be the responsibility of the City Treasurer. To ensure that such responsibility is properly and effectively discharged, all market collectors, including other personnel involved in collection function shall directly be under the control and supervision of the City Treasurer for collection performance and accountability.

AWARDING OF STALLS

SECTION 339. MARKET COMMITTEE

There is created a permanent market committee to be composed of the following:

1. The City Administrator - Chairperson
2. The City Treasurer - Co-Chairperson
3. The City Legal Officer or his representative - Member
4. Representative of the Sangguniang Panlungsod - Member
5. Representative of the Market Vendors - to be elected by the Federation of Market Vendor's association in Davao City, and appointed by the City Mayor for a term of two (2) years, without re-appointment, unless earlier revoked for cause.

The Market Committee shall have the following duties:

a. Formulate policies, rules, regulations and guidelines for market operation and administration;
b. Conduct periodic review of city market operations;
c. Conduct the drawing of lots, raffle and opening of bids, for the adjudication of vacant or newly constructed stalls or booths in the City-Owned Public Markets;
d. Certify the results thereof, for the approval of the City Mayor;
e. Adjudicate the transfer of stallholders from one section to another or from one stall to another;

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f. Recommend such measures of actions as may be necessary in the resolution of problems, in connection with the use and occupancy of stalls, booths or spaces in the City Public Markets.

g. Decides on the revocation or cancellation of Lease Contract, closure of stall/booth/space or eviction of vendors from the stall/booth/space he occupied on the ground/s of violation of specific provision of this Code.

SECTION 340. ADJUDICATION OF VACANT STALLS TO APPLICANT: VACANCY OF STALLS

Vacant stall shall be leased to the applicant in the following manner:

a) Notice of Vacancy of the stall or booth shall be posted for a period of not less than ten (10) days prior to the date of actual award to qualified applicants to appraise the public of the fact that such stalls or booths are vacant and available for lease;

Such notice shall be posted in the bulletin board of the City Hall of Davao, in this vacant stall as well as in a conspicuous place in the public market concerned.

This notice shall read as follows:

NOTICE

NOTICE is hereby given that the stall/booth, stalls/booths No. Building or Pavilion No. of the Market is/are vacant (or will be vacant on , 20). Any person 21 years of age or more and is not legally incapacitated and meeting the qualifications set by the City Market Committee, desiring to lease the stall/booth or stalls/booths, shall file an application thereto on the prescribed form (copies maybe obtained from the office of the City Administrator during office hours) on or before 12:00 noon of , 20 , after which time no more applications will be entertained. In case there are more than one applicant, the award of the lease of the vacant stall/booth shall be determined thru raffle/drawing of lots, to be conducted on , 20 at by the City Market Committee. The stall/booth or stalls/booths are in the Section, and is intended for the sale of

a) A non-refundable application fee of Two Hundred Pesos ((P 200.00) shall be collected from each applicant, to cover necessary and incidental expenses relative thereto.

b) The application shall be made under oath. It shall be submitted to the Office of the City Administrator thru the Economic Enterprise, who is the Chairman of the Market Committee by the applicant either in person or through his/her authorized representative.

c) It shall be the duty of the City Administrator thru the Economic Enterprise to keep a Registry book, showing the names and address of all applicants for vacant stalls or booths, the number and description of the stalls/booths applied for by them, and the date and hour of the receipts by the Office each application. It shall also be the duty of the said officer to acknowledge receipt of the application setting forth therein the time and date of receipt thereof.

The application shall be substantially in the following form and maybe, modified to suit the needs of particular market:

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APPLICATION TO LEASE MARKET STALL/BOOTH

The City Administrator
Davao City

Sir:

I, _____, _____ years old, Filipino Citizen, single/widow/widower/married to _____, and residing at _____, hereby apply for the lease of market stall/booth No. _____, Section of _____ Public Market.

Should the above-mentioned stall/booth be leased to me in accordance with the market rules and regulations, I promise to hold the same under the following conditions:

1. That, while I am occupying or leasing this stall/booth, I shall at all times have my picture and that of my helper (or those my helpers) conveniently framed and hung-up conspicuously in this stall.

2. I shall keep the stall/booth at all times in good sanitary conditions and comply strictly with all sanitary and market rules and regulations now existing or which may hereafter be promulgated.

3. I shall pay the corresponding rents for the stall/booth or fees for the stall/booth, including business permit or license and taxes in the manner prescribed by existing ordinances.

4. The business to be conducted in the stall/booth shall belong exclusively to me.

5. In case I engaged helpers, I shall nevertheless personally conduct my business and be present at the stall/booth. I shall promptly notify the market authorities of my absence giving my reason or reasons thereof.

6. I shall not lease/occupy more than one (1) stall/booth in a particular market.

7. I shall not sell or transfer my privilege to the stall/booth or permit another person to conduct business therein without the approval from the Market Committee.

8. Any violation on my part or on the part of my helpers of the foregoing conditions shall be sufficient cause for market authorities to cancel the contract of lease.

Very respectfully,

Applicant

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I, _____ do hereby state that I am the person who signed the foregoing statement/application; that I have read the same and that the contents thereof are true to the best of my knowledge.

Affiant

TIN - _____

SUBSCRIBED AND SWORN to before me in the City of Davao, Philippines, this _____ day of _____, 20_____, applicant affiant exhibited to me his/her Residence Certificate No. _____ issued at _____ on _____, 20_____.

Official Title

That after the award of any stall/stalls or booth/booths a Contract of lease shall be executed by the City Administrator and the Awardee after payment of the required Occupancy Fee. The said lease shall be for a period of one (1) year and shall be renewable for every year thereafter, unless sooner canceled or revoked for cause.

The Contract of Lease shall be substantially in the following form and maybe modified to suit the needs of particular market;

Republic of the Philippines
Economic Enterprise
Office of the City Administrator
Davao City

CONTRACT OF LEASE

KNOW ALL MEN BY THESE PRESENTS:

This contract is made and entered in this _____, 20_____, at Davao City, Philippines by and between:

CITY OF DAVAO, a public corporation existing under and by virtue of the laws of the Philippines, represented in this act by its City Mayor and/or the City Administrator, hereinafter called the LESSOR,

And

Mr. / Mrs. _____, of legal age, single/ married, Filipino, whose address as appearing in proof of billing is _____, Davao City, Philippines, hereinafter called the LESSEE:

WITNESSETH

That the LESSEE is the awardee and the actual occupant of Stall No. _____, Section of the Public Market, this city, who are engaging or doing business thereon,

That LESSOR hereby leases the aforesaid stall in favor of the abovementioned LESSEE, subject to the following terms and conditions:

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1. That this Contract of Lease shall be for a period of one (1) year from date hereof and shall be renewable every year thereafter, unless sooner cancelled or revoke for cause;

2. That the LESSEE shall pay two (2) months deposit and one (1) month advance to the LESSOR upon signing of this contract;

3. That the LESSEE shall at all times clean and keep the stall/ booth/ space in good sanitary condition and include therein the immediate surroundings of the stall / booth / space occupied, provide their own garbage receptacles and cleaning materials as prescribed by the Market Supervisor, and shall comply strictly with all sanitary rules and rules of the market now existing or which may after be promulgated;

Failure to maintain the same in good sanitary conditions after two (2) written warnings by the Market Supervisor shall be a ground for revocation of this contract;

4. That LESSEE shall pay the corresponding rent for the stall / booth or space including business permit or license and taxes, in the amount and manner prescribed by existing ordinance;

5. The LESSEE may, subject to the approval of the LESSOR, renew the Contract within twenty (20) days before its expiry date, provided that in case the same is not renewed but the LESSEE continues the occupation of the stall / booth or space with the written consent of the LESSOR, the extension shall be understood as running from month to month only, under the same terms and conditions herein stipulated and maybe terminated by either party by means of written notice serve upon the other party at least fifteen (15) days in advance prior to the date of such termination. However, should the continuous occupation by the LESSEE after the expiry date is without the written consent of the LESSOR, the LESSOR is herein authorized to extra-judicially evict the LESSEE from the stall / booth or space without notice and without liability on the part of the LESSOR whatsoever.

6. That the business to be conducted in the stall / booth or space shall belong exclusively to the herein LESSEE and the latter shall not use the same as his dwelling or sleeping quarter;

7. That during the existence of this contract, the herein LESSEE shall at all times post his picture and that of his helper/s, if there's any, which conveniently framed or hung up in conspicuous place;

8. That the LESSEE shall not sell, convey, or transfer his privilege over the stall / booth or space without the approval from the Market Committee or otherwise sublease or permit another person to engage / conduct therein the violation of which shall be sufficient ground for the revocation of this contract;

9. That LESSEE shall not use the privilege to the stall / booth or space, whether directly or indirectly, as collateral or security for any loan agreement with any public or private entity;

10. That any given time, should the market stall / booth or space be used for a purpose other than which is intended or remain closed or idle for at least thirty (30) consecutive days, the same shall be declared abandoned and the contract is ipso facto revoked, if it is still subsisting, by the Market Committee;

11. That LESSEE shall not be allowed to lease, occupy or acquire more than one (1) stall / booth or space in the aforesaid market, the violation of which is sufficient ground to revoke all stalls / booth or space he is presently occupying;

12. The non-payment of the monthly rental within the first twenty (20) days after it has become due and demandable shall be sufficient cause for revocation of this contract;

13. That the LESSEE shall not in any manner alter the structure and / or make any extension of the stall / booth or space without prior approval from the City Administrator or Manager of Economic Enterprise;

14. That the LESSEE shall pay their own light and water consumption by providing or installation of Electric Meter from DLPC and Water Meter from DCWD respectively, if not possible, through loan meters;

However, if any or both of the consumption is determine through loan meter, the non-payment of which within five (5) days after it fails due, the LESSOR or his authorized representative shall have the right to cut off the supply of water and/or electric current without further notice to the herein LESSEE;

15. That the LESSEE shall provide padlocks and other protective devices to ensure the safety of their wares, goods and other products inside the stall / booth or space occupied;

16. That the LESSEE shall provide a signage / signboard to be placed to the upper front part of the stall / booth or space, the size and the size and designed thereof shall be prescribed by the LESSOR for immediate determination of the actual occupant therein by the management and the consuming public;

17. That the LESSEE shall not be permitted or allow any person to engage 1 any illegal, immoral, offensive, noisy, dangerous trade or business to be conducted on the leased stall / booth or space;

18. That the LESSEE shall not affix, inscribe, or paint any notice, sign or other advertising medium or any part inside or outside his stall / booth / space or building except upon written permission of the LESSOR;

19. That the LESSEE shall comply with all rules and safety regulations promulgated from time to time by the LESSOR and / or health and other authorities arising from or regarding the use, occupancy, or sanitation of the leased stall / booth or space;

20. That the LESSOR or his authorized representative shall have the right to enter the leased stall / booth or space at any reasonable time to inspect, examine, make alterations, repairs, cut off of water and / or electric supply, or for any purposes which is deem necessary for the operation, maintenance, and management of the aforesaid market;

21. That the LESSEE shall not use or cover the fluorescent lamp and / or bulb with any foil, colored cellophane, reflectorized materials or any deceptive devices nor use any sub-standard, non-calibrated or under weight weighing scale and the violation of which is enough ground for the revocation of this contract and eviction of the LESSEE from his stall / booth or space;

22. The LESSEE shall not paint the ceiling of his/her stall into red, green, or any color to make it appear that he/she is selling fresh fish or any marine products, and meat or any carcasses or for any purpose/s of deception and the violation of which is enough ground for the revocation of this contract;

23. The LESSEE shall not sell, dispose and/or possess any meat or carcasses not slaughtered at the City-owned Slaughterhouse/s or any National Meat Inspection Service (NMIS) approved Slaughterhouse/s.

The absence of Meat Inspection Certificate/s (MIC), upon demand on the meat or carcasses for sale, disposal and/or possessions within the market premises is a prima facie evidence that the same is/are "hot meat/s" to be determined by the City Veterinarian Office or his authorized representative and the violation thereof is sufficient ground for the outright revocation of this contract and the eventual eviction of the Lessee from his stall/booth or space;

24. That during the effectiveness of this contract or while the LESSEE is in the legal or physical possession of the leased stall / booth or space the LESSOR shall not be liable for any injuries, or damaged, caused to or suffered by the former, his employees, customer's or guest inside the aforesaid stall / booth or space for whatever cause or reason;

25. That violation of any of the foregoing terms and conditions and other applicable laws, rules, and regulations shall be sufficient ground for an extra-judicial revocation of the contract in addition to the full payment of rentals due. The

LESSOR shall have the right to extra-judicially evict the LESSEE from the stall, booth or space without any liability whatsoever on the part of the LESSOR.

CITY OF DAVAO
LESSOR

By: City Mayor / City Administrator

LESSEE

Signed in the presence of:
1. Witness
2. Witness

ACKNOWLEDGEMENT

Republic of the Philippines)
City of Davao
S.S.

BEFORE ME, NOTARY PUBLIC, for and in the City of Davao, Philippines, this day of 20 , personally appeared the following

Res. Certificate Issued on Issued at

known to me and to me known to be the same persons who executed the foregoing instrument and acknowledged to me that the same is executed in their free act and voluntary deed.

WITNESS MY HAND AND SEAL this day of 20 .

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Series of

NOTARY PUBLIC

SECTION 341. LESSEE SHALL PERSONALLY ADMINISTER HIS/HER STALL/BOOTH/SPACE. ANY PERSON, WHO HAS BEEN AWARDED A RIGHT TO LEASE A MARKET STALL IN ACCORDANCE WITH THE PROVISION OF THIS CODE SHALL OCCUPY, ADMINISTER AND BE PRESENT PERSONALLY AT HIS/HER STALL/BOOTH/SPACE. HELPER/S TO BE EMPLOYED BY THE STALLHOLDER MAY INCLUDE

HIS/HER SPOUSE, PARENTS AND CHILDREN. THE HELPER/S EXCEPTING SPOUSES, PARENTS AND CHILDREN, SHALL BE REGISTERED WITH THE MARKET SUPERVISOR CONFORMABLY WITH THE LATTER'S FORM. PROVIDED THAT UNDER NO CIRCUMSTANCES, SAID PERSON/S SHALL HAVE ANY COMMERCIAL RELATION OR TRANSACTION WITH THE LESSEE

No awardee or the Lessee of Market Stall/Booth/Space shall sub-lease the same, however, the awardee may transfer his privilege over the stall/booth/space upon approval from the Market Committee and after compliance of some requirements as provided for in this Code. A person other than the stallholder, his registered partner or helper found selling in the latter's stall/booth/space is prima facie evidence of sub-leasing and shall subject the stallholder to outright revocation of the lease by the City Administrator.

SECTION 342. PARTNERSHIP WITH STALLHOLDER

A market stallholder who enters into business partnership with any party, after he has acquired the right to lease such stall/booth/space have no authority to transfer to his partner or partners the right to occupy the stall. Provided, however, that in case of death or any legal disability of such stallholder to continue in his business, the surviving partner maybe authorized to continue occupying the stall/booth/space for a period of not exceeding sixty (60) days within which to wind the business of the partnership. If the surviving partner is otherwise qualified to occupy a market stall/booth/space under the provisions hereof and the spouse, parent/s son/s daughter/s of the deceased is not applying for the stall, he shall be given the preference to continue occupying the stall/booth/space concerned if he applied therefore. The partnership must exist at the time the stall/booth/space is awarded to stallholder through raffle.

SECTION 343. DEATH OF LESSEE; SUCCESSION

If an adjudicated regular stallholder dies, or become physically incapacitated permanently for work, the surviving spouse, if living together, may succeed an adjudicated stallholder in the occupancy of the stall/booth/space thereof. Provided, however, that if the stallholder leaves no spouse, or the spouse left is physically incapacitated, any legitimate son or daughter, as the case may be, upon whom devolves the support of the family of the deceased or incapacitated stallholder, shall be the one next in line to succeed said stallholder. Provided, further, that in case of succession, such spouse, son or daughter is a citizen of the Philippines or not otherwise disqualified to apply for such stall/booth/space.

SECTION 344. LIMITATIONS

(a) Any stallholder, transient or ambulant vendor shall not be allowed to lease or occupy more than one (1) stall/booth/space. However, he/she may be allowed one (1) more stall/booth/space in another market, but in no case, shall he/she be allowed to lease or occupy more than a maximum of two (2) stalls/booths/spaces in the entire City of Davao.

It shall be the duty of the Market Supervisor to see to it that this limitation is strictly observed. Any act discovered or found to be in violation of this limitation, shall immediately be reported to the City Administrator or his authorized representative.

(b) No stallholder/person in the City Public Markets shall construct, repair, renovate or undertake any kind of construction of stall/booth without first securing a permit therefore in writing from the City Administrator or his duly authorized representative. Stall/booth constructed/repaired or renovated, in violation of this section, may summarily be removed or destroyed by the City Administrator or his duly authorized representative or his agent and/or employee.

(c) The transferor who availed Section 337 hereof is prohibited to participate in any raffling of stall/booth/space nor acquire the same as transferee in any City-owned public markets.

(d) The awardee, stallholder, Lessee, transferee shall not allowed to use or engaged business on the occupied stall/booth/space other than what it is intended or purpose, i.e., Market Section.

(e) Any extension of the stall/booth/space may be allowed with the written approval from the City Administrator or his duly authorized representative provided that it is not more than one (1) foot of the aisle, movable, and not concrete or permanent structure except at the Rice Section wherein they may be allowed with a maximum of two (2) feet intended for rice box or display.

In case of sidewalk surrounding the market building, the extension may be allowed with a maximum of one-third (1/3) of the total length with the same requirements aforesaid hereto.

SECTION 345. APPEAL

Any applicant who is not satisfied with the adjudication made by the Market Committee of the stall booth applied for by him, may file with the City Mayor, through the City Administrator, an appeal therefrom and the decision of the City Mayor shall become final after a lapse of fifteen (15) days.

SECTION 346. MARKET HOURS

All public markets may be open from 2:00 a.m. and shall be closed at 10:00 p.m. daily. However, this provision shall be observed with maximum tolerance under meritorious cases.

SECTION 347. LOSSES/DAMAGES/INJURY OF STALLHOLDERS/REPRESENTATIVE. THE CITY GOVERNMENT SHALL NOT BE RESPONSIBLE FOR ANY LOSS OR DAMAGE OR INJURY WHICH STALLHOLDERS OR ANY REPRESENTATIVE INCUR IN THE CITY MARKETS BY REASON OF FIRE, THEFT OR FORCE MAJEURE, OR BY REASON OF THEIR BUSINESS OPERATION. ANY MERCHANDISE,

GOODS, WARES OR COMMODITIES LEFT IN THE CITY MARKETS AFTER CLOSURE TIME SHALL BE AT THE RISK OF THE STALLHOLDERS

It shall, however, be the duty of the Market Supervisor and his subordinates, particularly, the security personnel, to exercise utmost vigilance and care to prevent any loss in the City Market and, for this purpose, the Market Supervisor and his subordinates shall have authority to apprehend and turn over to the police any person or persons caught stealing or committing any offense in the City Markets.

SECTION 348. ABANDONED STALL/ARTICLES

Any stall booth in any City Markets, which has been closed for thirty (30) consecutive days and no payment for at least one (1) month shall be considered abandoned and the City Administrator thru the Market Committee shall automatically revoke the lease to such stall booth/space.

Any article abandoned in any city markets in violation of any provisions of this code shall be deemed a nuisance and it shall be the duty of the Market Supervisor and his subordinates to take custody thereof. In case the articles are claimed within twenty-four (24) hours thereafter, they shall be returned to their owners upon payment of actual expenses incurred in their safekeeping unless, they have so deteriorated as to constitute a menace to public health, in which case, they shall be disposed of in the manner directed by the City Administrator or his duly authorized representative, who may also, at his discretion, cause the criminal prosecution of the guilty party or merely warn him/her against future violations. If the articles have not deteriorated and are not claimed within the time herein fixed, said article/articles shall be sold at public auction and the proceeds thereof disposed of in accordance with law.

SECTION 349. PEDDLING AND HAWKING

No person shall peddle, hawk, sell, offer or expose for sale any articles in the passageway or aisles used by buying public in any City Markets.

To avoid unjust competition, peddlers or hawkers shall not be permitted to offer for sale, in the city markets and their surroundings within a radius of two hundred (200) meters where goods are sold or exposed for sale in the stalls, or booths of said markets, neither shall they be permitted to expose or sell merchandise on sidewalks, courts (patios) or places designed and/or intended for the passage of the public to the City Markets. Market Officials and personnel and policemen detailed in the vicinity of the City Market shall exercise strict

SECTION 350. LOAFING, LOITERING, BEGGING AND THE LIKE

No person, not having lawful business in or about any City Market shall idly sit, lounge, walk or lie in or about the premises of the same, nor shall any person beg or solicit alms or contribution of any kind in any city market, nor shall any person abet mendicancy by giving alms directly to mendicants in any city market.

No person shall annoy or obstruct market employees in the discharge of their duties, nor shall parents allow their children to play in or around the stalls or booths in the market premises.

Gambling or any game of chance shall be strictly prohibited within the premises of the markets.

SECTION 351. INTOXICATING DRINKS; DISPENSING AND SERVING OF;

No person shall drink, serve or dispense liquor or any intoxicating drink within the premises of the City Market. Any violation thereof, shall subject to offender to the penal provisions of this Code and his or her lease award shall at once be revoked upon the approval of the Market Committee.

SECTION 352. WEIGHTS, MEASURES AND REFLECTORIZED LIGHT/GADGETS

Any stallholder found violating the provisions of the Revenue Code and/or City Ordinance of the City of Davao regarding weights and measures shall, for the first offense, be required to correct any deficiency of said weights/measure, severely warned and/or reprimanded and, for the second offense, his/her stall/booth/space lease cancelled/revoked, and shall be evicted from the stall/booth/space and be perpetually barred from applying for, leasing and/or occupying any stall/booth/space in any public market owned and/or operated by the City Government of Davao, for which a blacklist shall be prepared. These sanctions shall be in addition to the penalties imposed by other applicable laws at the discretion of the Court.

Any stallholder is not permitted to use and/or install colored lights, gadgets, devices, colored cellophane or other means of deceit to pass on and/or make it appear that the fish, meat, vegetables and others that they are selling or dispose are fresh, new and fit for human consumption.

SECTION 353. LOOSE ANIMALS

No dogs or other animals be left astray in any city market. The Market Supervisor or his authorized representatives are hereby empowered to seize such stray animals and impound them in the City Pound.

SECTION 354. REMOVAL OF CONSTRUCTION AND ALTERATION OF STALLS/BOOTHS

(a) No lessee shall remove, construct repair or alter the original structure of any stall/booth or electrical wiring or water connection without prior written permit from the City Administrator or his authorized representative.

(b) In case of approved removal on original structure of stall/booth, the stallholder shall pay a Restoration Fee equivalent to 100% of its cost to be determined by the City Engineer and Alteration Fee equivalent to 5% of its cost in case of alteration or modification.

© In the event the original structure is removed, altered, or modified without prior written permit or approval from the City Administrator or his duly

The A105 Revenue Code of the City of Davao

SECTION 355. REVOCATION OF LEASE

(a) Failure to pay the rental fees within the first twenty (20) days of the month, in case of monthly payment, or for five (5) consecutive days, in case of daily payments (arkabala), shall be sufficient cause for the revocation of the lease, and/or for the ejection of the stallholder from his/her stall/booth or space, by the City Administrator or his duly authorized representative thru Market Committee Resolution and in accordance with the law on due process.

(b) The Contract of Lease may also be revoked in violations of any provisions hereof and other allied laws by the City Administrator or his duly authorized representative thru the Market Committee Resolution and with due process.

SECTION 356. EJECTED STALLHOLDERS, DISQUALIFIED TO PARTICIPATE IN THE DRAWING OF LOTS

Should a stallholder be ejected from his/her stall/booth for cause, as provided in this Ordinance, he/she shall be absolutely disqualified from filing another application for the lease of said stall/booth or any other stall/booth in any public market of the City.

SECTION 357. PROHIBITIONS

(a) The peddling or sale outside the public market site or premises of foodstuffs, which easily deteriorated like fish and meat, is hereby prohibited.

(b) In no case shall anyone, stallholders or outsider/s convert the stall/booth or any portion of the market premises into temporary or permanent dwelling place where they eat, sleep and use the public market toilets and baths as their own.

Any violation of this specific provision shall subject the violator ejection from the market premises, if the violator is a stallholder and that his stall/booth shall be considered vacant and raffled and awarded to deserving applicants, conformably with this Article.

MAINTENANCE OF CITY MARKETS

The following provisions for the maintenance of City Markets shall be carefully and strictly observed.

SECTION 358. CLEANING OF MARKET PREMISES

The Market Supervisor shall see to it that the market is always clean and in an excellent sanitary condition, including the aisles, divisions, stalls, floors, walls and equipment as well as the whole tract of land belonging to the market. The cleaning of the market premises should be done before the buyers start coming in to the market. The market building and ground should at all times be kept free garbage and rubbish.

SECTION 359. PUBLIC TOILETS AND WASHING FACILITIES

Every market shall be provided with a public toilet with two compartments, one for men and another for women, and shall be kept at all times in excellent and sanitary condition. Toilets as well as the necessary and adequate washing facilities must be located near the market to enable customers to clean up.

SECTION 360. GENERAL LIGHTING FACILITIES

Adequate general lighting facilities shall be provided in the markets. However, stallholders shall provide their own light in their respective stalls at their own expense, subject to existing regulations.

SECTION 361. GARBAGE RECEPTACLES

All markets shall be provided with receptacles of the fly and rat-proof type for the collection of garbage and rubbish. The receptacles shall be placed in the most conspicuous and convenient places in the market. Individual stallholders shall provide themselves with their own receptacles in order to avoid littering in their premises. No stallholders or other persons shall place refuse on the floor, stalls or in any place other than the garbage receptacles.

SECTION 362. COOKED/RAW FOODS PROTECTION FROM CONTAMINATION. COOKED FOODS SHOULD BE SERVED HOT AND AT ALL TIMES PROTECTED AGAINST CONTAMINATION BY FLIES AND OTHER INSECTS AND DIRT. LIKEWISE, RAW FOODS, SUCH AS BEEF, FISH ETC. SHALL AT ALL TIMES BE PROTECTED FROM FLIES AND OTHER INSECTS

SECTION 363. CONSTRUCTION/CARE OF STALLS/BOOTHS, TABLES AND OTHER FIXTURES

All foods shall be sold from stalls, booths, tables, fixtures or constructed according to plans or designs approved by the City Engineer and the City Health Officer. All fixtures should be scrubbed nightly and their surfaces kept smooth always so that food or particles thereof will not lodge in cracks or in rough places to decompose.

SECTION 364. CLEANING OF STALLS/BOOTHS OR SPACES AT END OF BUSINESS DAY

At the close of each day's business and before leaving, stallholders and transient vendors shall clean their stall/booth or spaces. They shall also remove all dirty materials and place rubbish and garbage in containers placed for the purpose in the market.

SECTION 365. ABANDONMENT OF PERISHABLE GOODS

Leaving of discarded or unsold highly perishable goods, such as meat, fish and other sea foods in the stall or in any place within the market premises shall be unlawful and any person found to have abandoned such goods in or about the stalls shall be liable under the penal provisions of this code without prejudice to the revocation of the lease if the person is a stallholder.

SECTION 366. POSTING OF RULES AND REGULATIONS

The Market Supervisor shall post in each city market the rules and regulations in English or Pilipino or Cebuano concerning the sanitation and good order in the city markets, the manner of leasing of stalls therein, the privilege and obligations of stallholders and such other rules and regulations as he may deem necessary in the operations and maintenance of the public market. He shall furnish such stallholders with a copy in English or Pilipino or Cebuano of the rules and regulations herein mentioned.

Article Twelve. - Slaughter and Corral Fees

SECTION 367. IMPOSITION OF FEES

There shall be imposed the following: (a) Slaughterhouse Fee. There shall be collected fees for the slaughter of animals and the use of corals in accordance with the provisions of this article at the slaughterhouse operated by the City Government.

Permit Fee to Slaughter. Before any animal is slaughtered, a permit therefore shall first be secured from the City Veterinarian or his duly authorized representative, and the corresponding permit fee collected by the City Treasurer's Office, as follows:

Per Head
Large cattle P 17.50
Hogs a.) For Lechon 5.25
b.) Others 8.50
Goat/Sheep & All Others 5.25
Chickens & Fowls 0.10

Slaughter Fee. For the use and services of the slaughterhouse at Ma-a and other public slaughterhouses the City Treasurer or its deputized personnel shall collect a Slaughter Fee, as follows:

Per Head
1. For Public Consumption:
Large cattle P 141.40
Hogs 94.28
Goat/Sheep & All others 37.71
Chicken/fowls
(a) Defeathering 1.60
(b) Evisceration 0.40
(c) Entrail Separation and Gizzard Cleaning 0.80
(d) Leg descaling 1.20

2. For Home Consumption:
Large cattle P 94.28
Hogs 47.14
Goat/Sheep & All others 18.85
Chicken/fowls
(a) Defeathering 1.20
(b) Evisceration 0.40
(c) Entrail Separation and Gizzard Cleaning 0.40
(d) Leg descaling 0.80

Provided, that Slaughter Fees herein shall be increased yearly at the rate of Five Percent (5%) of the above schedules, starting from the year 2007 and every year thereafter.

(b) Corral Fee. Shall be collected by the City Treasurer for the animals to be slaughtered which are deposited and kept in corals owned by the City, viz:

Per Head
Large cattle P 16.50
Hogs 8.35
Goat/Sheep & All others 5.00
Chicken and fowls 0.08

(c) Delivery Fee Charge. All carcasses and meat products of animals slaughtered at Ma-a slaughterhouse shall be delivered to the respective market outlets or wholesaler outlets, through the accredited meat delivery van and the corresponding delivery fees/charge shall be collected by the City Treasurer, as follows:

Per Head
1. Matina/Poblacion/Agdao/Buhangin:
Large Cattle P 33.00

Hogs/Swine 24.75
Goat/Sheep & All others 12.25
Chicken/fowls 0.16

2. Other Markets:
Large Cattle P 49.50
Hogs/Swine 33.00
Goat/Sheep & All others 24.75
Chicken/fowls 0.25

(d) Ante-Mortem and Post-Mortem Fees. There is hereby collected ante-mortem and post-mortem fees for the slaughter of animals, in City operated slaughterhouses or those authorized by the City Government, as follows:

Per Head
1. Ante-Mortem Fees
Cattle, P 5.00
Carabao, Buffaloes 5.00
Horses 5.00
Swine 3.00
Goats, Sheep/Deer 1.50
Poultry 0.15

2. Post-Mortem Fees: 0.25 / Kg.

(e) Other Fees and Charges.
For the use of the ice crusher and chilling facilities at Ma-a Slaughterhouse, the following fees and charges shall be collected by the City Treasurer:
Ice Crusher P 4.25 per block
Chilling Facilities for Chicken 82.50 per 1,000 heads

Executive Order 137 Section 4 (a) states that only transport vehicles accredited by the City Veterinarian shall be used to deliver meat products within the City. Whereas, Section 4 (e) states that the licensing and regulation of butchers, meat vendors, meat dealers, and meat stall/shops is to be exercised by the City, therefore the following fees and charges are hereby imposed:

Meat & Meat Products Delivery Van P 300.00/year
Meat Shop Operator 100.00/year
Meat Processor 100.00/year
Meat Dealer 50.00/year
Vendor 50.00/year
Butcher 50.00/year
Dresser 50.00/year
Cutter 50.00/year

Fish Inspection Fee P 0.10 /kilo or P 30.00 /banyera

SECTION 368. PLACE OF SLAUGHTER

The slaughter of any kind of animal for sale to or consumption of the public shall be done only in the slaughterhouse unless otherwise authorized by the City Government. The slaughter of animals intended for home consumption may be done elsewhere; provided, that the animals slaughtered shall not be sold or offered for sale.

SECTION 369. TIME OF PAYMENT

(a) Permit Fee. The fee shall be paid to the City Treasurer upon application for a permit to slaughter with the City Veterinarian.
(b) Slaughter Fee. The fee shall be paid to the City Treasurer or his authorized representative before the slaughtered animal is removed from the public slaughterhouse, or before the slaughtering of the animal if it takes place elsewhere outside the public slaughterhouse.

The Revenue Code of the City of Davao

(c) Corral Fee. The fee shall be paid to the City Treasurer before the animal is kept in the city corral or any place designated as such. If the animal is kept in the corral beyond the period for, the fees due on the unpaid period shall first be paid before the same animal is released from the corral.

SECTION 370. ADMINISTRATIVE PROVISION

(a) The slaughter of any kind of animal intended for sale shall be done only in the city slaughterhouse designated as such by the Sangguniang Panlalawigan. The slaughter of animals intended for home consumption may be done elsewhere, except large cattle which shall be slaughtered only in the public slaughterhouse. The animal slaughtered for home consumption shall not be sold.

(b) Before issuing the permit for the slaughter of large cattle, the City Treasurer shall require for branded cattle, the production of the certificate of ownership and certificate of transfer showing title in the name of the person applying for the permit if he is not the original owner. If the applicant is not the original owner, and there is no certificate of transfer made in his favor, one such certificate shall be issued and the corresponding fee to be collected therefore.

For unbranded cattle that have not yet reached the age of branding, the City Treasurer shall require such evidence as will be satisfactory to him regarding the ownership of the animal for which permit to slaughter has been requested.

For unbranded cattle of the required age, the necessary certificate of ownership and/or transfer shall be issued, and the corresponding fees collected therefore before the slaughter permit is granted.

(c) Before any animal is slaughtered for public consumption, a permit thereof shall be secured from the City Veterinarian or his duly authorized representative, through the City Treasurer. The permit shall bear the date and month of issue and the stamp of the City Veterinarian, as well as the page of the book in which said permit number is entered and wherein the name of the permittee, the kind and sex of the animal to be slaughtered appears.

(d) The permit to slaughter as herein required shall be kept by the owner to be posted in a conspicuous place in his/her stall at all times.

SECTION 371. PROHIBITION

It shall be unlawful for any person, natural or juridical, to sell or buy, for business or commerce, within the territorial jurisdiction of the City, unprocessed carcasses or meat of animals and fowls slaughtered in places other than the City operated slaughterhouses or those authorized by the National Meat Inspection Service (NMIS).

Permit to slaughter shall not be granted nor the corresponding fee collected on animals condemned by the City Veterinarian.

SECTION 372. CONFISCATION: OTHER PENALTY

All such unprocessed carcasses or meat butchered at slaughterhouses other than the City operated slaughterhouse or those authorized by the National Meat Inspection Service (NMIS), shall be confiscated or seized in favor of the government and shall be disposed of in accordance with law.

SECTION 373. PENAL PROVISIONS

a) Surcharges. Any person occupying or using a space in the public market without first paying the fees herein above provided, shall be subject to the payment of market fees in an amount equivalent to three times the regular rate fixed for the space occupied. Any person occupying more space than what is duly leased to him shall pay double the regular rate for such extra space and shall remove any unauthorized extension made, if there be any, and any person who fails to pay the monthly rent within the time fixed here shall pay a penalty of twenty-five percent (25%) of the rent due plus annual

interest upon the unpaid rental/fee at the rate of fourteen percent (14%) per annum from the due date until fully paid.

b) Fines/Imprisonment. Any violation of this Article, shall be penalized with a fine of not exceeding One Thousand (P1,000.00) Pesos or imprisonment of not more than six (6) months, or both at the discretion of the court. If the violation is committed by a juridical entity, the president or persons in charge shall be penalized.

c) Cancellation of Lease Right and Ejection. Likewise, any stallholder who fails to pay the monthly or daily fees herein prescribed and such other regulatory fees mandated by other laws or ordinances or violates any provisions of this article shall be sufficient cause for the revocation of his/her lease right and his/her ejection from the stall/booths or space so occupied. The revocation or cancellation of such lease right may be effected by the City Administrator, after observance of due process.

d) The Market Supervisor may issue a Notice of Violation/s to the Awardee, Lessee, Transferee, Actual Occupant or Transient, Vendor, indicating therein the specific provision/s so violated, give reasonable time to correct or effect it and endorse or transmit to the Market Committee in case of non-compliance to the same.

CHAPTER 6 - COMMUNITY TAX

SECTION 374. IMPOSITION OF TAX. THERE SHALL BE IMPOSED A COMMUNITY TAX ON PERSONS, NATURAL OR JURIDICAL, RESIDING IN THE CITY

SECTION 375. INDIVIDUALS LIABLE TO COMMUNITY TAX. EVERY INHABITANT OF THE PHILIPPINES WHO IS A RESIDENT OF THIS CITY, EIGHTEEN (18) YEARS OF AGE OR OVER WHO HAS BEEN REGULARLY EMPLOYED ON A WAGE OR SALARY BASIS FOR AT LEAST THIRTY (30) CONSECUTIVE WORKING DAYS DURING ANY CALENDAR YEAR, OR WHO IS ENGAGED IN BUSINESS OR CORPORATION, OR WHO OWNS REAL PROPERTY WITH AN AGGREGATE ASSESSED VALUE OF ONE THOUSAND (P1,000.00) PESOS OR MORE, OR WHO IS REQUIRED BY LAW TO FILE AN INCOME TAX RETURN SHALL PAY AN ANNUAL COMMUNITY TAX OF FIVE (P5.00) PESOS AND AN ANNUAL ADDITIONAL TAX OF ONE PESO (P1.00) FOR EVERY ONE THOUSAND PESOS (P1,000.00) OF INCOME REGARDLESS OF WHETHER FROM BUSINESS, EXERCISE OF PROFESSION OR FROM PROPERTY WHICH IN NO CASE SHALL EXCEED FIVE THOUSAND PESOS (P5,000.00)

In the case of husband and wife, the additional tax herein imposed shall be based upon the total property owned by them and the total gross receipts or earnings derived by them.

SECTION 376. JURIDICAL PERSONS LIABLE TO COMMUNITY TAX. EVERY CORPORATION NO MATTER HOW CREATED OR ORGANIZED, WHETHER DOMESTIC OR RESIDENT FOREIGN, ENGAGED IN OR DOING BUSINESS IN THE PHILIPPINES WHOSE PRINCIPAL OFFICE IS LOCATED IN THIS CITY

SHALL PAY AN ANNUAL COMMUNITY TAX OF FIVE HUNDRED PESOS (P500.00) AND AN ADDITIONAL TAX, WHICH IN NO CASE, SHALL EXCEED TEN THOUSAND PESOS (P10,000.00) IN ACCORDANCE WITH THE FOLLOWING SCHEDULE:

(a) For every Five Thousand Pesos (P5,000.00) worth of real property in the Philippines owned by it during the preceding year based on the valuation used in the payment of real property tax under existing laws, found in the assessment rolls of this city where the real property is situated - Two (P2.00) Pesos; and

(b) For every Five Thousand Pesos (P5,000.00) of gross receipts or earnings derived by it from its business in the Philippines during the preceding year - Two (P2.00) Pesos.

The dividends received by a corporation from another corporation shall, for the purpose of the additional tax, be considered as part of the gross receipts or earnings of said corporation.

SECTION 377. EXEMPTION

The following are exempted from the Community Tax:
(a) Diplomatic and consular representatives;
and
(b) Transient visitors when their stay in the Philippines does not exceed three (3) months.

SECTION 378. PLACE OF PAYMENT. THE COMMUNITY TAX SHALL BE PAID IN THE OFFICE OF THE CITY TREASURER OR TO THE DEPUTIZED BARANGAY TREASURER

SECTION 379. TIME OF PAYMENT; PENALTIES FOR DELINQUENCY:

(a) The Community Tax shall accrue on the first (1st) day of January each year which shall be paid not later than the last date of February of each year.
(b) If a person reaches the age of eighteen (18) years or otherwise loses the benefit of exemption on or before the last day of June, he shall be liable for the community tax on the day he reaches such age or upon the day the exemption ends. However, if a person reaches the age of eighteen (18) years or loses the benefit of exemption on or before the last day of March, he shall have twenty (20) days to pay Community Tax without becoming delinquent.
(c) Persons who come to reside in the Philippines or reach the age of eighteen (18) years on or after the first (1st) day of July of any year, or who cease to belong to an exempt class on or after the same date, shall not be subject to the Community Tax for that year.
(d) Corporations established and organized on or before the last day of June shall be liable for the Community Tax for that year. But corporations established and organized on or before the last day of March shall have twenty (20) days within which to pay Community Tax without becoming delinquent. Corporations established and organized on or after the first day of July shall not be subject to the Community Tax for that year.
(e) If the tax is not paid within the time prescribed above, there shall be added to the unpaid amount an interest of twenty-four (24%) percent per annum from the due date until it is paid.

SECTION 380. COMMUNITY TAX CERTIFICATE. A COMMUNITY TAX CERTIFICATE SHALL BE ISSUED TO EVERY PERSON OR CORPORATION UPON PAYMENT OF THE COMMUNITY TAX. A COMMUNITY TAX CERTIFICATE MAY ALSO BE ISSUED TO ANY PERSON OR CORPORATION NOT SUBJECT TO THE COMMUNITY TAX UPON PAYMENT OF ONE PESO (P1.00)

SECTION 381. PRESENTATION OF COMMUNITY TAX CERTIFICATE ON CERTAIN OCCASIONS

(a) When an individual subject to the Community Tax acknowledges any document before a notary public, takes the oath of office upon election or

appointment to any position in the government service; receives any license, certificate, or permit from any public authority; pays any tax or fee, receives any money from public funds, transacts any official business; or receives any salary or wage from any person or corporation, it shall be the duty of any person, officer or corporation with whom such transaction is made or business done or from whom any salary or wage is received to require such individual to exhibit the Community Tax Certificate.

The presentation of Community Tax Certificate shall not be required in connection with the registration of a voter.

(b) When through its authorized officers, any corporation subject to the Community Tax receives any license, certificate, or permit from any public authority, pays any tax or fee, receives money from public funds, or transacts other official business it shall be the duty of the public official with whom such transaction or business is made or done, to require such corporation to exhibit the Community Tax Certificate.

(c) The Community Tax Certificate required in the two preceding paragraphs shall be the one issued for the current year, except for the period from January until the fifteenth (15) of April each year, in which case, the certificate issued for the preceding year shall suffice.

SECTION 382. COLLECTION AND ALLOCATION OF PROCEEDS OF THE COMMUNITY TAX

(a) The City Treasurer shall deputize the Barangay Treasurers, subject to existing laws and regulations, to collect the Community Tax payable by individual taxpayers in their respective jurisdictions; provided, however, that said Barangay Treasurer shall be bonded in accordance with existing laws.

(b) One Hundred Percent (100%) of the proceeds of the Community Tax actually and directly collected by the City Treasurer shall accrue entirely to the general fund of this City.

The proceeds of the Community Tax collected through the Barangay Treasurers shall be apportioned as follows:

(1) Fifty (50%) percent shall accrue to the General Fund of the City;

and

(2) Fifty (50%) percent shall accrue to the barangay where the tax is collected.

CHAPTER 7. OTHER SOURCE OF REVENUE

Share from the Development and Utilization of National Wealth

SECTION 383. SHARE IN THE PROCEEDS FROM THE DEVELOPMENT AND UTILIZATION OF THE NATIONAL WEALTH

The City shall have an equitable share in the proceeds derived from the utilization and development of the National Wealth within its respective area.

SECTION 384. AMOUNT OF SHARE

In addition to the Internal Revenue Allotment (IRA), the City shall have a share of forty percent (40%) of the gross collection derived by the National Government from the preceding fiscal year

from mining taxes, royalties, forestry and fishery charges and such other taxes, fees, or charges, including related surcharges, interests, or fines, and from its share in any co-production, joint venture or production sharing agreement in the utilization and development of the national wealth within its territorial jurisdiction.

SECTION 385. SHARE FROM ANY GOVERNMENT AGENCY OR GOVERNMENT

Owned or -Controlled Corporation (GOCC). - The City shall have a share based on the preceding fiscal year from the proceeds derived by any government agency or government-owned or -controlled corporation engaged in the utilization and development of the national wealth based on the following formula, whichever will produce a higher share:

(a) One Percent (1%) of the gross sales or receipts of the preceding calendar year; or

(b) Forty Percent (40%) of the mining taxes, royalties, forestry and fishery charges and such other taxes, fees or charges, including related surcharges, interests, or fines.

SECTION 386. REMITTANCE OF THE SHARE

The share of the City shall be released, without need of any further action, directly to the City Treasurer, as the case may be, on a quarterly basis within five (5) days after the end of each quarter, and which shall not be subject to any lien or holdback that may be imposed by the National Government for whatever purpose.

SECTION 387. DEVELOPMENT AND LIVELIHOOD PROJECTS

The proceeds from the share of the City shall be appropriated by the Sangguniang Panlungsod to finance local development and livelihood projects. Provided, that at least eighty percent (80%) of the proceeds derived from the development and utilization of hydrothermal, geothermal, and other sources of energy shall be applied solely to lower the cost of electricity in the area where the source of energy is located.

CHAPTER 8. GENERAL ADMINISTRATIVE PROVISIONS

Article One. - Administrative Provisions

SECTION 388. PERMIT TO OPERATE

All persons natural or juridical subject to business tax under this Code and/or persons, agents and brokers transacting business for their principals and/or representing firms or offices of business establishments shall secure an annual permit to operate from the Office of the City Mayor, not earlier than December first and not later that January 20th of the succeeding year. Persons engaging in business for the first time shall secure the permit before the start of the business.

A permit to operate a business shall be granted only if:
a. The applicant therefore has no unsettled tax obligation whatsoever to the government;
b. The business establishment, if any, conform to the zoning regulations and safety and health requirements of the City wherein the same is located; and
c. The applicant is not disqualified under provisions of law to establish, maintain and operate the business.

The City Treasurer shall recommend the issuance of, and the City Mayor shall issue, the permit to operate.

SECTION 389. SUBMISSION OF LIST OF EMPLOYEES

All operators of business establishments (natural or juridical person), as well as administrative officers of national government units including government owned or controlled corporation found in the City are required to submit not later that the 15th day of May of each year a list of persons under their employ, stating therein the following:

1. name and address;
2. profession;

3. professional tax paid if any, O.R. No., date place of issue;
4. position/designation;
5. total salaries, wages and allowances per annum;
6. community tax certificate number, date, place of issue and amount paid.

All association composed of professional and/or having an occupation or calling shall submit the list of their members to the City Treasurer and/or his authorized representative not later that the 15th day of December of each year indicating the following:

1. name and address;
2. profession;
3. professional tax paid, O.R. No., date, place of issue, and amount paid.

All business operators and/or private individual (natural or juridical) securing a building construction permit and/or certificates of completion; occupancy from the City Engineer's Office shall submit the business permit of the contractors who contracted the said project together with the certification of the City Treasurer that the corresponding taxes of the said contractor have been paid. For this purpose, the City Building Official is directed to require the aforementioned requirement before the issuance of building/construction permit and certificate of completion/occupancy.

SECTION 390. WITHHOLDING OF BUSINESS TAX

Requirement of Withholding. - Every person/firm/entity making payment to any businessman/entity doing business within the territorial jurisdiction of Davao City without the necessary business permit issued by Davao City Government shall deduct and/or withhold three percent (3%) of the contract price in case of contractor and similar businesses; likewise three percent (3%) for all payments of purchases in case of manufacturers, producers, assemblers, repackers, wholesalers, distributors, dealers, retailers and other similar businesses to ensure payment of taxes due to the City Government.

It shall be the duty of every person/firm/entity mentioned above, to demand/inquire for the business permit of any person; transacting business with them for the purpose of compliance issued by the City Mayor of Davao, of this Article.

SECTION 391. DISPLAY OF OFFICIAL RECEIPT EVIDENCING PAYMENT OF THE TAX OR FEE

The official receipt showing payment of the taxes, fees and other impositions and the valid permit issued by the Office of the City Mayor as provided by this ordinance shall be displayed on a conspicuous place in the establishment or office used in connection with the conduct of the business or the exercise of the privileges.

Failure on the part of the taxpayer to display such valid permit issued by the City Mayor and the corresponding official receipts representing payment of taxes and fees and other imposition, shall subject the said taxpayer to a fine of One Hundred Pesos (P100.00) a day payable upon demand of the City Treasurer and/or his authorized representative. The fine shall continue until such time the taxpayer will be able to display the said permit, but in no case shall it exceed Five Thousand Pesos (P 5,000.00).

SECTION 392. DUTY OF A PERSON RETIRING FROM BUSINESS, PRACTICE OF PROFESSION, PURSUIT OF A CALLING OR EXERCISE OF PRIVILEGE:

(a) Any person retiring from his business, practice of profession, pursuit of a calling or exercise of privileges, shall surrender to the City Treasurer the official receipt evidencing his last payment of the tax or fee or other impositions. A person required by this ordinance and/or the National Internal Revenue Code to keep books of accounts shall also surrender the same for purposes of determining if he has still unpaid obligation. The official receipt and book of accounts shall be stamped " RETIRED " and forthwith returned by the City Treasurer or his authorized representative to the retiring taxpayer.

Retirement made within the first twenty (20) days of a calendar quarter, in the case of a taxpayer who is allowed to pay his tax or fee quarterly and within the period when the annual tax or fee may be paid without any surcharge in the case of a taxpayer required to pay the tax or fee by the year, shall not subject the retiring taxpayer to any further obligation, save for any deficiency that may be found pursuant to the preceding paragraph. Otherwise, the taxpayer shall be subjected to the next quarterly or annual tax, as the case may be, plus twenty-five percent (25%) surcharge thereon and two percent (2%) monthly interest on the unpaid amount until the tax, fee, or charge including surcharges is fully paid, but in no case shall the total interest on the unpaid amount or a portion thereof exceed thirty-six (36) months.

(b) Surrender of Permit. Every person holding a permit shall surrender the same to the Office of the City Mayor and notify the Office of the City Treasurer within thirty (30) days upon its revocation or closure of the business for which the permit was issued otherwise said business shall be presumed to be still in actual operation and taxes imposed therein shall be collected up to the actual time the permit had been surrendered to the Office of the City Mayor and upon the proper notification to the City Treasurer, including surcharge and interest imposed under this ordinance but in no case that collection of taxes be more than three (3) years.

SECTION 393. TAX OR FEE FOR FRACTION OF A QUARTER OR YEAR

Unless otherwise provided by this ordinance, a person shall pay the full quarterly or annual tax or fee, as the case may be, notwithstanding the fact that he starts the business, the practice of the profession, and the pursuit of the calling or the exercise of the privilege at any time other than the beginning of the quarter of the year.

SECTION 394. PENAL PROVISIONS

Except as otherwise specifically provided in the code, a fine of not less than One Thousand Pesos (P 1,000.00) nor more than Five Thousand Pesos (P5,000.00) or imprisonment of not less than one (1) month nor more than six (6) months or both, at the discretion of the court, is hereby imposed for violation of any of the provisions hereof.

The 2003 Revenue Code of the City of Davao

Article Two. - Collection and Accounting of Taxes and Other Impositions

SECTION 395. TAX PERIOD AND MANNER OF PAYMENT

Unless otherwise provided in this Ordinance, the tax period for all local taxes, fees and charges imposed under this ordinance shall be the calendar year, although the same may be paid in quarterly installments, except as otherwise provided.

SECTION 396. ACCRUAL OF THE TAX

The taxes, fees, and other impositions provided by this code shall accrue on the first day of January of each year as regards subjects then liable therefore. However, new taxes, fees, or charges, or changes in the rate of existing taxes, fees, or charges shall accrue on the first day of the quarter next following the effectiveness of the ordinance imposing such new levies or taxes.

SECTION 397. TIME FOR PAYMENT

Unless otherwise specifically provided in this code, all the taxes, fees, and charges imposed in this code due and accruing to the city Government of Davao shall be paid within the first twenty (20) days of January or of each subsequent quarter, as the case may be.

SECTION 398. SURCHARGES FOR LATE PAYMENT AND INTEREST ON UNPAID TAX

Except as otherwise specifically provided in this ordinance, failure to pay the tax, fee or charge within the time required herein, shall subject the taxpayer to a surcharge of twenty-five (25%) of the amount of tax, fee or other imposition due not paid on time and an interest at the rate not exceeding two (2%) percent per month of the unpaid taxes, fees or charges including surcharges, until such amount is fully paid but in no case shall the total interest on the unpaid amount exceed thirty-six (36) months.

SECTION 399. ASSESSMENT AND COLLECTION

Assessment and collection of all taxes, fees and charges due to this City shall be the sole duty and responsibility of the City Treasurer or his duly authorized representatives.

Unless otherwise specifically provided in this code or under existing laws and ordinances, the City Treasurer is hereby authorized, subject to the approval of the City Mayor, to promulgate rules and regulations for the proper and efficient administration and collection of taxes, fees and charges herein levied and imposed.

SECTION 400. ISSUANCE OR RECEIPTS

It shall be the duty of the City Treasurer or his authorized representative to issue the required official receipt to the person paying the tax, fee or charge wherein the date, amount, name of the person paying and the account for which it is paid, are shown.

The Ordinance number and the specific section thereof upon which collections are based shall invariably be indicated on the face of all official receipts acknowledging payment of taxes, fees or charges.

SECTION 401. RECORD OF PERSONS PAYING REVENUES

It shall be the duty of the City Treasurer to keep a record, alphabetically arranged and open to public inspection during office hours, of the names of all persons paying city taxes, fees and charges. He shall as far as practicable establish and keep current the appropriate tax roll for each kind of tax, fee or charge provided in this Code.

SECTION 402. ACCOUNTING OF COLLECTIONS

Unless otherwise provided in this Code and other existing law and ordinances, all monies collected by virtue of this code shall be accounted for in accordance with the provisions of existing laws, rules and regulations and credited to the General Fund of the City.

SECTION 403. EXAMINATION OF BOOKS OF ACCOUNTS AND PERTINENT RECORDS OF BUSINESSMEN BY THE CITY TREASURER

For the purpose of effective enforcement and collection of the taxes, fees and other impositions provided by this code, the city treasurer may, by himself or through any of his deputies duly authorized in writing, examine the books of accounts and other pertinent records of any person, partnership, corporation or association or other business establishments doing businesses within the city, and subject to city taxes, to ascertain, assess and collect the true and correct amount of the tax due from the taxpayer concerned. Such examination shall be made during regular business hours once every year for every tax period, which shall be the year immediately preceding the examination. Any examination conducted pursuant to the provisions of this section shall be certified to, by the examining official and such certificate shall be made of record in the books of accounts of the taxpayer concerned.

In the case of examination herein authorized to be made by a duly authorized deputy of the city treasurer, there shall be written authority issued to the former which shall specifically state the name, address and business of the taxpayer whose books of accounts and pertinent records are to be examined, the date and place of such examination, and the procedure to be followed in conducting the same.

The books of accounts kept by the business establishments pursuant to the provisions of the National Internal Revenue Code shall be sufficient for determining the correct amount of taxes, fees, charges and other impositions and the establishment shall no longer be required to keep another, or separate books of accounts for the purpose. For this purpose, the records of the Revenue District Office of the Bureau of Internal Revenue shall be made available to the City Treasurer, his deputy or duly authorized representative.

The revenue district officer of the Bureau of Internal Revenue of Davao City shall make available all the data needed in the course of examination of books of account of business establishments especially the reproduction of the audited financial statement attached in the income tax return upon official request by the City Treasurer of Davao.

SECTION 404. KEEPING OF CASH REGISTER BOOK AND REGISTRATION OF BOOKS OF ACCOUNTS

All corporations, companies, partnership or persons using cash register machines shall keep a cash register book to record all transactions of the cash register slip or sheet for the day and shall preserve said record as prescribed by Section 203 of the National Internal Revenue Code. The Said book and records shall be subject to examination and verification of the Local Treasury Officers.

All books being used by corporations, companies, partnership or persons including subsidiary books shall be registered in the office of the Treasurer upon the start of business operations and every first working day or the first month of calendar or fiscal year as the case may be. Likewise, all official receipts cash sales, cash invoices, delivery receipts and other receipts used in the collection shall be registered in the office of the City treasurer, Davao City before using the same. Failure on the part of corporations, companies, partnership or persons to register their book of records and official receipt, cash sales, cash invoice,

charge invoice, delivery receipt and other receipts used in the collection shall be punished pursuant to the penal provision of this Code.

The book of accounts and other pertinent records of tax exempt organizations of grantees of tax incentives shall be subject to examination by the City Treasurer and/or his duly authorized representative for purposes of ascertaining compliance with the conditions under which they have been granted tax exemption on the tax incentives, and their tax liability, if any.

In case of government-owned and controlled corporations which are involved in the utilization and development of the national wealth within the jurisdiction of Davao City as well as on line National Government Agencies collecting mining taxes, royalties, forestry and fishery charges, and such other taxes, fees including related surcharges, interest or fines, and from its share in any co-production, joint venture on production sharing agreement in the utilization and development of the national wealth within the territorial jurisdiction of Davao City shall be subject to examination of books of accounts and other pertinent records to determine the share of the City Government and barangay concerned as provided for under Section 289, 290, 291, 292 and 293 of the Local Government Code of 1991, otherwise known as Republic Act 7160.

Any person who refuses to cooperate or fails to submit any document requested by the City Treasurer or his duly authorized representative in connection with the examination of Books of Accounts within the period stated in the Letter of Authority, which shall not be less than fifteen (15) calendar days from receipt thereof, shall be punished in accordance with the penal provision of this Code. In case of corporation, partnership or association, the President, Vice President, Directors, Treasurer or any officer or employee responsible for the violation shall be liable for such offense.

Failure on the part of any person (natural or juridical) to register in the City Treasurer their book of accounts, book of records and official receipt, cash sales, cash invoice, delivery receipt and other receipts used in the collection within fifteen (15) working days from time of filing the application for new or renewal of business permit shall be administratively fined Five Thousand Pesos (P5,000.00).

SECTION 405. INVOICE REQUIREMENTS

It shall be unlawful for any person, firm, company or corporation engaged in the business mentioned under the provisions of this Code and other businesses, trades or occupation operated within the territorial jurisdiction of Davao City, not to issue a duly registered and serially numbered commercial invoices showing among other things the name or style of the business, if any, and business address, for every sale or service rendered worth Five Pesos (P5.00) or more, and it will be unlawful for anyone of them to misdeclare their invoices or sales books or other books of accounts their true and correct sales.

SECTION 406. THE CITY TREASURER SHALL HAVE THE AUTHORITY TO ENTER INTO A COMPROMISE AGREEMENT ON THE MODE/MANNER OF PAYMENT OF DELINQUENT TAXPAYERS, WHICH SHALL NOT BE MORE THAN ONE (1) YEAR. IN NO CASE SHALL THE CITY TREASURER ENTER INTO A COMPROMISE AGREEMENT WITHOUT THE TAXPAYER ISSUING A POST

dated check corresponding to the agreed mode/manner of payment.

Provided, that if the delinquent taxpayer is an alien, in addition to the penalties prescribed in Section 419 hereof, the permit to engage in the business shall be recommended to the City Mayor for revocation.

Provided further, that any person, other than the merchant himself, who is found helping or conniving with the merchant in the commission of the violation of the preceding provisions shall also suffer the corresponding penalties prescribed under the above preceding section.

Provided finally, that if a government employee in any instrumentality of the government is found abetting, helping or conniving with the merchant in the commission of the crime or violations, aside from the penalties prescribed hereof, he shall also be administratively charged or recommended for dismissal from the government service.

Article Three. - Civil Remedies for Collection of Revenues

SECTION 407. APPLICATION OF ARTICLE

The provisions of this Article and remedies provided herein shall be used, as far as their nature permits, for the collection of any delinquent tax, fee, charges or other impositions.

SECTION 408. CITY GOVERNMENT'S LIEN

Local tax, fees, charges and other revenues herein provide constitute a lien, superior to all liens or charges or encumbrance in favor of private parties not only upon any property which may be subject to the charge but also upon property used in the conduct of business, pursuit of the occupation, practice of profession or calling or exercise of the privilege with respect to which the lien is imposed. The lien may only be extinguished upon full payment of the delinquent local taxes, fees and charges including related surcharges and interest.

SECTION 409. CIVIL REMEDIES

The civil remedies for the collection of local taxes, fees or charges, and related surcharges and interest resulting from delinquency shall be:

a) By administrative action through distraint of goods, chattels or effects, and other personal property of whatever character, including stocks and other securities, debts, credits, bank accounts, and interest in and rights to personal property, and to levy upon real property and interest in or rights to real property; and

b) By judicial action.

SECTION 410. DISTRAINT OF PERSONAL PROPERTY. THE REMEDY BY DISTRAINT SHALL PROCEED AS FOLLOWS:

(a) SEIZURE - upon failure of the person owing any local tax or charges, to pay the same at the time required, the City treasurer or his deputy may, upon written notice, seize or confiscate any personal property belonging to that person or any personal property subject to the tax lien, in sufficient quantity to satisfy the tax, fee, or charge in question, together with any increment thereto, incident to delinquency and expense of seizure. In such case, the City treasurer or his deputy shall issue a duly authenticated certificate based upon the records of his office showing the fact of delinquency and the amount of the tax, fee or charge and penalty due. Such certificate shall serve as sufficient warrant for the distraint of personal property aforesaid, subject to the taxpayer's right to claim exemption under the provisions of existing laws. Distraint personal property shall be sold at public auction in the manner herein provided for.

(b) ACCOUNTING OF DISTRAINED GOODS - The officer executing the distraint shall make or cause to be made an account of the goods, chattels or effects distressed, a copy of which signed by himself shall be left either with the owner or person from whose possession the goods or effects were taken or at

(c) PUBLICATION - The officer shall forthwith cause a notification to be exhibited in not less than three (3) public places in the territory of the local government units where the distraint is made, specifying the time and place of sale and the articles distrained. The time of sale shall not be less than twenty (20) days after notice to the owner or possessor of the property as above specified and the publication or posting of the notice. One place for the posting of the notice shall be at the Office of the City Mayor.

(d) RELEASE OF DISTRAINED PROPERTY UPON PAYMENT PRIOR TO SALE - If at any time prior to the consummation of the sale all proper charges are paid to the officer conducting the sale, the goods or effects distrained shall be restored to the owner.

(e) PROCEDURE OF SALE - At the time and place fixed the notice, the officer conducting the sale shall sell the goods or effects so distrained at public auction to the highest bidder for cash. Within five (5) days after the sale, the City Treasurer shall make a report of the proceedings in writing to the City Mayor.

Should the property distrained be not disposed of within one hundred twenty (120) days from the date of distraint, the same shall be considered as sold to the local government unit concerned for the amount of the assessment made thereon by the Committee on Appraisal and to the extent of the same amount, the tax delinquencies shall be cancelled.

Said Committee on Appraisal shall be composed of the City Treasurer as Chairman with a representative of the Commission on Audit and the City Assessor as members.

(f) DISPOSITION OF PROCEEDS - The Proceeds of the sale shall be applied to satisfy the tax, together with the increments thereto incident to delinquency, and the expenses of the distraint and sale. Any residue over and above what is required to pay the entire claim shall be returned to the owner of the property sold. The expenses chargeable upon the seizure and sale embrace only the actual expenses of seizure and preservation of the property pending the sale, and no charge shall be imposed for the services of the City Treasurer or his deputy. Where the proceeds of the sale are insufficient to satisfy the claim, other properties may, in like manner, be distrained until the full amount due including all expenses is collected.

SECTION 411. LEVY ON REAL PROPERTY. AFTER THE EXPIRATION OF THE TIME REQUIRED TO PAY THE DELINQUENCY TAX, FEE OR CHARGE, REAL PROPERTY MAY BE LEVIED ON BEFORE, SIMULTANEOUSLY OR AFTER THE DISTRAINT OF PERSONAL PROPERTY BELONGING TO THE DELINQUENT TAXPAYER. TO THIS END, THE CITY TREASURER SHALL PREPARE A DULY AUTHENTICATED CERTIFICATE SHOWING THE NAME OF THE TAXPAYER AND THE AMOUNT OF THE TAX, FEE OR CHARGE, AND PENALTY DUE FROM HIM. SAID CERTIFICATE SHALL BE OPERATED WITH THE FORCE OF A LEGAL EXECUTION THROUGHOUT THE PHILIPPINES. LEVY SHALL BE EFFECTED BY WRITING UPON SAID CERTIFICATE OF DESCRIPTION OF THE PROPERTY UPON WHICH LEVY IS MADE. AT THE SAME TIME, WRITTEN NOTICE OF THE LEVY SHALL BE MAILED TO OR SERVED UPON THE ASSESSOR AND REGISTER OF DEEDS OF THE CITY WHO SHALL ANNOTATE THE LEVY ON THE TAX DECLARATION AND CERTIFICATE OF TITLE OF THE PROPERTY, RESPECTIVELY, AND THE DELINQUENT TAXPAYER OR, IF HE BE ABSENT FROM THE CITY, TO HIS AGENT OR THE MANAGER OF THE BUSINESS IN RESPECT TO WHICH THE LIABILITY AROSE, OR OF THERE BE NONE, TO THE OCCUPANT OF THE PROPERTY IN QUESTION

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manager of the business in respect to which the liability arose, or of there be none, to the occupant of the property in question.

In case the levy on real property is not issued before or simultaneously with the warrant of distraint on personal property, and the personal property of the taxpayer is not sufficient to satisfy his delinquency, the City Treasurer shall within thirty (30) days after execution of the distraint, proceed with the levy on the taxpayer's real property.

A report on any levy shall, within ten (10) days after receipt of the warrant, be submitted by the levying officer to the Sangguniang Panlungsod.

SECTION 412. PENALTY FOR FAILURE TO ISSUE AND EXECUTE WARRANT. WITHOUT PREJUDICE TO CRIMINAL PROSECUTION UNDER THE REVISED PENAL CODE AND OTHER APPLICABLE LAWS, THE CITY TREASURER, IF HE FAILS TO ISSUE OR EXECUTE THE WARRANT OF DISTRAINT OR LEVY AFTER THE EXPIRATION OF THE TIME PRESCRIBED, OR IF HE IS FOUND GUILTY OF ABUSING THE EXERCISE THEREOF BY COMPETENT AUTHORITY, SHALL BE AUTOMATICALLY DISMISSED FROM THE SERVICE AFTER DUE NOTICE AND HEARING

SECTION 413. ADVERTISEMENT AND SALE. WITHIN THIRTY (30) DAYS AFTER LEVY, THE CITY TREASURER SHALL PROCEED TO PUBLICLY ADVERTISE FOR SALE OR AUCTION THE PROPERTY OR A USABLE PORTION THEREOF AS MAY BE NECESSARY TO SATISFY THE CLAIM AND COST OF SALE; AND SUCH ADVERTISEMENT SHALL COVER A PERIOD AT LEAST THIRTY (30) DAYS. IT SHALL BE EFFECTED BY POSTING A NOTICE AT THE MAIN ENTRANCE OF THE CITY HALL, AND IN A PUBLIC AND CONSPICUOUS PLACE IN THE BARANGAY WHERE THE REAL PROPERTY IS LOCATED, AND BY PUBLICATION ONCE A WEEK FOR THREE (3) WEEKS IN A NEWSPAPER OF GENERAL CIRCULATION IN THE CITY. THE ADVERTISEMENT SHALL CONTAIN THE AMOUNT OF TAXES, FEES OR CHARGES, AND PENALTIES DUE THEREON, AND THE TIME AND PLACE OF SALE, THE NAME OF TAXPAYER AGAINST WHOM THE TAXES, FEES OR CHARGES ARE LEVIED, AND A SHORT DESCRIPTION OF THE PROPERTY TO BE SOLD. AT ANY TIME BEFORE THE DATE FIXED FOR THE SALE, THE TAXPAYER MAY STAY THE PROCEEDINGS BY PAYING THE TAXES, FEES, CHARGES, PENALTIES AND INTERESTS. IF HE FAILS TO DO SO, THE SALE SHALL PROCEED AND SHALL BE HELD EITHER AT THE MAIN ENTRANCE OF THE CITY HALL OR ON THE PROPERTY TO BE SOLD, OR AT ANY OTHER PLACE AS DETERMINED BY THE CITY TREASURER, CONDUCTING THE SALE AND SPECIFIED IN THE NOTICE OF SALE

Within thirty (30) days after the sale, the City Treasurer or his deputy shall make a report of the sale to the Sangguniang Panlungsod, and which shall form part of his records. After consultation with the Sangguniang Panlungsod, the City Treasurer shall make and deliver to the purchaser a certificate of sale, showing proceedings of the sale, describing the property sold, stating the name of the purchaser and setting out the exact amount of all taxes, fees, charges and related surcharges, interests or penalties. Provided, however, that any excess in the proceeds of the sale over the claim and cost of sales shall be turned over to the owner of the property. The City Treasurer may, by a duly approved ordinance, advance an amount sufficient to defray the costs of collection by means of the remedies provided for in this Ordinance, including the preservation or transportation in case of personal property, and the advertisement and subsequent sale, in cases of personal and real property including the improvements thereon.

SECTION 414. REDEMPTION OF PROPERTY SOLD. WITHIN ONE (1) YEAR FROM THE DATE OF SALE, THE DELINQUENT TAXPAYER OR HIS REPRESENTATIVE SHALL HAVE THE RIGHT TO REDEEM THE PROPERTY UPON PAYMENT TO THE CITY TREASURER OF THE TOTAL AMOUNT OF TAXES, FEES OR CHARGES, AND RELATED SURCHARGES, INTERESTS, PENALTIES FROM THE DATE OF DELINQUENCY TO DATE OF SALE, PLUS INTEREST OF NOT MORE THAN TWO PERCENT (2%) PER MONTH ON THE PURCHASE PRICE FROM THE DATE OF PURCHASE TO THE DATE OF REDEMPTION. SUCH PAYMENT SHALL INVALIDATE THE CERTIFICATE OF SALE ISSUED TO

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The City Treasurer or his deputy upon surrender by the purchaser of the certificate of sale previously issued to him, shall forthwith return to the latter the entire purchase price paid by him plus the interest of not more than two percent (2%) per month herein provided for, the portion of the cost of sale and other legitimate expenses incurred by him, and said property thereafter shall be free from the lien of such taxes, fees or charges and other related surcharges, interest and penalties.

The owner shall not, however, be deprived of the possession of said property and shall be entitled to the rentals and other income thereof until the expiration of the time allowed for its redemption.

SECTION 415. FINAL DEED OF PURCHASER. IN CASE THE TAXPAYER FAILS TO REDEEM THE PROPERTY AS PROVIDED HEREIN, THE CITY TREASURER SHALL EXECUTE A DEED CONVEYING TO THE PURCHASER SO MUCH OF THE PROPERTY AS HAS BEEN SOLD, FREE FROM LIENS OF AN TAXES, FEES, CHARGES, RELATED SURCHARGES, INTERESTS AND PENALTIES. THE DEED SHALL SUFFICIENTLY RECITE ALL THE PROCEEDINGS UPON WHICH THE VALIDITY OF THE SALE DEPENDS

SECTION 416. PURCHASE OF PROPERTY BY THE CITY FOR WANT OF BIDDER. IN CASE THERE IS NO BIDDER FOR THE REAL PROPERTY ADVERTISED FOR SALE AS PROVIDED HEREIN OR IF THE HIGHEST BID IS FOR AN AMOUNT INSUFFICIENT TO PAY THE TAXES, FEES OR CHARGES, RELATED SURCHARGES, INTERESTS, PENALTIES AND COST, THE CITY TREASURER SHALL PURCHASE THE PROPERTY ON BEHALF OF THE CITY TO SATISFY THE CLAIM AND WITHIN TWO (2) DAYS THEREAFTER SHALL MAKE A REPORT TO HIS PROCEEDINGS WHICH SHALL BE REFLECTED UPON THE RECORDS OF HIS OFFICE. IT SHALL BE THE DUTY OF THE REGISTRAR OF DEEDS CONCERNED UPON REGISTRATION WITH HIS OFFICE OF ANY SUCH DECLARATION OF FORFEITURE TO TRANSFER THE TITLE OF THE FORFEITED PROPERTY TO THIS CITY WITHOUT THE NECESSITY OF AN ORDER FROM A COMPETENT COURT

Within one (1) year from the date of such forfeiture the taxpayer or any of his representative, may redeem the property by paying to the City Treasurer the full amount of taxes, fees, charges and related surcharges, interests or penalties, and the costs of sale. If the property is not redeemed as provided herein, the ownership thereof shall be fully vested on the city.

SECTION 417. RESALE OF REAL ESTATE TAKEN FOR TAXES, FEES OR CHARGES. THE SANGGUNIANG PANLUNGSOD MAY, BY DULY APPROVED ORDINANCE, AND UPON NOTICE OF NOT LESS THAN TWENTY (20) DAYS, SELL AND DISPOSE OF THE REAL PROPERTY ACQUIRED THE PRECEDING PARAGRAPH AT PUBLIC AUCTION. THE PROCEEDS OF THE SALE SHALL ACCRUE TO THE GENERAL FUND OF THIS CITY

SECTION 418. COLLECTION OF DELINQUENT TAXES, FEES, CHARGES OR OTHER REVENUES THROUGH JUDICIAL ACTION. THE CITY MAY ENFORCE THE COLLECTION OF DELINQUENT TAXES, FEES, CHARGES OR OTHER REVENUES BY CIVIL ACTION IN ANY COURT OF COMPETENT JURISDICTION. THE CIVIL ACTION SHALL BE FILED BY THE CITY TREASURER WITHIN THE PERIOD PRESCRIBED IN SECTION 194 OF THE REPUBLIC ACT NO. 7160, AS IMPLEMENTED UNDER ARTICLE 284 OF THE IMPLEMENTING RULES AND REGULATIONS (IRR)

SECTION 419. FURTHER DISTRAIN OR LEVY. THE REMEDIES BY DISTRAINT AND LEVY MAY BE REPEATED IF NECESSARY UNTIL THE FULL AMOUNT DUE, INCLUDING ALL EXPENSES IS COLLECTED

SECTION 420. PERSONAL PROPERTY EXEMPT FROM DISTRAIN OF LEVY. THE FOLLOWING PROPERTY SHALL BE EXEMPT FROM DISTRAINT AND THE LEVY, ATTACHMENT OR EXECUTION THEREOF FOR DELINQUENCY IN THE PAYMENT OF ANY LOCAL TAX, FEE OR CHARGE, INCLUDING THE RELATED SURCHARGE AND INTEREST:

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1. Tools and the implements necessarily used by the delinquent taxpayer in the trade or employment;

2. One (1) horse, cow, carabao, or other beast of burden, such as the delinquent taxpayer may select, and necessarily used by him in his occupation;

3. His necessary clothing, and that of all his family.

4. Household furniture and utensils necessary for housekeeping and used for that purpose by the delinquent taxpayer, such as he may select, of a value not exceeding Ten Thousand Pesos (P10,000.00)

5. Provisions, including crops, actually provided for individual or family use sufficient for four (4) months;

6. The professional libraries of doctors, engineers, lawyers, and judges;

7. One fishing boat and net, not exceeding the total value of Ten Thousand Pesos (P10,000.00), the lawful use of which a fisherman earns his livelihood; and

8. Any material or article forming part of a house or improvement of any real property.

Article Four. - Taxpayer's Remedies

SECTION 421. PERIODS OF ASSESSMENT AND COLLECTION

(a) Local taxes, fees, or charges shall be assessed within five (5) years from the date they became due. No action for the collection of such taxes, fees, or charges whether administrative or judicial shall be instituted after the expiration of such period: Provided, that taxes, fees, or charges which have accrued before the effectiveness of the Local Government Code of 1991 may be assessed within a period of five (5) years from the date they became due.

(b) In case of fraud or intent to evade the payment of taxes, fees, or charges the same may be assessed within ten (10) years from discovery of the fraud or intent to evade payment.

(c) Local taxes, fees, or charges may be collected within five (5) years from the date of assessment by administrative or judicial action. No such action shall be instituted after the expiration of said period: Provided however, that taxes, fees, and charges assessed before the effectiveness of the LGC of 1991 may be assessed within a period of three (3) years from the date of assessment.

(d) The running of the periods of prescription provided in the preceding paragraphs shall be suspended for the time during which:
1. The Treasurer is legally prevented from making the assessment of collection;
2. The taxpayers requests for a reinvestigation and executes a waiver in writing before expiration of the period within which to assess and collect; and
3. The Taxpayer is out of the country or otherwise cannot be located.

SECTION 422. PROTEST OF ASSESSMENT

When the City Treasurer or his duly authorized representative finds that correct taxes, fees or charges have not been paid, he shall issue a notice of assessment stating the nature of the tax, fee or charge, the amount of deficiency, the surcharges, interests and penalties.

Within sixty (60) days from the receipt of the notice of assessment, the taxpayer may file a written protest with the City Treasurer contesting the assessment; otherwise, the assessment shall become final and executory. The City Treasurer shall decide the protest within sixty (60) days from the time of its filing. In case where the protest is denied, the taxpayer shall have thirty (30) days from the receipt of denial or from the lapse of the sixty-day period prescribed herein within which to appeal with the court of competent jurisdiction otherwise the assessment becomes conclusive and unappealable.

SECTION 423. PAYMENT UNDER PROTEST

No protest shall be entertained unless the taxpayers first pays the tax. There shall be annotated on the tax receipts the words "paid under protest." The protest in writing must be filed within thirty (30) days from payment of the tax the City Treasurer who shall decide the protest within sixty (60) days from receipt.

SECTION 424. CLAIM FOR REFUND OF TAX CREDIT

No case or proceeding shall be maintained in any court for the recovery of a tax, fee, or charge erroneously or illegally collected until a written claim for refund or credit has been filed with the City Treasurer. No case or proceeding shall be entertained in any court after the expiration of two (2) years from the date of payment of such tax, fee or charge, or from the date the taxpayer is entitled to a refund or credit.

SECTION 425. LEGALITY OF THIS CODE

Any question on the constitutionality or legality of this ordinance may be raised on appeal within thirty (30) days from the effectiveness thereof to the Secretary of Justice who shall render a decision within sixty (60) days from the date of receipt of the appeal: Provided, however, that such appeal shall not have effect of suspending the effectivity of this ordinance and the accrual and payment of tax, fee or charge levied herein: Provided finally, that within thirty (30) days after the receipt of the decision or the lapse of the sixty-day period without the Secretary of Justice acting upon the appeal, the aggrieved party may file the appropriate proceeding with a court of competent jurisdiction.

Article Five. - Miscellaneous Provision

SECTION 426. POWER TO LEVY OTHER TAXES, FEES OR CHARGES

The City may exercise the power to levy taxes, fees or charges on any base or subject not otherwise specifically enumerated herein or taxed under the provisions of the National Internal Revenue Code, as amended, or other applicable laws: Provided, that the taxes, fees or charges shall not be unjust, excessive, oppressive, confiscatory or contradictory to declared national policy. Provided further, that the ordinance levying such taxes, fees or charges shall not be enacted without any prior public hearing conducted for the purpose.

SECTION 427. LIMITATIONS ON THE TAXING POWERS OF THE CITY

Unless otherwise provided herein, the exercise of the taxing powers of the City shall not extend to the levy of the following:

(a) Income tax, except when levied on banks and other financial institutions;

(b) Documentary stamp tax;

(c) Taxes on estates, inheritance, gifts, legacies and other acquisition mortis causa, except as otherwise provided herein;

(d) Customs duties, registration fees of vessels and wharfage on wharves, tonnage dues, and all other kinds of customs fees, charges and dues except wharfage on wharves constructed and maintained by the City;

(e) Taxes, fees and charges and other impositions upon goods carried into or out of, or passing through, the territorial jurisdictions of the City in the guise of charges for wharfage, tolls for bridges or otherwise, or other taxes, fees or charges in any form whatsoever upon such goods or merchandise;

(f) Taxes, fees or charges on agricultural and aquatic products when sold by marginal farmers or fishermen;

(g) Taxes on business enterprises certified to by the Board of Investments as pioneer or non-pioneer for a period of six (6) and four (4) years, respectively from the date of registration;

(h) Excise taxes on articles enumerated under the National Internal Revenue Code (NIRC), as amended, and taxes, fees or charges on petroleum products;

(i) Percentage or value-added tax (VAT) on sales, barters or exchanges or similar transactions on goods or services except as otherwise provided herein;

(j) Taxes on the gross receipts of transportation contractors and persons engaged in the transportation of passengers or freight by hire and common carriers by air, land or water, except as provided in the Local Government Code (RA 7160).

(k) Taxes on premiums paid by way of reinsurance or retrocession;

(l) Taxes, fees or charges for the registration of motor vehicles and for the issuance of all kinds of licenses or permits for the driving thereof, except tricycles;

(m) Taxes, fees or other charges on Philippine products actually exported, except as otherwise provided herein;

(n) Taxes, fees or charges on Countryside and Barangay Business Enterprises and Cooperatives duly registered under Republic Act No. 6810 and Republic Act No. 6938 otherwise known as the "Cooperative Code of the Philippines" respectively;

(o) Taxes, fees or charges of any kind on the National Government, its agencies and instrumentalities, and local government units;

(p) Taxes, fees or charges to those whose income are below poverty line, as certified by the City Social Services and Development Office (CSSDO); and

(q) Fees or charges to Students who seek documents in compliance with their educational requirements, duly certified by the School Head concerned.

SECTION 428. PUBLICATION OF THE REVENUE CODE

Within ten (10) days after its approval, a certified copy of this Ordinance shall be published in full for three (3) consecutive days in a newspaper of local circulation and the same be posted in at least two (2) conspicuous and publicly accessible places within the City Hall premises.

SECTION 429. AUTHORITY TO ADJUST RATES

The Sangguniang Panlungsod shall have the sole authority to adjust tax rates as prescribed herein not often than once every five (5) years, but in no case shall such adjustment exceed ten percent (10%) of the rates fixed under this Ordinance.

CHAPTER 9. GENERAL PENAL PROVISIONS

SECTION 430. GENERAL PENAL PROVISION

Any person or persons who violate any of the provisions of this ordinance not herein otherwise covered by any specific penalty or who shall otherwise violate the rules or regulations promulgated under authority of this ordinance shall, upon conviction, be punished by a fine of not less than One Thousand Pesos (P 1,000.00) nor more than Five Thousand Pesos (P 5,000.00), or imprisonment of not less than one (1) month nor more than six (6) months, or both at the discretion of the court.

If the violation is committed by any juridical entity, the President, General Manager, or the individual entrusted with the administration thereof at the time of the commission of the violation shall be held responsible or liable therefor.

Punishment by a fine or imprisonment as herein provided for shall not relieve the offender from the payment of the tax, fee or charge imposed under this Ordinance.

CHAPTER 10. FINAL PROVISIONS

SECTION 431. SEPARABILITY CLAUSE

If for any reason, any section or provision of this ordinance shall be held to be unconstitutional or invalid by competent authority, such judgment or action shall not affect or impair the other sections or provisions thereof.

SECTION 432. APPLICABILITY CLAUSE

All other matters relating to the impositions in this Ordinance shall be governed by pertinent provisions of existing laws and other ordinances.

SECTION 433. REPEALING CLAUSE

All ordinances, rules and regulations, or part thereof, in conflict with, or inconsistent with any provisions of this ordinance are hereby repealed or modified accordingly.

SECTION 434. EFFECTIVITY

This Ordinance shall take effect after it is published in full for three (3) consecutive days in a newspaper of local circulation, and the same has been posted in at least two (2) conspicuous places at the entrance of City Hall not later than five (5) days after approval thereof.

ENACTED, November 16, 2005, by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:

LOLITA C. GARCIA
Secretary to the Sangguniang Panlungsod (City Government Department Head II)

ATTESTED:
LUIS B. BONGUYAN
Vice Mayor II
Presiding Officer

APPROVED: DEC 02 2005

RODRIGO R. DUTERTE
City Mayor

ATTESTED:
WENDEL E. AVISADO
City Administrator